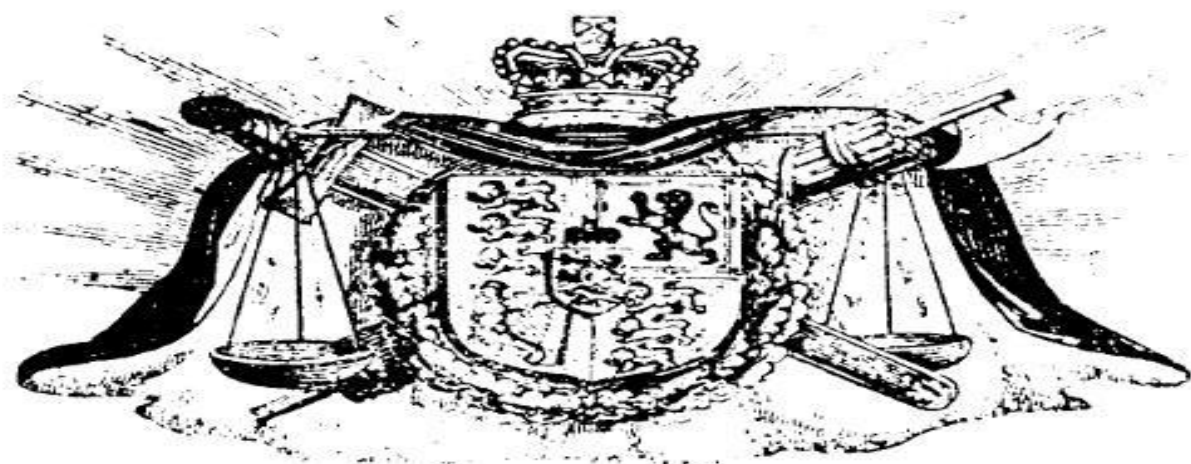


AN AUTHENTIC HISTORY
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CATO-STREET CONSPIRACY;
WITH THE
TRIALS
AT LARGE
OF THE CONSPIRATORS,
FOR
High Treason and Murder;
A DESCRIPTION OF THEIR
WEAPONS AND COMBUSTIBLE MACHINES,
AND
EVERY PARTICULAR CONNECTED WITH THE RISE, PROGRESS,
DISCOVERY, AND TERMINATION OF THE HORRID PLOT.

*With Portraits of all the Conspirators, taken during their Trials, by
Permission, and other Engravings.*

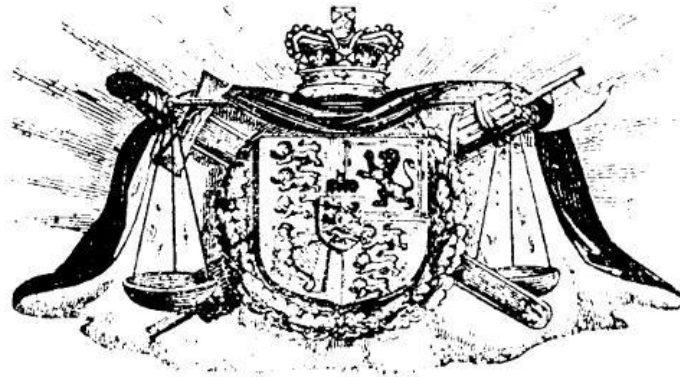


BY GEORGE THEODORE WILKINSON, Esq
EDITOR OF THE NEW NEWGATE CALENDAR IMPROVED

LONDON:
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Title: An Authentic History of the Cato-Street Conspiracy

Author: George Theodore Wilkinson

Release date: February 20, 2022 [eBook #67447]

Most recently updated: October 18, 2024

Language: English

Original publication: United Kingdom: Thomas Kelly, 1820

Other information and formats: www.gutenberg.org/ebooks/67447

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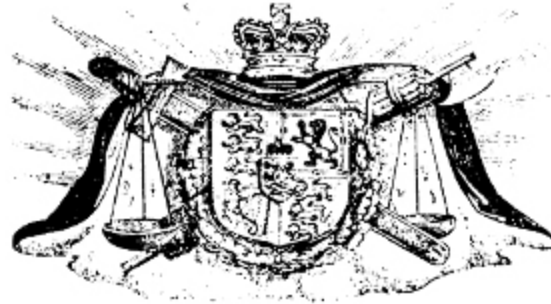
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Transcriber's Note:

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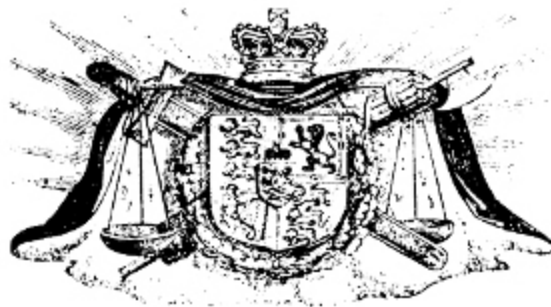


ARTHUR THISTLEWOOD.

AN AUTHENTIC HISTORY

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PREFACE.

To those, who are accustomed to look with an observant eye upon the causes which lead to the fall and destruction of nations, the present epoch offers materials for their most weighty consideration. They have seen their country involved in one of the most destructive and arduous contests ever recorded in its annals; they have seen the combined force of the civilized world directed against its very existence; they have witnessed its unexampled and glorious struggle; the loyalty and patriotism of the people, and finally they have beheld it, rising at the close of the contest, not subdued nor conquered, but towering with renovated fame and lustre, and scattering to their loathsome dens the dark demons of anarchy and ruin; they beheld the industrious artisan returning to the shuttle—the laborious peasant to the plough—the war-worn soldier was seated at his native hearth telling the story of his battles, and the weather-beaten sailor, in the fulness of his pride, was glorying in the wounds obtained in the defence of his country. Peace gave to the nation its blessings, and round the consecrated altars of our fathers knelt the children of this favoured land in grateful prayer to that God, who had gone forth with them in the day of battle; and who, in the wreck of surrounding kingdoms, had vouchsafed to spread over this his protecting hand. But, in the midst of these cheering prospects, the pestilential air of Atheism and Infidelity was raging abroad like the blasting heat of the Simoon in the desert, and throwing its sickening hue over the beautiful forms of Religion and Virtue. Men, if such an exalted name can be given them, who have openly thrown off all submission—all reverence—all duty and love to their God; who, in the most blasphemous manner, had reviled and denied their divine Redeemer, considered themselves enfranchised from every moral and religious duty, from allegiance to their earthly Sovereign and obedience to the laws of the country. In the latter they beheld an irksome, and disagreeable restraint upon the exercise of their degenerate passions, they tore themselves away from the great human Society, despised its relations and its duties, and in their midnight

assemblies traitorously plotted the massacre of some of the most exalted individuals of the country. In themselves they united the dreadful characters of traitor, incendiary, and murderer. Apostates from their religion, a spirit of horrible infidelity hardened their hearts against all the tender feelings of humanity and virtue, blinded their understandings to the dictates of truth, and rendered them capable of the vilest crimes. But the eye of Providence watched over their victims in the dark recesses where their hellish plots were engendered; the Omnipresent Being marked their actions, and, at the very moment of their expected accomplishment, dragged them forth to the execration and vengeance of their injured country.

We live in times teeming with events of such uncommon magnitude, that they seem to laugh to scorn all that we used to call important in our former history. Let us not deceive ourselves. It is no petty danger that threatens us; we are not anxious about some dubious point of honour, nor are we contending for any secondary interest; but for the very body and substance of our Island: not for the foliage, nor even the branches, but for the trunk of the British Oak; that Oak so different in all respects from the Tree of Liberty, intended to be reared in the Country by certain pretended Patriots; that Oak beneath which a grateful and a happy people had so long sheltered; and under which the distressed of other countries have often found a refuge, when driven to seek protection from the stormy blasts in their own less happy land.

But to what are the temporal evils which now afflict the country to be traced? Undoubtedly to apostacy in religion, and to the alarming growth of infidelity and deism. Conspirators never found an asylum in the habitations of Christians. The roll of turbulent revolvers that History has recorded and transmitted to us, as the assertors of the *Rights of Men*, exhibits not one disciple of the meek and lowly Jesus. The true believer in the doctrines of Christ feels himself, in the view of the picture exhibited of the real Christian, grounded still stronger upon the sure foundation of his faith upon the solid rock of this heavenly dispensation. His soul catches new fire from the host of examples which Christian History records: he shudders at the attempts which are made proud and factious men to withdraw subjects from their allegiance, to plunge them into the horrors of anarchy and civil war; he trembles with astonishment and indignation, when men rejoice over the mangled remains of Princes and of statesmen, and over the bloody corpses

of Sovereigns butchered by the hands of their own rebellious subjects. It is to the progress of irreligion and the decay of morals, that the increase of crime which now stigmatises the country, is to be attributed. It is to the fatal neglect of their religious duties, and to the renunciation of the blessings which Christianity offers them, that the miserable men, whose dreadful acts are recorded in the following pages, have been doomed to expiate their crimes on the scaffold. Religion does not leave the interests of mankind within the contracted circle of his social duties: its influence is extended in its protection to the utmost possible degree. The Christian is not only obliged by his profession to be a good man, but also to be a good citizen. He must be obedient to the governing powers under which he is born and placed. No subtilty of reasoning, nor any perversion of language or texts of Scripture will countenance him in acts of rebellion against his lawful Sovereign. Whenever, indeed, the standard of rebellion is unfortunately lifted up against our Prince, it is the duty of the Christian to be active in his allegiance, and to defend the Government to which he belongs, with all possible energy.

It has, however, pleased an Almighty Providence to protect the Rulers of this Country from the diabolical machinations of a set of lawless wretches who sought to erect their own interest on murder, rapine, and treason. Their names are transmitted to posterity, branded with the most horrible crimes that disfigure human nature; their lives are forfeited to the injured Laws of their Country: and, although they may have attempted to console themselves with the vain belief that the punishment for their deeds ends in this world, the dread reality has now flashed upon them that there is also another world in which the hardened and unrepentant sinner will meet his everlasting doom.

To the Atheist and the Infidel let the blood of these men speak with the most solemn admonition. The time is fast approaching when the veil of earthly things will be removed from their sight; when the cobweb texture of their fancied theories will be torn asunder; and truth, with its radiant light, burst upon them. Then let them pause, ere it be too late: a dreadful example has been set before them of the effect of irreligion and immorality. If the Atheist bear the holy name of father, let him ponder well ere he resign his soul to everlasting perdition: let him, as his babes cling around him, picture to himself the horrors of that grave on which no morning breaks; and the

excruciating horrors of that death-bed which is not blessed with the hope of a future state. Let him, in his dispassionate moments, visit the grave of the murderer Thistlewood; let him there reflect upon the end of a life of infidelity and irreligion; and then may that Almighty Being, who looks with a benignant eye upon the weaknesses of his creatures, guard him from the error of his ways, and teach him that real and substantial happiness on earth is only to be found in RELIGION, VIRTUE, and MORALITY.

ADDRESS.

Among all the wild, wicked, and visionary schemes of which we have seen the rise and fall, in this age of infidelity and disaffection, none can be compared with that of which we are about to give the frightful history, for extravagance in its origin, ferocity in its details, or fiend-like triumph in its anticipated consummation. It is an event which must for ever blot with disgrace the fair page of British history, and it exhibits an awful and humiliating view of the state of degradation to which the human mind may be brought, when once it has cast off the fear of God, as inculcated in the divine precepts of Christianity.

The present work professes to be an authentic and digested history of the rise, progress, discovery, and termination of the atrocious Cato-street Conspiracy; interspersed with so much of the personal history of the individuals concerned, as may be necessary to illustrate the principle which it is the main object of this work to inculcate, namely, that the abandonment of the duties of our holy religion alone, is it to be attributed that we have men among us wicked enough to conceive, and others so weak as to assist in, such preposterous and atrocious schemes.

The first part contains the history of the plot; its detection; the murder of Smithers, the peace-officer, in the execution of his duty; particulars of the subsequent arrests; all the proceedings before the Police Magistrates, and the Privy Council; and a full and accurate description of the horrid weapons of destruction, and infernal combustible machines, intended to be used by this detestable gang of assassins.

The second part contains, at great length, the TRIALS of all the executed conspirators, and the disposal of the other persons arrested, with a variety of additional particulars relative to the plot. The accounts of the execution, and decapitation, which are given with great correctness and fidelity, will be found interesting and affecting, and the APPENDIX contains sketches of the

lives and conduct of the executed criminals, together with a copious history of the proceedings relative to that base and infamous individual GEORGE EDWARDS, the Spy and instigator to Treason.

The work is confidently submitted to the public, in the earnest hope that it may be found so serious a comment on the intentions and ultimate views of sanguinary and designing men,—who traverse the country, intruding themselves into all classes of society, with specious plans of reform in their mouths, but, in reality, with revolution, massacre, and plunder in their hearts,—that every honest man, and every Christian, may be induced to shun their councils as he would a pestilence, and to adopt for his motto and rule of conduct the truly-British sentiment of our forefathers,

“FEAR GOD AND HONOUR THE KING.”

TO THE BINDER.

Place this quarter sheet, (a) containing ADDRESS, &c.
immediately between the Title and the Preface, and insert
the PLATES in the following order, viz.:

Portrait of Thistlewood to face Title-page.	
View of the Premises in Cato-Street	10
Portrait of Adams	109
—— Hyden	109
—— Monument	167
—— Tidd	325
—— Davidson	339
—— Ings	378
—— Brunt	378
The Execution	385

HISTORY
OF THE
Cato-Street Conspiracy,
&c. &c.

On the morning of Thursday the 24th of February 1820, the metropolis was thrown into the greatest consternation and alarm, by the intelligence, that, in the course of the preceding evening, a most atrocious plot to overturn the government of the country, had been discovered, but which, by the prompt measures directed by the privy council, who remained sitting the greatest part of night, had been happily destroyed by the arrest and dispersion of the conspirators. Before day-light the following proclamation was placarded in all the leading places in and about London:—

LONDON GAZETTE EXTRAORDINARY,

Thursday, February 24, 1820.

Whereas *Arthur Thistlewood* stands charged with high treason, and also with the wilful murder of Richard Smithers, a reward of *One Thousand Pounds* is hereby offered to any person or persons who shall discover and apprehend, or cause to be discovered or apprehended, the said Arthur Thistlewood, to be paid by the lords commissioners of his majesty's treasury; upon his being apprehended and lodged in any of his Majesty's gaols. And all persons are hereby cautioned upon their allegiance not to receive or harbour the said Arthur Thistlewood, as any person offending herein will be thereby guilty of high treason.

SIDMOUTH.

The above-named Arthur Thistlewood is about forty-eight years of age, five feet ten inches high, has a sallow complexion, long visage, dark hair, (a little grey), dark hazel eyes and arched eye-brows, a wide mouth and a good set of teeth, has a scar under his right jaw, is slender made, and has the appearance of a military man; was born in Lincolnshire, and apprenticed to an apothecary at Newark; usually wears a blue long coat and blue pantaloons, and has been a lieutenant in the militia.

The particular part of the plan of the traitorous conspirators, which had been frustrated by their arrest the previous evening, was the following; and its atrocity fully justified the alarming impression which the first rumours had created.

It had been ascertained by the gang, that the greater part of his majesty's ministers were to dine together at the Earl of Harrowby's, and this was considered as a favourable opportunity for effecting their entire extermination: Thistlewood was to have knocked at Lord Harrowby's door, with a letter, purporting to be a despatch, or with a red box, such as is used in all the public offices, desiring it to be delivered immediately to the cabinet ministers at dinner, without delay. The servant, it was supposed, would immediately proceed with the despatch, while Thistlewood, with another of the conspirators, entered the hall as if to wait. They were immediately to open the street-door, others were to come in with hand-grenades, which were to be thrown into the house; and, in the confusion produced by them, all the rest of the conspirators were to rush into the dining-room, where the ministers were at dinner, and the work of assassination was to have been instantly begun.

The sensations thus excited in the public mind, were by no means allayed, when, in the course of the day, the details of the horrible transaction began to develop themselves; every one felt a breathless anxiety to probe to the bottom the secret workings of so detestable a conspiracy, confidence between man and man became weakened, and that social intercourse which constitutes the peculiar charm of society in this happy country, seemed to be placed at the mercy of the midnight assassin; the only hope left to the upright and the loyal portion of the community was, that the discovery

would finally terminate in the beneficial result of purging society of some of the foulest members that apparently ever moved in it.

For some time previous to the day on which the arrests took place, it had been known to his Majesty's government, that an attempt at the assassination of his Majesty's ministers was meditating, and that Arthur Thistlewood was at the bottom of it. On Tuesday, the 22d of February, certain advice was received, that the attempt was to be made on Wednesday night, at the Earl of Harrowby's, in Grosvenor-square. It is supposed that the Earl of Harrowby's was fixed upon, because, being nearer the outlet from London than the residence of any other of the cabinet ministers (Lord Westmoreland's excepted, who lives in the same square,) escape out of town, after the attempt had been made, would have been more easy. Be this as it may, the conspirators, as soon as they had ascertained that the cabinet dinner was to be held there, lost no time in arranging their dreadful and diabolical project.

The place chosen to arrange finally their proceedings, to collect their force, and to arm themselves, was near the Edgeware-road. John-street is a short distance on the road, and intersected by another street, called Cato-street.

Cato-street is rather an obscure street, and inhabited by persons in an humble class of life; it runs from John-street into Queen-street, and is parallel with Newnham-street. It is open at one end for the admission of carriages, but is closed by posts at the other. The premises occupied by the conspirators consisted of a three-stall stable, with a loft above, in a very dilapidated condition. They are the property of General Watson, and have been recently in the possession of an old servant of his, who had turned cow-keeper. From this man they had been engaged by some of the diabolical crew whose machinations have been so happily discovered. The people in Cato-street were utterly ignorant that the stable was let until Wednesday, when several persons were seen to go in and out, and carefully to lock the door after them. Some of these individuals carried sacks, and parcels of various descriptions.

For two or three hours previous to the entrance of the stable, the police-officers were on the spot, making their observations, but still no suspicion was excited of the real object of their attack; and so well was the plan of

surprise laid, that, until the discharge of fire-arms was heard, every thing remained perfectly quiet.

Thus accurately informed of the intentions of the conspirators, warrants were issued to apprehend them while they were assembled. These warrants were put into the hands of the police-officers, under the able direction of Richard Birnie, Esq., the chief magistrate of Bow-street. A detachment of the Coldstream Guards from Portman-street barracks, were also ordered to accompany the police-officers. They proceeded to the place of meeting in Cato-street, the police-officers proceeding first. The conspirators had taken the precaution to place a sentinel below.

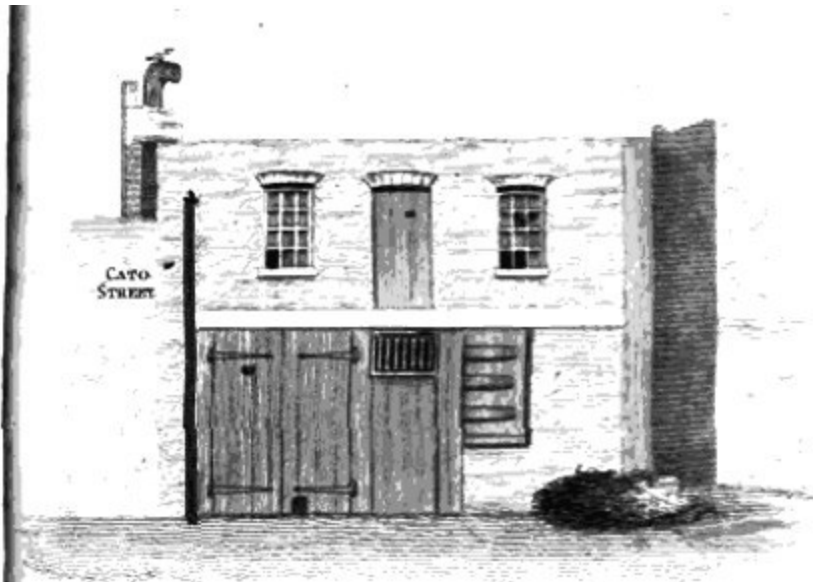
The military consisted of the picket-guard of the 2d Coldstream Regiment, which was stationed in Portman-street barracks. It consisted of thirty men, including a sergeant and corporal, and commanded by Captain Frederick Fitzclarence, who happened to be on duty at the time. They were called out about a quarter to eight o'clock; each man provided with twenty rounds of ball cartridge. The detachment immediately proceeded in the direction of the Edgware-road. The men were not acquainted with the business on which they were called out. They supposed a fire had taken place, and that they had been sent for to protect the property. On their arrival within about sixty yards of the house in Cato-street, John-street, the place of the meeting, they were halted for a few minutes, during which they were ordered by Captain Fitzclarence to fix bayonets and shoulder arms. They were also enjoined to observe the strictest silence. The detachment then marched on, but had not proceeded more than a few yards when they heard the noise of fire-arms. They were then ordered to advance in double quick time, and instantly came in junction with the civil officers, who had arrived previously on the ground, and were engaged with the party in the house.

The only approach to this pandemonium was by a narrow ladder. Ruthven, one of the principal Bow-street officers, led the way, and he was followed by Ellis, Smithers, Surman, and others of the patrol. On the door being opened, about twenty-seven or thirty men were seen within, all armed in some way or other; and some of them engaged either in charging fire-arms, or in girding themselves in belts similar to those worn by the military, while others were in close and earnest deliberation. There were tables about the

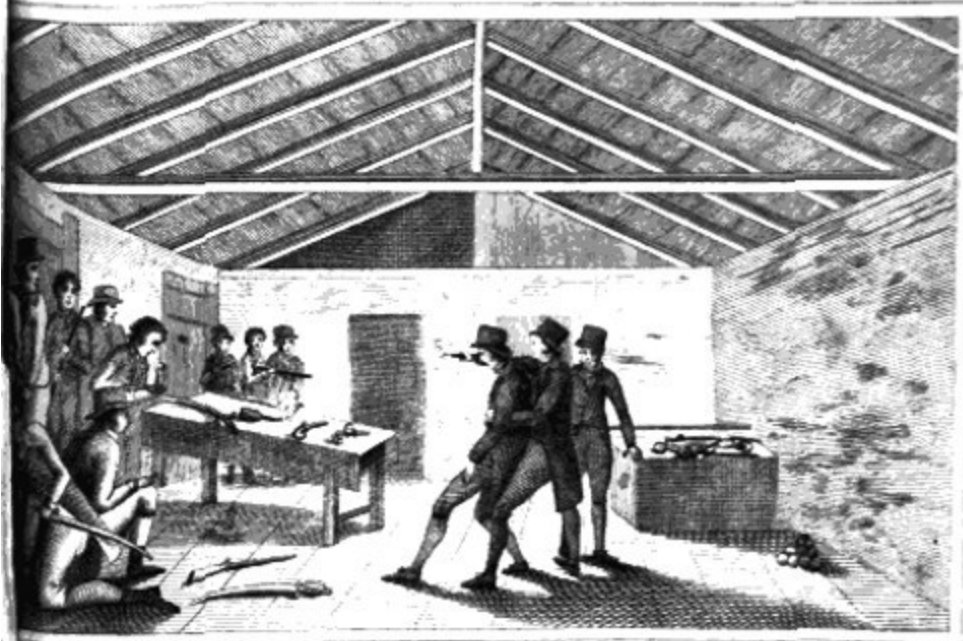
room, on which lay a number of cutlasses, bayonets, pistols, sword-belts, pistol-balls in great quantities, ball-cartridges, &c.

As the officers entered the room, the conspirators all started up, when Ruthven, who had been furnished with a warrant from the magistrates, exclaimed—"We are peace-officers! Lay down your arms!" In a moment all was confusion. The notorious Arthur Thistlewood, opposed himself to the officers, armed with a cut-and-thrust sword of unusual length. Ruthven attempted to secure the door, and Ellis, who had followed him into the room, advanced towards the man, and, presenting his pistol, exclaimed—"Drop your sword, or I'll fire instantly!" Thistlewood brandished his sword with increased violence, when Smithers, the other patrol, rushed forward to seize him; and on the instant the ruffian stabbed him to the heart. Poor Smithers fell into the arms of his brother-officer, Ellis, exclaiming—"Oh, God! I am——" and in the next instant was a corpse.

Whilst this deed was doing, the lights were extinguished, and a desperate struggle ensued, in which many of the officers were severely wounded. Surman, one of the patrol, received a musket-ball on the temple, but fortunately it only glanced along the side of his head, tearing up the scalp in its way. The conspirators kept up an incessant fire; whilst it was evident to the officers that many of them were escaping by some back way. Mr. Birnie exposed himself every where, and encouraged the officers to do their duty, whilst the balls were whizzing round his head. At this moment Captain Fitzclarence (a young officer well known for his gallantry and gentlemanly conduct) arrived at the head of the detachment of the Coldstream Guards. They surrounded the building, and Captain Fitzclarence, with Sergeant Legge and three files of grenadiers entered the stable, where the first object that presented itself to their sight, was one of the party running out of the stable, apparently with intention to make his escape. He was seized by one of the soldiers, when the ruffian instantly approached the gallant captain, and presented a pistol at his breast; but, as he was in the act of pulling the trigger, Sergeant Legge rushed forward, and, whilst attempting to put aside the destructive weapon, received the fire upon his arm. Fortunately for this brave man, the ball glanced along his arm, tearing the sleeve of his jacket, from the wrist to the elbow, and only slightly wounding him.



Exterior View.



Interior View.

A black man was the next that was started from his place of concealment; he was armed with a cutlass. He also aimed a blow at Captain Fitzclarence, but was seized and secured by one of the soldiers, James Basey, without any injury to the latter but a slight cut on the finger. Then addressing himself to his friends in the house, he exclaimed, "Fight on while you have a drop of blood in you—you may as well die now as at another time."

The detachment was then ordered to rush forward which they did, headed by their captain, who darted into a stall, and seized by the collar a fellow who was standing in it, and who grappled with him with one hand, while he attempted to fire a pistol at him with the other, which did not go off, the powder flashing in the pan. The miscreant still holding firmly by the coat, the captain called out to his men to disengage him. Two of them, James Revel and James Basey, immediately seized him, and he surrendered himself, saying, "Do not kill me, and I'll tell you all." This scene took place in the stable on the ground-floor. It was a three-stalled stable, with a hay-loft over it, with which it communicated by a ladder placed at one end. The detachment led by Captain Fitzclarence then mounted the ladder and into the loft, now filled with smoke, and only illuminated by the occasional flashes of the fire-arms of the conspirators.

In the confusion naturally occasioned by the contest, Thistlewood contrived to make his escape, almost unobserved, and the constables had by this time retired for the purpose of surrounding the house, and intercepting the flight of any others of the gang. On entering the loft, the military came in contact with the dead body of the murdered Smithers, (the constable), and a ruffian lying at his side all covered with the blood of the dead man. The fellow rose, and did not appear to have sustained any hurt or injury. Addressing himself to the soldiers, he said, "I hope they will make a difference between the innocent and the guilty." Three others were next taken together; they were huddled in a corner among some shavings. One of them jumping out said, "I resign myself; there is no harm; I was brought in here innocent this afternoon."

These four were all of them found by the soldiers in the room, making, with the man taken below in the stall, and the two outside, seven prisoners. The constables had previously taken two, one of whom made his escape down the street, but was pursued and re-taken. The moment he was caught he fired a pistol, which he had concealed on his person: it went off, but did no injury.

Muddock, one of the soldiers, when he entered the loft, in the midst of darkness, ran against something which he at the moment conceived to be a part of the building. He was, however, soon undeceived, by a wretch snapping a pistol at him, which happily missed fire. Failing in this

detestable purpose, the miscreant threw himself on the ground, exclaiming, "*Use me honourably*," and the gallant soldier contented himself with making him prisoner. When this was mentioned to Captain Fitzclarence, he asked Muddock why he had not stuck his opponent; the reply of the brave fellow was, "Why, your honour, I had him by the heels, and I took his pistol from him, and I wanted no more." The pistol was loaded nearly to the muzzle.

It is impossible to give a minute detail of the desperate conflict which took place, or the numerous instances of personal daring manifested by the peace-officers and the military, thus brought into sudden contact with a band of assassins in their obscure den, and in utter darkness. Unfortunately, this darkness favoured the escape of many of the wretches, and the dreadful skirmish ended in the capture of only nine of them. The military, on searching the loft, found a great quantity of pistols, blunderbusses, swords, and pikes, about sixteen inches long, made to screw into a handle. They also found a great many common files, sharpened to a point at the ends, and made to be used as pikes: they also found a large quantity of ammunition, consisting of ball-cartridges, powder-flasks, slugs wrapt up in paper, and a sack full of hand-grenades. The military, accompanied by the constables, then withdrew, and proceeded to Bow-street-office with their prisoners.

The soldiers were laden with the arms and ammunition which they found in the stable; and having delivered their prisoners and booty, four of them were examined briefly by the Magistrates, viz., James Revel, James Basey, William Curtis, and John Muddock. They identified the prisoners who were then standing at the bar, as the persons whom they had taken in the stable. The fire-arms and ammunition were then shown to them, which they also identified. Captain Fitzclarence, with his detachment, then marched back to Portman-barracks, to which also they conveyed the arms and ammunition taken, and deposited them in the Captain's room.

Shortly after the arrival of the cavalcade at the police-office, in Bow-street, Mr. Birnie, the Magistrate, arrived, and having taken his seat at the bench, the prisoners were placed at the bar in the following order:—

James Ings, a butcher,
James Wilson, a tailor,

Richard Bradburn, a carpenter,
James Gilchrist, a shoemaker,
Charles Cooper, a bootmaker,
Richard Tidd, a bootmaker,
John Monument, a shoemaker,
John Shaw, a carpenter, and
William Davidson, a cabinet-maker.

Davidson is a man of colour, and a worthy coadjutor of Messrs. Watson, Thistlewood, and Co., upon many occasions. At the meeting in Finsbury market-place, a few months ago, this fellow was one of the principal speakers, and advised the persons assembled to go armed to all public meetings; and was also the bearer of the black flag, with a death's head, in the mob which attempted to excite a tumult in Covent-garden, during the election. When Ellis, the officer, was putting the handcuffs on him, he amused himself by vociferating passages from the popular air of "Scots wha ha'e wi' Wallace bled," and frequently exclaiming, "B—st and d—n the eyes of all those who would not die for liberty."

Ings is a fierce ruffian, a short stout man, apparently between 30 and 40, but of most determined aspect. His hands were covered with blood; and as he stood at the bar, manacled to one of his wretched confederates, his large fiery eyes glared round upon the spectators with an expression truly horrible. The rest had nothing extraordinary in their appearance. They were for the most part men of short stature, mean exterior, and unmarked physiognomy.

The office was crowded with soldiers and officers, bringing in arms and ammunition of various kinds, which had been taken on the premises; muskets, carabines, broad-swords, pistols, blunderbusses, belts, and cartouch-boxes, ball cartridges, gunpowder, (found loose in the pockets of the prisoners), haversacks, and a large bundle of singularly-constructed stilettoes. These latter were about 18 inches long, and triangular in form: two of the sides being concave, and the other flat; the lower extremity having been flattened, and then wrung round spirally, so as to make a firm grip, and ending in a screw, as if to fit into the top of a staff. Several staves indeed were produced, fitted at one end with a screwed socket; and no doubt they were intended to receive this formidable weapon.

The depositions of a number of officers, most of them wounded, and several of the soldiers, having been taken, their evidence substantiating the foregoing narrative, the prisoners were asked whether they wished to say any thing? Cooper, and Davidson the black, were the only ones who replied, and they merely appealed to the officers and soldiers to say, whether they had not instantly surrendered themselves. Ellis, the patrol, who received the murdered body of his comrade Smithers in his arms, replied, that Davidson had made the most resistance. At the moment when the lights were extinguished, he had rushed out of the place, armed with a carbine, and wearing white cross-belts. Ellis pursued him a considerable distance along John-street; and, having caught him, they fell together, and in the deadly struggle which ensued, Davidson discharged his carbine, but without effect, and Ellis succeeded in securing him.

Captain Fitzclarence had seized and secured one or two of the prisoners with his own hands, and he was not only much bruised, but his uniform was almost torn to pieces.

We will here shortly digress, for the purpose of stating the immediate circumstances which led to the frustration of the sanguinary plot, and the arrest of its fiend-like authors.

It had been for some time well known to government, that Thistlewood, forgetful of his narrow escape on the former occasion of an indictment for High Treason^[1], and, as it were, unconscious of the blessings of that constitution, which in the equal and upright administration of justice to all, gives to the accused party the advantage of the conscientious doubts of the jury, and which beneficent feature in the trial by a British Jury had alone saved him from condign punishment, had never ceased to pursue his disloyal and traitorous designs, but had still continued in darkness and obscurity, to hatch new plots, as preposterous as diabolical, and to entrap new agents, as weak as they were wicked, and as certain of being ultimately involved in the same sacrifice to public justice, as he himself seemed devoted to by a besotted perseverance in his horrid principles.

Conscious, however, as were the ministers that some dreadful scheme was perfecting, and that a tremendous blow was about to be struck, they were

ignorant of the time or nature of the intended movement, until the very day destined for its consummation, when a communication was made to the Secretary of State for the Home Department, by Lord Harrowby, who stated that he had that morning been stopped by a man, when riding in St James's-park, who delivered to him a letter, the contents of which were, that a gang of assassins were to assassinate his Lordship and the rest of the cabinet ministers, when assembled at his house on the evening of that day at a cabinet dinner. His Lordship, although he did not know the man, listened to his representation, in addition to the contents of the letter, and afterwards consulted his brother ministers upon the subject; and they immediately determined to postpone the cabinet dinner.

The discovery, indeed, of the infamous wretches and their intended diabolical act is next to a miracle, and is only to be attributed to the determination and perseverance of the man who made the communication to the earl of Harrowby: he called at his lordship's house, in Grosvenor-square, on Wednesday morning, (the 23d), between eleven and twelve o'clock, and inquired of the porter if the noble earl was at home? The porter replied in the negative. The man appeared very anxious to see his lordship, but the porter did not give him any hopes, as he refused to tell his business; the man, however, urged the necessity of seeing his lordship, without loss of time; and at length he observed, that if he did not see him, the porter would not be sitting in his chair in the hall to-morrow. This observation astonished the porter, and induced him to believe that the man really had something of a serious and alarming nature to communicate to the noble earl: he then told him that his lordship was riding on horseback in the park, directed him to that part in which he was most likely to find him, and described his groom and the livery he wore, &c. The man hastened to the Park, and discovered the groom, as described by the porter, hailed him, and asked him if the gentleman before was the earl of Harrowby? The groom replied in the affirmative. The man then told him, that he wanted and must speak with his lordship. The groom informed his noble master, who immediately stopped his horse. The man then presented a letter to him, which the earl opened and read. The man having informed him that he had a deal more to communicate, his lordship dismounted, and walked and talked with the man for some time; and the result of their interview was the communication to the secretary of state, of which we have just spoken.

Precautions were immediately taken at the secretary of state's office, for the discovery and apprehension of the villains. The first intimation that was given of the affair at the office in Bow-street was at past seven o'clock, when it was made known that a number of officers, constables, and patrol, would be wanted. Ellis, who is a conductor of a party of patrol, was ordered to leave his division, and repair to the office with the men under his direction. The expedition upon which they were to be sent was kept a secret till they started, which was between half-past eight o'clock and nine. The place of rendezvous of the assassins was in Cato-street, John-street, in the Edgware-road, where the neighbours had become alarmed by a number of strange men assembling in a stable, and a loft over it, after dark; sacks being hung up on the inside of the windows to prevent detection.

In the course of the day inquiries had been made, and the result was, that some desperate act was expected to take place. The ministers' servants were armed with pistols, and two officers or constables appointed to each residence. The Earl of Harrowby and Viscount Castlereagh dined with the Earl of Liverpool; and at nine o'clock they went to the secretary of state's office for the home department, at which time all the cabinet ministers assembled. Mr. Birnie, the magistrate, was directed by Viscount Sidmouth to be in Cato-street, and in readiness to act in case of emergency. A party of the guards, under the command of Captain Fitzclarence, was ordered to march to Cato-street, to assist the police, if necessary. Unfortunately, however, they were not clearly directed, or they did not understand where the place was, as they were at the contrary end of the street when the assassins commenced their murderous attack upon the officers, and it was only by the discharge of pistols that they found out where the building was. When the police-officers arrived, they found two sentinels at the door, armed with guns and swords. These opposed their admittance without the pass-word. The officers, however, soon overpowered and secured them. They then gave an alarm, and the officers heard by the noise in the loft that several persons were up stairs. They ascended to the loft by a ladder which the conspirators themselves had used; when the contest, which we have already described, ending in the arrest of most of the conspirators, took place.

The same sources of information which led to the detection of the conspiracy enabled the magistrates to trace the hiding-place of Thistlewood. Instead of returning to his own lodgings in Stanhope-street, Clare-market, it was discovered that he had proceeded to an obscure house, No. 8, White-street, Little Moorfields. Thither, at nine o'clock on Thursday morning, the 24th of February, Lavender, Bishop, Ruthven, Salmon, and six of the patrol, were despatched. On arriving at the house, three of the latter were placed at the front, and three at the back door, to prevent escape. Bishop observed a room on the ground-floor, the door of which he tried to open, but found it locked. He called to a woman in the opposite apartment, whose name is Harris, to fetch him the key. She hesitated, but at last brought it. He then opened the door softly. The light was partially excluded, from the shutters being shut; but he perceived a bed in the corner, and advanced. At that instant a head was gently raised from under the blankets, and the countenance of Thistlewood was presented to his view. Bishop drew a pistol, and presenting it at him, exclaimed, "Mr. Thistlewood, I am a Bow-street officer; you are my prisoner:" and then, "to make assurance doubly sure," he threw himself upon him. Thistlewood said, he would make no resistance. Lavender, Ruthven, and Salmon, were then called, and the prisoner was permitted to rise. He had his breeches and stockings on, and seemed much agitated. On being dressed, he was handcuffed; in his pockets were found some ball-cartridges and flints, the black girdle, or belt, which he was seen to wear in Cato-street, and a sort of military silk sash.

A hackney-coach was then sent for, and he was conveyed to Bow-street. In his way thither he was asked by Bishop, what he meant to do with the ball-cartridges; he declined answering any questions. He was followed by a crowd of persons, who repeatedly cried out, "Hang the villain! hang the assassin!" and used other exclamations of a similar nature.

When he arrived at Bow-street, he was first taken into the public office, but subsequently into a private room, where he was heard, unguardedly, to say, that "he knew he had killed one man, and he only hoped it was Stafford;" meaning Mr. Stafford, the chief clerk of the office, to whose unremitting exertions in the detection of public delinquents too much praise cannot be given.

Mr. Birnie, having taken a short examination of the prisoner, sent him to Whitehall to be examined by the Privy-Council. Here the crowd was as great as that which had been collected in Bow-street. Persons of the highest rank came pouring into the Home Office, to learn the particulars of what had transpired.

The arrest of Thistlewood was heard with infinite satisfaction; he was placed in a room on the ground-floor, and a vast number of persons were admitted in their turn to see him. His appearance was most forbidding. His countenance, at all times unfavourable, seemed now to have acquired an additional degree of malignity. His dark eye turned upon the spectators as they came in, as if he expected to see some of his companions in guilt, who he had heard were to be brought thither. He drank some porter that was handed to him, and occasionally asked questions, principally as to the names of the persons who came to look at him. Then he asked “to what gaol he should be sent?—he hoped not to Horsham.” (This was the place in which he was confined, in consequence of his conviction for sending a challenge to Lord Sidmouth.)

At two o’clock he was conducted before the Privy-Council. He was still handcuffed, but mounted the stairs with alacrity. On entering the council-chamber he was placed at the foot of the table. He was then addressed by the Lord Chancellor, who informed him that he stood charged with the twofold crime of treason and murder; and asked him whether he had anything to say for himself? He answered, that “he should decline saying any thing on that occasion.”

No persons were suffered to have access except those on business to the public offices at Whitehall, nor was any individual allowed to hold communication with the prisoner. About a dozen soldiers were in the hall and adjoining lodge; they formed a part of the military escort that accompanied the police-officers to the spot where Thistlewood and his companions were first discovered. The soldiers had with them the different articles and weapons found upon the party when taken, among which were two small pistols, one of them loaded, and a bundle of files, similar to those used in small brasswork. The points of such files are always sharp, and the part of the file which goes into the handle is necessarily pointed, to penetrate the hole made in the wood for its reception; some of the files

appeared, however, to have had the handle-points brightened, and the ends made more fine, as if by being whetted upon a stone. There were also in the hall two or three bags, containing three bayonets and some ammunition, made up in both small and large cartridges. The soldiers who had seized those articles were examined before the Privy-Council. After his examination, Thistlewood was taken back to the room in which he had been previously placed; his commitment to Coldbath-fields was made out, and he was conveyed to that prison under the care of six officers. There was a partial shouting and groaning, as the carriage in which he was placed drove off.

The appearance of Thistlewood at this time was wretched in the extreme. When in custody with Watson, Preston, and Hooper, on the charge for high treason, he was a stout, active, cheerful-looking man, with something of a fearless and determined cast of features. His deportment at that time was free and unembarrassed, with much of the air of a sea-faring man. Within the six months previous to the present arrest, his appearance had, in every respect, undergone a total change; he had been seen constantly in the streets, dressed in a shabby manner; his countenance squalid and emaciated, and his whole dress and the expression of his features, denoting a man who was reduced to a state of extreme indigence. He was generally observed walking or running through the streets with eager impetuosity, and his shoes and an old surtout coat, which he generally wore, bearing all the marks of the poverty and distressed circumstances of the wearer.

When before the Privy-Council, his dress was an old black coat and waistcoat, which were thread-bare, corduroy breeches very much worn, and old worsted stockings. His general appearance indicated great distress; his limbs were slender, and his countenance squalid and somewhat dejected. There was nothing of agitation in his manner. He sat with his eyes chiefly fixed on the ground, except when he occasionally raised them to survey Members of the Privy-Council, as they passed through the hall on their way to the Council-room.

The following Privy-Councillors were present at his examination:—The Duke of Wellington, the Earls of Harrowby, Liverpool, and Westmoreland, Lords Sidmouth, Castlereagh, and Melville, the Chancellor of the Exchequer, Mr. Canning, Mr. Wellesley Pole, Sir William Scott, the Chief

Baron of Scotland, the ex-Attorney-general, (Sir S. Shepherd), Mr. Bragge Bathurst, and other members of the cabinet.

It is impossible to describe the anxiety and horror which pervaded the countenances of thousands of persons who went to view the scene of action the day after the arrest. Through the whole of the day, and till very late in the evening, several persons of the highest consideration in the country visited the place. A man no way authorized, took possession of the place, and imposed on the public by demanding a shilling from each person for admission.

The alarm in the neighbourhood, on hearing the report of fire-arms, and the noise of contest on premises which they considered untenanted, may be more easily conceived than described. It was heightened by every circumstance of terror that the imagination could form to itself. The house was surrounded with soldiers and police-officers—fighting was heard within—officers were obscurely seen scaling a ladder and entering the scene of battle, while their fate and the cause of the combat were entirely unknown. Some of the persons belonging to the public-house adjoining, after running to the spot, fled in dismay when they heard the balls whistling about their ears.

Several of the inhabitants of Cato-street had observed, since the preceding Monday, strange-looking men coming about the empty premises. On the morning of Wednesday, (the day of the arrest) they saw Davidson, the man of colour, and three others, watching at different ends of the street, while some of their associates were heard nailing up the windows within the loft. Before dusk Davidson again made his appearance, with a sack on his back, which the neighbours at the time supposed to contain carpenters' tools for repairing or new-modelling the interior of the building, but which had in fact conveyed the arms with which they were to equip themselves for their daring enterprise. After the arsenal was formed, the band arrived; and the people in the public-house were surprised, if not alarmed, to see upwards of twenty persons, entire strangers to the place, hovering about their premises, and at last entering the den. Still they had no suspicion of what was going forward, and no presentiment of what was in a short time to occur. The police soon arrived, and the murderous struggle took place which we have already described.

The body of Smithers, who was murdered, was removed to the Horse and Groom public-house, opposite. He must have died instantly, and without convulsion. He received only one wound, about an inch below his right breast, and about an inch in width. His body was exposed in a room on the first floor of the public-house, above-mentioned, in the dress in which he was killed. His breast and neck were covered with blood, but his countenance was as placid, and his features as composed, as if their expression had been arrested, and life extinguished, during a tranquil sleep. On his death being mentioned to Lord Sidmouth, his Lordship expressed great regret at the event, and sympathy for his surviving widow; saying, with great humanity, that, as he could not, restore to her her husband, he would take care that she should not want his assistance in a pecuniary point of view. The unfortunate man's sister, from Putney, was one of the first to view the dead body of her brother, and deeply affected the spectators with the poignancy of her sorrow.

The sword with which the murder of Smithers was perpetrated is of foreign manufacture, and nearly a foot longer than those which we are ordinarily in the habit of seeing.

A lady, of the name of Northmore, who lives in a street immediately adjoining that in which the conspirators assembled, found a *sabre* in her yard, which had been thrown away by one of the gang, in his flight. This also is a weapon of foreign manufacture, and, from its appearance, had evidently been ground within a day or two. It was perfectly sharp on both sides, and, in addition to its brass hilt, there was attached to it a handkerchief, so disposed as to afford a sort of guard for the arm. Mrs. Northmore, on finding the weapon, sent for a friend, who advised her to transmit it to Bow-street. This was accordingly done; and, extraordinary to relate, it was recognised by an active member of that establishment as exactly representing one of two sabres, of which a description had been given at the office, and which were known to have been lately taken to a cutler, for the purpose of grinding.

The hand-grenades found in the loft, and produced in the examination, are about the size of a large orange, made of cast-iron, filled with combustibles; they have a round hole, in which is placed a fuse, which, on being set fire to, is thrown by the hand, and when it falls it explodes: the splinters caused

by the explosion spread in all directions, and one of them has been known to kill ten or twelve persons. It was intended to explode these horrible instruments at the Earl of Harrowby's house.

After the committal of Thistlewood by the Privy-Council, the whole of the prisoners underwent an examination, likewise by the Privy-Council; and on their being re-committed, one of them proposed to become king's evidence, which offer was accepted.

During the attendance of Mr. Birnie upon the Privy-Council on Thistlewood's examination, the officers arrived at Bow-street, with all the persons found in the house where Thistlewood had been apprehended, and Mr. J. E. CONANT, the magistrate, proceeded with their examination; they consisted of the landlady of the house, Mrs. Hill, a lodger, and Lewis Casper, a man who did not lodge in it.

ELIZABETH HARRIS, the landlady, stated, that her husband worked at the letter-foundry of Messrs. Caslon and Catherwood, in Chiswell-street, Moorfields. On Wednesday, the 23d of February, she had a bill in her window to let her lodgings, when in the morning, between ten and eleven o'clock, Thistlewood came into her house, and inquired about the lodging: she told him it was only half a bed with her nephew. Thistlewood agreed for the half bed, for which he was to pay two shillings and sixpence a week, and was to take possession of it that night. She at first said, that she had a slight knowledge of Thistlewood, but denied it afterwards. It was supposed she was concealing him, as he was locked up in the room. This she explained, by saying the door flew open, and she could not keep it shut without locking it. She said Thistlewood arrived at her house between ten and eleven o'clock on Wednesday night: he observed that he was late; she replied he was late, and she had almost given him up. He then went to bed. Her street-door standing open only by a latch, the officers had entered and searched the upper part before she knew they were there, when they asked her to unlock the door where Thistlewood was in bed, which she instantly did. She did not know Lewis Casper had been in her house till she found him in the coach with her when they were brought away.

LEWIS CASPER stated himself to be a watch-finisher, residing in Union-street, Bishopsgate, and accounted for his being in the house by saying he was

with Mrs. Hill, the lodger, who washed for him, and he appointed his little boy to call for a key there.

This man was detained till it was ascertained if he was the man he represented himself to be. Mrs. Harris and Mrs. Hill were discharged for the present.

In the course of Thursday, the 24th of February, the following persons were arrested as concerned in the conspiracy:—

BRUNT, who was to have been second in command to Thistlewood. He was a shoemaker; an excellent workman, and earned between forty and fifty shillings a week. He was taken in bed. He had previously provided himself with a sword and a brace of pistols, in case of need, but he did not make use of them on this occasion. He was apprehended at his lodgings in Fox-court, Gray's-inn-lane; in his room a vast quantity of hand-grenades, and other combustibles, were found. These were charged with powder, pieces of old iron, and other materials, calculated upon explosion to produce the most horrible consequences. A great number of pike-blades, or stilettoes, such as were discovered in Cato-street, and a number of fire-arms, were likewise found. The whole of these were taken to Bow-street. He was afterwards sent to Whitehall, and then committed to Coldbath-fields.

FIRTH, the person by whom the stable was let to Harris. He admitted that he has attended some of the Radical meetings, but denied any knowledge of the conspiracy.

COOPER, a shoemaker, living in Garden-court, Baldwin's-gardens: he was apprehended in the middle of the day.

SIMMONS, a footman, living with a respectable family in Seymour-street. He underwent an examination before the secretary of state for the home department, and another before the magistrates at Bow-street, was ultimately committed to Tothill-fields' prison.

TADD, a shoemaker, of whom the following account was given at the period of his arrest. He is a man of the age of 49, and lived with his wife and family in a small and miserable dwelling situated in the Hole-in-the-Wall-passage, leading from Baldwin's-gardens to Torrington-street. His family consists of one daughter, and two orphan children, whom he had taken

under his care. Tadd has been esteemed among his neighbours, and by those who have employed him in his trade, as an industrious sober man, and an excellent workman. He has earned by his own hands forty shillings a week, and very often even a greater sum. During the whole course of his life, he was never known to neglect his work, or become inebriated; but within the last week he had been in a drunken state, and his family had been at a loss to account for the extraordinary change in his conduct. On Wednesday night, three men came to Tadd while in such a state of drunkenness as scarcely to be able to keep his legs, and forced him away, notwithstanding the earnest entreaties and remonstrances of his wife and family. Nothing was said by the men who took him away, as to their object, either to the wife or any one in the house; and during the whole night, and the greater part of the next day, they were in total ignorance of the circumstances since disclosed, and were at a loss to account for the absence of Tadd. In the morning (Thursday), between seven and eight o'clock, two men came to the house, laden with a box of a considerable size, and, putting it down on the floor, said, "they would call in a few minutes for it." The men refused to answer the interrogatories put to them as to their object in leaving the box, and only repeated, that, they would call in a short time, and take it away. Very soon afterwards, two more men came with a large bundle of sticks, some of them of the thickness of a man's wrist. These were left in a similar manner, and the men also refused to answer any questions, saying only, that they would call again for them in a few minutes. Ten minutes had not elapsed before two police-officers entered the house, and seized the box and sticks. When opened, the box was discovered to contain a great number of pike-heads, sharpened ready for use. The sticks were also seized, and carried away by the officers. It would appear, from this statement, that Tadd was taken by the three men whom we have described to the stable in Cato-street, where he was subsequently apprehended, and carried to Bow-street, together with several others.

ROBERT ADAMS, living in a miserable hovel in Brooks'-market, Holborn, and working as a shoemaker. He some time since was a private in the Royal Horse-guards, in which regiment he served for five years. He very much resembles Thistlewood in his person, but has a cast in his left eye.

In addition to these arrests, several warrants were issued, among which was one against a native of France.

The lodgings of Thistlewood, and of all the others who were taken into custody, were searched, and several important papers, and quantities of arms, were discovered and seized. Among those found in Thistlewood's apartment was a copy of the bill furnished to Dr. WATSON by Mr. Ottley, owner of the Crown and Anchor Tavern, in the Strand, for the expenses of the dinner given to Hunt, on his return from Manchester. Judging from his former connexions, it may be considered as fortunate for the Doctor that he was not able to liquidate this debt, being at the time of the arrests an inmate of Whitecross-street prison on account of this bill, and thus saved from the temptation of joining his former associates.

It is a singular fact, that when Thistlewood was arrested, he had not a farthing of money in his possession. The same observation may be made with respect to his comrades, all of whom were in the most wretched state of poverty.

We will here suspend for a time the particulars of the proceedings against the Conspirators, for the purpose of recording the proceedings of the CORONER'S INQUEST on the body of RICHARD SMITHERS, the unfortunate Bow-street officer, who was murdered, as before stated, when in the execution of his duty, in Cato-street. The inquest was held on Friday the 25th February, at the Horse and Groom public-house, John-street, Edgeware-road, which is situated but a few yards from the spot where the atrocious deed was perpetrated. In the course of the day great numbers of persons visited the miserable building which the Conspirators had selected as the scene of their deliberations, and one universal feeling of horror and detestation against Thistlewood and his infamous associates appeared to actuate the multitude.

The Coroner for the county of Middlesex, THOMAS STIRLING, Esq., having arrived, and proclamation having been made by the beadle of the parish of St. Mary-le-bone, that the Jury summoned should proceed to inquire "when, how, and by what means, Richard Smithers came by his death," the Jury were sworn.

The foreman of the jury observed to the coroner, that he and his fellow-jurors wished to inspect the body in the presence of the surgeon, in order that he might be ready to answer any question that might arise on the

moment. This suggestion was complied with; and on the return of the jury from viewing the body,

Mr. FISHER, the surgeon, was sworn, and deposed as follows:—I am surgeon to the Police establishment in Bow-street. I was called upon for the first time, this day, to examine the body of the deceased. I found an external wound under the right breast. It was two inches in length, and half an inch broad. I opened the body to ascertain the depth and direction of the wound, and I discovered that some sharp instrument had penetrated between the fifth and sixth ribs, wounded the outward surface of the right lobe of the liver, passed through the diaphragm into the chest, lacerated the pericardium, penetrated the right ventricle of the heart, wounded the left lobe of the lungs, and struck against the ribs on the left side. The wound I supposed to be about twelve inches in length. The blood flowed from the heart, and occasioned immediate death. The opening in the pericardium was larger than that presented by the external wound, which was always the case with wounds of this description. The weapon was prevented from passing entirely through the body by the ribs on the left side. It must have been a very sharp instrument, both pointed and cutting, to make such a wound. The membranes, which were cut asunder, could only have been severed by an exceedingly sharp instrument. That death was inevitable after such a wound, the heart having been cut open, and the blood effused into the cavity of the chest.

GEORGE THOMAS RUTHVEN being sworn, said, I am an officer belonging to the public-office in Bow-street. On Wednesday evening last, at half-past eight o'clock, I was in this house. I received an order from Mr. Birnie, who is a Justice of the Peace for the county of Middlesex, to go to a shed or stable in Cato-street, in consequence of a number of men being assembled there for treasonable purposes. There was a warrant issued by Mr. Baker, a magistrate of Marlborough-street. On entering the house, I observed in the lower place a man with a cutlass at his side, and a musket on his shoulder. The door by which I entered from the street was not fast; there were persons going in and out; the man with the musket seemed as if he was guarding the staircase; there was only one man on guard. Ellis, Smithers, the deceased, and several others, went in with me. I don't know how they came in. They were of course ordered. They were all constables, in number about a dozen. I was the first person that entered. Mr. Birnie, the magistrate, was not there

at that time; he was at hand in the street, giving orders. The man who stood at the door as sentinel was walking about. I did not stop to see what he did particularly, but immediately called out to some of the party who followed to secure him. I am not aware that they did secure him, for I immediately went up the stairs. I believe that man was taken; but I am not aware that he was apprehended then; I believe he was caught afterwards. I ascended by a sort of step-ladder staircase. The stairs were so narrow, that the officers were obliged to go one by one. When I got up to the top of the ladder, I observed a sort of table or carpenter's bench, and a number of arms on it. Thistlewood was on the right-hand side of the table. I know Thistlewood very well. I have followed him for days and nights together. I think about twenty-four or twenty-five persons were assembled. There were different sorts of arms on the table: a variety of pistols and swords. They looked as if they were sorted out. They were handing about as if they were giving or distributing them to each other. Arthur Thistlewood was one. I am quite certain that he was present: I have followed him for days together. He stood by the side of the table handing arms about. He had on a sort of a long brown coat, I think. I knew him as well as I knew my father; quite as well. I could not be mistaken. I have no doubt whatever as to the identity of Thistlewood. As soon as I thought that three or four of the party were up, I said aloud, "We are officers, seize their arms." I did this to warn the people who we were. As soon as I said this, they each took up what they could from the table, and retired to the farther part of the room. Thistlewood, being near a door that leads into a little closet over the coach-house, retired into that room. He was not further from the door of the little room than I am from that gentleman who is writing there (pointing to a gentleman who sat writing within about four feet of witness). There were others in that little room; how they got in there I cannot tell. I suppose there were five or six, or four or five persons in it. The whole party appeared at that time to be armed. Thistlewood, as he retired, had a sword in his hand, which he moved in a menacing way to keep the officers off. He was not striking with it, but moving his arm round as if to make a stab. The sword appeared bright. As we approached, he retired; and Smithers, who was within a pace of me to the right, stepped forward with his staff. Thistlewood immediately stabbed him, and he fell on me. A pistol was then fired; I know not by whom. I saw the swords of the party directed against the candles, which were immediately put out. Thistlewood stabbed the deceased in the right side as

he approached. He did not come out of the little room to do it. He was within the little room, and thrust forward his arm to strike the blow. I saw the sword he carried; it was bright, and glittered. I did not see the hilt. It was a long blade, three feet and a half or four feet long. It appeared straight; but he waved it in such a way, that my eyes might have deceived me as to its shape.

When Smithers fell, he fell upon me, being stabbed on the right side, and I standing a little to his left. I could not at the moment tell whether he appeared to be much injured. In falling, he said, "Oh, Lord! Oh, my God! I am done!" I believe these were his words, or something of that sort.

I don't know whether Thistlewood drew the weapon out of his body; for instantaneously a pistol was fired, and the lights were put out. I have been enabled to recognise three of the persons who were in the room, besides Thistlewood, I think, since. They are Shaw Strange; he has another name; a man named Blackburn, and James Wilson. There was another man who stood at the door, and fired at a sergeant; his name is Tidd: I don't know his christian name. The sergeant at whom he fired is present. Tidd first attempted to fire a pistol at Captain Fitzclarence. I seized his arm, and he pulled me down on him. I called on the sergeant to take the pistol from him, and he fired at the sergeant and tore his clothes. I am sure that Blackburn, Wilson, Shaw Strange, and Tidd, were present. There were also two other persons taken, who had been in this house (the Horse and Groom) in the course of the evening. I did not recognise them in the room; but I know they were apprehended, and, I believe, admitted that they had been there. They left a stick behind them in the Horse and Groom; the end of it was evidently cut for the purpose of holding a weapon.

It was like a broom-stick, with a hole cut in the top. The persons that I allude to have admitted that they were in the room at the time the officers entered; but I do not know it. One of them was taken by Captain Fitzclarence; I have seen him here before. These two persons came in to drink a pint of porter, and left the stick behind them in a mistake. One of them came back, and asked for a little walking-stick. The boy, who thought it a queer sort of a stick, had taken it up-stairs, but returned it to the person who called for it. That stick was at the public-office. These persons called at the Horse and Groom an hour before the officers proceeded to the loft.

Nothing took place before the party fired, except my exclaiming, "We are officers—take their arms." When Smithers fell, a pistol was fired, and the lights were put out. I cannot say by whom the pistol was fired. The moment Smithers fell, somebody in the room where Thistlewood was, cried out—"Kill the b——rs; throw them down stairs!" I also cried, "Aye, kill them," that they might mistake me for a friend. There were nine persons taken that night. I was not present at the apprehension of all of them. While I was securing two of them the rest were brought in. After I had secured Tidd, Wilson, and Blackburn, I proceeded to secure the others; they were then conveyed to Bow-street, and afterwards to the House of Correction.

Several of the party escaped; nine only being taken, and the number in the room appearing to me to be about twenty-five.

When the prisoners were secured by the soldiers, I went up into the loft, and saw Smithers lying on his face; this was twenty minutes or half an hour after the entrance had been made. There were hand-grenades and arms lying about the room. I had no time before to pay attention to Smithers. A man below stairs endeavoured to escape from the door; he had a pistol in his hand. I called out, "Secure that man!" When I did so, he lifted his arm, and attempted to fire the pistol at Captain Fitzclarence; I caught hold of him, and the sergeant coming up, I desired him to take the pistol. The man fired, and struck the sergeant's coat with a bullet.

I believe only four of us got up. The party in the room fired directly at the staircase, thinking we were coming up in numbers. If they had not done so, they would have killed me, for I stood at one side of it.

There was somebody below who I expected would take care of the sentinel; but, in the confusion, he was handed from one to another, and thus escaped for a few minutes. It was quite dark, and I could not see the party escaping. There were, I think, twenty shots fired at us. It appeared to me as if some shots were fired from the window into the street to create alarm. The whole civil power present on the occasion was not more than twelve or fourteen men. I do not know the man who was acting as sentinel; I believe his name is Davidson. He is a man of colour. I had not time to notice him particularly. I believe he was the man who was walking at the foot of the stairs, with a cutlass by his side, and a musket on his shoulder. I believe there was one

light in the lower part of the building where he was. Some one, however, cried out, "They are up-stairs," and we heard the clashing of arms. I cannot identify the man who was below stairs, I cannot swear to him. There was another officer shot on the left side of the head; he was dangerously wounded; his name is Surman. Another officer, of the name of Westcott, had two or three shots through his hat. One of the bullets struck him on the finger, but did not hurt him materially. I was not wounded at all. At the time I did not know friend from foe. Immediately when the party cried out, "Kill the b——s," I also said, "Kill them," in order to deceive them. I had a brace of pistols; one of them flashed in the pan. The lights being out, I was afterwards afraid to fire, lest I might kill one of my comrades. There was a latch to the door which led into the street, and I found no difficulty in getting in. I secured a considerable quantity of arms; amongst the rest there was a large grenade, and several hand-grenades. The large one consisted of a tin canister, with a plate at top, strengthened by several pieces of iron, and bound round with a quantity of tarred rope. I got eight of the hand-grenades; they were about the size of my doubled fist. I also found in the room two swords, and some ball-cartridges, which are in my possession.

The large grenade weighs fourteen or fifteen pounds. It is a canister strongly bound with tarred rope. It is not circular. A number of pistols, swords, cartridges, and bullets, were also found in the room.

No person but Thistlewood offered violence before the candles were put out. There were likewise found in the room about three dozen of weapons, which resembled a sort of bayonet. The bottom part had not a socket like a bayonet, but a screw to fasten into a stick. I found also a dozen of sticks, formed for the purpose of being fitted to those bayonets.

The bayonets appeared to be newly made. They are very rough, and not at all brightened or polished. The balls I picked up in the room were not fired from pistols. If they had, they would have been flattened; I desired the men to pick the arms up, and each man to keep safely what he found: in consequence, some were in the possession of one man, and some in that of another; two or three muskets were either found in the room, or else taken from some of the persons who had been apprehended.

The party had no notice but what I gave that we were officers.

The deposition of this witness having been read over to, and signed by, him,

JAMES ELLIS was next called.—Having been sworn, he stated, I live at No. 22, Paradise-row, Palmer's-village, St. Margaret's, Westminster, and am an officer belonging to the Bow-street patrol. I am also a constable. On Wednesday night last, about half-past seven o'clock, Mr. Stafford, the chief clerk at Bow-street, directed me to take Richard Smithers, John Surman, and William Gibbs, and to proceed in a coach with them to John-street, Edgeware-road, as fast as possible, there to meet Mr. Birnie, who would give us further orders. We did so; and when we arrived at the spot, we found Mr. Birnie waiting. He inquired whether we had seen any thing of the military. We told him we had not. He said he expected them every minute. In about twenty minutes Mr. Birnie called us together. Some inquiries were made, but I don't know of whom, as to what number were likely to be in the room to which we were going, and whether Arthur Thistlewood was to be there. Mr. Birnie gave me a warrant, signed by Mr. Baker, of Marlborough-street, to apprehend Arthur Thistlewood and thirteen other persons named in it. I have not the warrant; I have given it to Mr. Baker. On our being called together, and Mr. Birnie being given to understand that Thistlewood and others were in the room, he asked how many there might be present, and was informed that there was about a dozen. He then inquired how many there were of us. We told him about a dozen also. He said he had been disappointed in the soldiers, who had perhaps missed their way, and were half an hour too late, and that we must proceed to apprehend the parties. We said we would do the best we could. Smithers observed, if there were forty of them we would secure them. Mr. Birnie then directed me to call Ruthven, another officer, out of the Horse and Groom, and we were sent forward to the house, the military not having come in time. Ruthven opened the door and went in; it was a kind of stable where the meeting was held. Ruthven went in first, I followed him. When I entered the stable I observed a man with belts on, a musket or fusil on his arm, and a sword at his side. I believe he held the musket in the position which soldiers do, when on duty. He was walking backward and forward. Ruthven desired some person to take charge of him. I took him by the collar, turned him half round, and gave him to some other person, observing at the same time that he was a man of colour. At that moment Ruthven was at the foot of the ladder, up which he went. I followed as closely as I possibly could, and was immediately

followed by Smithers. Before I got up the ladder, I heard a clattering of swords. I heard Ruthven say at that moment, "We are officers, seize their arms," or "lay down your arms," I cannot tell which. Upon gaining the top of the ladder, Ruthven turned a little to the left, to go round a table or carpenter's bench. I observed a number of men falling back to the other end of the room. They were apparently all armed. I also saw three or four men backing into the little room on the right. They were all armed with swords or cutlasses. A tall man immediately brandished a sword at me: his foot was advanced in a fencing attitude, as if he meant to stab. I held up my staff in my left hand, and presented a pistol at him with my right; I held up my staff that he might see it, to shew him what I was. The light was then as good as it is here: it was very lightsome: I desired the man to desist, or I certainly would fire. I did not fire then, I did afterwards. I did not know who the tall man was that threatened me at the time, but I have seen him since, and I know it was Thistlewood. There were some persons in the further room to the right. There was another closet near to the ladder, which was not discovered nor opened for half an hour afterwards. No one was found there. Smithers rushed past, and endeavoured to get into the little room. I saw the tall man draw his hand back, and make a thrust of a sword at him, which I saw strike him on the breast.

It was the same tall man, Thistlewood, who had flourished his sword at me. The manner in which he did it made me fix my eyes on him, so as to mark the kind of countenance he had. Smithers, on being struck, immediately threw up his hands, fell towards me, and exclaimed, "Oh! my God!" I instantly fired at the man who killed Smithers, but I missed him. Smithers fell against me at the time, so as to drive me to the head of the stairs. A rush was then made by the party, and I was knocked down from the top to the bottom of the ladder. The moment I fired, the candles were all put out with the swords.

I think there were four or five and twenty persons present. There were four or five in the small room. The time was so short that very little observation could be made. I ran to the door, when two or three shots were fired in the stable below, where I was. I don't know by whom they were fired. It was in the dark, and I could not discover friend from foe. I do not know that any officer fired except myself. I have not heard of such a thing. When I arrived at the door, I heard a cry of "Stop him," and instantly saw a man running at

the other side of the street; I pursued, and took him in the street, about twenty yards from the door. When laying hold of him, he made a cut at me with a long sword. This was the man of colour. I received a cut, a very slight one, in the leg. I think it was when his arm, in striking at me, swung round my neck, that the sword, which was a very long one, hit my leg. The man's name is Davidson. I believe him to be the same man who kept the door, but I will not positively swear to that. I took him to a shop at the corner, and seized his fusil, which was that of a light-horseman, but perhaps rather heavier.

I have seen Thistlewood, and I believe him to be the man that struck Smithers. I did not know him at the time. I saw him for six or seven seconds, or more, when he brandished his sword at me, until he went towards the little room. On seeing that, Smithers rushed forward, and the moment he got near the door, I saw him struck. I was sure that he was killed. It was a stab—a thrust—he received. The sword was long, very bright, and triflingly turned at the end. It seemed sharp on both sides. He brandished it at me. The whole space of this time was not more than ten or twelve seconds. I saw the man with his sword, before I got to the top of the ladder. As soon as Davidson was secured, I returned to the place, and I then found the military had come. I left Davidson in a shop, with two of our people to take care of him. The prisoners were all disarmed, and I proceeded to tie them together. I was only a few minutes gone when I took Davidson. I stayed as little time as I possibly could.

As soon as I had tied the prisoners I went to Smithers; he was lying on his face. I turned him up, and I believe he breathed faintly. I afterwards found a pistol, a bayonet, a quantity of ball cartridges, and several bullets. Many other weapons were found by the officers.

I am most positive of the identity of Thistlewood. I feel no hesitation on the subject.

[Here the witness handed some of the bullets which he had taken to the Jury.]

Witness continued.—I was entering the centre of the room when Smithers passed me. I had my eyes fixed on Thistlewood, when he was brandishing his sword. I am able to recognize him, though I could not recognise any of

the others. I saw him for eight or ten seconds, but I cannot speak to his dress: it was a dark dress, but I cannot speak to it distinctly. I heard yesterday, that Thistlewood was the person who struck the blow, but that did not affect my opinion. I would have sworn to him, if it had not been mentioned. There were several persons wounded. An officer named Biggs was wounded. The place where the business occurred is not ten yards from this. It is the first stable down the yard, and is, I think, on the north side of the street. When I fell down the ladder, I fell on some of the officers who were coming up. I should have been shot if I had not so fallen. There were several shots fired in the stable. I had a cutlass by my side, but could not use it. The flashes were numerous below, but I could not see who or what they were who fired. In the confusion Davidson escaped, but I afterwards took him. When I came back there were several persons in custody. There were many shots fired from the window.

We officers carry cutlasses, but they could be of no use against the length of the swords which the party made use of.

I cannot state the specific words of the warrant. It was given to me in the street by Mr. Birnie, and has been placed in the hands of Mr. Baker, the magistrate.

The Coroner inquired of Pyall, the beadle, whether he had the warrant in his possession, and was answered in the negative.

THE WITNESS.—The warrant was in my possession; it authorized us to apprehend Arthur Thistlewood and thirteen other persons named in it, for unlawfully assembling together, but for what specific purpose I cannot say, and to bring them before the sitting magistrate, to be dealt with according to law.

PYALL, the beadle, was despatched to Mr. Baker for the warrant, and the deposition of Ellis having been read over to him, he signed it.

WILLIAM WESTCOTT next underwent an examination to the following effect:—I live at No. 10, Simmons-street, Sloane-square, Westminster, and am one of the assistant patrol of Bow-street.—On Wednesday night last, I was sent to the stable in Cato-street, by order of Mr. Birnie. I accompanied Ruthven, Ellis, Smithers, and others to the spot. Ruthven went first, and I followed

Smithers. I was behind him in the stable. The moment Ruthven, Ellis, and Smithers had gone up the ladder leading to the loft, I seized a man in the stable below dressed like a butcher. His name I believe was Ings.—When I entered, he rushed out against me: and finding resistance, put his hand to his belt, as if to pull something out of it. I immediately knocked him down by hitting him on the right eye. He was dressed in a long coat beneath his jacket, and had an apron over the whole. This happened before the first pistol was fired, and I was in the act of handcuffing him when I heard a fresh pistol fired in the loft. I had not quite succeeded before Thistlewood came down the ladder, and as he was upon the steps fired a pistol; whether levelled at me or not I cannot say. Seeing me so busily engaged in securing the butcher, he levelled another shot at my head, and at the same time made several cuts at me with a sabre. The pistol went off, and the shot penetrated my hat. I knocked him down with the stick I had in my hand, but he rose and succeeded in making his escape. While I was engaged with Thistlewood, Ings contrived to make his escape also; when Thistlewood was gone, I found that I was wounded in the hand, and that some shot had gone through the flap of my coat. In the mean time both Thistlewood and Ings succeeded in getting away. I pursued Thistlewood, but in vain, and after having followed him through several streets, I returned to the stable. I then went into the loft, and saw the deceased lying dead on the floor. There were several persons present, and the prisoners had been subdued.

The Jury asked the witness whether Thistlewood was the first who came down the steps?—There was a complete rush, and I did not particularly observe whether he did or not. Did he come down before the officer Smithers fell?—I did not see the officer fall. You went with the whole body of the officers?—Yes, I did. There were only three officers, I understand, in the loft?—I believe no more. Where were the others?—They were upon the scout. Then I understand that after the three officers mentioned had gone up, Thistlewood came down, and prevented others from ascending the steps? Yes; and he fired down the steps to prevent the ascent of others.

CHARLES MOY.—I live at No. 11, London court, Mary-le-bone, and am a watchman. On Wednesday night, about half-past eight, I apprehended Ings, while Brooks was in pursuit of him. He fired at Brooks; but I cannot say what fire-arms he used, as he threw it down before I reached him. Brooks cried out, Stop thief! and I immediately apprehended him. The ball went

through the coat and waistcoat of Brooks, and grazed the top of his shoulder. I took Ings down to Mary-le-bone watch-house, assisted by Brooks and another officer. I searched him, and found seven or eight bullets in his pockets, some gunpowder in a tin flasket, and a haversack. He had a kind of belt on each side for pistols.

SERGEANT LEGGE, of the 2d battalion of Coldstream Guards, was next examined.—On Wednesday evening last I was called up about eight o'clock, and received orders to march to John-street, Edgware-road. I was then quartered in Portman-street barracks. A picket, usually employed on occasions when the military is required in aid of the civil power, was ordered out. It was commanded by Captain Fitzclarence. Upon arriving at John-street, we were unable to ascertain the spot whither we ought to proceed, and the captain advanced to ascertain what we were to do. When he returned, he ordered the picket to advance at double quick time. Upon reaching the stable in Cato-street, I observed a man standing with a pistol in his hand. He presented it at Captain Fitzclarence, and I knocked it aside with my pike. I then seized the muzzle-end of the pistol with my hand, and a scuffle ensued between the man and myself about the pistol. I kept firm hold of it till it went off, and the ball passing by my arm, tore the cloth off my sleeve. (Witness here exhibited the sleeve of his coat, which appeared to be very much torn.) In wrestling with the prisoner, I held my face down to the lock of the pistol, and as it went off the ball grazed my right eyebrow. As soon as the pistol was discharged, the prisoner let go his hold. I secured him, and delivered him over to the police. I believe the prisoner's name is Tidd. After this skirmish I followed my officer and part of the picket up the steps into the loft. The greater part of the picket had reached the loft before I was disengaged from the prisoner. When I had reached the loft I discovered a table in the centre of it, nearly covered with pistols, blunderbusses, ammunition, and other arms of various descriptions. Three men had then surrendered; I think their names were Monument, Cooper, and Gilchrist. I do not recollect what police-officers were present at the time. Upon looking on the floor, I saw the deceased lying dead at my feet. His body was examined by the picket, and I perceived the wound on his right breast. I was ordered back to the barracks for a reinforcement, and when I returned, the whole of the prisoners taken that moment were

collected into the loft. Upon the arrival of the reinforcement, the prisoners were conveyed to Bow-street.

Here one of the jury observed, that the inquest had proceeded far enough to ascertain the acts of Thistlewood. The Coroner replied, that those who were aiding and abetting in the murder were equally guilty as the principal; and it would be necessary to ascertain who they were, and what they did.

Here the examination was interrupted by the arrival of a messenger, with a letter from Mr. Baker, the magistrate, to the Coroner. It was read aloud, and was to the following effect:—

“I beg to inform you, that I granted a warrant on Wednesday the 23d instant, for the apprehension of Arthur Thistlewood, and several others, on a charge of felony, and that I afterwards received from Mr. Ellis an order to lay it before the Privy-Council on the examination of the prisoners when in custody. It has not yet been returned to me, nor do I think that I shall be able to obtain it at the present moment. Perhaps it would be better to adjourn the inquest for the present, and I will endeavour to get it for you to-morrow, or send you the information, on which it was issued.”

WILLIAM SARMON.—I live in Edgeware-road, and am a tailor by trade. On Wednesday night, about eight o'clock, I was passing through Cato-street, and when opposite to the stable I heard Westcott say that Smithers had been stabbed. In two or three minutes afterwards two men rushed out of the stable. One of the two cut me with a sabre on the hat. He was a tall man dressed in a dark coat. He struck at me twice, and hit my thigh, but fortunately did not wound me. I was so frightened at the moment, that I could not tell which way he ran, and I did not stop to look. There were many people in the street at the time. I do not know the appearance of Thistlewood. I only observed that the man who struck me was of a pale complexion, and wore a dark long coat. The other man who accompanied him out of the stable did not attempt to strike me. They both passed behind me on the right hand, I think, through the gateway towards John-street. I heard several shots within the building, while I was standing opposite the stable. That night I wore a loose coat, and by that means I was not wounded. I saw Westcott go into the stable, and I knew him well. I had seen him many times before.

Here the examination of the witnesses terminated, and the Coroner expressed a wish to receive some information respecting the christian names of those who had been described as having been apprehended in the stable. He thought there was no distinction between the case of Thistlewood and the other prisoners; they all entertained the same mischievous design, and shewed their purpose but too plainly, in being so well furnished with fire-arms, hand-grenades, &c. He wished to know whether the gentlemen of the Jury were satisfied with the evidence already received.

A juryman said, he wished to put a question to Ruthven, the officer, before the verdict was pronounced; but Mr. Pyall, the summoning officer, stated, that Ruthven had gone away, notwithstanding his particular request that he should remain.

The Coroner wished to know whether any of the Jury required an adjournment of the inquest; if they did, he would willingly attend to their request. The Jury unanimously declared that they were satisfied; and the Coroner, in a formal manner, asked, "Is Arthur Thistlewood guilty or not guilty of murder?"

Foreman.—Guilty.

Coroner.—Is William Davidson guilty of murder or manslaughter?

Foreman.—*Guilty of murder.*

One of the Jury wished to ask a question, which he thought of some importance, before the verdict was pronounced upon all the prisoners. He wished to know whether those who might have met for a different purpose were equally guilty of the murder with Thistlewood?

The Coroner replied, that there could be no doubt that they were implicated in the murder as much as Thistlewood himself, for whatever illegal purpose they might have met. They had impeded the officer in the execution of his duty, and one of them had killed him.

A Juryman.—If any of the prisoners had been put in the same situation as Thistlewood, they would probably have acted in the same manner.

Another Juryman.—But are those who surrendered themselves equally guilty?

Coroner.—There can be no doubt of it. They were all assembled for one common purpose, and the act of one is the act of the whole. It is clearly murder in them all. If a man intends to do a mischief to another, and, instead of killing him, happens to kill a second, it is equally murder, as if he had killed the man he intended.

A Juryman.—Another doubt arises in my mind. Had not these men a right to defend themselves, after the pistol had been fired by the officer Ellis?

Coroner.—Certainly not; there cannot be a doubt upon it.

The jury, by their foreman, then pronounced a verdict of “*Guilty of Murder*” against the following prisoners: James Ings; Charles Cooper; Richard Tidd; John Monument; John Charles Strange; Richard Blackburn; James Wilson; James Gilchrist; and others unknown.

In the course of the day, the afflicted parents of the deceased visited the body, and showed much feeling upon the occasion. The old couple were so decrepit as scarcely to be able to get up stairs. Smithers was a stout, good-looking man, about thirty-three years of age.

In addition to the wound that was the immediate cause of the death of Smithers, it was found that a pistol bullet had penetrated his shoulder nearly six inches. It was extracted by Bennett, and was found to have been cast from pewter. A second sabre wound was also found under his blade-bone. In what manner these wounds were inflicted, there are no means of knowing, but it is supposed they occurred after his fall.

On Thursday afternoon, the 2d of March, at four o’clock, his remains were removed from his lodgings in Carteret-street, in the Broadway, Westminster, and buried in the church-yard of St. Margaret’s, Westminster, amidst a great concourse of sympathizing spectators. It was too trying a task for his widow to undertake to follow him to the grave, and she was prevailed on not to attempt it. The deceased’s father and brothers followed as principal mourners. They were succeeded by some private friends, and a numerous assemblage of officers and others belonging to Bow-street office; Mr. John Lavender, belonging to Queen-square police-office, to which the deceased

formerly belonged; Mr. Armstrong and his son, both officers belonging to the police-office in Worship-street; making in the whole 67 persons; thus showing the last mark of respect to a departed officer, who had fallen a sacrifice by the hands of a ferocious assassin.

The procession passed through the following streets; the windows of each house were filled with spectators of both sexes;—Tothill-street, Dartmouth-street, Great and Little Queen-streets, Great George-street, and through the grand opening leading to St. Margaret's church. The rush from the crowd to gain admittance into the latter place was astonishing; but no accident occurred. The service was performed by the Rev. Mr. Rodber. The church-yard was filled with an immense crowd of persons of all descriptions, among which were numerous soldiers belonging to the Guards. A general regret and pity seemed to pervade the whole of this vast assemblage at the melancholy fate of this unfortunate man. The procession then returned through Tothill-street to Carteret-street, when the officers returned to the undertaker's. The whole of this funeral was conducted in the most decorous manner; and several magistrates were amongst the spectators.

On Sunday, the 27th of February, at one o'clock, the Cabinet Council assembled at the secretary of state's office for the home department, to proceed with the investigation of the charges against the assassins. Their lordships were assisted by the law officers.

ROBERT ADAMS, late a private of the Royal Horse-Guards, and who had become king's evidence, was examined before their lordships, which occupied their time till half-past two o'clock, which was then too late an hour to proceed with the examination of ABEL HALL, a tailor, who had been apprehended on Saturday morning by Lavender, Bishop, and Salmon, the officers, in Seward-street, Chiswell-street.

A quantity of ball-cartridges, a musket, and a cavalry sword, which they found concealed in a ruinous shed at the back of a small house near the Regent's park, were this day produced. The woman occupying the house was also brought up, but after a short examination she was discharged. It did not appear that she had any knowledge of these things being on her

premises. These articles appear to have been deposited in the place where they were found by some of the conspirators in their retreat.

On Monday, the 28th of February, the Privy-Council again met, and on this day a proclamation was placarded in different parts of London, offering a reward of 200*l.* for the apprehension of JOHN PALIN, *alias* PEELING, who had been charged with high treason. He was described as being a child's chair-maker, and as having been formerly a corporal in the East London Militia, and about forty years of age.

Private information was the same evening given to Lavender and Bishop, that Palin, for whose apprehension the reward of 200*l.* had been offered, was concealed in a house in the neighbourhood of Battle-bridge. They proceeded immediately with their informer to the spot described, but found that there was no ground for the suspicion which had arisen. Though the officers did not find Palin, they found three men and a woman of somewhat suspicious appearance. One man was in bed, and said he was unwell. The patrol suspecting him to be one of the Cato-street gang of assassins, and that he was in bed in consequence of the bruises he had received, made him get up, when he was found to have all his clothes on except his shoes. They stripped him, but he had no bruises. The other two men were melting lead in a frying-pan. One of the men lived at that place, the others in Monmouth-street and Brownlow-street. They were all three brought to the office, and underwent an examination before Mr. Birnie, when there being no charge against them, and they not being known, they were discharged. It is supposed that Palin might have taken the alarm, and escaped at the back of the house while the officers were knocking at the door.

The notorious PRESTON, the cobbling politician, of Spa-fields' memory, was also this day arrested on suspicion of being concerned in the plot, under a warrant issued by R. Birnie, Esq. It appears that the lodgings of this man were searched a few days before, but nothing of a suspicious nature was found. On those occasions he facetiously said—"his armory could not boast of a swan-shot, nor his port-folio of a scrap of paper of the slightest political interest." Circumstances afterwards transpired which led to his arrest upon a charge of high treason. He was found industriously engaged in mending a shoe, with his family about him. He was surprised at this new visit, but submitted to his fate with cheerfulness, not unaccompanied by an apparent

sense of his own importance. His daughters were highly indignant at this intrusion on their domestic privacy. The officers conducted their prisoner to Bow-street office, from whence he was sent to the Marquis of Anglesea public-house opposite. He was placed under the care of Lack, one of the patrol. He called for “a pipe and pot,” and, seating himself before the fire, seemed perfectly happy. He laughingly said to a gentleman who went to see him, that he thought “the farce would not be complete till he was taken.” He had previously denied all knowledge of the late conspiracy. After being shortly examined before Mr. Birnie, he was sent to Covent-garden watch-house, where he remained in confinement during that night. On the following morning he was removed from that place of confinement to the secretary of state’s office for the home department, where, at twelve o’clock, the Lords of the Council assembled, consisting of the Cabinet Ministers, the Marquis of Camden, Mr. Peel, Sir William Scott, Sir John Nicholls, Mr. Sturges Bourne, together with the Attorney and Solicitor-Generals, and other law officers.

Mr. Buller, one of the principal clerks of the council, attended to take the minutes of the proceedings. When Preston was taken in before the Lords of the Council he behaved with his usual boldness and low insolence to most of their lordships personally. He called upon them with the most ludicrously impudent arrogance, and asked what they meant by sending for him to disturb his peace of mind, and to disturb the economy of his family, alluding to his three daughters binding shoes, and himself making them.

The examination of this impudent fellow lasted about half an hour, after which he was committed to Tothillfields-bridewell in the custody of two of the Bow-street officers. When he returned from the Council Chamber he was almost breathless, and gasped out to those about him—“Bless me, how I perspire! but I always do when I have any thing like a subject to speak upon.” Whilst his commitment was making out, he requested to be *assisted* with a little porter. Some porter was given to him, and whilst he was drinking it Lord Castlereagh passed through the hall, when Preston observed, “Aye, there he goes! His lordship will remember what I have said to him as long as he lives. I have talked more treason, as they call it, to-day, than ever I did in my whole life before.” The porter seemed to inspire him, and he was proceeding with more remarks, when the officers received his commitment, and he was led to the coach which was to convey him to

prison. A number of gentlemen were assembled in the hall; and, as he passed through the midst of them, he bowed and smiled on all sides, repeatedly saying, "God bless you all."

In the course of the day an application was made at the police-office, Bow-street, by one of Preston's daughters, to be allowed to see her father, and to deliver him some clean linen; she was referred by the magistrate to Lord Sidmouth, and accordingly wrote the following letter to his Lordship, which she carried to the office of the Home Department, and delivered it to one of the messengers, while she waited in the hall for an answer:—

"My Lord,—I entreat your Lordship to allow an agonized daughter to have an interview with her father, who was dragged from home, and his family, consisting of three daughters besides myself, totally unprotected, on a charge of which he is completely innocent, and of which he has no knowledge whatever. My father's house was searched four times successively on four different days, and nothing was found that could at all criminate him in the late dreadful proceedings.

"I have called at Bow-street for the purpose of giving my father some linen, and also to know if he could be held to bail, and have been referred to your Lordship. I am now waiting in the lobby of the Home Department Office with the linen to give to my father; and I hope your Lordship will grant me an interview with him.

"I am, my Lord,

Your Lordship's obedient humble servant,

ANN PRESTON."

"17, Princes-street, Drury-lane, Feb. 29.

To Lord Viscount Sidmouth, &c. &c."

After being absent some time, the messenger who carried the letter to his Lordship returned, and told her she must call again on the following day for an answer. She then inquired where her father was, and was informed that he had been examined that day before the Privy-Council, and had been committed. She then left the office in tears.

The next morning she waited at the office of the Home Department, as she had been directed, for an answer to her application. She saw Mr. Hobhouse, and was told by him, that she could not see her father till after the following Friday; and, if she would call again on the Saturday, she would probably have an order to see him. She waited in the lobby until her father was brought out, after his examination before the Privy-Council, and he looked very anxiously at her; but they were not allowed to speak to each other. She had a bundle of linen; and, when her father was conveyed to Tothill-fields prison, she followed him, and gave the linen to the governor.

About this time WADDINGTON, the fellow who had been brought into some notoriety, by his arrest for being the bearer of a placard, the object of which was to create an unlawful assembly on Kennington Common, appeared before Mr. Hicks, the sitting magistrate at Bow-street, and with ridiculous effrontery, stated that the reason of his calling was to say that the officers had seized his books and papers, which they were very welcome to do, as he had nothing in his possession that he was ashamed of, or that could lead to any charge. His landlady, who was present when his place was searched for books and papers, told him that the officers had left a message, desiring him to attend at the office, as he was wanted there; and he consequently attended.

Mr. Hicks, the magistrate, professed himself unacquainted with the affair; but desired that inquiries should be made, and it turned out that some of the police-officers had searched his lodgings, and had seized his books and papers; but they denied having left any message for his appearance at the office, and there was no doubt but that it was a mistake of his landlady in relating to him what had passed.

The magistrate informed him that he had no charge against him. Waddington withdrew from the office, after telling the magistrate that he might always be found when wanted.

We are happy, however, to announce that this man has since relinquished politics, and taken up the more quiet occupation of porter to a tallow-chandler. From his former enthusiasm in *the cause*, however, it was supposed possible that he might have afforded shelter to some of his quondam friends, and accordingly the officers were directed to search his

lodgings. They found no trace of radicalism, except a whole-length portrait of himself, blowing a horn, carrying a large bundle of twopenny trash under his arm, and in his hat a paper, inscribed "Order, order! Public Meeting in Smithfield on Wednesday next." Underneath was written "Samuel Waddington, printer and publisher to the Radical Union."

Having had occasion to introduce the names of these men, who have lately forced themselves on the notice of the Public by their absurd, but highly mischievous, interference in politics, it may not be thought altogether irrelevant if we introduce a description of the *Radical Committee Room, at the White Lion, Wych-street*, this being the rendezvous, or place of meeting, where these self-elected Radical Committees held their nightly meetings.

The White Lion was a public-house, but has very properly been deprived of its license by the Magistrates. It is situated a short distance from Newcastle-street, towards the New Inn; the entrance to it from the street is up a dark narrow passage, about thirty yards long. In the tap-room, over the embers of an expiring fire, sat a set of suspicious, ill-looking fellows, huddled close together; whilst at a small deal table to the right sat Mr. —, with a book and some papers and printed bills before him; from the obscurity of the place, having no light but what proceeded from a candle placed before Mr. —, or from that in the bar, a stranger coming in would not be able to recognise any of the faces on seeing them afterwards elsewhere. On the right hand, on entering the house, is a small parlour; here of an evening a select committee assembled, and no others were admitted. This was the room in which the most private transactions were carried on; Mr. Thistlewood or Dr. Watson always came out into the passage to speak to any person who called there on business. In a very large room up stairs, and which is occasionally used as a school-room, upwards of a hundred ill-looking persons have assembled of an evening; in it the open committee and loose members of the society met; it had ranges of forms all round and across the room, and had hardly ever more than two or three candles to illuminate it. Here their processions, &c., were arranged; their flags, &c., kept; whilst the more private business was carried on below in the parlour.

We now resume our narrative of the proceedings previous to the final commitment of the prisoners for trial.

On Thursday, March 2d, the Lords of the Council met by appointment at the Secretary of State's office for the Home Department, at twelve o'clock in the forenoon, to deliberate on the charges against the prisoners, and to determine on the best and most proper mode of proceeding against them without interrogating the prisoners or examining any witnesses. The meeting was attended by the Cabinet Ministers, the Marquis Camden, Viscount Palmerston, Mr. C. P. Yorke, the chief Baron of the Court of Exchequer in Scotland, the Hon. R. Ryder, Sir John Nicholl, Mr. R. Peel, Mr. W. Huskisson, the Master of the Rolls, and Mr. S. Bourne. There were also present the Attorney-General, the Solicitor-General, and Mr. Baker, the magistrate belonging to the police-office in Marlborough-street, who signed the warrant for entering the premises in Cato-street, and for the apprehension of the gang. Their lordships continued in deliberation till near half-past two o'clock.

In consequence of some mistake in the transmission of an order, a number of the prisoners were brought up from Coldbath-fields prison, to the Secretary of State's office; but as their lordships had determined not to enter into any examination of the prisoners themselves on this day, they were sent back under an escort, a few minutes after their arrival.

The next day another meeting of the lords of the council took place, which was attended by the same persons as that on the previous day, with the addition of Mr. Sheriff Rothwell, Sir William Curtis, and other public characters.

Soon after eleven o'clock in the morning, Lavender, Salmon, and other officers, arrived in three coaches at Coldbath-fields prison, with orders from the Secretary of State, to bring the conspirators to Whitehall, for examination before the Privy Council. Mr. Adkins, the governor of the prison, immediately delivered over the following prisoners into the care of the officers, viz., Thistlewood, Monument, Wilson, Davidson, Tidd, Gilchrist, Ings, Bradburn, Shaw, Cooper, and Brunt. They were immediately conveyed in the coaches provided for their reception to Whitehall. The prisoners were all handcuffed to each other.

About the time that this detachment reached Whitehall, Mr. Nodder, the Keeper of Tothill-fields prison, arrived at the same place in a coach, with Preston, Simmonds, Harrison, Hall, and Firth, the keeper of the loft in Cato-street.

The whole of the prisoners, on their arrival at Whitehall, were placed in the first apartment. Those from the House of Correction were placed in a line, handcuffed together, on the bench immediately facing the entrance, and the Tothill-fields' prisoners were seated on a bench at the right-hand side of the room.

The appearance of the whole was wretched in the extreme, and one or two of them seemed mere boys. Thistlewood appeared quite downcast, his features every day undergoing an alteration for the worse; his complexion had become quite jaundiced, and his general appearance nerveless and emaciated; he wore the old brown surtout in which he had been seen of late in the streets, and kept his eyes occasionally gazing with indifference upon the strangers who thronged the room, but mostly fixed on the ground. Davidson, the man of colour, seemed perfectly at his ease, and talked cheerfully to the prisoner who sat next him. Preston was not only quite composed, but enjoying a constant smile of self-complacency at the inquisitiveness with which strangers as they passed asked "Which is Preston?" "Which is Thistlewood?" Preston seemed in his usual good spirits, and had not a little of the appearance of having exhilarated them in the course of the morning by a jolly draught. While the prisoners were in this room, a considerable number of gentlemen were permitted to pass through the room, but none to converse with them. The police-officers were stationed at the end of each seat.

The Council being assembled, they were examined singly before their lordships.

ARTHUR THISTLEWOOD was the first who was called in. The officers immediately unlocked the handcuff of the prisoner, and conducted him to the Council-chamber. He went up stairs with great alacrity, and being introduced, he was placed at the end of the table, with an officer on each side of him. The Lord Chancellor presided, and informed the prisoner that he was about to be committed upon the double charge of high treason and

murder. He made no reply; but looked round at the assembled ministers with a malignant scowl. This was all that passed, and he was immediately re-conducted to his companions: he smiled as he came back, and returned to his former seat. In a short time, as if in contempt of the authority by which he was coerced, he put on his hat, and assuming a look of defiance, remained in that state for the remainder of the day. All the other prisoners were subsequently taken up in the same manner. Monument and Simmonds were the last, and these did not return for nearly half an hour. It appears that they, at this time, endeavoured to make their peace by a disclosure of what they knew.

The soldiers engaged in the affair were then called in, and desired to look at the men whom they thought they could recognise. Sergeant Legge and nine privates were present. They soon came forth, and said they had no doubt as to the identity of the men they had assisted in securing. All the arms and ammunition taken from the prisoners, and in Cato-street, were deposited in an adjoining room under a guard.

When INGS returned from the Council-chamber, he resumed his seat with great sullenness; and as soon as the officers had replaced his handcuffs, he and Thistlewood entered into conversation with great eagerness. Thistlewood spoke almost in a whisper; but Ings was more loud; and, at the close of their conference, he ejaculated, as if talking to himself, but loud enough to be heard by all in the room—"It is want of food which has brought us here. Death—death would be a pleasure to me—I would sooner be hanged this instant, than turned into the street there; for I should not know where to get a bit of bread for my family; and if I had fifty necks, I'd rather have them all broken, one after the other, than see my children starve!"

PRESTON continued very talkative and lofty. He seemed bursting with impatience to go before the Council; raising himself from his chair every time the door opened, in hope of being the next called; then sinking back into his seat with vexation and disappointment, and exclaiming, "Oh! how I long to go up! My *genus* is so great just now, I don't think there is any man alive has so great a *genus* as mine is at this moment." Then he would pore upon the ground for a minute or two in deep cogitation; and at length break out into the following soliloquy:—"If it is the will of the Author of the

World that I should perish in the cause of freedom—his will, and not mine, be done! It would be quite a triumph to me!—Quite a triumph to me!”—at the same time throwing his arms about in a manner which savoured strongly of insanity. It was not, however, his fate to be called before the council at all at this time; though, when Thistlewood and some others expressed regret that they had not applied to have their families admitted to see them—he desired them very pompously to make themselves quite easy upon that head, for he would take care to mention it in his speech to their Lordships.

Immediately after the prisoners had all been called in, an express was sent off to Captain J. H. Elrington, fort-major of the Tower of London, directing him to prepare for the immediate reception of ten state prisoners.

The whole of the examinations having been brought to a conclusion, the council proceeded to deliberate upon the course which was to be adopted with respect to each individual case. They remained thus engaged for nearly two hours. During this interval the crowd in front of the office greatly increased, and the most anxious entreaties were made to be permitted to see the conspirators. These were in most cases ineffectual. Only a few noblemen were permitted to enter, including lord Westmoreland, lord Stair, and some others.

The prisoners being themselves pretty well apprized of the charges which were to be preferred against them, became less equivocal in their behaviour. Wilson, Davidson, and Tidd, who were linked together, were most daring. They laughed in derision at the persons who came to view them, and seemed to be little affected by the situation in which they were placed. Brunt, in imitation of his captain, put on his hat, and thus assumed the character which has been assigned him, of being second in command. At half past four Mr. Day, the clerk of the papers, was sent for by Mr. Hobhouse, the under secretary of state, who communicated to him the orders of the council.

On Mr. Day's return, he stated to Sir Nathaniel Conant and Mr. Baker, who were remaining in his office, that eight of the prisoners were to be forthwith committed to the Tower. He then produced the list, and called over the names of the persons to whom he alluded. These were:

Thistlewood,		Wilson,
Monument,		Harrison,
Brunt,		Davidson,
Ings,		Tidd.

The men came forth as they were called, and were handcuffed two and two. A short time now elapsed while the warrant to the constable of the Tower was preparing, and until messengers were despatched to obtain carriages, and require the presence of an escort of the Life Guards. This period was occupied by the prisoners in a sort of confused conversation. Harrison and Thistlewood at once threw off all reserve, and shook hands. The others began to speak freely. Davidson said he should like about a pound of beef-steak and a pot of porter, and his companions agreed that it would be no bad finish to their day's amusements. Thistlewood said aloud, "I hear the Spaniards are getting on famously!" Wilson answered, "Are they—a cursed good job!" "Aye," replied Thistlewood, "They'll all have it in their turn; they may scrag a few of us, but there is more going on than they are aware of." Harrison laughed, and exclaimed, "Aye, time will show all things."

A bustle outside now announced the approach of the Horse Guards, who drew up in a double column in front of the office, under the command of Captain Mayne. A hackney coach then drove up to the door, into which Thistlewood and Brunt were put, accompanied by Mr. Ruff, one of the king's messengers, to whom the warrant was delivered, and by two police-officers. The coach then drew off to a short distance, preceded and followed by four of the Life Guards. A second carriage then came up, into which Davidson and Ings were put; they were likewise guarded by two officers. Ings, as he mounted the coach, exclaimed, "Hurra, boys!" in expectation, no doubt, of having a cheer from the crowd that was assembled. In this, however, he was disappointed; not a word escaped from the lips of the bystanders at all in unison with the principles of the conspirators—on the contrary, they seemed to be viewed with feelings of strong disgust.

Wilson and Tidd were placed in the third hackney coach: they went out laughing; but, previous to their departure, they turned round, and, in common with all those who had been confined in Cold Bath Fields prison, begged to return their grateful thanks to Mr. Adkins, the governor, and to his assistants, for the humane and kind treatment which they had received

while under their care: they also were guarded by two police-officers. The last who went out were Harrison and Monument. The latter, whose diminutive size made him appear somewhat ludicrous when placed beside his gigantic companion, was greatly depressed. These men were in like manner guarded by two of the Bow-street patrol. The whole four carriages being now in readiness, and a constable having mounted each box, the cavalcade set off, completely surrounded by the Horse Guards.

They proceeded over Westminster-bridge, and from thence by the Westminster-road, through the Borough, and over London-bridge, up Fish-street-hill, down Fenchurch-street, the Minories, across Trinity-square to the Tower gate; and although followed all the way by an immense throng, not one expression of commiseration was heard to escape.

Ings's conduct was most daring: he continued to exclaim against His Majesty's Ministers with the most undisguised abuse, using language of the most revolting nature. He either knew, or affected to know, many persons in the crowd, to whom he nodded, and some of whom gave him a significant shake of the head in return.

Thistlewood made no observation: he seemed to be looking anxiously from the coach window, as if to see if there were any persons passing whom he could recognise.

Brunt looked extremely gloomy, but did not say any thing.

Davidson did not seem at all affected by his situation, and continued in good humour.

Wilson and Tidd laughed, and looked out of the coach windows with apparent indifference; and little Monument seemed to have sunk into a state of despair: he said he supposed he was not long for this world.

On reaching the upper gate of the Tower, leading to the armoury, it was found shut; but, on a regular summons being made, it was opened without hesitation, and the prisoners and their guards admitted. Notice had been sent off to the Tower, in the early part of the day, to prepare rooms for the prisoners, but still it was with some difficulty that secure apartments could be got in readiness; at last the necessary accommodations were obtained, and the prisoners were left under the care of the yeomen of the guard.

The warrant upon which they were received by the constable of the Tower, was to the following effect:—

“You are hereby required to receive into your custody, Arthur Thistlewood [then followed the names of the other prisoners] who stand charged with high treason, and them safely to keep till discharged by due course of law, for which this shall be your sufficient authority.”—Then followed the names of the privy-council, commencing with the Lord Chancellor, Earl Westmoreland, &c.

This warrant was written on a sheet of foolscap paper, with a black border, and bore the official seal. It was accompanied by a private note to the constable, containing instructions as to the manner in which the prisoners were to be treated.

They were accordingly received by Captain Elrington, the major of the Tower, who, after some difficulty, from the shortness of the notice which he had received, succeeded in finding them secure apartments.

Each prisoner was placed in a separate apartment; two warders armed in the usual way, with cutlasses and halberds, were placed in each room; and at each door was stationed a sentinel armed, to whose care was intrusted the key of the room, with strict orders not to permit more than one warder to be absent at a time, and that only for occasional purposes.

Thistlewood was placed in the prison known by the name of the Bloody Tower.

Davidson was in the prison over the waterworks.

Ings in a different room of the same prison.

Monument in the prison at the back of the Horse-armory.

Brunt and Harrison occupied separate apartments in the prison over the Stone-kitchen.

Tidd was secured in the Seven-gun Battery prison, and Wilson in the prison over the parade.

The prisoners were permitted to have, by the indulgence of the law, what is called state allowance, for their daily maintenance, which, to such wretched poverty as theirs, must have made even their awful situation, as compared with their confinement in Coldbath-fields, a change for the better.

The number of warders sufficient to do the ordinary duty of the Tower is ten; but, as soon as the command for preparing the prisons reached the proper quarter, directions were given to increase the number of warders to sixty.

The iron gate at the east end of the Tower was closed on the arrival of the prisoners as usual upon such occasions.

Immediately after the departure of the delinquents charged with the crime of high treason, from the Secretary of State's office, Mr. Adkins, the Keeper of the House of Correction, in Coldbath-fields, was informed that six of the remaining prisoners were to be consigned to his custody, namely—Bradburn, Strange, Firth, Gilchrist, Hall, and Cooper. These men were then brought out, and escorted to Coldbath-fields prison, under circumstances precisely similar to those which had attended those who had gone to the Tower. They were accompanied by Mr. Silvester, a King's Messenger, to whom the warrant for their commitment, similar to the one addressed to the Constable of the Tower, was intrusted, and several officers of the police, and by an escort of the Life-Guards.

Mr. Adkins, the Governor of the House of Correction, was asked if he had got the Coroner's warrant for the commitment of the men pronounced by the Coroner's Jury to have been guilty of the wilful murder of Smithers? He answered in the negative. No such warrant had been transmitted to him by Mr. Stirling. A messenger was then despatched to the coroner, who had omitted to make out the warrant, and he waited while it was prepared in the usual form.

Simmonds, the footman, and Preston, were remanded to the custody of Mr. Nodder, the governor of Tothill-fields prison, and were taken there in a hackney-coach; and thus ended the final examination of the conspirators by the Privy-Council.

In addition to the gang taken at Cato-street, and the subsequent arrests which we have already recorded, a young man, named ROBERT GEORGE, was apprehended, who was with good reason, suspected of being one of that gang, and whose discovery and apprehension arose out of the following extraordinary circumstances:

At the time the coroner's inquest was sitting on the body of the murdered Smithers, Perry, the conductor of the patrol, who was then in attendance, was called out by two soldiers, who informed him, that on that day they had been informed by a boy, that he had discovered a depository of fire-arms and deadly weapons in an extraordinary way, by his having been at play in Chapel-street, Paddington, and losing a marble behind some building in that street. He went behind the house of Mr. George, a haberdasher and tailor, in search of the marble, and seeing in a closet some fire-arms, a sword, &c., he mentioned it to the soldiers.

Upon this intimation Perry hastened to the spot as soon as possible, and found a narrow passage leading to the back of Mr. George's premises, and also a closet fastened by a staple, situate under a staircase, which answered the description of the information he had received where the fire-arms and deadly weapons were deposited. Perry inquired to whom the closet belonged, and was informed that it belonged to Mr. George, the tailor and haberdasher. Mrs. George soon appeared, of whom Perry also inquired how the closet became fastened, when Mrs. George informed him that she had fastened it in consequence of the wind blowing it open. He desired her to produce the instrument with which she had fastened the staple, which, on being produced, resembled a hammer, and with which she also unfastened it.

On the door being opened, Perry discovered a musket, a bayonet, a pistol, sword, powder, and balls. He then inquired if those articles belonged to them, and the mother denied that they did. The daughter, who was present during the investigation, wrung her hands, and appeared greatly distressed. Perry then proceeded into the house, and found Mr. George employed in his business of a tailor, who also denied any knowledge of the fire-arms and deadly weapons, and admitted that his son occupied a house on the opposite side of the street, and might have deposited the fire-arms, &c., in that place.

On inquiry it was ascertained, that the son had absconded since the night of the meeting in Cato-street. Perry desired that Mr. George would attend at the office, and he himself accompanied Mrs. George and her daughter. On their arrival at the office, they underwent private examinations before Mr. Birnie, but nothing appeared which could criminate any of them; but strong suspicions existed that their son, Robert George, was present at the Cato-street meeting, at the time Thistlewood murdered Smithers.

From that time the officers had used every vigilance in endeavouring to trace him out. Ruthven and Salmon received information of his being concealed at a house in Goswell-street, whither they repaired, but were unsuccessful in finding him. They nevertheless had discovered that his anxiety to leave this country was so great, that he had offered himself to be engaged in any capacity whatever, in any vessel going to the East-Indies; they also learned that, having before been a seafaring man, he had succeeded in engaging himself as a servant on board an Indiaman; and their exertions were so great, that they gained intelligence, on which they could rely, that the last place he would be at, previous to leaving London, would be the Dundee Arms, Wapping, near the Commercial Road, where they went and waited, having no doubt but he would be there to start by the boat for Gravesend on Sunday, the 5th of March, from which latter place the Indiamen were to sail on the following day. They waited there till about seven o'clock, at which time Robert George entered the house. He inquired for the Gravesend boat, and was informed that it had sailed a few minutes previous. On receiving that information, he appeared extremely agitated and disappointed: he called for some brandy and water, and seated himself.

During this time Ruthven and Salmon had satisfied themselves beyond a doubt of his identity, and having had reason to believe that he would be fully prepared with arms for a desperate resistance, Salmon watched an opportunity, when he instantly rushed upon him, and, presenting a pistol to his head, exclaimed, "If you offer to stir, I will fire." Ruthven then handcuffed and properly secured him. On searching him they, however, found that he was not prepared with any arms, and his luggage consisted only of his clothes. The officers placed him in a hackney-coach, and lodged him in Covent-garden watch-house.

During the following day they made diligent inquiry as to the manner in which he had disposed of his time since his escape from Cato-street, when they learned that a lodging had been procured for him in Earl-street, Bricklane. They also traced out his brother, who lived in that neighbourhood, who denied any knowledge of his place of residence; but the officers discovered that the brother had actually procured the said lodging for him, and in his possession they found a large thick stick, at the bottom of which was a thick iron ferrule, about two inches long, which was hollow at one end, and appeared calculated to receive a pike or dagger, which he acknowledged to have received of his brother George, on his parting with him on Sunday evening, previous to his entering the Dundee Arms.

On searching Robert George's lodgings in Earl-street, they did not discover any thing of a serious or dangerous nature. The prisoner underwent a private examination before Mr. Birnie, which was reported to the Secretary of State's office for the Home Department; no orders were, however, sent for his conveyance there, and therefore a commitment was made out for the prisoner, Robert George, to the House of Correction, on a charge of high treason, whither he was conveyed in a hackney-coach, in the custody of Mr. Atkins, the governor of that prison, Perry, who was originally in the pursuit of him, and one of the patrol.

Before entering on the trial of the notorious ARTHUR THISTLEWOOD, for the double crime of high treason and murder, for which we have traced his commitment on the clearest and most satisfactory evidence possible, we shall present the reader with a brief sketch of his early life, and some particulars of his conduct after his arrest.

Thistlewood was a native of Horncastle, in Lincolnshire, and was born in the year 1770; his father was land-steward to an ancient family in that neighbourhood; he was placed at an early period of life with an eminent English school-master, to be educated as a land-surveyor. This pursuit in life he afterwards declined following, and at the age of twenty-one became a lieutenant in a militia regiment; soon after this, he married a young lady, of the name of Bruce, residing near Bawtry, in Yorkshire, who was

possessed of property amounting to 300*l.* per annum. Thistlewood resigned his commission in the militia, and obtained another in a marching regiment, with which he went, at the commencement of the revolutionary war, to the West Indies, where he soon gave up his commission in it, and afterwards proceeded to America; there he resided for some time, when he obtained a passport for France, and arrived there shortly after the downfall of Robespierre. He became initiated in all the doctrines and sentiments of the French Revolutionists, and at the peace of Amiens returned to England, when he became acquainted with the disaffected in his native country; since which his whole life, it seems, has been spent in seeking opportunities to overthrow its constitution.

From the period of his release after his former indictment for high treason, the Government had taken care to have all his actions watched, and his movements traced; but even with all this precaution, it is possible that the diabolical scheme, of which he was evidently the author and chief mover, would have been carried into effect, had it not been for the remorse of the man who made the disclosure to Lord Harrowby.

One night, during his confinement in Coldbath-fields prison, the following remarkable occurrence took place in the cell of Thistlewood. In the course of the evening, Mr. Adkins, the governor, sat with him a short time, and conversed with him on general topics. He was very communicative on the subject of the different prisons in which he had been confined. He spoke of Horsham as being extremely strict, and observed, that the rules laid down for the management of the prison were observed to the letter, without any reference to the rank of the party confined. He gave the preference to the Tower as a place of incarceration. The usual hour for locking up having arrived, he was left to the society of his usual companions. He soon retired to rest. His mind seemed restless, but, after some time, he fell into a profound sleep—thus he continued awhile, when he became evidently agitated—at last he exclaimed, with a sort of convulsive shriek, “Ha! I’ve got you now!” and then, becoming more strangely disturbed, he awoke in a sort of phrensy: for a moment he did not seem to recollect where he was; but, on seeing his companions with their eyes fixed upon him, he affected to laugh, and said, “What strange things one thinks of in one’s sleep.” He remained awake for a considerable time, and, at length sunk again into an unquiet slumber.

On the subject of his arrest he spoke freely before his final commitment, declaring that he knew the man by whose instrumentality he was taken, and that he was with him that morning, and was the only man who knew of his retreat. He added that but for the people in the house, the patrol who arrested him in White-street, and his brother officers should have fallen. His companions said, "Why you had no arms; how could you have effected their destruction?" "Ah!" he replied, "they thought they were very cunning; but cunning as they were, they were not cunning enough."

This was but a vain boast; for, at the moment the officer seized him, he was evidently paralyzed. He shewed no disposition to resist. No arms were found in the room, with which he could defend himself, and when he was carried off to Bow-street, six officers were left behind to search every hole and corner in the house. This they did, and found nothing to warrant an opinion that he was capable of making a formidable resistance.

It is, however, rather a suspicious circumstance, that while the officers were engaged in securing their prisoner, the landlady, Mrs. Harris, slipped out, and gave an intimation of what was occurring to her husband, who was a type-founder in the manufactory of Messrs. Caslon. From that time he has been "out of the way." It was ascertained that he was the manufacturer of all the bullets found upon the conspirators. A warrant was issued for his apprehension.

The officers are satisfied that the arms which Thistlewood had in Cato-street have not been found, and imagine that he deposited them with some friend. It is a matter of surprise, that in getting rid of these evidences of his guilt, he should have kept in his possession the black belt which was seen round his waist in the loft, and which, with some ball cartridges, was found in his pocket in White-street.

Up to the time of his last appearance before the Privy-Council, he made no inquiries respecting his family, but was particular in his questions as to the persons who had been arrested. Among others, he mentioned the name of Palin, for whose apprehension a reward of two hundred pounds had been offered, and again describing in the most minute manner the person of Brunt, with an evident intention to avoid mentioning his name, he asked if he was arrested? Upon these heads he received no satisfactory answer.

Mrs. Thistlewood is a smart, genteel little woman, dresses well, and from the first seemed perfectly alive to the situation of her husband, in whose political sentiments she heartily concurs. On the officers going to search her lodgings, she did not manifest any of that alarm which, in a female, might be considered natural. She received them with calmness, accompanied by a certain air of dignity, and demanded their authority for searching her premises. Being satisfied on this head, she permitted the search to be made without further hindrance. She has a son, who seems a genteel ingenious youth. When she obtained permission to visit her husband, the interview always took place in the presence of an officer, and her person was scrupulously searched, even to the removal of her stays and cap, and these precautions were continued from first to last.

The prisoners all standing fully committed on the clearest and most satisfactory evidence, the preparations for their trial commenced, and on the 8th of March the following Special Commission of Oyer and Terminer was issued by the Crown:—

GEORGE the FOURTH, by the grace of God, of the united kingdom of Great Britain and Ireland, King, defender of the Faith, to our most dear cousin, William Henry Duke of Portland; our well-beloved and faithful Councillors, Sir Charles Abbott, knight, Chief-Justice, assigned to hold Pleas before us; Sir Robert Dallas, knight, Chief-Justice of our Court of Common Pleas; Sir Richard Richards, knight, Chief-Baron of our Court of Exchequer; our beloved and faithful Sir William Garrow, knight, one of the Barons of our said Court of Exchequer; Sir William Draper Best, knight, one of the Justices assigned to hold Pleas before us; Sir John Richardson, knight, one of the Justices of our said Court of Common Pleas; Sir John Silvester, baronet; Newman Knowlys, Francis Const, Charles Bosanquet, Charles Trelawny Brereton, James Clitherow, James Ferguson, Edmond Alexander Howard, Richard Paul Joddrell, Samuel Purkis, Thomas Wood, and Peregrine Dealtry, Esqrs., greeting.

Know ye that we have assigned you, and any two or more of you (of whom one of you, the aforesaid Sir Charles Abbot, Sir Robert Dallas,

Sir Richard Richards, Sir William Garrow, Sir William Draper Best, and Sir John Richardson, we will shall be one) our Justices and Commissioners to inquire by the oath of good and lawful men of our county of Middlesex, of all High Treasons and misprisions of High Treason, (other than such as relate to the coin), and of the murder of one Richard Smithers, deceased, and of any other crime or offence touching the death of the said Richard Smithers; and of any offence or offences against, touching, or concerning the persons of Frederick Fitzclarence, William Legge, James Ellis, John Surman, William Westcoatt, William Charles Brooks, John Muddock, and Benjamin Gill, or any of them, contrary to the form of an Act made and passed in the forty-third year of the reign of our late royal father, King George the Third, entitled “An Act for the further prevention of malicious shooting, and attempting to discharge loaded fire-arms, stabbing, cutting, wounding, poisoning, and the malicious using of means to procure the miscarriage of women; and also the malicious setting fire to buildings;” and also for repealing a certain Act made in England, in the twenty-first year of the late King James the First, entitled, “An Act to prevent the destroying and murdering of bastard children;” and also an Act made in Ireland in the sixth year of the late Queen Anne, also entitled, “An Act to prevent the destroying and murdering of bastard children, and for making other provisions in lieu thereof;” and also the accessories of them, or any of them, within our county aforesaid, as well within liberties as without, by whomsoever and in what manner soever done, committed, or perpetrated, when, how, and after what manner; and of all other articles and circumstances concerning the premises, and every or any of them, in any manner whatsoever; and the said treasons and other the premises according to the laws and customs of England for this time to hear and determine; and therefore we command you, that at a certain day and place, which you or any two or more of you (of whom one of you, the said Sir Charles Abbott, Sir Robert Dallas, Sir Richard Richards, Sir William Garrow, Sir William Draper Best, and Sir John Richardson, we will shall be one), shall for this purpose appoint, you make diligent inquiries into the premises, and that you do hear and determine all and singular the premises aforesaid, and do cause to be done therein what to justice appertains, according to the laws and customs of England; saving to us

the amerciements, and other things from thence to us accruing. We do also command all and every our officers, ministers, and subjects, by virtue of these presents, that they attend, advise, obey, and assist you in the execution of the premises, in all things as it behoves them. And we do also command, by these presents, our sheriff of our said county of Middlesex, that at such certain day and place, as you, or any two or more of you, (of whom one of you, the aforesaid Sir Charles Abbott, Sir Robert Dallas, Sir Richard Richards, Sir William Garrow, Sir William Draper Best, and Sir John Richardson, we will shall be one), shall make known to him, he do cause to come before you, or any two or more of you (of whom one of you, the aforesaid Sir Charles Abbott, Sir Robert Dallas Sir Richard Richards, Sir William Garrow, Sir William Draper Best, and Sir John Richardson, we will shall be one), such and so many good and lawful men of our said county, as well within liberties as without, by whom the truth of the matter in the premises may be better known and inquired into. In witness whereof, we have caused these our letters to be patent. Witness ourself at Westminster, the eighth day of March, in the first year of our reign.

BATHURST.

Monday, March 27, 1820, was the day appointed for opening the Special Commission for the trial of the Conspirators engaged in the Cato-street plot, and the officers of the Crown attended accordingly in the court at HICKS'S-HALL, at nine o'clock in the morning. The gentlemen who were summoned on the grand inquest were also in attendance.

The witnesses for the Crown, about thirty in number, were placed in a room by themselves, preparatory to their being taken before the Grand Jury. Those witnesses who themselves stood charged with being parties to the conspiracy were in separate rooms, under the charge of constables. Among them were Monument, who, it will be recollected, was committed to the Tower; and Adams, who remained for some time a prisoner in St. Martin's watch-house, but was afterwards committed to the House of Correction in Cold-bath-fields. This man had been labouring under severe indisposition ever since his apprehension.

The pike-handles, guns, pistols, swords, grenades, daggers, ammunition, and other articles seized on the persons of the prisoners, and in Cato-street, at Brunt's lodgings, and elsewhere, were deposited in the office of the clerk of indictments. When collected together they presented a formidable appearance.

At ten o'clock the Attorney and Solicitor-Generals entered the Court, and took their seat at the barristers' table. In a few minutes afterwards Chief-Justice Abbott and Chief-Justice Dallas, together with Mr. Const, and other magistrates, whose names were mentioned in the Commission, came upon the bench.

Proclamation was then made for silence, and the commission was immediately read by Mr. Dealtry, one of the clerks of the Crown-office.

The names of the gentlemen summoned on the Grand Jury were then called over, and the following gentlemen were sworn:

Job Raikes, esq.
John Stock, esq.
Thomas Milroy, esq.
Robert Batson, esq.
William Hills, esq.
Henry Thomson, esq.
Richard Gibbs, esq.
Thomas Lomet, esq.
James Gordon, esq.
William Anderson, esq.
William Parry, esq.
John Booth, esq.
John H. Pakenham, esq.
John Warren, esq.
George Frederick Young, esq.
Robert Meacock, esq.
Richard Jennings, esq.
James Taylor, esq.
John Johnson, esq.
Francis Douse, esq.

John William Horsley, esq.
William Benning, esq.
Stephen Taylor, esq.

These gentlemen having been sworn by Charles Abbott, esq. marshal to the commission, proclamation was made for silence while the charge was delivered.

LORD CHIEF-JUSTICE ABBOTT then addressed the Grand Jury in the manner following:

“Gentlemen of the Grand Inquest—We are assembled in this place, under the authority of his Majesty’s Special Commission, issued for the purpose of inquiring into, hearing, and determining, certain offences therein particularly mentioned. These offences are, first, all high treasons, except such as relate to the coin of the realm; secondly, all misprisions of treason; thirdly, the murder of one Richard Smithers, deceased, and any other crime or offence touching the death of that person; and, fourthly, any offences committed against the persons of Frederick Fitzclarence, George Legg, John Surman, William Westcott, John Muddock, James Basey, and other persons, or any of them, contrary to the form of an act made and passed in the forty-third year of the reign of his late Majesty, for, among other things, the further prevention of the malicious shooting, maiming, stabbing, or wounding, any person or persons; and, gentlemen, it has become my duty to offer to your consideration some remarks on each of these subjects, for your assistance in the discharge of the important duty which will devolve upon you when the bills are laid before you.

“The particular crime of treason to which it would be proper to call your attention is to be found, 1st, in the ancient statute 25 Edward III., and 2dly, in a statute passed for very wise purposes in the 36th year of the reign of his late Majesty. [His Lordship here recited the enacting clauses of the statutes to which he referred; the first of which declares it to be high treason to compass and imagine the death of the King or the Queen, or to levy war against the King within his realm; and, the second enacts, that if any person, within or without the realm, compass or imagine the death of the King, or his deposition, or to do him any bodily harm, such as maiming, wounding, or imprisoning him, in order by force to compel him to change his measures

or counsels of government, any persons so offending shall be guilty of high treason.]

“You will observe, gentlemen, that in each of the description of offences that I have enumerated, except the levying of war, which is in the ancient statute that I have alluded to, the words are, “imagination and intention,” which are words of the same meaning, and the actual perpetration of the crime is not mentioned. But it is further required by an ancient statute, that the party accused shall be provably attainted; and by a latter statute it is mentioned, that if the party shall express, utter, or declare his intention by any printing or writing, that is an overt act of such intention. The law has wisely provided for the public safety, that in cases of this kind, which involve the most extensive public mischief, the intention shall be adjudged the crime; but, at the same time, for the safety of the individual charged, it is required that such intention shall be manifested by some act tending towards the accomplishment of the criminal object charged.

“It may be proper to mention, that, before the passing of a late statute, it was settled by several cases, and the opinions of the first text writers, that all attempts to depose the king from his royal state, to restrain his person, or to levy war against him, were high treason; and all conspiracies, consultations, and agreements for those purposes, were overt acts of compassing and imagining the death of the king. By the late statute, all these things are made substantive treasons, and thereby the law is made more clear to those who are bound to obey it, and to those who may be engaged in the administration of it.

“It may be also proper to remark, that all the pomp and circumstances of military array are not necessary to the first levying of war. Insurrections for the purpose of accomplishing the designs I have mentioned to you by force, however ill arranged, if they are to accomplish an innovation in public affairs, in which the parties have no special or particular interest, are an actual levying of war. Rebellion at its first commencement is rarely found in military discipline or array, although a little success may soon lead it to assume those appearances. Any act manifesting a criminal intention, and tending towards the accomplishment of the criminal object, is, in the language of the law, an overt act. Overt acts may be committed openly and manifestly; but there are other overt acts, such as meetings and

consultations, and contrivances, agreements and promises of mutual support and assistance, and incitements to others to engage in the same scheme, are also overt acts. Assenting to the designed purpose, assisting in the preparation of weapons, or any other thing necessary to the general design, are all overt acts of the particular kind of treason, of the particular compassing and imagination to which they may happen to apply; and in this crime of high treason the law acknowledges no accessories,—all are principals. All who participate in the design and object, whether they enter into them early or late, are equally guilty; for it will be found in conspiracies of a treasonable nature, as well as all other conspiracies, that each is engaged in accomplishing some particular object, which is a part of the general design. Some are more zealous and ardent, others are more close and reserved; but, as they are all acting in pursuance of the same view and object, all are equally guilty. Overt acts are most important matters for your investigation. It is necessary that the proof be set forth in the indictment, in order that the accused may be prepared for his defence; but it is not necessary that all the circumstances of proof should be detailed. It is also required, in cases of high treason, that there should be two witnesses to the overt acts. It is not necessary that there should be two witnesses to every overt act; but if there be one witness to one overt act, and another to another, that is sufficient. Some one overt act must be proved to have taken place in the county in which the trial takes place, as in the present case, in Middlesex.

“Having said thus much upon the law, as it applies to high treason, I shall now address myself to the cases likely to be brought before you, in order that you may apply that law. But in any thing I may say, with reference to the inquiry in which you are likely to be engaged, I request you will consider it all as supposition.

“It has been supposed that a conspiracy was formed to assassinate certain persons engaged in the administration of the government of the country, when they were assembled at a dinner at the house of one of them, on February 23d: and it is supposed that a treasonable hostility to the government dictated that act, for the abolition of that government would follow this assassination. In furtherance of this design, seven persons were found almost in the act of immediate preparation, in a stable, with arms and offensive weapons, suitable to the accomplishment of such a traitorous

purpose. Those persons, when attempted to be arrested by the peace-officers and the military, in their endeavours to escape, which many of them effected, killed one Richard Smithers. Pistols were discharged—weapons of death were used—and some or all of the persons named were wounded.

“Of these matters all of you have, no doubt, read and heard; therefore I take the liberty most earnestly to entreat you to confine your attention to the evidence laid before you, and to banish from your minds such information as you may have previously received as to the motive or object of this supposed conspiracy, or as to the conduct of the particular individuals supposed to be engaged in it.

“I should tell you that a conspiracy to murder public persons, however important their situations may be, if arising from private malice, and not intended to bring about any other object, does not constitute the crime of high treason. But if the assassination of such persons is meant as the first step of a general design to attack and destroy by force the government of the country, or to compel the sovereign to adopt such measures as they may think fit, then that assassination assumes a different complexion, and may be considered an overt act of one or both of those species of treason which I have mentioned. If, therefore, a conspiracy to take away the lives of his Majesty’s ministers should be proved, you will look to the object about to be obtained by that assassination, and also to the number and rank of the persons intended to be assassinated; for the crime increases not only with the number of the conspirators, but with the number of the persons intended to be assassinated.

“It is, indeed, difficult to conceive that persons could from private malice alone, and without having a public object in view, conspire together to assassinate a number of individuals of whom they could have no knowledge but from the public situations which they filled. But the difficulty of the supposition must not supply the place of evidence. We well know that all attempts to subvert the government of this country must, in the calm and sober eye of reason, appear wild and hopeless; but you will consider that the mad persons who indulge such views are led to diminish the difficulties and to magnify the success and the benefit attending their schemes. It is natural for the vicious to think that there are others as wicked as themselves, and that they shall gain numerous adherents if they succeed in

their first attempt. It is this belief that often leads them to a premature disclosure of their purposes to those whom they think likely to participate in their guilt, and that thus furnishes evidence of their dangerous designs; but dark and deep designs are seldom developed but through those who have joined in them. The evidence of accomplices, however, is always to be received with caution, and the conviction arising from such evidence should rest on circumstances of credibility rather than on the personal characters of the witnesses themselves. If such testimony were on all occasions to be rejected, one of the greatest securities to the honest part of society would be annihilated—namely, the want of mutual confidence in those engaged in wicked schemes.

“The next subject which is likely to come under your observation is misprision of treason, which consists in the concealment of treason, when it is within the knowledge of the parties by whom it might be divulged, and whose duty it would be to go before the first magistrate, and make known the evil purposes which they know to be contemplated.

“The third subject to which your attention may be directed is the murder of Richard Smithers, and any other offence touching the death of that person, who lost his life on the occasion of the attempt made to arrest those persons now in custody. It will be material to take into your consideration the place, the time, and the circumstances, where, when, and under which, that attempt to arrest them was made.

“The caution required by law as to the conduct of officers of justice in apprehending persons charged with crimes applies only to a dwelling-house whereof the doors are not open, and that caution is confined to a dwelling-house alone. All other buildings or places of meeting may be lawfully opened and entered for the apprehension of persons charged with crimes against the law, without any previous notification made. And when those officers have declared the character in which they appear, the persons within are bound to yield themselves in the same manner as if they had been met in the fields, or in the open street; and if any of these officers be killed when the arrest would have been lawful, then the party by whom the death-wound is inflicted becomes guilty of the crime of murder. The arrest of persons under the authority of a warrant from the magistrates is a lawful arrest. So also is the arrest by peace-officers, without a warrant, of persons

supposed or reasonably alleged to have committed felony. So also is an arrest by peace-officers, without a warrant, of persons actually engaged in any breach of the peace, or of persons assembled and arming, or otherwise preparing for the immediate perpetration of murder; because such an assembly and such a perpetration are in themselves criminal, and the arrest is actually necessary for the prevention of the accomplishment of a still more heinous design. I mention this, because the case likely to be submitted to you may fall within these observations. The persons required to surrender to the officers of the peace, though they may not be authorized to arrest them, are not warranted in assaulting those officers with deadly weapons, without warning them to stand off; and if they do, and death ensue, they all subject themselves to punishment for the crime of murder—at all events, they would be guilty of man-slaughter.

“In speaking of those guilty of murder, you will bear in mind that all who unite in resistance, and use words manifesting that determination, are equally guilty with him who inflicts the death-wound.

“Gentlemen, having said so much upon the third head of your inquiry, very little remains to be said of the fourth. This comprises all offences committed on the person of F. Fitzclarence, and the others maimed, contrary to the 43d of the late king, the title of which is set forth. You will therefore see that the jurisdiction does not extend to all offences committed against these persons, but only such as are contrary to the statute I have just mentioned to you. That statute is the fifty-eighth chapter of the 43d of his late majesty; and as no doubt it has been brought under the view of many of you, I need not enter fully into it. The provisions of this act are—‘That it is a capital felony for any person to shoot at, or wilfully to present and point loaded fire-arms at, and attempt, by drawing the trigger, to discharge the same at any of his majesty’s subjects, and also wilfully and maliciously to stab or cut, with intent to murder, rob, maim, or disfigure any of his subjects, or to do them any grievous bodily harm.’ There is an express provision in this statute which enacts, that these offences must be committed under such circumstances as that, if the attempt succeeded in depriving a fellow-creature of life, it would be murder. Now, if such an attempt be made in the open street, which probably is a case that may be brought before you, there can be no question of a malicious design to murder, or to do some grievous bodily harm. As, however, no case is likely

to come before you falling within the excepting provision of the statute, I forbear to trouble you with any further observations, being well aware, that in this case, as well as in every other, the best security for the due discharge of the important trust reposed in you will be found in your own good sense, your own sound discretion, and your own general knowledge. If, however, in the progress of your investigation any unexpected difficulty shall arise, the Court will be found ready to give you such further advice as you may require.

“Having detained you thus long, with such observations as I have thought necessary, I now dismiss you to the discharge of that important duty for the execution of which you are assembled.”

At the conclusion of his Lordship’s address, the Jury retired to their room, and proceeded to examine witnesses upon the indictments which were preferred before them. The Judges continued sitting in Court for upwards of an hour, when the foreman and a few other members of the Grand Jury returned, and an arrangement was made that their Lordships should resume their seats at twelve o’clock, and that the Grand Jury were to assemble at ten o’clock.

On this occasion, the following witnesses were in attendance:—The Right Hon. Nicholas Vansittart, R. Baker, Esq., R. Birnie, Esq., Captain Fitzclarence; Monument and Adams (in custody); Ruthven, Ellis, Westcott, Lee, Brooks, Surman, Wright, Taunton, Bishop, and Gill (officers); Serjeant Legge, John Muddock, Jonathan Curtis, Joseph Basey, Joseph Rivell, and Joseph Edgar (soldiers); Joseph Hall, Thomas Droyer, Thomas Hiden, Joseph Harry Price, Emanuel Francis, James Pocock, James Munday, Richard Munday, George Paylock, Mary Rogers, Eleanor Walker, &c.

Soon after twelve o’clock the Judges left the Court; and at half past twelve the Grand Jury, having then been a considerable time in deliberation, proceeded with the examination of witnesses.

Mr. BOUCHIER, one of the solicitors to the Treasury, was the first witness examined: he was only a few minutes before the Jury.

ROBERT ADAMS, the ex-Oxford Blue, and an accomplice of the conspirators, was next called. He was brought from the House of Correction, where he

had been in confinement since the final examination of the conspirators before the Privy-Council, in the custody of Mr. Adkins, the Governor, and the principal turnkey. He was three hours under examination. He appeared perfectly cool and collected when he came from the Grand Jury Room. After his examination he was taken back in custody to the Cold-Bath-fields Prison.

The Right Hon. NICHOLAS VANSITTART, Chancellor of the Exchequer, was the third witness. The Right Hon. gentleman, together with CAPTAIN FITZCLARENCE, and other witnesses of the superior order, was accommodated with a private room, while waiting the summons of the Grand Jury. He was not more than ten minutes under examination.

JOSEPH BAKER, servant to the Earl of Harrowby, and fourteen other witnesses, were then examined in succession. Amongst them was

JOHN MONUMENT, one of the eight committed to the Tower on the charge of high treason. He was brought from the Tower in the custody of two Yeomen of the Guard, and several officers, and was kept in a private room, attended only by the Yeomen, with their swords drawn, during the day. He seemed very uneasy, and continued pacing the room about the whole time that he remained there. He appeared pale and dejected, and by no means a willing witness. After his examination, which lasted nearly an hour, he was conducted back to the Tower in the same custody.

There were several women among the persons examined. They were of respectable appearance. Two boys were also called.

Captain Fitzclarence was the last witness called, and at six o'clock the Grand Jury adjourned until nine o'clock on the following morning.

Tuesday the 28th of March, the court again met, pursuant to adjournment, and soon after twelve o'clock, the Chief-Justices of the King's Bench and the Common Pleas, and the Attorney and Solicitor Generals, took their respective seats.

At half-past two o'clock, the Grand Jury, having gone through the examination of the whole of the witnesses, entered with true bills for high treason against Arthur Thistlewood, William Davidson, James Ings, J. T.

Brunt, Richard Tidd, J. W. Wilson, John Harrison, Richard Bradburn, James Shaw Strange, James Gilchrist, and Richard Charles Cooper.

The bills for high treason against Abel Hall and Robert George, were ignored.

The Lord Chief Justice then expressed to the Attorney-General his wish that the persons against whom true bills had been found might have intimation, without the trouble of coming into court, that their attorneys and counsel would have ready access to them. The Attorney-General promised that every facility should be given to the communication with their legal advisers.

On the following day the court assembled a third time to inquire into the murder of Smithers, and divers acts of felony alleged to have been committed by the prisoners; accordingly at twelve o'clock the Lord Chief Justice of the King's Bench took his seat in Court. The Solicitor-General attended for the Crown.

The Grand Jury immediately entered, and delivered several bills to the clerk, who read as follows:—

True bills for murder against Arthur Thistlewood, John Thomas Brunt, Richard Tidd, James William Wilson, John Harrison and James Shaw Strange.

No bills for murder against William Davidson, James Ings, Richard Bradburn, James Gilchrist, Abel Hall, and Richard Charles Cooper.

True bills for felony against James Ings, Richard Tidd, James William Wilson, and Arthur Thistlewood.

The Foreman stated, that there was no other bill before them.

The Solicitor-General said, that it was not intended to prefer any more bills at present.

The Court was then adjourned by direction of the Lord-Chief Justice till the 13th day of April then next ensuing, at half-past 9 in the morning.

A material omission occurred in the bills of indictment preferred before this Grand Jury, assembled under the Special Commissions, with regard to *Davidson*, the man of colour, who, on the night of the capture of the conspirators, was standing sentry at the entrance to the place of meeting, armed with a carbine, and sword of immense length, and in resisting the attempt of the officers to take him into custody, discharged his carbine at one of them. In preferring the bills against the prisoners for the several offences with which they were charged, this circumstance was overlooked, and it was not recollected, till Wednesday the 19th of April. An order was consequently given on that evening by Mr. Maule, the solicitor to the Treasury, to Ruthven, Ellis, Gill (the man shot at), and other witnesses, to attend before the Middlesex Grand Jury, at Clerkenwell, on the following day, and to take with them the arms taken from Davidson. They attended accordingly, the bill of indictment was preferred, and a true bill found against William Davidson, for feloniously shooting at Gill, with intent to kill, &c. Only three witnesses were called. The bill was preferred before the Grand Jury summoned to dispose of the ordinary Sessions business, and not that which had assembled under the Special Commission.

On Monday the 3d of April, copies of the indictments, with lists of the jurors and of the witnesses to be produced on the trial, were delivered to each of the prisoners in their respective places of confinement.

The LIST of the JURORS contained the names of 227 freeholders of the county of Middlesex, resident in the different parishes, many of them at a considerable distance from the metropolis.

The INDICTMENT contained four counts, on each of which certain overt acts were charged, manifesting and proving the acts of treason set forth. The following is an abstract of the Indictment.

The King against Arthur Thistlewood, William Davidson, James Ings, John Thomas Brunt, Richard Tidd, James William Wilson, John Harrison, Richard Bradburn, John Shaw Strange, James Gilchrist, and Charles Cooper.

FIRST COUNT.

That they did compass, imagine, invent, devise, and intend to deprive and depose our said Lord the King of and from the style, honour, and kingly name of the imperial crown of this realm.

First overt act.—That they did assemble, meet, conspire, and consult to devise, arrange, and mature plans and means to subvert and destroy the constitution and government of this realm, as by law established.

Second overt act.—That they did conspire to stir up, raise, make, and levy insurrection, rebellion, and war against our said Lord the King within this realm, and to subvert and destroy the constitution and government of this realm, as by law established.

Third overt act.—That they did conspire to assassinate, kill, and murder divers of the Privy-Council of our said Lord the King, employed in the administration.

Fourth overt act.—That they did procure, provide, and have divers large quantities of arms, in order to assassinate divers of the Privy-Council.

Fifth overt act.—That they did procure, provide, and have arms, with intent therewith to arm themselves and other false traitors, in order to raise, make, and levy insurrection, rebellion, and war.

Sixth overt act.—That they did conspire, consult and agree to seize and take possession of divers cannon, with intent to arm themselves and other false traitors, in order to make war against the King, and destroy the constitution.

Seventh overt act.—That they did conspire to set fire to, burn and destroy divers houses and buildings in and in the neighbourhood of London, and divers barracks, and to provide combustibles and materials for the purpose.

Eighth overt act.—That they did compose and prepare, and cause and procure to be composed and prepared, divers addresses, proclamations, declarations, and writings, containing therein solicitations, and incitements to the liege subjects of our said Lord the King, to aid and assist in making and levying insurrection, rebellion, and war, against our said Lord the King, within this realm, and in subverting and destroying the constitution and government of this realm, as by law established.

Ninth overt act.—That they did compose and prepare, and cause and procure to be composed and prepared, a certain paper writing, purporting to be an address to the liege subjects of our said Lord the King, containing therein that their tyrants were destroyed, and that the friends of liberty were called upon to come forward, as the provisional government was then sitting, with intent to publish the same, and thereby to solicit and excite the liege subjects of our said Lord the King to aid and assist in making and levying insurrection, rebellion, and war against the King, and in subverting and destroying the constitution and government.

Tenth overt act.—That they did assemble themselves, with arms, with intent to assassinate, kill, and murder divers of the Privy-Council, and to raise, make, and levy insurrection, rebellion, and war against our said Lord the King, and to subvert and destroy the constitution and government of this realm.

Eleventh overt act.—That they, armed and arrayed in a warlike manner, did ordain, prepare, levy and make public war against the King.

SECOND COUNT.

That they did compass, imagine, and intend to move and excite insurrection, rebellion, and war against the King, within this realm, and to subvert and alter the legislature, rule, and government, and to bring and put the King to death.

First overt act.—Same as in the first count, with the addition of “and to deprive and depose our said Lord the King of and from the style, honour, and kingly name of the imperial crown of this realm.”

Second, third, fourth, fifth, sixth, seventh, eighth, ninth, tenth, and eleventh overt acts, same as in the first count.

THIRD COUNT.

That they did compass, imagine, and invent to move, and intend to levy war against the King, in order by force and constraint to compel him to change his measures and councils.

First overt act.—That they did assemble, meet, conspire and consult to devise, arrange, and mature plans and means, by force and constraint, to compel the King to change his measures and councils.

Second overt act.—Same as in the first count only leaving out the conclusion, “and to subvert,” &c.

Third and Fourth overt acts.—Same as in the first count.

Fifth and Sixth overt acts.—Same as in the first count, omitting as before, “and to subvert,” &c.

Seventh overt act.—Same as in the first count.

Eighth, Ninth, and Tenth overt acts.—Same as in the eighth, tenth, and eleventh overt acts in the first count, omitting at the end of the eighth and ninth as before, “and to subvert,” &c.

FOURTH COUNT.

That they did levy and make war against the King, and endeavour by force and arms, to subvert and destroy the constitution and government of this realm, and to deprive and depose the King of the crown.

The following is the LIST OF WITNESSES, containing 162 names, and amongst them some of the most distinguished Members of Administration, the Police Magistrates and Officers, the Soldiers employed in the arrest, many women, boys, &c.

Adams, Robert, cordwainer, an accomplice, in custody
Alderson, Leonard, Antelope-gardens, Holywell-mount, cordwainer
Aldous, James, Berwick-street, pawnbroker
Avis, George, Bow-street patrol
Adkins, William, governor of the House of Correction, Coldbath fields
Bathurst, Right Honourable Charles
Baker, John, servant to the Earl of Harrowby
Baker, Robert, Esq. Justice of the Peace, Bow-street
Baker, Gabriel, yeoman, warder of the Tower

Baldwin, William H. shopman to Mr. Colnaghi, printseller, Cockspur-street
Barrow, William, chair-maker.
Basey, James, soldier, 2d regiment coldstream guards
Bishop, Daniel, officer, Bow-street
Bissex, Charles, watchman
Birnie, Richard, Esq., Bow-street office
Brind, Joseph, servant to J. Saunders, St. John-street, Clerkenwell
Brooks, William Charles, Bow-street patrol
Bourchier, Charles, Esq., assistant solicitor, Treasury
Bulmer, John, warder of the Tower
Bubb, Thomas, watchman
Bamford, John, captain and adjutant of the London and Westminster Light Horse Volunteers
Buller, James, Esq., one of the clerks of his Majesty's most honourable Privy-Council
Brand, George, turnkey of the House of Correction
Brand, Henry, ditto
Castlereagh, Viscount
Carr, Thomas, cordwainer
Carter, Robert, yeoman, warder of the Tower
Caylock, George, Cato-street, blacksmith
Champion, Joseph, Bow-street patrol
Chapman, Robert, ditto
Chetwynd, Richard, Viscount, one of the Clerks of his Majesty's most honourable Privy-Council
Claddis, Stephen, yeoman, warder of the Tower
Clark, John, ditto
Clark, William, ditto
Clark, Thomas, Great York-mews, Portman-square, tailor
Cooper, William, warder of the tower
Curtis, Jonathan, soldier, 2d coldstream guards
Cygrove, John, ditto
Davy, John, Parker-street, Drury-lane, wheelwright
Davies, Jeremiah, warder of the Tower
Davies, H. servant to the Earl of Ailesbury, Grosvenor-square
Davison, Thomas, printer, Duke-street, West Smithfield

Denne, George, yeoman, warder of the Tower
Devisme, Gerard, Esq., Bryanstone-street, merchant
Dobson, Jonathan, Silver-street, Clerkenwell, dealer in old iron
Dobson, Esther, wife of the above
Dwyer, Thomas, Gee's-court, Oxford-street, bricklayer
East, James, warder of the Tower
East, Richard, ditto
East, Robert, White-street, Moorfields, letter-caster
Edwards, George, Ranelagh-place, modeller
Edgar, James, soldier, 2d coldstream guards
Ellis, James, Bow-street patrol
Farrell, Thomas, Duke-street, Lincoln's-inn-fields, green grocer
Fitzclarence, Frederick, ensign, 2d coldstream guards
Flanagan, Patrick, St. Giles's, watchman
Fletcher, William, warder of the Tower
Ford, William, Mount-street, Lambeth, cordwainer
Francis, Emanuel, Southampton-mews, Marylebone, labourer
Fryer, William, warder of the Tower
Gill, Benjamin George, Bow-street patrol
Gillan, Henry, servant to Mr. Whittle, apothecary, Mount-street, Grosvenor-square
Gould, Mary, Adam's-mews, Grosvenor-square, wife of George Gould, victualler
Gould, Elizabeth, Stanhope-st. wife of Robert Gould, victualler.
Gibbs, William, Bow-street patrol
Harrowby, Dudley, Earl of, Lord President of his Majesty's most honourable Privy-Council
Hale, Joseph, apprentice to John Thomas Brunt, boot-closer
Hanson, Edward, sergeant of artillery, Tower
Harknett, John, Clement's-inn, labourer
Harrell, James, Lamb's Chapel-court, Monkwell-st., cordwainer
Hatton, Thomas, warder of the Tower
Hayward, Joseph, Long-alley, Moorfields, cordwainer
Hiden, Thomas, Manchester-mews, milkman
Hoare, Mary, Great Wild-street, spinster
Hobbs, John, White Hart-yard, Brook's-market, victualler
Hobhouse, Henry, Esq., one of his Majesty's Under Secretaries of

State

Howard, George, Fox-court, Grays-inn-lane, cordwainer
Humphrey, William, warder of the Tower
Humphreys, Samuel, Radnor-street, St. Luke's, iron-founder
Inglis, James, soldier, 2d regiment coldstream guards
Jennings, Thomas, New Compton-street, carver and gilder
Isaacs, Jane, Cato-street, spinster
Keyes, Thomas, Frith-street, Soho, victualler
Keyes, Thomas, the elder, gent., same place
Knowles, Walter, warder of the Tower
Lane, John, gent., gaoler of the Tower
Lavender, Stephen, officer, Bow-street
Lee, William, patrol, Bow-street
Leeson, John, warder of the Tower
Legg, William, serjeant 2d regiment coldstream guards
Litchfield Elijah, Clerk of the office of solicitor of the treasury
Lawson, Edward, Brown's-lane, Spitalfields, currier
Lott, James, sergeant 2d regiment coldstream guards
Main, Thomas, warder of the Tower
M'Carthy, Anne, Gray's-buildings, Manchester-square, wife of James
M'Carthy, labourer
Mansfield, John, servant, to ensign Fitzclarence
Maule, George, Esq. solicitor to the treasury
Miles, Thomas, warder of the Tower
Moay, Giles, Franklin, Marylebone, watchman
Monument, Thomas, Garden-court, Gray's-inn-lane, cordwainer
Monument, John, an accomplice, prisoner in the Tower
Morris, Thomas, warder of the Tower
Muddock, John, soldier in the 2d regiment coldstream guards
Munday, Richard, Cato-street, labourer
Munday, James, same place, labourer, son of the above
Maidment, Jeremiah, constable, Bow-street
Morison, John Hector, Drury-lane, cutler
Morris, Stephen, turnkey, House of Correction
Nixon, Luke, patrol, Bow-street
Palmerston, Henry John, Viscount, secretary at war
Pargiter, Henry, messenger to the solicitor to the treasury

Pocock, J. Tunbridge-row, Lord's Cricket-ground, whitesmith
Poulson, Jonathan, servant to the Lord Archbishop of York
Powell, John, warder of the Tower
Pratt, Edward, Fox-place, Lord's Cricket-ground, smith
Price, J. H. Kendal's-mews, Blandford-street, brassworker
Privatt, Mary, Vine-yard, Southwark, char-woman
Phillips, Henry, Pleasant-row, Lord's Cricket-ground, labourer
Raven, Henry Baldwin, clerk to the solicitor to the treasury
Read, William, officer, Hatton-garden
Revell, James, soldier, 2d regiment coldstream guards
Ridsdale, William, waiter, Peele's coffee-house
Rochfort, George, Little Park-lane, Regent's-park, watchman
Rogers, Mary, Fox-court, Gray's-inn-lane, chandler's-shop keeper
Rogers, George, warder of the Tower
Ruthven, George Thomas Joseph, officer, Bow-street
Sallibanks, William, Holly-row, Lord's Cricket-ground, carpenter
Salmon, William Joseph, Seymour-place, Marylebone, tailor
Salmon, William, officer, Bow-street
Saxelby, warder of the Tower
Sheppard, Robert, ditto
Shephard, Sarah, Great Wild-street, victualler
Simpson, Edward, corporal-major, 2d regiment life-guards
Smart, Thomas, Wood-street, Westminster, watchmaker
Smith, Augustus, Swan and Horse-shoe public house, Little Britain, plumber and glazier
Spooner, Ralph, servant to Armstrong and Co. Leather-lane
Stafford, John, chief clerk, Bow-street
Strickland, James, corporal 2d regiment coldstream guards
Surman, John, patrol, Bow-street
Sutch, William, John-street, Grosvenor-mews, cordwainer
Smith, John Clark, John-street, West, Edgware-road, victualler
Taunton, Samuel H., officer, Bow-street
Taylor, Sarah, Warwick-street, Golden-square, printseller
Thompson, Abraham, warder of the Tower
Tomlin, William, Gray's-inn-lane, victualler
Townshend, John, patrol, Bow-street
Vansittart, Nicholas, (the Right Hon.) chancellor and under-treasurer of

his Majesty's exchequer
Valentine, Benjamin, William, officer, Marlborough-street
Underwood, William, warder of the Tower
Wales, John, officer, Marlborough-street
Walker, James, Gun-street, Old Artillery-ground, coffee-house keeper
Walker, Eleanor, spinster, servant to Henry Rogers, Fox-court, Gray's
Inn-lane
Weeden, James, Edgeware-road, oil and colour-man
Welford, John, South-street, Park-lane, clerk to James Denew,
auctioneer and appraiser
Westcott, William, patrol, Bow-street
Wood, Robert, Elliot's-row, Lord's Cricket-ground, tinman
Woodward, John, High-street, Islington, cordwainer
Wright, John, patrol, Bow-street
Wheeler, Henry, turnkey, House of Correction
Weston, Elizabeth, Cato-street, wife of Edward Weston, plumber and
glazier.

In addition to the copy of the indictment, and lists of jurors and witnesses, the prisoners received each of them the following notice from the Solicitor to the Treasury:—

“The King v. Arthur Thistlewood, Wm. Davidson, James Ings, John Thomas Brunt, Richard Tidd, Jas. Wm. Wilson, John Harrison, Richard Bradburn, John Shaw Strange, James Gilchrist, and Charles Cooper, for high treason.

“You are hereby required to produce, upon the trial of this indictment, certain paper writings, written or prepared, or caused to be written or prepared by you, or some or one of you, on or about the 23d day of February last, each of these purporting to be an address to the people of this kingdom, stating therein that their tyrants were destroyed, and that the friends of liberty were called on to come forward, as the provisional government was then sitting, or to the like purport or effect; and also a certain other writing, written or prepared, or caused to be written or prepared by you, or some or one of you, purporting to be an address to the soldiers, soliciting them to join the friends of liberty, and that they should have their discharge, * * * * * and full pay

for life, and twenty pounds to take them to their homes, or to the like purport or effect; and also all other addresses and proclamations whatsoever, written or prepared, or caused to be written or prepared, by you, or any of you, between the 1st day of January, and the 24th day of February last.

“Dated this 8th day of March, 1820.

“GEO. MAULE, Solicitor for the Prosecution.

“To the above-named Arthur Thistlewood, &c., and to each and every of them.”

The reason for the service of the above notice was as follows: It was supposed that the accomplices who had become king's evidence, would, in their examination as witnesses, state, that such an address as that referred to in the notice was prepared and in the possession of some of the defendants; and as the prosecutors would not, according to the rules of evidence, be allowed to give verbal testimony of the contents of the address without previously giving notice to the defendants to produce the original, the Crown Solicitor served them all with notice.

On the 13th of April, Mr. Sheriff Rothwell received a summons from the office of the Secretary of State for the Home Department, requiring his presence at Whitehall, to make the necessary arrangements for the removal of the state prisoners in the Tower to Newgate. The Sheriff, accompanied by Mr. Under-Sheriff Turner, immediately proceeded to the Home-office, where they were introduced to Lord Sidmouth.

The mode of conveying the prisoners having been decided upon, Lord Sidmouth delivered to Sheriff Rothwell a writ, empowering him to receive into his custody, from the Warder of the Tower of London, the bodies of *Arthur Thistlewood, William Davidson, James Ings, John Thomas Brunt, Richard Tidd, James William Wilson, and John Harrison*, charged with high treason. His Lordship at the same time intimated that a military force would be in attendance, to guard the prisoners to their place of destination.

In consequence of the plan adopted, on the morning of the 14th, as early as half-past six o'clock, Mr. Sheriff Rothwell, Mr. Under-Sheriff Turner, Mr. Under-Sheriff Pullen, Mr. Brown (gaoler of Newgate,) Mr. Wontner, (the Chief City Marshal,) and Mr. Brown, (the Deputy Marshal,) arrived at the Tower, and were immediately introduced to the resident Governor, Major J. H. Elrington, who had been apprized of their coming, and had given directions to the Warders to have their prisoners in readiness. A numerous detachment of the Life Guards soon afterwards arrived at the fortress, and these were followed by a strong party of Bow-street officers, in seven carriages, which were engaged for the occasion.

At seven o'clock, every thing being in readiness, directions were given to the Warders to bring forth their prisoners. The prisoners were then conducted separately from their respective places of confinement, between two Warders, into the Court-yard, where they were delivered to the officers in waiting, by whom they were handcuffed. While the handcuffs were being placed on Thistlewood he was greatly agitated, and trembled exceedingly.

Their names were called over from the writ, and Mr. Brown, the gaoler of Newgate, was thus enabled to recognize their persons. They were all perfectly silent until about to depart, when they expressed their thanks to the Warder for the humane attention which they had received.

The whole being now assembled, they were marched, each between two Bow-street officers, to the Fosse-gate, beyond which the carriages had been drawn up. Thistlewood was placed in the first carriage, and was joined by three police officers. The remaining prisoners were each placed in a separate carriage, and each attended by three Bow-street officers. They were accompanied by a troop of Life Guards, and proceeded in a direct course to Newgate prison.

The carriages were flanked on each side by Horse Guards in single file. Notwithstanding the early hour of the morning, and the secrecy with which the removal was so prudently conducted, as the carriages issued from the Tower gates, an immense throng had assembled to witness their departure.

In the gaol of Newgate, the Marshal's men, and a large body of constables, were assembled at seven o'clock, for the purpose of preserving order; and when, at twenty minutes before eight, it was announced that the prisoners

were approaching, they sallied forth and formed a half-moon in front of the felons' door. In a few seconds afterwards, the Horse Guards turned the corner of the Old Bailey, and rode up to the prison.

Mr. Sheriff Rothwell, and the Under-Sheriff, drove up to the private door of Mr. Brown's house, and obtained admission to the gaol by that means. The prisoners alighted at the felons' door, and were received by the chief turnkey. Thistlewood as he went up the steps, appeared greatly dejected; as did Ings, Tidd, and Brunt. Davidson, Harrison, and Wilson, seemed to maintain their confidence.

The prisoners were ultimately conducted to the cells which had been previously prepared for their reception; and the whole being thus safely delivered to the proper authorities, the Horse Guards rode off to their quarters.

Thistlewood was placed in a small but comfortable cell by himself, having a fire and other accommodations. In the day-time an officer was constantly present with him; and at night two were kept on guard.

The other six prisoners brought from the Tower were placed altogether, and had the accommodation of a large yard on the north side of the prison, in which they were allowed to take the air. With them also one officer in the day-time, and two at night, were always present.

At three o'clock in the afternoon the four prisoners confined in the House of Correction, likewise arrived at Newgate, without any military escort. They were brought in two carriages, accompanied by five or six police-officers. These four prisoners were placed in a separate cell apart from those who had been brought from the Tower.

With respect to the prisoners arrived from the House of Correction, the same precautions were taken, and one guard in the day, and two at night, were appointed to be constantly present with them.

In order to prevent any disturbance of a serious nature taking place, a further precaution had been taken. A detachment of the London Militia arrived in the course of the afternoon at Newgate, and continued there until the whole of the trials were concluded.

A committee was formed among the friends and partizans of the prisoners, for the purpose of raising subscriptions to support the wives and families of the unfortunate men, who, it will be recollected, were all of the lowest and most abject class of society, during their imprisonment, and for employing a solicitor, retaining counsel, and arranging other matters for their defence on the approaching trial.

The following hand-bill, containing a forcible appeal to the feelings of the public, was put forth by the families of the misguided men, under the direction of the committee for the management of their defence. How far the assertions so confidently expressed in this paper were borne out by the evidence given on the trial, on which we are now about to enter, we leave our readers to determine.

AN APPEAL TO THE BRITISH NATION.

“The WIVES and FAMILIES of the *unfortunate persons* now imprisoned for an *alleged conspiracy* against the present government, venture to intrude their helpless and unprotected situation on the immediate attention of their countrymen, and to offer this imperfect, but they trust not unsuccessful, appeal.

“Into the truth or falsehood of the charges, by virtue of which their husbands and parents are suffering under the double weight of public obloquy and rigorous confinement, they do not now presume to enter; they merely put in their claims in behalf of their unhappy relatives, that they may not be deprived of the benefits common to every Briton, viz., that of being at least not condemned until *legally* proved guilty, nor excluded from all possibility of a fair and unbiassed trial, *before a jury of their peers*.

“They beg to remind their countrymen that, hitherto, the unfortunate accused have had no opportunity of proving their innocence, or offering any thing in their own defence; that all is *ex-parte* statement, consisting of the testimony of *Bow-street Officers*, and the exaggerated reports contained in the public Journals, the former of which in many

instances have been *interested parties*, and have even been *proved* to have instigated to the commission of crime, that they might afterwards *betray the delinquents, and obtain the promised reward*; and the latter are notoriously guilty of loading their daily columns with the most scandalous falsehoods and misrepresentations.

“Under these impressions, they trust that a generous and humane Public will suspend their judgment, until the whole of this unhappy business has undergone the solemn and final adjudication of a Legal Tribunal, when the guilt or innocence of the respective parties may be rendered manifest to the world at large. Of this they are naturally the more solicitous, because it will be recollected, that when upon a former occasion, some of the persons who now stand charged with the crime of High Treason, were accused and tried for a similar offence, it was found, after a patient and impartial investigation, to the perfect satisfaction both of the Jury and the British Public, that the alleged Conspiracy was (as they verily believe the present will also be proved,) nothing more than the artful invention of *hired Spies* and *secret Agents*, who endeavoured to instigate to the perpetration of crime, that they themselves might reap an ample harvest from the blood of their deluded victims, and recommend themselves to their employers.

“Waiving for the present, however, all further discussion upon this painful and distressing subject, it is earnestly hoped that whatever opinion or prejudice may be entertained respecting the guilt or innocence of the accused, a generous Public will not confound the innocent with the guilty, or suffer the defenceless and unprotected Women and Children, who have no share or concern in these melancholy transactions, to perish for want of timely relief, while their Husbands and Parents are lingering in solitary confinement, unable to stretch forth a helping hand to save them from impending ruin: they are at this moment actually destitute of the means of subsistence, and dying for want of food.

“It is hoped that this imperfect but faithful statement of their real situation and circumstances, will induce the benevolent to step forward

and contribute their liberal aid, to rescue those distressed objects from famine and despair.

“Subscriptions will be received by the Printer, 10, Duke Street, Smithfield; Mr. Griffin, 10, Middle Row, Holborn, (opposite Gray’s-Inn Lane:) Mr. Walker, Gun Street, Spitalfields; and by the Relatives of the accused Persons The smallest Donations will be thankfully acknowledged.

Mary Brunt, for herself and one child.

Mary Tidd, and eight children.

Amelia Bradburn, and eight children.

Mary Strange, and two children.

Charlotte Preston, and three sisters.

Susan Thistlewood, one child.

Sarah Davidson, and six children.

Caroline Harrison, and three children.”

Mr. HARMER was employed by the Committee for all the prisoners, except Bradburn, having been previously employed for Bradburn by that man’s relations and friends.

Mr. ADOLPHUS and Mr. CURWOOD, were retained as counsel for Thistlewood, Brunt, Davidson, Ings, and Tidd; and Mr. WALFORD and Mr. BRODERICK, for the remainder of the prisoners.

It may be proper here to state, that during the whole time the prisoners were in custody, on the awful charges which we have so minutely detailed, the greatest attention possible was paid to their personal comfort and convenience, consistent with their safe custody; and indeed the unhappy men themselves felt and acknowledged the humane attention with which they had uniformly been treated.

FOOTNOTE:

[\[1\]](#) See Newgate Calendar, Vol. IV.

TRIALS

FOR

HIGH TREASON.

SESSIONS HOUSE, OLD BAILEY, SATURDAY,
APRIL 15, 1820.

This being the day to which the Court had been adjourned for arraigning and receiving the pleas of the eleven prisoners, against whom Bills of Indictment for High Treason had been found, the proceedings commenced. At ten o'clock precisely, the Commissioners entered the Court, preceded by Mr. Sheriff Rothwell; they were, the Lord Chief-Justice Abbott, the Lord Chief-Justice Dallas, the Chief Baron Richards, and Mr. Justice Richardson. The Common Sergeant, who is also in the commission, was likewise present; and Sir William Leighton, Sir R. Carr Glynn, Mr. Alderman Christopher Smith, &c.

The *Lord Chief-Justice Abbott*, after the Commissioners were all seated, rose, and presented to Mr. Shelton the indictments which had been found under the Special Commission, for the purpose of having them tried under the General Session of Oyer and Terminer, and Gaol Delivery, then holden in that Court.

Mr. *Shelton*, on receiving them, immediately gave directions to Mr. Brown, the gaoler, to bring up his prisoners.

The prisoners were then brought into court, each man accompanied by a constable, and placed at the back part of the dock.

Arthur Thistlewood entered first; he looked pale and dejected. He was dressed in a black coat and velvet collar, light-coloured waistcoat, blue trowsers, and shoes. None of the prisoners were either handcuffed or bolted. The other men were decently clad, according to their means, and appeared cleanly and healthful. The whole being assembled,

Mr. *Clarke*, the deputy clerk of the arraigns, proceeded to call over their names from the back of the bill found for high treason, preparatory to

THE ARRAIGNMENT.

Arthur Thistlewood first came forward, and was desired to hold up his hand. Having complied with this direction, he was placed at the bar. William Davidson (the man of colour), James Ings, John Thomas Brunt, and Richard Tidd, were then called, and went through the same ceremony.

Upon coming to the name of James William Wilson, Wilson, who remained with the other prisoners, did not answer. The name was twice repeated, but still he took no notice. One of the turnkeys then addressed him personally, and said, "Come forward, Wilson," to which he replied, "That is not my name."

Mr. CURWOOD now stated to the Court, that he was Counsel for some of the prisoners, and that it was intended to put in a plea of misnomer as to this man.

The *Lord Chief Justice*.—That must be done when the indictment is read, and when the prisoner is called on to plead.

The remaining prisoners, John Harrison, Richard Bradburn, and John Shaw Strange, James Gilchrist, and Charles Cooper, were then called, and severally came to the bar, and held up their hands.

The *Lord Chief Justice Abbott*.—"Prisoners, attend while the indictment is read;" and then, addressing himself to Mr. Clarke, "Let their names be called over again."

Their names were accordingly called over; and Mr. Clarke proceeded to read the indictment for high treason, for which see page 90.

On coming to the second count,

Mr. *Curwood* submitted, that as the overt acts in this count were similar to those in the first count, it was scarcely necessary to give the officer of the court the trouble of reading, or the court the fatigue of listening to it.

The *Lord Chief Justice Abbott*.—You think it may be dispensed with: very well, This may the more readily be acquiesced in, as all the prisoners have been furnished with copies of the indictment. Unless the prisoners themselves desire it, therefore, this count need not be read. His Lordship then addressed himself to the prisoners, and asked them whether they wished any more of this count to be read? He added, that their counsel thought it unnecessary.

Ings.—I do not think it is necessary.

The other prisoners all acquiesced in this determination.

The succeeding counts were then read, when Mr. *Clarke* addressed himself to Arthur Thistlewood, and asked him, whether he was guilty or not guilty of the treasons and felonies whereof he stood charged?

Thistlewood.—Not guilty.

Mr. *Clarke*.—How will you be tried?

Thistlewood.—By God and my country.

The same question, which is the usual form in arraignments, was then put to Davidson, who also pleaded Not Guilty, and agreed to be tried in the same way.

Ings, in a firm tone of voice, said, “I am not guilty. I will be tried by God and by the laws of reason. The laws of reason are the laws of God.”

The *Lord Chief Justice*.—Instruct him to plead in the usual way.

Mr. Brown having spoken to the prisoner, he agreed to the ordinary terms of the plea, and said he would be tried by God and his country.

John Thomas Brunt and Richard Tidd followed the example of Thistlewood and Davidson.

Mr. Clarke next called the name of “James William Wilson.”

Wilson came forward, and repeated his declaration, that that was not his name.

The Lord Chief Justice Abbott.—What is your name?

Wilson.—My name is James Wilson.

Mr. CURWOOD.—We mean to plead in abatement that this man has been indicted by a wrong name.

The Lord Chief Justice Abbott.—Is your plea prepared?

Mr. CURWOOD.—Yes, my Lord.

The Lord Chief Justice Abbott.—Let it be sworn.

The plea was then handed to Wilson, and he was sworn, in the customary form, to answer all such questions as the Court should demand of him.

The Lord Chief Justice.—Have you read the contents of that plea, and the form of affidavit subjoined; and is it true in matter and in substance?

Wilson.—I have, my Lord; I have signed it; it is true.

The Lord Chief Justice.—You swear the contents of your affidavit are true?

Wilson.—Yes.

The Lord Chief Justice.—Let the plea be received.

The plea was handed accordingly to Mr. Shelton.

The Lord Chief Justice.—The plea is received by the Court. It is for the Attorney General to consider what he proposes to do with it. For the present, take that man back.

The prisoner stood back. Harrison, Bradburn, Strange, Gilchrist, and Cooper, then pleaded Not Guilty, and pursued the course adopted by the other prisoners.

Thistlewood, Brunt, Tidd, Wilson, Harrison, and Strange, were then arraigned on a second indictment, charging them, in various counts, with

the wilful murder of Richard Smithers, in the parish of Marylebone, in the county of Middlesex, on the 23d of February last.

They all pleaded Not Guilty, with the exception of Wilson, who again pleaded the misnomer, and a plea was ordered to be prepared accordingly.

Ings now attracted the attention of the Court, and said, "I wish to speak, if I am permitted. I wish to know whether we are going to be tried altogether or separately? My wish is to be tried separately. I think I shall be able to prove that I am innocent of the charges alleged against me."

The *Lord Chief Justice*.—It is probable your request may be attended to; but this is not the proper time for making it. We will hear that presently.

The whole of the eleven prisoners were next arraigned on a third indictment, which was founded on the coroner's inquisition, by which they were all, together with certain other persons to the jurors unknown, pronounced guilty of the wilful murder of Richard Smithers. In this indictment the name of Wilson was correctly set forth: he, therefore, together with the other prisoners, pleaded Not Guilty.

Arthur Thistlewood was then arraigned separately on an indictment, charging him with shooting at, with intent to kill, or do some grievous bodily harm to, William Westcott, one of the Bow-street patrol engaged in arresting the conspirators in Cato-street. He pleaded Not Guilty, as did

James Ings and Richard Tidd to similar indictments preferred against the latter, for shooting at, with intent to kill, William Legg, serjeant in the Coldstream Guards; and the former for shooting at William Charles Brooks, one of the Bow-street patrol.

To each of these indictments a count was added, alleging the intent to be to obstruct certain officers of the peace in apprehending them while in the pursuit of illegal objects, and conspiring to murder and assassinate certain liege subjects of our Lord the King.

James Wilson was put to the bar to plead to an indictment against him for shooting at John Muddock, one of the soldiers engaged in Cato-street; but, being again described as James William Wilson, he pleaded his misnomer once more, and a plea was ordered to be prepared accordingly.

The whole of the indictments having been gone through,

The *Attorney-General* addressed the Commissioners, and said, that as he understood it was the wish of the prisoners to separate their challenges, he begged that the prisoners might be apprized that Arthur Thistlewood would be tried alone upon the indictment for high-treason on Monday morning.

The *Lord Chief Justice* desired that the prisoners might be asked, whether it was their wish to challenge separately?

The prisoners all expressed their wish to that effect.

Mr. *Shelton* then addressed Thistlewood, and informed him that he would be put upon his trial for high-treason on Monday morning, at nine o'clock.

The prisoners were then all taken from the bar, with the exception of Wilson, who remained to make affidavits to the pleas which he had tendered.

The *Attorney General* then adverted to the necessity of assigning Council to the prisoners under the terms of the statute.

The *Lord Chief Justice* desired that the names of the Council selected by the prisoners might be stated to the Court.

Mr. *Harmer* immediately announced, that Mr. ADOLPHUS and Mr. CURWOOD were to be the Counsel for the first six prisoners, including Arthur Thistlewood; and that Mr. WALFORD and Mr. BRODERICK would conduct the defence of the remaining five.

The *Lord Chief Justice* directed that the Council named should be assigned accordingly.

The additional pleas of Wilson were then brought into court by Mr. Harmer, and the prisoner was sworn to their contents.

The *Lord Chief Justice*.—Let the pleas be received. His Lordship subsequently announced, that the Attorney-General had filed his replication to the pleas in question.



THOMAS HIDEN.



Woolf del.

Geyer sculp.

ROBERT ADAMS.

Wilson was then taken back to Newgate, and the whole of the prisoners were re-conducted to their respective places of confinement. Thistlewood shook hands most cordially with some of his companions, whom he had not previously seen since his commitment.

TRIAL OF ARTHUR THISTLEWOOD,

FIRST DAY, APRIL 17, 1820.

The interest excited by this trial was strongly manifested by the assemblage of a crowd in front of the Sessions-house, as early as seven o'clock. Previous to this time a numerous body of the civil force had arrived, and were stationed in such situations as to control the multitude. For the purpose of preventing the interruption arising from the passage of carriages and carts through the Old Bailey, rails were erected at the two ends, next Ludgate-hill and Fleet-lane. These were only opened to admit the carriages of persons engaged in the business of the Court.

At eight o'clock the arrival of the jurymen who had been summoned created considerable bustle, and this was greatly increased by the pressure of other persons for admission to the Court. Regulations were adopted to prevent the entrance of those who were not provided with tickets. This was the more necessary, as from the limited nature of the Court but a small portion of the public could obtain accommodation. The Jury alone, who stood in the body of the Court, were upwards of two hundred in number. Certain boxes were devoted to the reception of females, several of whom were present.

The witnesses for the Crown were divided into two parties. The more respectable were placed in the Grand Jury room, and those of an humbler class remained in a contiguous apartment.

Monument, who remained a prisoner in the Tower, was brought from thence in the care of two warders, and Lavender and Bishop. He was placed in a room by himself, as was Adams, who was brought from the House of Correction in the custody of Governor Adkins.

The pikes, swords, guns, pistols, grenades, ammunition, and other articles intended to be produced on the trial, and which the witnesses brought with them, presented a most formidable appearance.

At half-past eight Thistlewood was conducted from his cell, in the care of one of the Turnkeys. He appeared greatly dejected. He was placed in the apartment usually devoted to those about to be put on their trials. The other prisoners were not brought down.

As the time appointed for the sitting of the Commissioners approached, the body of the Court became greatly crowded; while the galleries, which are private property, and to which admission could only be obtained by the payment of a guinea, were comparatively thin. The boxes assigned to the Committee of City Lands and the Grand Jury were completely filled.

At nine o'clock the Commissioners entered the Court in the same order as described on Saturday. The Court was then opened in the usual form.

Mr. *Shelton* immediately proceeded to call over the names of the Jurymen summoned. As they answered, they were asked, whether they were freeholders in the county of Middlesex to the amount of ten pounds a-year, or of a freehold and copyhold together of that amount? In the event of their answering in the negative, they were passed over. Those who did not answer when called, were called upon their summonses "to come forth and save their fines of 100 shillings and issue." Several were in this predicament.

The object of this ceremony was to ascertain the number and eligibility of the Jurymen in attendance, preparatory to their being subsequently subject to the challenges of the crown officers and the prisoners. Some of the gentlemen were excused from attendance on the ground of their health being so infirm as to preclude them from doing their duty as Jurymen.

While this form was going through, the prisoner Thistlewood was put to the bar, and attracted general attention. He was dressed as on Saturday, and came forward with apparent firmness. He had in his hand a pencil and a sheet of paper. He paid particular attention to the names as they were called over.

The Council for the Crown in attendance were, the Attorney-General, the Solicitor-General, Mr. Bolland, and Mr. Littledale. Those for the prisoners were, Mr. Curwood, Mr. Adolphus, Mr. Walford, and Mr. Broderick. Such was the pressure occasioned by the assemblage of the Jury, that they were

constrained to ask permission to quit the Court as their names were called over. This request was complied with, but they were desired to remain within hearing.

As the prisoner stood at the bar, and while the Court was occupied in attending to the list of the jury being called over, a man of shabby appearance contrived to get to the corner of the dock, and to place his hat on the board in front, and then, calling Thistlewood's attention, directed him to take the contents. Thistlewood immediately took from the hat five oranges, which he put in his pocket. Mr. Brown, who was in his box, witnessed the transaction, and admonished the obtruder. He afterwards directed one of his turnkeys to take the oranges into his possession. Thistlewood, on being asked, delivered up the fruit, and they were carried out of Court to be examined.

There might seem, in this conduct, on the part of Mr. Brown, something of harshness; but when it is recollected that an orange might be made the vehicle of conveying to the prisoner the means of personal destruction, or some other thing which the precautions already taken were meant to prevent, it will be seen that he did no more than became the vigilant execution of his duty. The oranges, having been examined, were returned. It was intimated to Thistlewood that he should be provided with any thing in the way of refreshment which he might require. We have already stated, that all communication with the prisoner, save under an order from the Secretary of State, had been most positively interdicted. The act of the individual in the present instance, however well-intentioned, was in direct contravention of this order.

Subsequent to this transaction, two letters, which had come by post, were delivered to Mr. Brown. We believe they were addressed to the prisoners, and, after they had been shewn to him, Mr. Brown felt it his duty to enclose and send them to the Solicitor of the Treasury.

At twelve o'clock the whole of the jury had been called over.

Thistlewood then addressed the Court, and said, "Will your Lordship allow me a chair?"

The *Lord Chief Justice*.—Considering the length of time which your trial is likely to last, the Court will grant you this indulgence.

A chair was then placed at the front of the dock, and the prisoner sat down, having first thanked the Court.

THE TRIAL.

Mr. Shelton then announced to the prisoner, that the jury were about to be called; and that, if he was disposed to challenge any or either of them, he would do so on their coming to the box to be sworn, and before they were sworn.

A considerable number of challenges then took place, both on the part of the crown and of the prisoner; at length the following jurymen were impannelled:

Alexander Barclay, Teddington, gent. and grocer.

Thomas Goodchild, North-end, Hendon, Esq.

Thomas Suffield Aldersey, Lisson-grove, North, Esq.

James Herbert, Isleworth, carpenter.

John Shooter, North-end, Hendon, gent.

Samuel Granger, Blackwall, lighterman.

George Dickenson, Colt-street, Limehouse, builder.

John Edward Sheppard, Eden-grove, Holloway,

John Fowler, St. John-street, iron-plate-worker.

William Gibbs Roberts, Ropemakers-field, Limehouse, cooper.

John Dobson, Felix-place, Islington, Esq.

William Cooper, Grove-street, St. Pancras, Esq.

After which the *Lord Chief Justice* thus delivered himself:—"As there are several persons charged with the offence of high treason by this indictment, whose trials are likely to be taken one after the other, I think it necessary, in the furtherance of justice, strictly to prohibit the publication of the proceedings of this, or any other day, until the whole of the trials shall be brought to a conclusion. It is highly necessary to the purposes of justice that the public mind, or the jurymen who are hereafter to serve, should not be influenced by the publication of any of the proceedings which may take

place, until the whole of those proceedings shall be finished. It is expected that all persons, therefore, will attend to this admonition.”

Mr. Shelton then called the attention of the prisoner, and read the indictment.

Mr. Bolland, as junior Counsel for the Crown, having shortly opened the indictment, the Attorney-General, at half-past one, proceeded to address the jury.

“May it please your Lordship, and gentlemen of the jury; you are now assembled to discharge one of the most important duties that can devolve to the province of a jury, to decide upon the guilt or innocence of a party charged with the highest offence known to the law; and, upon such an occasion, I am satisfied it is unnecessary for me to bespeak your patient attention to the case before you, still less even to hint to you the necessity of coming to the investigation with unbiassed and unprejudiced minds. You, I am sure, will discharge from your recollection every thing you may have heard or read relative to the charge which is about to be preferred against the prisoner at the bar, confining your attention solely and exclusively to the evidence which will be adduced in support of the charge, and forming your conclusion on that evidence only. Gentlemen, the charge as I have stated to you, is one of the highest nature known to the law. Other offences, generally speaking, however heinous and however enormous, may in their consequences, except so far as example is concerned, end with the fate of the perpetrators, or with the individuals who have been injured; but, with respect to high treason, not only in its inception, but still more so if it is unfortunately completed, it draws after it consequences of the most important kind, affecting, not merely individuals, but the whole community against whom it is directed.

“Gentlemen, I shall not trouble you in the observations I have to make to you, painful as the duty now imposed upon me is, with any lengthened detail with regard to the law as it affects the charge imputed to the prisoner; because, if I mistake not, that law is so clear, and if I err not greatly, the facts that will be proved to you will establish the case against the prisoner in so clear and satisfactory a manner, that it would be an idle affectation in me to cite any authorities before you in support of the charge; because if the

overt acts, as they are called, or any of them, are proved to your satisfaction (and I have no doubt but a considerable number of them will be proved,) no man who hears me can entertain the slightest doubt that the offence charged in the indictment will be established in point of law.

“Gentlemen, the charges in this indictment, though four in number, will be all proved to you by the same evidence; and if the evidence I shall lay before you be sufficient to establish one of them, it will, I believe, completely establish the whole. Three of the offences charged, consist in compassing and imagining the deposition of the King from his throne; the death of the King; and a conspiracy to levy war, in order to compel him to change his measures for the government of the kingdom.

“It is hardly necessary for me to state to you, that in proof of these charges, it is not essential that the plans of the parties accused should aim directly and immediately either at the life or the deposition of his Majesty; because, if they are aimed at that form of government which now exists—if intended to bring about a change in the system of rule now established, by means of war, which would naturally tend to effect that which must ultimately result either in the removal of the King from his kingly dignity, or in compelling him to change his measures in Council, that would be high treason; and therefore in these cases it is quite sufficient to shew that the plans framed were of a description and nature aiming against the government, (which will undoubtedly be proved in this case) although not directly and in the first instance aimed against the personal safety or the personal authority of the Crown. If, therefore, the consequences of the acts of the accused in this case, if those acts had been perfected, must inevitably have led to these results, they establish in point of law the treason charged; and therefore, Gentlemen, not to bewilder you in the inquiry which you are about to enter upon, I think it quite sufficient in the outset to state to you, that, in which I believe I shall be confirmed by the highest authority in the law when this case comes to be summed up to you, viz., that if the overt acts and facts charged in the indictment as evidencing the intention existing in the minds of the conspirators be proved to your satisfaction, they do prove the charges laid in this indictment; and, therefore, it is unnecessary to trouble you with any further observations on the law of the case.

“Gentlemen, important as the duty is which you are called upon to discharge, and anxious as that duty certainly must be to you, mine, I say, is no less anxious; for although in the address I purpose making to you, I do assure you I mean only to inform your minds of the nature of the charge brought before you, and of the evidence by which that charge will be substantiated, yet my duty is most painful; and I make this address with no view of leading your minds to any conclusion which the evidence itself does not warrant—with no intention of making any addition of my own, for, God knows, the facts want no addition to accelerate the inevitable conclusion to which you must come. It is my duty to state to you, as counsel for the prosecution, the case against the unfortunate man at the bar, as detailed to me in my instructions. My anxiety, therefore, is, I do assure you most conscientiously, not by any thing I shall state to you to attempt to lead or direct your minds to the conclusion which you ought only to draw from the evidence, but to state to you calmly and fairly the facts which I believe will be proved, without any attempt at exaggeration on the one hand, or any thing but a fair and candid narrative on the other, without any colouring whatever, because no colouring can alter the real facts of the case, however high. If I should err in this, and if in any thing I state to you, you shall, when you come to make up your minds, think the statement not proved in evidence, or the observations or inferences which I may have drawn shall not be fairly borne out by the facts proved, you will dismiss them from your minds, and confine your attention to that alone which is proved. But if you believe the statement I shall make, if you believe the observations made in that statement are fair and natural on the facts, then you will give them the weight they deserve, and you will suffer them to operate so far, and no further, as you, in your judgment, think they ought.

“Gentlemen, having said thus much, I will, without farther preface, call your attention as perspicuously and as shortly as I can to the facts which will be proved in evidence to support the charges. The prisoner at the bar, Arthur Thistlewood, must be already known to you by name; but, as I before stated to you, let nothing that you have known or heard of him before you came into this court to discharge the solemn duty you are bound to perform, have the least effect upon that verdict you are to pronounce. The prisoner at the bar, however, I state to you, as it will be proved in evidence, had for some time conceived the wicked and nefarious plan of overturning

the government so long established in this country; and it will appear to you that several, nay, all of the persons mentioned in the indictment, were participators in the same design; some of them, probably, coming into that purpose and design at a later period than others, but all of them concurring in the last criminal event which led to their detection. I shall prove to you by the most satisfactory evidence, that all of them were combining in that act, which was to be the commencement of that revolution in the country, which was meditated. I would, however, call your attention to two persons, whose names you will frequently hear in the course of this inquiry, I mean a person of the name of James Ings, and a person of the name of John Thomas Brunt.

“The prisoner at the bar resided, during the time of the transaction which I am about to relate to you, in Stanhope-street, Clare Market. The person named Brunt, I believe, was a shoe-maker or boot-closer, residing at a place which will be frequently mentioned in the course of the evidence, Fox-court, Gray’s Inn-lane; he inhabited two rooms in a house in that court, I believe the second floor, and in one of which his trade was carried on, and in the other his family, consisting of himself, his wife, an apprentice of the name of Hales, and his son, lived.

“I shall not carry your attention very far back in the narrative of this transaction; it will be sufficient for me particularly in the outset, to call your attention to circumstances that took place between the close of the month of January and the 23d of the following month of February. Undoubtedly it will appear to you, that long prior to that period the prisoner at the bar, the two persons I have mentioned, and several of the others, whose names are included in this indictment, had consulted and devised plans for the purpose of overturning the Government. They had frequent meetings at a public-house, called the White Hart, in Brooks’ Market, in a room which they had obtained for the purpose of these meetings, behind that public-house.

“About the latter end of January, or at the commencement of the month of February, they thought it prudent to remove their meetings from this place, and that it would be better that they should be carried on, if possible, in a room in the house where Brunt lived in Fox-court; and to avoid suspicion, they therefore had recourse to this contrivance, that another room in that house, and upon the same floor on which Brunt resided, should be taken by

the prisoner Ings, who is, I believe, by trade a butcher. Brunt and Ings on that occasion hired that room, for the avowed purpose of a lodging for Ings, but for the secret and real object of having their meetings there, where they might devise their plans, and prepare the means for carrying the object of their conspiracy into execution; that being a place of more security and privacy than the one at which they had previously held their assemblies.

“At the close of the month of January, or the beginning of the month of February, you will learn, that having previously prepared means for effecting their plans, their meetings at Brunt’s room became more frequent and regular. They had determined—and, Gentlemen, I here regret, that in an English Court of Justice I have to state to you the horrible purpose which then entered into their minds, and the way in which they intended to consummate the nefarious operations they had in view.—It was thought by Englishmen, that the assassination of several, if not all, of his Majesty’s ministers would be a proper step towards carrying into effect the revolution they intended; and you will find that they meditated and consulted on the means by which that horrible purpose was to be completed. They entertained hopes that they might be enabled, at some meeting of his Majesty’s ministers, to effect all at once the double purpose they had conceived. Having done that, they intended at the same moment, or about the same time, to set fire to various parts of this metropolis—to endeavour to obtain possession of the cannon which were at the Artillery Ground, and at the Light Horse Volunteers’ Stables in Gray’s Inn-lane—to create as much confusion and dismay as they could by these various operations, and then to establish, what, in their vain expectations, they had imagined themselves capable of effecting—a provisional government, the seat of which was to be at the Mansion-house. They had frequent deliberations on this plan.

“You will recollect that his late Most Excellent Majesty died on the 29th of January. At this time their deliberations were going on with the greatest activity. During the latter end of that month and the beginning of February, it was thought that the meeting of his Majesty’s ministers at the King’s funeral would be a proper occasion for carrying their plans into effect. They had intimation that upon that occasion, the greater part of the troops centred in the metropolis would be removed to Windsor, to witness the solemnity; and they imagined that would be a fit and proper period to commence their

operations; but, however, they found that their schemes embraced more objects than at that period they had the means of effecting, and upon that night they did not attempt the purposes they had in view. But, gentlemen, brooding over their nefarious schemes, many of these men became impatient at the delay which from unavoidable circumstances, interposed between the present day and that on which they hoped to accomplish their purposes; and you will find that on the 19th of February, to which I shall presently call your attention, the impatience became so great on the part of many of these persons as to be restrained no longer. They found that during this delay, an opportunity offered at which they could effect the horrible purpose I have mentioned—the assassination of all his Majesty’s ministers assembled at one and the same house.

“They got intimation on Saturday the 16th of February, that on the Wednesday following the opportunity would occur when they would be able to effect their purpose, by finding that his Majesty’s ministers would be assembled at the same house. Upon hearing that such an assemblage was to take place, they determined, at a meeting held for that purpose, that at all events, on the following Wednesday some blow should be struck, and that the revolution they had in contemplation should actually take place.

“Having thus determined, they appointed a meeting on the following day, Saturday, at Brunt’s house, for the purpose of forming a committee, upon whom should devolve the plan which was to be effected on the ensuing Wednesday, at that meeting; and indeed at all the meetings, you will find the prisoner foremost in every thing. He was to be their leader, and he was to be one of the men on whom they placed the greatest reliance. You will find that at this meeting he is the person who addressed them, and prepared the plans, and in whose plans they placed the greatest confidence.

“Gentlemen, upon this 19th of February it was, that Thistlewood proposed that which I have stated to you. He stated, that as it did not appear from the intelligence they could collect, that Ministers were likely to meet at the cabinet-dinner soon, they immediately ascertained the strength of their respective parties, and having so ascertained them, these parties should be divided into different bodies, upon some of whom should devolve the horrible duty of destroying as many of his Majesty’s ministers as their means and convenience would allow; that upon others should be imposed

the duty of setting fire to various parts of the metropolis; and that others should be assigned other duties, which were there pointed out by the prisoner.

“This plan, formed at that meeting, was seconded by Brunt, whose name I have already mentioned; and there too it was agreed as I have already stated, that on the following day, Saturday, a meeting should take place at Brunt’s room, in order to appoint a committee, upon whom should devolve the final arrangement of the plan which was to be executed on the following Wednesday.

“On the Sunday the meeting accordingly took place, attended by the prisoner, by Ings, by Harrison, by Wilson, and by other persons, whose names are mentioned in this indictment, and with which I do not at this moment trouble you, because, as your attention is confined to the present prisoner, it is unnecessary to do so. At the same time, in the course of this investigation, connecting, as we shall do, all these persons in one common plan and design, the acts and declarations of each will be most important, because they will all be answerable for the acts of each in furtherance of their common purpose. Upon that occasion they met at Brunt’s, and it was then agreed that they should meet again on the following morning, Monday, February 21.

“After the plans, I should tell you, on the Sunday were again repeated by Thistlewood, they were again approved by these persons. I think the number who attended on that occasion amounted to fourteen or fifteen persons. They then agreed that no activity should be wanting in the mean time. I mean to prepare that to which I shall by-and-by, call your attention. They met again on Monday at Brunt’s. The same plan was again canvassed. No objection was made, and they then separated for the purpose of communicating it to their different friends in different parts of the town; and for the purpose of collecting as many persons as they were enabled to do for the meeting on the following Wednesday. On Tuesday the 22d of February, a meeting took place again in the morning, at Brunt’s; and upon that occasion, one of the parties communicated to some who were present, that he had discovered by the newspapers, that a cabinet dinner was to be given on the following day, Wednesday, at my Lord Harrowby’s, in Grosvenor-square. Gentlemen, you will be shocked when you come to hear the

evidence detailed, to find with what exultation this intelligence was received. Brunt, with an impiety which must shock every well-regulated mind, exclaimed, ‘that till then he disbelieved the existence of a God, but that now he was satisfied the Almighty was favouring their designs, and that this dinner was appointed by Providence on the following day to enable them at one blow to effect that purpose which had been levelled against each of his Majesty’s ministers separately, and that they might be enabled by that means to accomplish at once, the whole destruction they meditated.’ The exultation was not confined to him; you will find, that Ings and the other persons present equally rejoiced at the prospect of a speedy termination of their nefarious purposes, and hoping that on the following night they should at length attain that which was so great an object of their desire, and which they had pursued with the utmost anxiety. The newspaper was then sent for, to see if the intelligence was true. On being brought it was immediately determined, that instead of the plan of endeavouring to assassinate some of his Majesty’s ministers at their respective houses, that my Lord Harrowby’s should be the place of attack; and that there in the evening, between eight and nine o’ clock, after all the guests were assembled, and were lulled into security, that the attack should be made on the house, and that the ministers should be destroyed by the means I shall state to you.

“Their activity on this intelligence being received, was redoubled; they met again in the evening—their different partizans were requested at once to obtain all their fire-arms, the ammunition they had previously collected, and the different instruments of mischief which you will find they had prepared for execution, and that they should be in a state of preparation on the following evening to effect this purpose. I should have stated to you, gentlemen, before I had come to this part of the narrative, that a person of the name of Tidd, who is also included in this indictment, and who lived, I believe in the Hole-in-the-Wall-alley, Brooks’-market, was one of the conspirators, and had embarked in these plans. His house was made the depôt of arms and ammunition.

“As the meeting of the conspirators had been held at Brunt’s, they had a suspicion that their proceedings might be watched, and they thought it unsafe that that should be the place of deposit, and therefore Tidd’s house

had, for some time, been the depository for the arms and ammunition which had been collected.

“As Brunt’s house was, as you know, at some considerable distance from Grosvenor-square, where the commencement of this scene of blood was to take place, they thought it would be better to procure some place of rendezvous nearer to the house of Lord Harrowby; and you will find therefore, though it was not communicated at that moment to the different parties, who were to be engaged in the transaction, that a place was procured at the west end of the town, in Cato-street, which runs into John-street, and thence to the Edgeware-road. A place was there procured by Harrison, another of the conspirators, for the purpose of meeting on the following evening, preparatory to their going to Grosvenor-square.

“Gentlemen, it frequently and providentially happens, as it generally will in conspiracies of this nature, that some of the parties, previous to the perpetration of their wicked designs, feel some compunction, which leads to a disclosure of their plans, and a prevention of their intentions; and you will find in evidence, in this case, that upon the Tuesday, the day on which the intelligence was received that the dinner was to be at Lord Harrowby’s the next day, which really was the case, one person of the name of Hiden, who had these plans communicated to him, because it was hoped that he would become a participator in their designs, felt such compunction as to compel him to communicate to Lord Harrowby the plan that was designed; and you will find, that upon that day, this person took an opportunity of watching Lord Harrowby from his house, on horseback, into the park, and there he generally communicated to him that some mischief was intended against him, and therefore forewarned him of it.

“It will also appear to you, that at their meeting on Tuesday some little alarm had been excited in the minds of some of the party, by a person named Adams, who had been told by the publican at the White Hart, that their meetings had been suspected, and that they were in some hazard of being discovered. He therefore stated to Thistlewood, and others, on Tuesday, that a communication had been made to him by the landlord that their meetings at the White Hart public-house had been observed by some of the police officers, and therefore he expressed his apprehensions, that their plans had been discovered, or were likely to be discovered. This

excited in the minds of those present the greatest agitation. They were astonished that Adams should have ventured at such a meeting, consisting of fourteen or fifteen persons, to hint that there was a possibility of their plans being discovered. The intelligence produced the greatest alarm, and they immediately took into consideration what was best to do.

“The prisoner Brunt, in order to ascertain whether there was any ground for the suspicions entertained by Adams, proposed that some of the party should be posted near Lord Harrowby’s house, on Tuesday evening, and early on the following Wednesday, with a view of seeing whether any preparations were made to receive any intended attack, and thereby to ascertain to their satisfaction whether or not their plans had been discovered; and you will find that the suggestion of Brunt was carried into effect, by sending two or three parties, amongst whom was a man named Davidson, who will be a very conspicuous person throughout this transaction, and one of the most active partizans, to watch the house. They sent him and another person about six o’clock that evening, to watch Lord Harrowby’s house, and they were to be relieved between eight and nine o’clock by two others of the party, who were to keep three hours’ watch; at the end of which time they were to be relieved by others, who, in their turn, would be relieved by four in the morning. It will be proved to you that they actually went there on that night, and were seen by different persons in Grosvenor-square, watching Lord Harrowby’s house for the purpose mentioned, and finding, as was the case, that there appeared to be no alarm—that there were no police officers, or troops of any description introduced into Lord Harrowby’s house, or stationed in the neighbourhood, they felt quite satisfied that it was a groundless alarm on the part of Adams—that there was no foundation for suspecting that any of their plans were discovered; and therefore they proceeded without hesitation or dread to complete, as far as they could, the purpose they had in view.

“On the Wednesday morning, great preparations were made. Arms were brought by Brunt in great abundance to the stable in Cato-street; they consisted of sabres, swords, guns, pistols, and other destructive instruments of offence. But one of the most terrific instruments, and calculated for the most deadly purposes, and which they prepared themselves, was what was called a hand-grenade. It was composed in this way—there was a quantity of gunpowder enclosed in a tin case, three or four inches in circumference,

round which was tied a quantity of tow, and on the outside was a quantity of iron, in pieces of various descriptions, sharp-pointed, and otherwise shaped, which were fastened together, and tied round with the same sort of material I have mentioned, so as to enable the instrument to explode with the greatest force; and the object of this machine was stated without disguise to be this: that upon their entrance into Lord Harrowby's house, it was to be lighted by a fusee, communicating with the powder, and then thrown into the room; and by the explosion, the persons exposed to the mischief might be killed or wounded, as would naturally be the case. It seems they had prepared a great number of these destructive instruments; I know not how many.

“They had also prepared what they, in their mode of expression, called illumination balls, made for the purpose of setting fire to any buildings which it was their object and purpose to destroy. They had prepared also a large quantity of ball cartridges, the amount of which will probably surprise you, considering the apparently feeble means these persons had of procuring articles of this description. Will it be believed, that they had prepared between 11 and 1,200 rounds of ball cartridges? They had also prepared several sorts of cartridges of a different description, made with flannel bags, and had provided themselves with a very large quantity of powder. They had also prepared a great number of pikes, and pike handles, for the purpose of arming their friends and associates, who had no other arms. All these preparations must, obviously, have been the work of a considerable length of time. They must have been the fruits of very great labour, and they were all prepared and ready on the 23d of February for their intended operations.

“On the morning of the 23d of February, several of the conspirators assembled at Brunt's house, where they were engaged in completing their hand-grenades, putting flints into their pistols, loading their arms, and, in short, making every preparation for the approaching attack. These facts will be proved to you by Brunt's apprentice. I have already told you, that for the purpose of their meeting, and for the convenience of having some place near to Lord Harrowby's house, a stable had been hired by one of the conspirators in Cato-street, near the Edgeware-road.

“I know not whether curiosity has led any of you, as it has done a great many of the public, to visit the place; but if it has not, I will endeavour to describe the situation, and I think you will agree with me, that a more appropriate situation for the purpose contemplated could hardly be selected. It is an obscure street, having a very narrow access at either end. I think at one end there is not any access for carriages, and at the other there is an archway, and under it posts, to prevent none but foot-passengers going in or out. The east end passes into John-street, and the west end, which is a very narrow cartway, runs into Queen-street, both John-street and Queen-street running parallel with each other into the Edgeware-road. The stable is the first building as you enter Cato-street from John-street on the right-hand side of the way, and it is nearly opposite the small public-house, called by the sign of the Horse and Groom. The stable had been occupied by General Watson, who is abroad, and rented of him by a person of the name of Firth, by whom it was let to Harrison for this purpose. It consists below stairs of a stable, with three stalls, and a small place adjoining, for the reception of a carriage or cart; and at the further end of it, nearly opposite the door, as you enter, is a step-ladder leading up into the loft over the stable, on the side of which are two small rooms, which are immediately over the cart or coach-house.

“It will be proved to you, that previously to the meeting on that evening, which was to take place about seven or eight o’clock, preparations had been made by Harrison, and several others of the party in the stable, for the reception of those who were to be assembled. In order to avoid the observation of the neighbourhood, some pieces of canvass had been nailed up against the window of the loft, to prevent persons from observing on the opposite side of the street what might be passing; and it was remarked by several of the neighbours, that this place was visited by a great number of persons during the afternoon, who were carrying something on their backs which the neighbours did not discover, but which, I have no doubt, were the arms and other implements of mischief collected there, and found when the prisoners were taken. Harrison, who was known to be one of those persons, was observed going into the stable in the afternoon; and on being asked what his purpose was in going there, he said, he had taken it from Firth, and was cleaning it out. About six o’clock, Davidson, the man of colour, was also observed by some of these persons residing close to the stable, going in

with something on his back, and under his arm, which they could not discover, and a number of candles in his hand. You will find that he applied at one of the houses adjoining the stable, at six o'clock, to light one of these candles, with which he went into the stable. A party was to meet at Brunt's lodgings, in order to proceed from thence to this stable. Tidd, whose name I have already mentioned, and who lived in the Hole-in-the-Wall-alley, was to accompany another party. They had not communicated to all the party, at first, the precise place of meeting, but some were to meet at the Horse and Groom, and others were to go to the Edgeware-road, near John-street, where some of the conspirators were to shew them to the place of rendezvous.

"Between seven and eight o'clock Brunt, and some others from his house, took their departure with arms, with which they had there provided themselves, and concealed under their coats, to this stable in Cato-street. They met there Thistlewood, Ings, Wilson, and some others, and here they proceeded to arm themselves with the weapons provided, and which were afterwards found; such as guns, pistols, swords, a great number of hand-grenades, and a considerable number of pikes, rudely formed, but sufficient for the purpose of doing incredible mischief. The handles of the pikes were composed of rough ash sticks of a large size, the ends of which were planed off, to admit a ferrule, and at the end was stuck a pike-head or bayonet; for articles of both descriptions were found, screwed on for the purpose of being afterwards used.

"At first their party at Cato-street consisted only of fourteen or fifteen persons, and some little alarm was excited, and some little suspicion evidently raised, in the mind of Thistlewood and some others, at Tidd's not making his appearance at the appointed time, for there being some remarks made that their number was not so large as was expected, it was stated by Thistlewood, and by some others, that there were other persons, who would by-and-by assemble, and that other parties were gone for different purposes about the metropolis, who were not to accompany them to Lord Harrowby's house in Grosvenor-square. In a short time afterwards, however, Tidd made his appearance with a person named Monument, who will be produced as a witness; a person who had only been recently induced to participate in their schemes—who a short time before had been introduced to Thistlewood, and who had an intimation generally with respect to their particular views; but

he had not been admitted to a knowledge of the whole scope of the plan, until he arrived at Cato-street, although he might be aware that their object was to overturn the Government in some way or other. He arrived, however, with Tidd about seven o'clock, and the party at that time consisted of about twenty-five persons; two of them were appointed to remain as sentries below stairs to prevent any interruption. These persons were Davidson and Ings, and they remained on guard whilst the other conspirators were above stairs talking over their plans, and making the final arrangements for proceeding to Lord Harrowby's house, in Grosvenor-square, which they proposed to do between seven and eight o'clock. Some alarm, as I have already told you, had prevailed in the party. Some of them expressed a fear that their own strength was hardly adequate to the object in view. Upon which Thistlewood and Ings said the opportunity must not be lost; that there was enough to complete the purpose of destroying his Majesty's ministers; that when that was accomplished, the other consequences would follow; that they should have parties ready to set fire to different parts of the metropolis; that they would be joined by immense numbers the moment the first blow was struck, and therefore, there could be no hesitation in their minds to execute the intended purpose.

"Having thus assembled their forces, and prepared themselves for the desperate object of their enterprise, they began between seven and eight o'clock to consider who should be the party to enter Lord Harrowby's house to destroy the ministers. The plan had been, that Thistlewood was to knock at the door, under the pretence of having a note to deliver to Lord Harrowby, and by that means having obtained access to the hall, they were to compel the servants to shew them to the room where the ministers were assembled; that they were to secure the servants, who, they naturally believed, would be soon overpowered, and should then immediately make their way into the room; and then they should, without discrimination, without reserve, or without any remorse, destroy every one of his Majesty's ministers who should be assembled.

"I have stated to you, gentlemen, already the exultation and impiety displayed by Brunt on one occasion, when he contemplated the completion of his sanguinary purpose; and I cannot conceal from you one fact, as it affects the man named Ings, which will be distinctly proved; he had been a butcher, and he had armed himself on this occasion not with a blunderbuss,

a gun, or any thing of that sort, but with a large butcher's knife, and for the purpose of enabling him to use it with more effect he had twisted round the handle a quantity of thread, in order that when saturated with the blood of his victims, it might not slip out of his hand; and he stated, in language of the most gross and horrible import, that with this knife he would himself effect the murder and mutilation of some of the persons who should be assembled. The cruelty of the designs this man expressed, is beyond all description. The scenes, in fact, which had disgraced another country some years back, were to be acted again on British ground, and the heads of some of the ministers were to be triumphantly paraded through the streets, to procure converts to this detestable cause! Gentlemen, that very knife was found upon, and taken from, that man; and I mention that only as a corroborating fact, if corroboration be needed. Gentlemen, thank Heaven, that Providence which kindly watches over the acts and thoughts of men, mercifully interposed between the conception of this abominable plot, and its completion, which was all but perfected.

“In consequence of the communication made to Lord Harrowby, measures were taken in other quarters to prevent the impending danger. It being stated that these persons had met in Cato-street, for the purposes I have already mentioned, means were immediately taken to secure the conspirators, which, however, were not so effectual as could have been wished, but certainly so far as to prevent the execution of their dreadful purposes. In order to remove all suspicion from the minds of the conspirators, it was determined by Lord Harrowby, that the preparations for the dinner, which he had intended undoubtedly for his Majesty's ministers, on that occasion, should go on; and in order that there should be no suspicion in the house of my Lord Harrowby, his servants were desired to proceed in the necessary arrangements for the dinner, because there is no doubt, that if any alteration had taken place in the arrangements of the day, it would have been communicated to the conspirators; and if they suspected that the dinner was not intended to take place, they would have changed their measures, and the ends of justice would have been defeated.

“In consequence, therefore, of the seeming perseverance in the design of having a cabinet dinner, all suspicion was removed from the minds of the Cato-street conspirators, who no doubt expected that they should be enabled, from the short distance of their rendezvous, to reach Lord

Harrowby's in about ten minutes or a quarter of an hour, and accomplish their purpose unmolested—a circumstance not unlikely, considering that the hour of eight was chosen; considering that the neighbourhood was the most quiet and retired in London; at a time, too, when the inhabitants of the square and its vicinity were employed in domestic retirement; at that hour when suspicion must be lulled asleep, and when no apprehensions could be entertained of personal danger; for that hour, and that moment was chosen by the Cato-street conspirators to issue from the scene of their nefarious deliberations. Precautions, however, had been taken as I have stated to you, in order to prevent the accomplishment of their designs. A number of Bow-street officers and patrol, had been directed to go to the spot, and endeavour to watch their movements, and counteract their operations, before they took their departure, and endeavour to secure the whole assemblage.

“A party of the Guards also were to attend in John-street, to assist the police; and, just at the moment that these persons were about to set out, and when Thistlewood was calling over those who were to separate from the rest to execute this horrible plan, the officers entered the loft. Upon their entrance into the stable below, they found two persons there, armed, who will be proved to be Davidson, for his colour, which is nearly black, was perceived; he had a double belt round his waist, in which were pistols and a cutlass, and he had a gun over his shoulder; they found him inside the door, and another person, who will be distinctly identified to be Ings. He was found at the bottom of the ladder, with this knife, with a cutlass, a sword, and with pistols.

“The officers, with a resolution and courage which does them high honour, considering the desperation and determination of these characters, immediately ascended the ladder without securing the persons below. They merely gave directions to those who followed, to keep them secure, and they thought that would be enough, without actually confining them. The first man who went up was a person of the name of Ruthven, who will be called to you: he was followed by a man named Ellis: after whom came a man, of whom you have undoubtedly heard before, named Smithers, who met his death by the hand of Thistlewood.

“On Smithers ascending the ladder, either Ings or Davidson hallooed out from below, as a signal for them to be on their guard above, and upon

Ruthven ascending the ladder, Thistlewood, who was at a little distance from the landing-place, and who was distinctly seen, for there were several lights in the place, receded a few paces, and the police-officers announced who they were, and demanded a surrender. Smithers unfortunately pressed forward in the direction in which Thistlewood had retreated, into one of the small rooms over the coach-house, when Thistlewood drew back his arm, in which there was a sword, and made a thrust at the unfortunate man, Smithers, who received a wound near his heart, and, with only time to exclaim, "Oh! God!" he fell a lifeless corpse into the arms of Ellis. Ellis, seeing this blow given by Thistlewood, immediately discharged a pistol at him, which missed its aim. Great confusion followed; the lights were struck out; the officers were forced down the ladder, which was so precipitous, being almost perpendicular, that they fell, and many of the party followed them.

"Thistlewood, among the rest, came down the ladder; and, not satisfied with the blood of one person, he shot at another of the officers as he came down the ladder, and pressed through the stable, cutting at all who attempted to oppose him, and made his escape out into John-street, the military not having yet arrived; and he was no more seen at that time, except with a sword in his hand in the Edgware-road. By the other persons an equally desperate resistance was made.

"Conscious of the evil purpose for which they had assembled, they waited not to know on what charge they were about to be apprehended; but instantly made a most desperate resistance. Ings, Davidson, and Wilson, were particularly desperate, each, I believe, firing at some of the officers or military, who had only come to the ground on hearing the report of the fire-arms, not having been previously directed to the exact spot.

"Notwithstanding the resistance, however, which they so desperately made, and in which resistance Thistlewood, Tidd, Davidson, Ings, and Wilson took a most active part, by attacking the officers and soldiers, the whole of the conspirators were, at length, fortunately overcome, and eventually eleven of them secured. Not on that night, however, for three out of the eleven for the time escaped, namely Thistlewood, Brunt, and Harrison. The officers, however, not only secured on that night the eight men, but various articles of fire-arms, numerous weapons, and certain combustibles.

“The prisoner Brunt, gentlemen, one of those who escaped, returned that night to his own house. He was accompanied by another man, and his own boots were in such a state, as not to fail to excite the attention of some persons in the house. His boy (an apprentice, named Hale) soon learned, from the conversation which passed between his master and the man, that they had just escaped from Cato-street, and Brunt expressed a belief that his person had not been discovered. The prisoner, gentlemen, remained home the whole of the night, but early on the morning following, he called to him the apprentice boy I have named, and asked him as to his knowledge of some street in the Borough, where he wanted to convey some baskets. These were all carefully packed up, and it is a remarkable circumstance, which will be spoken to in evidence, that so anxious was he for the concealment of its contents, that one of the baskets was secured with the apron of his wife! Gentlemen, the prisoner now thought all secure; but he had scarcely effected his plan, and retired into another room, previous to despatching the baskets, when the officers entered the house and seized him. This, you may suppose, was not a little surprising to Brunt; for, most material would it have been to him to have the baskets removed. Upon searching these, gentlemen, were found a number of hand-grenades, fire-balls, and other articles of destruction. Upon their discovery, Brunt for some time affected ignorance of the thing, but he was told it was of no use.

“The prisoner at the bar, Thistlewood, who also escaped on the night of the 23d, retired not to his own house, however, but to an obscure lodging in White-street, where he thought to conceal himself. Information, however, soon reached the police-office, Bow-street, of his retreat, and early the next morning, a strong party of officers, headed by Bishop, were sent to apprehend him. Upon their arrival at the place, every precaution was, of course, taken to prevent an alarm; while the officers, at the same time, knowing the desperate sort of character they had to contend with, were equally guarded to resist any attack which might be made upon them. They proceeded to search the house, beginning with the top and descending to the lower rooms. They then observed a small room on the ground-floor, the door of which was locked, and Bishop demanded the key, which he procured; and knowing from what had taken place, the determined desperation of this man, he opened the door as softly as he could, and perceived by some slight light that came through two or three holes in the

window-shutters, the person of Thistlewood lying on a turn-down bed. The moment he opened the door, Thistlewood put his head up, and Bishop immediately discovered him, and he immediately threw himself upon him, to prevent mischief. He then said, he should make no resistance, and on being taken out of bed, it was discovered that he had been laying in his breeches and stockings. Gentlemen, by these means the prisoner at the bar was taken; and thus ends, in point of fact, the evidence which will be adduced before you.

“Gentlemen, I have now to state to you, at the suggestion of a learned friend, a fact which I had almost forgotten. It is material for you to know, that on the 22d February, the conspirators held a consultation at the house of Brunt. Every thing was, on this occasion considered as finally arranged. I have already told you, it was their plan to set fire to various parts of the metropolis, and among other places, the barracks in King-street were fixed upon, not only because troops would be there, but because Harrison, who had been, I am sorry to say, in his Majesty’s service, was acquainted with the situation of the building, and pointed out the means by which it could be easily fired; and thus the soldiers, who would have retired to rest, would be unable to accoutre themselves or their horses. But this is not all, gentlemen; for at this very consultation, Thistlewood sat down and wrote two proclamations, in anticipation of the success of his diabolical schemes, and which proclamations were upon that success to be issued. But you will observe, gentlemen, it was not considered by the prisoner duly official to write these proclamations on paper, and Hale (the apprentice of Brunt) was sent in search of parchment. This being procured, he wrote an address to the following effect, intended for the people generally:—

PROCLAMATION.

“YOUR TYRANTS ARE DESTROYED!

“The Friends of liberty are desired to come forward and support the Provisional Government, which is now sitting.”

“So that, Gentlemen, if any doubt could be entertained of these men’s ulterior designs not being confined to the destruction of his Majesty’s Ministers, this proclamation, written by Thistlewood, would put it beyond all doubt. He wrote two or three of these. He read them aloud to the party

assembled, and told them that they were to be stuck up where the houses were on fire, that the people might see it. Afterwards he sat down, and endeavoured to compose another proclamation, which was to be issued to the soldiers, and that contained an offer to the soldiers, calling on them to join the friends of Liberty; promising them twenty pounds each to carry them home, and that they should be rewarded with full pay and a pension for life!! These proclamations, Gentlemen, were read aloud by Thistlewood to the conspirators, and they were unanimously approved. Some of them, I should tell you, were to be posted as convenient as possible to every barrack or public place which might be set fire to or destroyed. Thistlewood himself carried the proclamations from the house of Brunt to Cato-street.

“And now, Gentlemen, having stated these facts, let me pause to ask you, whether, if I prove them in evidence, you can come to any other conclusion than that the prisoner who stands before you, is guilty? What answer, I will ask, can be given to such evidence as this, and if no answer can be given in evidence, what answer can be given in reason? It may be urged, in a general sense, that such schemes and such plans as the facts I have related to you disclose, ought scarcely to be credited in a Court of Justice. This may be inferred from the circumstance of heated men with heated passions conceiving and proposing the adoption of plans, wild and visionary, and in fact wholly impracticable. In this case, however, such a principle did not exist; for here were long laid regular plans, extensive schemes, and the most abundant preparations, to effect a wicked purpose. And will not desperate and designing men, infuriated by their passions either influence others to the accomplishment of such plans, or be worked upon by them themselves. Look then, Gentlemen, to the facts of the case yourselves. You will view them as calm and sober men, and in doing so, you will perceive such a system and such an adroitness towards the execution of that system, that their object requires but little solution.

“Gentlemen, it is not your duty to consider whether the schemes in question were wild and visionary, but whether they had for their object an illegal or wicked purpose; and if illegal, and that towards the execution of their plans they took but one step, they have then done that which renders them amenable to the offended laws of their country. If these arguments, Gentlemen, won't avail, what then may not be urged for the prisoner? But you will also be told that accomplices are not to be believed on their oath in

a Court of Justice. I contend, however, that they should; and if it was not permitted to accomplices in guilt to give evidence for the purposes of justice, then the blackest and foulest crimes would be daily committed, and go unpunished. But it is not the law of England, alone, to hear the evidence of an accomplice. It is the law of reason also, and has been the law of all ages and nations. I admit that you should watch with the greatest caution and jealousy the testimony of an accomplice. You should weigh his story well, and see whether it be confirmed by the more indifferent witnesses. Not confirmed in every part, for then his evidence would not be required at all: but in certain collateral parts which may be found to correspond with the other testimony. If therefore, Gentlemen, an accomplice is produced before you, and you believe a part of what he relates, you are bound in a great measure to believe that the whole of what he tells you is true.

“No man, or set of men, who had ever conceived such plans as I have laid before you, could have so conceived them without an intention of pursuing them. The plans, therefore, at least for some time, could be known only to themselves and to their God. I say then that the evidence of an accomplice is not only highly necessary, but even laudable; for if you resist such a principle, the more dark will be the crime, the more secret the scheme, and the more wicked the purpose. As I told you before, Gentlemen, it has long been the law of England to receive the evidence of an accomplice, and even in cases of murder, it has proved most salutary in the administration of justice.

“I will call a witness before you, Gentlemen, named Adams, an accomplice, as you will find, and he being in the full confidence of the conspirators, will prove to you the nature of all their proceedings from time to time, and of the different plans and communications which were made between him and them. I will call another man to you, Gentlemen, who was the first to make known the diabolical plans of the conspirators, to my Lord Harrowby; but this man was not much known to them, nor did he therefore rank high in their councils.

“This man in fact, when he heard the dreadful plan related of visiting his Majesty’s ministers with destruction and death, his heart shuddered, his conscience smote him, and he could hold out no longer. Some men, you know, have very strong minds, and are not to be deterred from the most

wicked purpose. Others are less firm, and more easily shaken in the accomplishment of a cruel or immoral design. The witness whom I shall produce to you, Gentlemen, and whose name is Hiden, is one of this description.

“A third witness I shall produce to you, is an individual who was rather more in confidence with the conspirators. His name is Dwyer, and you will find that Thistlewood and Davidson applied to him for his advice and assistance towards the execution of their murderous purpose. You will even find that they solicited his aid on the very day in which that purpose was to be put into execution. This witness, however, horror-struck at the intended massacre, and feeling it to be his bounden duty, ran almost instantly and communicated the fact to others. He first communicated it to his wife, and next to an officer in the army, named James, with a view that it might be immediately conveyed to his Majesty’s ministers. This, under the special order of Providence, was done.

“And now let me again ask you, Gentlemen, is this testimony to be rejected? Surely it never can by enlightened men such as you are. But this even does not furnish my case for the prosecution; for I assure you it does not rest upon the testimony of Adams, Hiden, and Dwyer; but there are facts in this case which, I fear, the prisoner will not be able to answer. Why, I would ask, were these men assembled in Cato-street, and why at night? There were none of them related to each other, yet they were all armed with deadly weapons, and found in close deliberation in an obscure stable. There were also found there a quantity of destructive grenades and fire-balls, together with a large portion of ammunition. But this is not all. At the houses of two others of the conspirators, namely, Brunt and Tidd, there were found similar articles of destruction, particularly ammunition. The weight found of the latter, gentlemen, amounted to between eleven and twelve hundred pounds; and I would ask, in the name of God, what object could these men have had in the possession of such a quantity of ammunition? Surely it could not even be for an individual murder! No, gentlemen, it was the destruction of his Majesty’s ministers in the first place, the burning and levelling of public barracks and edifices in the next, and finally, the establishment of a revolution, and the appointment of a Provisional Government.

“These men, Gentlemen, could never have been unfriendly towards ministers as individuals. It must have been a hatred of them in the character of their office alone, and their design was more particularly levelled at Lord Harrowby, because his Lordship was President of the Council. Can you doubt, that after this dreadful blow was made, and it had succeeded, that it was the intention of these conspirators to have established a provisional government, and thus spread anarchy and confusion around. In fact, that was the eventual blow meant to be carried into execution. I say, therefore, that even if the learned counsel for the prisoners were to contend most successfully against the evidence of the accomplices, the facts I shall produce to you by other testimony, will answer the purposes of this just and necessary prosecution.

“What was the conduct of the prisoners when they were discovered in Cato-street? I want not, Gentlemen, by a repetition of this term, to inflame your minds: but it will be extremely important for you to remember, that when the officers entered the loft there, and said, ‘we are officers,’ they submitted not to their authority, but resisted them even in the most ferocious manner, and one officer, as you have before heard, unfortunately lost his life. The prisoner at the bar, however, is not under trial for that offence, nor should the fatal circumstance operate in the present case against him. But I must again ask you, what became of the prisoner on the 23d, the intended night of blood and slaughter? Why he flies from the desperate scene, not to his own home, as you have already been told, but to an obscure place of concealment. These, then, Gentlemen, are the facts of this momentous case; and once more I ask you, what possible conclusion can you draw from such facts, if they be supported in evidence?

“Gentlemen, I repeat it, that this is a momentous and important case, and if these plots of the conspirators, and of the prisoner in particular, be proved to have existed—if the means had been used which I have described to you for effecting the nefarious and diabolical plans they had formed, then I call upon you, in the name of justice, to give that verdict which will best satisfy the laws of your country, and tend to protect the lives of your fellow-creatures. Commiseration (if I may use the term) towards a prisoner, I never should withhold; and God forbid, Gentlemen, that you should not give to the man at the bar the advantage of every, even the slightest, circumstance of doubt which may arise in his favour. If these doubts also should

predominate, it will be your duty to acquit the prisoner; but if, on the other hand, the facts which I have laid before you be substantiated, and you feel in your consciences that the charge is made out, it will then become your painful but bounden duty to convict him. Should these facts, I say, for the last time, be brought home to the prisoner, it will then be your duty, as men, as citizens, and as fathers—as men desirous of maintaining the laws, and of acting under the solemn obligation of your oaths, to pronounce him guilty.”

The learned gentleman’s speech occupied the attention of the Jury for nearly two hours.

Before the first witness for the prosecution was put into the box, all the prisoners named in the indictment were brought up, with the view, we suppose, of having an opportunity of hearing the evidence, it being principally the same which is to be adduced against most of them. They entered the Court with much apparent indifference.

Davidson and Ings were particularly remarked for the calm indifference with which they surveyed the Bench and the spectators around them.

During the examination of Adams, some of the prisoners whispered together. Thistlewood throughout preserved the most perfect composure.

The first witness called was

ROBERT ADAMS, examined by the Solicitor-General.—I live at No. 4, in Hole-in-the-Wall-passage, Brooks’-market. I am a shoemaker. I was in the Royal Regiment of Horse Guards. It is 18 years last Christmas since I left them. I knew Brunt at Cambray, in France, he went then by the name of Thomas Morton, it is 18 years ago since I first knew him. I know Thistlewood. I knew him first on the 16th of January last. He then lived in Stanhope-street, Clare-market. I was introduced to him by Brunt and Ings. I saw him at his own place. We had some conversation together.

Here Mr. Adolphus objected to the witness mentioning any thing of the conversation which passed on that occasion. The crime against the prisoner was charged in the reign of his present Majesty, and against his crown and dignity, and no act of the prisoners in the late reign ought to be adduced.

Lord Chief-Justice Abbot said, the Court might hear of the commencement of the transaction, as connected with what had occurred in the present reign.

The examination of the witness was continued.

When I went in, Brunt said to Thistlewood, This is the man I was speaking to you about. Thistlewood said, "You were once in the Life-Guards?" I said, "No, I was not, I originally belonged to the Blues." Thistlewood said, "You are a good swordsman?" I said, "I could use a sword to defend myself; but I could not use it very expert, as I had not used any arms for a long time." Thistlewood said, there was no one who was worth 10*l.* who was worth any thing for the good of his country. As to the shopkeepers of London, they were all a set of aristocrats together, and were all working under the same system of government. He should glory to see the day that all the shops were shut up, and well plundered. He then alluded to Mr. Hunt, and said, he (Hunt) was a d——d coward, and were he (Thistlewood) to go to Whitehall, he was sure he would find his (Hunt's) name there, as a spy to government. He then turned the conversation to Cobbett, and said, he was equally the same as Hunt, and for all his writings, he had no doubt he was also a spy. This ended the conversation then. I was afterwards confined for debt in Whitecross-street Prison. The next interview I had with Thistlewood was on the 16th, at the White Hart public-house. It was in a room in the back yard. Thistlewood was present, and Ings, Brunt, and Hall, and before they broke up, Tidd. On the 17th I went to prison, and remained fourteen days there. I came out on Sunday, the day after the death of the King. I saw Thistlewood on the Monday evening following. I saw him in the same floor in the house where Brunt lived, in a back room. This was in Fox-court, Gray's Inn-lane. There were Brunt, Ings, Hall, and Davidson, present. There was nothing particular took place that night. To the best of my recollection, I met them next on the Wednesday, (by them he meant Thistlewood, Brunt, Davidson, Harrison, and Ings,) I had a conversation—

Mr. Curwood here objected to the witness speaking to what then occurred, as no over-act was set forth in the indictment on that day. It merely referred to a meeting on the 16th, and at divers other times.

Lord Chief-Justice Abbott observed, that the present mode was the invariable form of such indictments, and no objection was ever made to it.

If all the particulars of overt-acts were set forth, it would occasion a great prolixity.—The objection was over-ruled.

Witness continued—I went into the room and saw a number of pike staves, and Thistlewood wanted to have them ferruled. Thistlewood then asked why Bradburn (the prisoner) was not present, and he added that Bradburn was intrusted with money to purchase ferrules, and was not satisfied lest he should not buy them. The staves were green, and seemed as if they had just come from the country. Thistlewood said he would not give a damn for a man who would spend the money in such a way. I do not recollect any thing further then. The meetings were held twice a-day from thence to the 23d of February. The room was hired by Brunt for Ings; Brunt said so. I remember one circumstance that occurred: one evening, about ten days before the Cato-street business, I went in and saw Harrison, Thistlewood, and Brunt. Harrison said, he had been speaking to one of the horse-guards, and he told him, that the whole of them would be down at Windsor at the King's funeral; and Harrison said, this would be a good opportunity to do something that night (the night of the funeral.) Thistlewood said it was a good place, and added, that if they could get the two pieces of cannon in Gray's Inn-lane, and the six pieces in the Artillery-ground, they could so help themselves as to have possession of London before morning; and he said, that when the news should reach Windsor, the soldiers would be so tired as not to be able, when they came back to London, to do any thing; but that by activity some might go to Hyde-park, and prevent any person or messenger from going to Windsor. He also said, that they should go over the water and take the telegraph, to prevent any communication with Woolwich.

He then said that they should form a Provisional Government, and send to the sea-ports, to prevent any gentlemen from leaving England without passports. He particularly mentioned to send to Dover, Brighton, Margate, and Ramsgate, and he most particularly mentioned Brighton—not that he thought the new King would be there, or at the funeral. He said the present family had inherited the throne long enough, and it was no use for the present King to think of being crowned. Brunt and Ings came in after this, and Thistlewood mentioned to them what passed; but they said that nothing would satisfy them but their plan of assassination. They had talked at a former meeting of this plan of assassination. Two or three of them had

drawn out a plan of assassinating his Majesty's Ministers at the first public dinner they had. They talked of assassination at every one of their meetings. I could not say there were pikes in the room before this. I met them on Saturday, the 19th of February, at eleven or twelve in the forenoon. I saw Thistlewood, Davidson, Brunt, Harrison, Ings, and Hall. They were all set round the fire, and seemed in a conversation betwixt themselves. They all got up and turned round, and said, "It is agreed, if nothing turns out before next Wednesday night, next Wednesday we will go to work." It was said they were all sworn that they would not wait any longer.

Thistlewood proposed they should meet the following morning at nine, to draw out a plan to go by. Thistlewood said to Brunt, "You had better go round this afternoon and mention it, in order to have the committee to-morrow." Brunt said, he did not think he should be able to go, as he had some work to do, but he would go on the next morning, and perhaps he might see some of them: it was not necessary to bring a great many. Brunt appeared to be leaving the room then, and Thistlewood called to him, and said—"O, Brunt, it will be highly necessary for those that come to-morrow morning to bring fire-arms with them, in case any officers should come up." On which Brunt said, "D—n my eyes, if any officer should come in here, the time is so near now, I would run him through the body. I would murder him here sooner than we should be discovered."

On the next morning I went there about eleven o'clock. It was a little dark in my eyes when I went in after the snow. There were Thistlewood, Brunt, Harrison, Cooke, Bradburn, Tidd, Edwards, and Wilson, myself, and another. William Cooke, on looking round the room, said, "There are twelve in the room, and I think it enough to form a committee." Thistlewood proposed that Tidd should take the chair. Tidd took the chair, and sat with a pike in his hand. Thistlewood was on his right and Brunt on his left. Thistlewood said, "Gentlemen, you all know what we are met for;" and then he turned to the door, as if unwilling to mention it, and said, "the west-end job." Brunt then said, "D—n my eyes, name it." On which Thistlewood again said, "Gentlemen, we are come to the determination to do this job, that we were talking about so long, and as we find there is no probability of meeting them (Ministers) altogether, we shall, if no opportunity of doing them altogether occurs, take them separately, at their own houses, and do as many as we can. If we can only get three or four at a time we must do

them.” He also said, “I suppose we can take forty or fifty men to do this west-end job; and I propose to take the two pieces of cannon in Gray’s Inn-lane, and the six pieces in the Artillery-ground.” He proposed Cooke to lead this party, and he himself would command. He said they should take the Mansion-house as the seat of the Provisional Government.

They were next to take the Bank of England; and Palin should be the man who should set fire to the barracks, and several parts of London. This was the principal part of the plan, but if any thing else occurred before Wednesday, they would think of it. Brunt was then going to put a proposition which he had for assassinating the Ministers, but Thistlewood said, his plan should be first put from the chair, as they were nearly all agreed on it. He desired the chairman to ask if any of them had any thing to say, and that they should say it; but none of them saying any thing, the plan was carried unanimously. Brunt then came forward with his plan, which was, that they should assassinate as many of his Majesty’s Ministers as possible; that they should draw lots to assassinate some of the Ministers; and whoever the fellow was on whom the lot fell, he should murder the Minister, or be murdered himself; and that if any man failed in the attempt, he (Brunt) swore by all that was good, he should be run through the body. On which I got up, and said, “Mr. Brunt, do you not think it possible for a man to attempt such a thing, and not succeed in it; and do you mean to say he should be run through the body for not doing it?” To which he said, “I do not: if a man should attempt it and not succeed, he is a good man; but if he shews any cowardice, he deserves to be run through the body.” This proposition of Brunt’s was then put to the meeting.

Soon after this, Palin, Potter, and Strange, came in. They were welcomed, and were desired to sit near the fire, as they were wet. Palin said, “There is one thing I want to know; if it can be done, it will be a great assistance to our plan. I want to know what men are to perform each part of the plan, and who are to take the cannon. I want to know, in calling upon the men, whether I can tell them in part or whole what is to be done.” The chairman said, “I don’t see where the harm is of telling what is to be done.” Mr. Palin, seeing that he had that liberty, sat down quite satisfied. Nothing regular was transacted in the chair after that. Mr. Thistlewood said, “O, Brunt, that is well thought of, as Palin is here: you and Palin go, and see if the house near Furnival’s Inn is fit for setting fire to.” They went (Palin and Brunt), and

reported it would make a d——d good fire. Thistlewood talked of getting means for a treat on Tuesday and Wednesday. Brunt said, he would be d——d, but he would contribute the only 1l. note he had earned for a long time. They proposed the White-Hart for the house. Thistlewood proposed his own room; but afterwards thought it would not do, as it might lead to suspicion. This was all on the Sunday morning. On Monday morning they met again. Witness then told them what Hobbes told him on Sunday night, of inquiries made respecting radical meetings at his house, and that information of it was given at Bow-street office, and at Lord Sidmouth's office. Harrison turned round on witness like a lion, and said "Adams, you have acted d——d wrong." Brunt said so too, and added, "Whatever you have to communicate, you have no business to communicate but to me and to Thistlewood." Witness said, it concerned all, and he should tell all of it. They repeated the same observations. They talked of calling a meeting of the Mary-le-bone Union, as they wanted some money; and Brunt said, it would be of use for that purpose.

Witness and Potter went in the evening to the White-Hart; Palin and Bradburn joined them. Next morning they were there too, and with them Thistlewood, Tidd, Ings, Harrison, and Brunt. Edwards came, and told them there was to be a cabinet dinner next night. Thistlewood said, he did not think it was true. A newspaper was sent for, and read by Thistlewood. He read that they were to dine at Lord Harrowby's, Grosvenor-square. Brunt then said, "I'll be d——d if I don't believe there is a God. I have often prayed that he would bring all these thieves together, in order to destroy them. He has answered my prayer." Thistlewood proposed, that they should form a committee and sit immediately. Witness took the chair.

Thistlewood proposed immediately a fresh plan to be formed respecting the assassination. Witness expressed a hope they had paid due consideration to what he said yesterday. All got into confusion. Harrison said, "D——n that man who attempted to throw cold water on the plan, but he would run him through with the sword." Witness left the chair, and Tidd took it. Brunt moved that a watch should be set on the Earl of Harrowby's house that night. The object was to see if any men or soldiers went into Earl Harrowby's. Two were to go at six, to be relieved at nine, and they were to continue till twelve. The watch was to be resumed at four next morning.

Thistlewood said he hoped they would be satisfied that no officers or soldiers went in. They would do what they had determined to-morrow evening; and added, that it would answer their purpose much better than to attack their houses separately, when only two or three could be got together. Here they would have fourteen or sixteen; a rare haul to murder them all. "I propose," continued he, "when the door is opened, to rush in, seize the servants, present pistols, and threaten to kill them if they make any noise; two to take the entrance to the stair upwards, and two others to the stair to the lower part of the house, armed with blunderbusses and hand-grenades; and if any attempt to pass, to throw hand-grenades and destroy them all. Others are to go where the ministers are to murder them all. If there shall be any good men, kill them for keeping bad company." All agreed. Ings said, he would go in first, with a brace of pistols and knives. The two swordsmen would cut off all their heads; and Castlereagh's and Sidmouth's should be flung in a bag by themselves. He added, "I shall say, my Lords, I have got as good men here as the Manchester yeomanry; enter citizens, and do your duty." Harrison and witness were to be the swordsmen. After the execution of Lord Harrowby, at his house, Harrison proposed that some should go to King-street horse-barracks, and set fire to the premises by throwing fire into the straw in the stable.

Harrison and Wilson were to go to Gray's Inn-lane, and, in case they could not carry the cannon out of the military-school, they were to wait till a party came to assist them. Thence they were to proceed to the artillery barracks, to assist Cooke in taking the cannon there. If they found their strength sufficient to proceed, they were to advance to the Mansion-house, and plant three of the cannon on each side of the Mansion-house, and to demand the Mansion-house. If it were refused, they were to fire, and then it would be given up. The Mansion-house was to be made the seat for the Provisional Government.

The Bank of England was next to be taken. They would take the books, which would enable them to see further into the villany of the government. The further parts of the plan were delayed till Wednesday. They agreed upon a sign and countersign. The word was "Button;" the man who came up was to say B-u-t; and the other was to reply t-o-n.—Being asked as to the watch, witness said, There are other things which I wish to state. I went there next morning, and found Edwards, Ings, and Hall, making fusees for

the hand-grenades. Davidson went on the watch at six. Witness and Brunt went to relieve the watch. They saw Davidson in the square, on the watch. They went into a public-house, where Brunt played at dominos with a young man.

About eleven they went out into the square, and walked for some time, till witness got ashamed of himself. They went away at twelve o'clock. He went next day to Fox-court, between two and three. He found Brunt there. Strange came in, and in a few minutes afterwards two more strangers. Strange and another were trying the flints. They went into a back room to avoid the strangers, where witness saw cutlasses, blunderbusses, &c. Thistlewood, Ings, and Hall came in. Thistlewood said, "Well, my lads, this looks like something to be done." He touched witness on the shoulder, and asked how he was. Witness replied that he was very unwell, and in low spirits. Thistlewood sent for beer and gin. Thistlewood then wanted some paper to write bills on. Witness said, cartridge paper would do. The paper was brought; and table and chair were got. The bills were then written; they were to be set on the houses, to let the people know what had been done. Thistlewood read as part, "Your tyrants are destroyed—the friends of liberty are called upon to come forward—the Provisional Government is now sitting. James Ings, Secretary. February 28." Thistlewood was much agitated, and could write only three. Another bill was written, which was an address to the soldiers. Another person was employed to write it, and Thistlewood dictated to him.—Witness said he would tell what he had seen.

Mr. Adolphus objected to this, and contended, that the writing alone was evidence.

Witness could not say what became of the papers, and he had not seen them since.

Mr. Solicitor-General now stated, that notice had been given to produce the writings.

Witness said that this second kind of bill was not finished,—they could not agree as to the terms.

Mr. Adolphus renewed his objection to the question what Thistlewood dictated to be written.

Lord Chief-Justice Abbot.—In whose hands had you last seen the paper?

Witness did not know him.

His Lordship said, some doubts were entertained by some part of the Court.

Mr. Solicitor-General said, he would not press it.

Witness went on.—Ings had two black belts on, one for two pistols, the other for cutlasses. He had two bags on his shoulders, like soldiers haversacks. He looked at himself and said, he was not complete yet, he had forgot his steel. He took out a large knife, and brandished it about, and said, it would cut off the heads of Castlereagh and Sidmouth, and it would be thought a great deal of at some future time. The knife was a large broad knife, twelve inches long, the hand bound round with wax to keep a firm hold of it. Others were busy at other arms. They began to leave the room about half-past four or five, to go about the business.

Palin came in half an hour before. Palin said they ought to be aware of what they were about, and to think within themselves whether they were to do their country service or not, and whether the assassination would be countenanced by their country. If they thought their country would join them, then the man who flinched should be run through on the spot. Unless they came to this determination they would do no good. A tall man came in, and asked what the business they were about was. Witness had never seen him before. The tall man said, if they were to serve their country, he was their man, and if any one was afraid of his life, he ought to have nothing to do with such a concern as that. Thistlewood was then gone. Brunt was told, that inquiries were made by some who were present, as to the plan they were about, Brunt said, that was not the room for telling that; but they should go with him, and they would know. Brunt promised spirits; and the tall man cautioned against drunkenness, as ruinous to a cause like that. They went along the street, two and two, and at some distance, that they might not be observed. There was a cupboard in the room used for swords, hand-grenades, and flannel bags for cartridges, one of which was full. The rest of the arms were in Tidd's room; that was the depôt. Thistlewood was always in a hurry to carry every thing that was got ready into the depôt, lest any officer should see it. Witness carried a brass-barrelled blunderbuss. There were pikes made of old files. Witness as he went on missed all his

associates. He returned back, and met Brunt, who returned back with him along the Edgeware-road, till they met Thistlewood.

They went altogether to the stable in Cato-street. Witness stayed behind till Harrison came up, and made him go in. He saw there, Davidson and Wilson below, Thistlewood, Ings, Hall, Bradburn, Strange, Cooper, the tall man, and others above. There were, as Thistlewood calculated, at last, eighteen above and two below. There was a bench above and arms on it. Some beer was standing on the table. There were lights. There was a chest. Before Tidd came, Thistlewood went out for some time. Witness heard a deal of talk below, and he found Thistlewood, Brunt, Harrison, Davidson, and Wilson. They spoke of the good news, they heard that the carriages were arriving at Lord Harrowby's as fast as they could. Witness went up to the loft, and saw Thistlewood and Brunt much agitated. They spoke of Tidd's absence. Brunt pledged his word that he would come. He soon afterwards came. Thistlewood said, "I hope you will not give up what you are going to do; if you do, this will be another Despard's business." He then counted twenty persons, and said that was enough, fourteen would be sufficient to go into the room, and the other six would take care of the servants and doors. They then set apart fourteen.

The gin bottle was then started. Thistlewood said, if Lord Harrowby had sixteen servants, that was nothing, as they would not be prepared. A noise was heard below. Thistlewood took a candle and looked down to see who they were, and then set down the candle quite confused, according to witness's judgment. Two officers took command of the room, holding small pistols, and said, "A pretty nest there is of you. We have got a warrant to apprehend you all, and hope you will go peaceably." A man who was on the step of the ladder said, "Let me come forward." This was the man murdered. A group of persons had got into the little room, and then came forward, and one of them stretched forward an arm, witness saw nothing in it, and another presented a pistol. The man fell. It was impossible for him to give a particular account of the other transactions. He got away, went home, and was apprehended on the Friday, and remained in custody since. He identified Davidson, Wilson, Brunt, Ings, Cooper, Harrison, Tidd. There were two he did not know. They were again called forward, but he said he could not swear to them. He was sent forward near the dock: but he said he did not know them. One of them, he said, he saw at the meeting.

Cross-examined by Mr. Curwood.—He went not there to assassinate his Majesty's Ministers. His legs carried him there. His outward intent to all appearance was for that; but his inward intent was against it. He was kept to it, because Brunt said, whoever forsook them would be marked. He became acquainted with Brunt in Cambray, in 1816. He had been a soldier years before. He was a shoemaker. He had never been treasurer to a benefit society. He carried with him 40*l*. He thought the money his own. He had never been charged with stealing it. He was introduced to Thistlewood by his friend Brunt, to assassinate his Majesty's Ministers. That was the first object. He first gave information on the Saturday after. It was indeed from compunction. "My motive was, gentlemen of the Jury, I do assure you, that I made a vow to God that I should tell the whole truth. I did indeed regard it with horror. I felt compunctious visitings before I was in custody. It was not because I felt my neck in danger, or because I thought it was better eighteen should be hanged than myself." The greatest number he ever saw present was fifteen men. The greatest sum he saw was sixpence. There was no collection of halfpence and pence for the newspaper. Tidd's was the depôt. He saw no muster-roll, and no cannon-ball. The cannon were to be charged with cartridges, and a large hammer was to be bought to strike down the tops of the iron palisades, as it was thought they would do more execution than balls. The newspaper was "The New Times." Witness did not know whether it was correct. He had seen nothing of Edwards since. He was employed to carry a sword, as being expert at it. He was not sufficiently near to have killed the man in the loft with the sword. His hand was not extended. He could tell nothing of the proceedings that followed. He went away, and did not deliver himself up, because he saw no officer. He went home to abide the event.

Re-examined in chief.—He said, the British army were at Cambray when he became acquainted with Brunt there.

Another witness was then called, but the Court and Jury were of opinion, as it was half-past seven, that it was the best time for adjourning. The Court was accordingly adjourned till nine o'clock on Tuesday morning.

SECOND DAY.—TUESDAY, APRIL 18.

The Court met this morning at nine o'clock, and the names of the Jury having been called over, and Thistlewood and the other prisoners being put to the bar, the evidence for the prosecution was continued.

ELEANOR WALKER examined by Mr. Gurney.—I am servant to Henry Rogers: he lives at No. 4, Fox-court, Gray's-Inn-lane. We had a lodger named Brunt. He occupied two rooms on the second floor. They were front rooms. In January a lodger came, introduced by Brunt. This was a month or five weeks before Brunt was taken up. He (Brunt) said the lodger lately came from the country, and he wanted a room; and as we had one to let, he wished him to have it. The room was unfurnished. He paid three shillings a week for it. He (the lodger) said he might not bring his goods in for a week or better. He never brought any in to my knowledge. I do not think I should know him again. I do not remember having heard him called by his name. The room he took was a two-pair back room.

This witness was not cross-examined.

Re-called.—While this person occupied the room, I heard persons frequently go up stairs.

MARY ROGERS, the aunt and mistress of the last witness, examined by Mr. Gurney.—The room was let by my maid while I was out. After the lodger had been in the house for a week, I said to Mr. Brunt, "You have brought a lodger." He said, "Yes, I have, and I hope he will pay you. I know nothing of the man, but seeing him at a public-house, and seeing him want a room." He said he was a butcher out of work. He paid me for four or five weeks. I cannot say whether he ever slept there; he did not to my knowledge. I and my maid in the evening saw three men coming up stairs. The one in the middle was a black man. The light from my room was on their faces. At other times I heard persons going up stairs, but took no particular notice.

This witness was not cross-examined.

JOSEPH HALE, a young lad, the apprentice of Brunt, examined by Mr. Gurney.—I am apprentice to Brunt. I have served two years and better of my apprenticeship. I lived with him in Fox-court. I remember a person coming to lodge there in January. His name was Ings, a butcher. Brunt and he looked at the room. Brunt said, "It will do; go down and give them a

shilling.” After that Ings used to come to the room. The key was mostly left in the front room, and Ings used to come there for it. Persons used sometimes to come to the room before my master was taken up. This was every evening. I saw different persons. They were Ings, Tidd, Thistlewood, Bradburn, Edwards, Hall, Potter, and Strange. I remember a man named Adams: he came. Davidson, the black man, came also. Others used to come, but I do not recollect them. They used to stay nearly about two hours. There was no furniture in the room that ever I saw. They used to take chairs in, out of the front room. I did not hear any of their conversation. They used to call Thistlewood sometimes T., his initial, and sometimes Arthur. I once saw the door of Ings’s room open, and saw some long poles, like branches of trees cut rough; I suppose about twenty of them. I sometimes heard hammering and sawing in the room. My master was taken on Thursday, the 24th of February. On the Sunday before that there was a meeting in the room. There were more that morning than ever I had seen come up before. All the persons whom I have named were there that morning. After the meeting broke up I saw Strange in my master’s room. There was no meeting on the Monday evening. There was no meeting on Tuesday. On the Wednesday there were several persons going in and out. Some of them came into the front room, where I worked. They got some pistols, and were putting new flints in them. There were five or six pistols. One of the men said there were people overlooking them from the next house, and Brunt told them to go to the back room. Strange and a man whom I did not know were the men who had the pistols. I cannot say how many I saw go in and out. I saw Thistlewood that day. In the afternoon he asked me for a sheet of writing-paper. I gave him one. He took it, I believe, into the back room.

My master after this came out of the back room, and desired me to get six sheets of cartridge paper. He gave me sixpence. I bought the paper and gave it to him, and he took it into the back room. This was about four or five in the afternoon. I heard people going down stairs between five and six. My master was in and out several times. He went away finally about six. There was a man went with him. It was not one of the men I used to see there. A table had been taken that day from my mistress’s room to the back room. I wanted the table, and went for it. I knocked at the door, and Potter opened it. There were four or five in the room besides Potter. After my master was gone, I saw Tidd between seven and eight. Mrs. Brunt called him, and he

came into her room. She showed him a pike-head and a sword. She asked him what she should do with them. She then gave them to him, and he took them out of the room into the back room. After this I heard some persons go down stairs. Tidd left a message, that if any persons called they should be sent to the White Hart. Some persons did call on my master, and I went to show them to the White Hart. Potter came, and he went. He knew the way himself. There were three came to whom I shewed the way.

My master came home that night at about nine o'clock. I observed his dress was dirty. He appeared confused. I heard him say to his wife, it was all up, or words to that effect. He said that where he had been, a great many officers had come in. He said he had saved his life, and that was all. Just as he said this, another man came in. I do not know that man. Brunt shook hands with him, and asked him if he knew who had informed. The man said, no. The man then said, he had had a dreadful blow on the side, which knocked him down. Brunt then said, "There is something to be done yet." After this Brunt and the other man went away together. Mrs. Brunt and I after this went to Ings's room. I saw several rolls of brown paper with tar in them. I saw only one pole remaining. I saw something rolled up, and tied round with strings. I understood them to be hand-grenades. I saw an iron pot belonging to Brunt. My master came in about eleven o'clock. He told me to get up in the morning as soon as I could and clean his boots. They were very dirty. He called me in the morning at half past six, and when I got up he asked me if I knew the Borough. I told him yes. He then asked if I knew Snow's-fields. I said no. He then went into the back room and put the things out of the cupboard into two baskets; one of which was afterwards put into a blue apron belonging to Mrs. Brunt. This apron had before this been as a curtain in Ings's room.

My master told me that Potter lived in Snow's fields. When we had the baskets ready, two officers came in and took my master into custody. I knew where Tidd lived. He lived in the Hole-in-the-Wall-passage, Brooks'-market. Adams lived next door.

Cross-examined by Mr. Adolphus.—My master is a journeyman shoemaker: not a very poor man. Adams is also a shoemaker. Ings had the lodgings five weeks. I believe they had meetings there every night. I thought there were about twenty persons there on the Sunday. I know some

of the prisoners. Strange is a boot-seller—selling boots in a shop. Edwards was an artist. Edwards was there very often: oftener than Adams—almost every day. Hall was a journeyman tailor, I believe. I don't know where he lives. I cannot say how many persons were there at one time on Wednesday. The baskets used by my master were rush baskets. As near as I can guess there were about twenty poles. They were branches of trees in a green raw state. I believe they kept a fire in Ings's room. I do not know whether the poles were cut up to light the fire or not.

THOMAS SMART examined by Mr. Littledale.—I am a watchman of the parish of St. George, Hanover-square. I was on watch on the south side of Grosvenor-square, on Tuesday the 22d of February. I went there about eight o'clock. About half-past eight I saw four suspicious men walking the square. I thought they were after no good; one of them was a dark man, and the other a tall man. I watched them. They were looking down the areas. Charles Bissix's box is at the west side of the square.

Cross-examined by Mr. Curwood.—It was not a very uncommon thing to see suspicious men walking about.

HENRY GILLAN examined by Mr. Bolland.—I am a servant to Mr. Whittle, apothecary, at 15, Mount-street, Grosvenor-square. I sometimes use the Rising-sun public-house. It is in Charles-street, which runs into Grosvenor-square and Mount-street. I was there on Tuesday the 22d of February. I saw that short man (pointing to the prisoner Brunt) there. There was a tall man with him. They had some bread and cheese and porter. There were dominos on the table, and the short man challenged me to play with him. I played two games with him, and left the house before ten, leaving them there.

JOHN HECTOR MORRIS examined by the Attorney-General.—I am a journeyman cutler to Mr. Underwood, in Drury-lane. I remember on Christmas-eve a man brought a sword to my master's shop. The man was habited like a butcher. He drew the sword from under his smock-frock, without a scabbard. He wished to have it ground sharp, particularly at the point. He said to put the name of Inns on it; but I am hard of hearing, and it might be Ings. He called for it in a few days. In about a fortnight he brought another sword to have it sharpened in the same way. It was much longer

than the other. [Here the witness identified the prisoner Ings as the man who brought the swords.] I should know the swords again.

EDWARD SIMPSON examined by the Attorney-General.—I am a corporal major of the 2nd Regiment of Life-Guards. I know a person named Harrison. He was in the Guards. (Here he identified Harrison.) He was discharged in 1814. When I knew him, he was in King-street barracks, Portman-square. He had an opportunity of knowing them. Part of the barracks looked into Gloucester Mews. There was a loft with five windows looking into it. There was hay and straw in that loft; the windows had been stopped up since the Cato-street business.

Cross-examined by Mr. Curwood.—I don't know how many men are in Knightsbridge barracks; they would hold about 300.

JAMES ADAMS examined by the Attorney-General.—I am a pawnbroker in Berwick-street. I know the prisoner Davidson from his having pledged things at my shop. He came on the 23d of February, in the morning, and took a brass-barrelled blunderbuss out of pledge.

This witness was not cross-examined.

THOMAS HYDEN examined by Mr. Gurney.—I am a cow-keeper. I was formerly a member of a shoemakers' club. I knew Wilson there. I saw him a few days before the 23d of February; he met me in the street, and made a proposition to me. He asked me if I would be one of a party to destroy his Majesty's Ministers; he said they were waiting for a cabinet dinner, and that all things were ready. He told me they had a sort of things which I never saw; they were called by the name of hand-grenades,—and, he said, he depended on me to be one. He said that Mr. Thistlewood would be glad to see me, if I would be one. He said, the use to be made of the hand-grenades was to be put under the table, at the cabinet dinner, with the fuse alight, and those who escaped were to be destroyed by the sword or some other weapon. He also said that fires were to be lighted, and the town to be kept in confusion for several days, till the thing became general. He named some houses. Lord Harrowby's, Lord Castlereagh's, Lord Wellington's, Lord Sidmouth's, the Bishop of London's, and several others which I do not remember. I told him I would make one. This was, I believe, four or five days before the Cato-street business. Before that I went to Lord

Harrowby's. I do not remember the day. I followed his Lordship in the park. I gave him a note. On Wednesday, the 23d, I saw Wilson again. I believe it was between four and five o'clock in the afternoon. I met him in Manchester-street, Manchester-square. He said, "Hyden, you are the very man I wanted to see." I asked him what there was going to be; and he said, there was to be a cabinet dinner at Lord Harrowby's, Grosvenor-square. He told me I was to go to the Horse and Groom public-house, the corner of Cato-street. I was to go in there, or otherwise I was to wait at the corner until I was *shoved* into a stable close by. I asked him the hour, and he said about half past five or a quarter before six. I then asked him how many there were to be, and he said twenty or thirty. I asked him, was that all there was going to be? and he said, there was to be another party in the Borough, another in Gray's Inn-lane, and another in Gee's-court, or in the city. He said, all Gee's-court were in it; but they would not act till after the English began, as they had so often deceived them before. Gee's-court is inhabited by Irish. It is at the St. Giles's end of Oxford-street. He also said there was a gentleman's servant supporting them with money; and, if they would act on the subject, he would give them a great deal more. He asked me if I had a gun; and I said yes, but it was only a *rubbishing* one. He then said they would provide me with a gun, and something to work with. There were, he also said, two pieces of cannon in Gray's Inn-lane, which they could get by breaking in a small door. He said there were four pieces of cannon in the Artillery Ground, and they could be very easily taken, by killing the sentinel. After they left Grosvenor-square, they were to meet near the Mansion-house. I was told to come to my time, or the thing would be done before I came.

I went to John-street that evening; it was nearly seven o'clock. The entrance to Cato-street is a little gateway from John-street. When I got there I saw Wilson and Davidson; I had seen him (Davidson) before. Davidson said I was come, and he asked me if I would go in. I said no, as I was going somewhere else to look for some cream. He said if I would go in, Mr. Thistlewood was there. I asked him what time I should be there, and he said eight o'clock. If I were not there in time, he said, I was to follow them down to Grosvenor-square, and, at the fourth house from the corner, at the bottom of the square, I should find them.

Cross-examined by Mr. Adolphus.—I am not certain whether the first conversation I had with Wilson was before the Sunday, before the Cato-street business. I am not quite certain. It was four or five days before. I am not able to say what day I gave the information to Lord Harrowby. It might be a day or two before I saw Wilson in Manchester-street. The conversation with Wilson was in Manchester-street; we were walking up and down the street.

A note was here put into witness's hand, which he said was the one given by him to Lord Harrowby. It was in his own hand-writing.

Cross-examined.—The reason why I gave the note to Lord Harrowby was, because I could not see Lord Castlereagh.—I did not call at Lord Castlereagh's house, but I went three or four times near the house, in order to see him. I did not see him, and then I gave the note to Lord Harrowby. I am certain that in Wilson's conversation with me, the words, "His Majesty's Ministers," were used.

The EARL of HARROWBY examined from the bench by the Attorney-General.—I reside in Grosvenor-square, on the south side, near Charles-street, next door to the Archbishop of York's. I am a Privy-Councillor, and one of his Majesty's Ministers. I am President of the Council, and one of the Cabinet. On the 23d of February last, I intended giving a cabinet dinner; I think it was on Wednesday, the 23d. Only those who compose the Cabinet are invited to Cabinet dinners. I believe the invitations went out the latter part of the week before, but my head servant can speak to that more correctly. Invitations were sent to the Lord Chancellor; to the Earl of Liverpool, the First Lord of the Treasury; to Mr. Vansittart, the chancellor of the Exchequer; to Earl Bathurst, the Secretary of State for the Colonial department; to Lord Sidmouth, the Secretary of State for the Home Department; to Lord Castlereagh, the Secretary of State for Foreign Affairs; the Duke of Wellington, Master General of the Ordnance; Mr. Canning, the First Commissioner of the India Board; Mr. Robinson, President of the Board of Trade; Mr. B. Bathurst, Chancellor of the Duchy of Lancaster; Mr. Wellesley Pole, the Master of the Mint; and the Earl of Mulgrave; all these are Privy-Councillors. They are employed in the different offices I have mentioned, and also form what is called the Cabinet. In common parlance they are called his Majesty's Ministers. On the Tuesday before the intended

dinner, I was riding in the Park without a servant. It was about two o'clock. I went to a Council at Carlton-House. I am not positive as to the hour. As I came near Grosvenor-gate a person met me, and asked me if I was Lord Harrowby. I said, yes. He said he wished to give a note to Lord Castlereagh, which was of considerable importance to him and to myself. He then gave me a letter. After some further conversation, he gave me a card, with his address. I saw the man again by appointment on Wednesday morning in the ring, among the young plantations in Hyde-Park. The dinner did not take place at my house on Wednesday. The preparations went on as if the parties were to dine together, until I wrote a note from the Earl of Liverpool's to my head servant, to say the Cabinet would not dine there. It would be seven, or half past, at which the party would dine.



Cross-examined by Mr. Curwood.—I had some general knowledge of some conspiracy, or something of the kind, going on before this. I do not know a person named Edwards. We had some general information a considerable time before this, that some plan was in agitation, but we did not know the time at which it was to take place, or the particulars. I will not say to two months. It was some considerable time before this.

JOHN BAKER examined by the Attorney-General.—I am butler to Lord Harrowby. The cards of invitation were issued for the cabinet dinner on the 18th, or 19th. It was about eight in the evening of the 23d when I first knew that the Cabinet were not to dine at my Lord Harrowby's. The preparations for it went on till then. The Archbishop of York lives next door to my Lord Harrowby's. I can't say whether his grace had company on the 23d of February. I noticed several carriages draw up at his door.

JOHN MONUMENT examined by the Solicitor-General.—I am by trade a shoemaker. I generally live near Brooks'-market, but I am now a prisoner in the Tower. I know the prisoner Thistlewood. I met him at the house of one Ford some weeks before the transactions of the 23d of February. He afterwards called upon me at my lodgings. He was not alone. Brunt was with him. He told me that he wanted to speak with me in private. In consequence I went out of the room with him, my mother and brother being at that time in the room with me. Brunt staid behind when I went out. Thistlewood then said to me, "Great events are now close at hand—the people are every where anxious for a change. He had been promised support by a great many men, who had deceived him, but he had now got men who would stand by him."

He then asked me if I had any arms. I said, "No, I had not." He said, that every man of them, that is, of those who were attached to him, had arms, pikes, pistols, or sabres; and added, that I might buy a pistol for four or five shillings. I said that I was too poor to buy one. He replied, that if such were the case, he would see what could be done for me. Brunt called upon me again in four or five days. He said, that he could not stay long with me; there were several more men of his trade waiting to see him on this business, and he must call on them. I did not see him afterwards for some time. He called, however, again upon me on the Tuesday previous to the 23d. I then told him that I thought I had lost him, as he had staid away so very long. He replied, that owing to the King's death, an alteration had taken place in their plans. I asked what those plans were. He said that I should know them better at a meeting to be held the night afterwards, than he could tell me. I asked him where the meeting was to be. He said at Tyburn-turnpike. He did not tell me what was to be done there.

I asked him if I was to see any persons there how I was to know them as friends, and requested him to give me the word. Brunt then told me, that if I saw any persons about, I was to say B-U-T; and if they were friends, they would say T-O-N. He would, however, call on me the following morning, and tell me more particulars.

On the Wednesday afternoon, between four and five, he did call again: he came by himself. He called me down stairs, and asked me if I was ready to go. I said, "No, I have got some work to do, and it must be done before I go." He asked me how long it would be before it was finished. I said, that it would be done about six o'clock. He then said, that he could not wait for me so long—that I must therefore come to the place appointed along with the man to whom he had introduced me; that man's name was Tidd. He charged me not to be later than six o'clock, as Tidd had others as well as myself, to take with him to the place of meeting.

I went to Tidd's at half-past six, who complained that many men had disappointed him. We waited till seven, but no person came. Tidd then went into a corner of the room, took out a large pistol, and stuck it in a belt, which he wore round his waist. He also took out four or five pike-heads, which he wrapped up in brown paper. He took also several shafts, four or five feet long. We then went out, along Holborn, and up Oxford-street. I asked him, in his room, where we were going. He said to a room in a mews in John-street, Edgware-road. When we got into Holborn, he gave me the pike-shafts, and told me to take care of them. I asked him again, as we were going along, where we were going; and wanted to know whether it was to the House of Commons. He said, "No, there were too many soldiers near there." I again pressed him on the subject, and he said that they were going to Grosvenor-square, as there was a cabinet dinner there that evening. I did not ask him any more questions; for on his saying that, I was satisfied for what purpose they were going.

We then went to Cato-street. Under the archway I saw two men, whom Tidd appeared to know. He spoke to them; and, after a few moments we all went into the stable together. There were in the loft and stable about twenty-four or twenty-five persons. I had not been there long when some one proposed to count the numbers assembled. Thistlewood replied, that there was no occasion to do so, as he knew that there were about four or five and twenty

persons in the room. There was a person in a brown great coat sitting on a carpenter's bench, who spoke of the impropriety of going with so small a number to Lord Harrowby's. Thistlewood replied, there were quite enough of them. He only wanted thirteen to go into the room, and supposing Lord Harrowby to have sixteen servants, that number would be quite enough to master them.

The man in the brown coat said, "After we have done, there will be a crowd about the door, how are we to make our escape?" Thistlewood said, "You know the larger body is already gone to arrange matters; we, the smaller, are left to do the business." Davidson then blamed the tall man in the brown great coat for throwing cold water on the plan, and added, that if he was afraid, he might as well go away. Brunt said, "Rather than give up the business, I will go to the house and blow it up, though I perish myself in the ruins, for you know we have got that which can easily do it." The man in the great coat then said, as they were all for it, he would not oppose it. He then proposed that all in the room should put themselves under the orders of Thistlewood. Upon which Thistlewood said, that all engaged in the business were equal, and should have the same honour as himself, and proposed that fourteen should volunteer to go into the room at Lord Harrowby's. Those that volunteered were to range themselves on the side in which the fire-place stood. They did so in the course of a few minutes. Whether they were exactly fourteen I don't know.

I heard nothing said of what the rest were to do. On somebody asking that question, Thistlewood replied, that they all knew their places. Thistlewood then went out for a few moments. On his return, he said that he had received intelligence that the Duke of Wellington and Lord Sidmouth had arrived at Lord Harrowby's. I was myself taken into custody in the room.

Cross-examined by Mr. ADOLPHUS.—I never saw Thistlewood till I saw him at Ford's. I attended at the meeting in Finsbury-market. I was so far off that I could not tell whether Thistlewood was there, nor even the purpose of the meeting. There was no particular acquaintance at that time between me and Thistlewood. I did not then know Brunt or Edwards. There was a long interval between my first and second conversation with Brunt. I thought that they had done with me, finding me so reluctant to join in their measures. The man in the brown coat was not Adams. I have seen Adams

since, at Hicks's Hall. The room was much crowded—the parties in it were eating bread and cheese. I do not know that I ever saw Adams before I saw him at Hicks's Hall. I recollect the prisoner Davidson from his colour. If any person had addressed them besides the man in the brown coat, I must have heard him. I was taken in the room when the soldiers came. I had no arms. I made no resistance.

Re-examined by the Solicitor-General.—I was nearly the last person who entered the room. I was there nearly a quarter of an hour before the officers came. I was unacquainted with every person in the room except Thistlewood, Brunt, and Tidd. It was candlelight. On the bench were swords, pistols, and blunderbusses. When I was brought up to Whitehall, I was handcuffed to Thistlewood; who advised me, when I came before the Privy-Council, to say that I had been brought to Cato-street by Edwards. I asked him how I could tell such a falsehood, when I had never seen such a man as Edwards in my life. He said that was of no consequence. If asked what sort of a man he was, I was to say, he was a little taller than myself, and dressed in a brown coat.

By a Juryman.—I have had no communication with Adams since my apprehension.

By the Solicitor-General.—I never saw him except when I was brought up as a witness to Hicks's Hall.

THOMAS MONUMENT.—I am brother to the last witness. I remember Thistlewood calling upon my brother. He brought Brunt with him. They did not stay in the room more than five or ten minutes. Thistlewood then asked my brother if he might speak with him. On my brother's replying yes, they went out together for ten minutes. They then returned; and Brunt and Thistlewood went away.

On the Tuesday before the Cato-street business, Brunt called again on my brother, with a man named Tidd. My brother said, "Brunt, I have not seen you for so long a time, that I thought I had lost you." Brunt said, "The King's death had made some alteration in our plans." My brother asked what those plans were. Brunt said, they had different objects in view. Brunt asked my brother to meet him at Tyburn-turnpike that evening, when an outline of their plan should be given to him. Brunt said that he ought to be

there at six o'clock: if he saw any persons about, he should say, B-u-t, and if they were of their party they would say, t-o-n. They did not press me to go, but spoke only to my brother. I did not go. Brunt called at five the next evening for my brother to go. He said, he could not go then, as we had work to do. Brunt then bade my brother call on Tidd, at the Hole-in-the-wall passage, at seven. He did so, as I was informed.

Cross-examined by Mr. Curwood.—Not suspecting that any mischief was going on, I was not anxious to know to what the conversation of my brother and Brunt referred. I thought that it might perhaps relate to some club-dinner.

THOMAS DWYER examined by Mr. Gurney.—I live in Cheese-court, Oxford-street. Some time in February I became acquainted with Davidson. He introduced me to Thistlewood. We went together to a public-house at the end of Molyneux-street, not far from Cato-street. This might be about the 9th, 10th, or 11th of February. Thistlewood said nothing particular to me at that time. He observed, that he had been in four or five revolutions, and that Ireland was in a disturbed state. I am an Irishman. Thistlewood said, that he had a good many of my countrymen with him. He pressed me to go with him also.

I saw Davidson on the night before the 23d. He told me that he was going to stand sentry. The next morning I was called upon by a person, who took me to Fox-court, Gray's Inn-lane. He was a tall man, and his name is Harrison. We went into a two-pair back room; the room door was locked. He knocked at another door, and a woman gave him the key. He opened the door, and we entered.

There was a cupboard in the room, out of which was taken a ball, wrapped up in yarn. Harrison told me the purpose for which it was intended, and called it a grenade. Shortly afterwards Thistlewood, Davidson, and a few more, came in. Davidson had a blunderbuss, a pair of pistols, and a bayonet, in his side pocket. Others also came in, but I did not know their names. [The witness was here told to look into the dock, and see if he could identify any of the prisoners as being then present. He instantly identified Brunt.] On Davidson's saying that he had only given twelve shillings for his pistols, Brunt said he would go out and buy a pair.

I had some conversation with Thistlewood about the hand-grenades. Thistlewood said, that some of them were to be thrown into the horse-barracks, and others into Lord Harrowby's house, to set fire to it, and blow it up. Thistlewood asked me how many of my countrymen I could muster, as he should want some of them at half-past eight that evening. I told him that I could muster about twenty-six or twenty-seven. He told me that they, meaning himself and friends, were to assemble at the Horse and Groom; and ordered me to be at the Pontefract Castle, at the end of Barret's-court, a house much frequented by Irishmen. He told me that I was to pick out the best of my countrymen, and go to the Foundling Hospital, knock at the porter's lodge, put a pistol to his breast, and turn on to the right hand, as there were twenty-five or twenty-six stand of arms in the other lodge: these I was to seize. At the same time another party would secure two pieces of cannon which were in the Light Horse Riding-School, Gray's Inn-lane. Another party was in the meantime to go to the Artillery-ground, Finsbury, and seize what was there. He also mentioned that there was to be a cabinet dinner at Lord Harrowby's, and that the party there were to be attacked.

After this, I saw a bundle, containing gunpowder, taken out and laid upon the floor; a tin measure was produced, and several smaller woollen bags were filled with it. This was done by Harrison. I afterwards heard Thistlewood give directions generally to them all. He said that a dozen pike-handles were to be taken to Mary-le-bone, some others to Finsbury, and some elsewhere. I was asked, but refused, to take some of them. I saw a bag; and the powder which had been measured out, and also the grenades, were put into it.

I heard directions given to a man by Harrison, to take something to the Horse and Groom, at the end of Cato-street. In the mean time another person went out to get the pike-handles. I got back to my own place at twelve o'clock. I told Major James of what I had seen and heard: in consequence of what he said, I went to the Secretary of State about one, or half-past one o'clock that day.

Cross-examined by Mr. Curwood.—I am a bricklayer by trade. I never, before the month of February, saw Davidson. Davidson introduced me to Thistlewood on the ninth of that month. They did not know me, and I did not know them, yet I was let into their secrets on the morning of the 23d of

February. I have lived fifteen years in the parish of Mary-le-bone, with a good character, and yet all of a sudden a band of traitors intrusted me with their traitorous designs. I told them that it was a hard thing to inveigle men into a scheme like theirs, and doubted whether I should be able to accomplish it. Though I expressed this doubt, I was sent to the Foundling Hospital to take the arms. I acceded to their proposal at the time, but had no intention of executing it. I do not know a man of the name of Hugglestone. I never was in a court before, except on the trial of a woman for stealing. I was in Ireland at the time of the rebellion. I cannot tell how old I was then.

GEORGE KAYLOCK examined by Mr. Littledale. I live at 22, Cato-street. I saw Harrison and another against the stable-door in Cato-street, at five o'clock on the 23d February. I asked Harrison how he did. He replied, pretty well; he had taken two rooms there, and was going to do them up. Between five and seven o'clock I saw more than twenty people go in at the stable-door.

RICHARD MONDAY examined by Mr. Littledale.—I live at 23, Cato-street. About twenty minutes after four, on the 23d, as I was coming from my work, I saw Davidson standing under the archway. I knew Davidson, from seeing him with Firth, the cow-keeper. I went home and got my tea. I came out again at twenty minutes past five, and went to a public-house. On leaving it, I saw Davidson going into No. 1 for a light. In going into the stable, into which Harrison admitted him, he stooped for a bundle, and I then observed that he had two belts on, one across his shoulder, and the other round his waist; in that round his waist, on the left side, two pistols were inserted; on the other a sword was suspended, which jutted out considerably. The place where they met is a stable, belonging to General Watson; it has lately been used as a cow-house by Firth. There is a chaise-house, and a stable below, and a loft, with two rooms above. One of these rooms has a window, the other is dark. I observed, in the course of the afternoon, that something like a coarse matting was hung over the windows, and the partition in the stable-yard.

ELIZABETH WESTALL.—I live at No. 1, Cato-street. About three o'clock I saw a man go into the stable with a sack on his shoulder. About six o'clock I went out, and saw a man of colour standing by the stable. I was much alarmed by that circumstance, thinking that the stable was unoccupied. I was out ten minutes. Shortly after I returned, the man of colour came into

my house, and asked me for a light. I gave him a light. He then went back to the stable where I had seen him at first.

GEORGE RUTHVEN, the police-officer, was then examined by Mr. Bolland.

I went, on the 23d of February, to Cato-street. Three others were to meet me there. When we were all assembled we were about twelve of us. I went into the stable, and saw a man with a sword by his side, and a blunderbuss on his shoulder. I saw one man below, and I have some faint recollection that I saw another. The whole of my party followed me into the stable. On seeing the man with the blunderbuss on his shoulder, I told some of the party to secure him. I went up a ladder, which led to a loft.

When I got there I saw several men; heard the clattering of arms, and saw swords and pistols. Three or four of my party went up with me. I am sure that Ellis and Smithers were with me. From the view which I had of the place, I think there were 24 or 25 persons present. The size of that room is 15 feet, five one way, and ten feet ten the other. There are two rooms adjoining this, separated by doors. When I got into the room, I said, "we are officers; seize their arms." I saw in the room Thistlewood, whom I have known for four or five years.

Thistlewood was standing, at the time we entered, at the right hand side of the table, near the door of the little room. On my saying, "We are officers," he seized a sword, which was drawn, and retreated to the little room. The sword was a very long one, and rather bright. He stood in the entry of the door fencing, to prevent any one's approach. Smithers approached him. Thistlewood stabbed him, and Smithers fell, saying, "Oh, my God! I'm done," or something to that effect. Somebody from the corner of the room where Thistlewood stood said, "Put out the lights—kill the b——rs, and throw them down stairs." The lights were then put out; I joined in their cry of "kill them," and rushed down stairs.

I did not observe any thing till I got into John-street, where I met the soldiers, whom I brought. Several shots were fired from the corner of the room where Thistlewood was standing; I think down the stairs. On arriving a second time at the stable, I met Tidd grappling with one of the military. I secured him. I was afterwards in the public-house, (Horse and Groom) and saw Bradburn brought in. On him were found six ball-cartridges and three

balls. Davidson and Wilson were brought in. Davidson sang a song. I then went back to the loft, and found there, Shaw Strange, Cooper, Monument, and Bradburn. I saw arms in the hands of several persons. I found two swords and a bag. The bag contained ten hand-grenades. I also found balls and fusees. They were brought to Bow-street, and remained since in possession of an officer. Afterwards I went to the Horse and Groom. I had seen Cooper there, with a stick, and Gilchrist came back for it, but did not get it. I observed it cut.

Cross-examined by Mr. Adolphus.—Thistlewood had not been much out of sight since Watson's trial. Witness had seen him five or six times. He had a motive for it. It was not for this purpose, that he was aware of. There were four or five Edwardses, officers with him, but he was not aware that Edwards, who had been concerned in this business, was connected with any of them. He knew nothing further, than that he was directed to watch Thistlewood.

JAMES ELLIS, by the Attorney-General.—Went with the other officers to Cato-street on the 23d of February; he went in immediately after Ruthven. He saw two men, one having on two cross-belts; either in his right or left holding a carbine, in the other a sword. Witness observed, that he was a man of colour. The other person was between the foot of the ladder and the stall next to it, for there were three. He followed Ruthven up as close as he could. The man of colour said something ending with "men." He heard the men above rushing back behind the carpenter's table, and a noise like fencing with swords. There might be twenty or twenty-five men. Ruthven said, "We are officers, seize their arms, or surrender your arms."

Witness had not known Thistlewood before, but he was satisfied it was he who menaced with the sword. Witness had before held forward his staff of office; he now presented a pistol, and desired him to desist, or he would fire. Smithers then gained the top of the ladder, and advanced towards the little room. Thistlewood struck him with the sword near the breast. Smithers fell back, held up his hands, and exclaimed, "O, God!" Witness fired on Thistlewood, and Smithers staggered towards him. The candles were put out, and the witness was forced down. He stood at the door to the street. Several shots were fired: some balls passed him. On going out he heard a cry. Saw a man running towards Queen-street, with belts on. He secured

him. It was Davidson, the man of colour. He had a carbine in the one hand, and a sword in the other. He afterwards assisted in securing four, to whom he could not speak positively.

Cross-examined by Mr. Curwood.—He was a constable, and had the warrant. He had a part in conducting the officers; but Mr. Ruthven was there.

WILLIAM WESTCOTT had part in conducting the patrol at Bow-street, and was a constable. He was down in the stable the whole time, and heard firing on the loft. He saw Ings in the stable, who wanted to rush out, while the other officers were up. Witness and Ings had a contest. There was terrible confusion in the loft; some came tumbling down, and some singly. He knew Thistlewood. There was a light. Thistlewood fired at witness. Three holes were in his hat by balls. Witness rushed towards Thistlewood, when he was struck down. Thistlewood then made a cut at him with a sword, and ran out. Witness was wounded in the back of his hand with one of the balls, as he had held up his hand to protect his head.

HUGH NIXON, one of the Bow-street officers, saw Ruthven, Ellis, and the deceased go up the ladder. He went up, and saw Ellis fire. There was a rush down, and he saw a man fire a pistol; he rather believed it was Thistlewood. Ings was pursued and brought back. Witness found a sword in the stable, and a bayonet up stairs.

JOHN WRIGHT, a patrol of Bow-street, was one of the officers who went to Cato-street. They mustered at the Horse and Groom. He saw Cooper having a broom-stick, and another coming to drink beer. Cooper left the stick. Witness took a sword and a knife from a man who was in the stable, near a stall. That moment he was knocked down, and received a stab in his side. Wilson and Bradburn were afterwards taken. Witness found about two dozen ball-cartridges in Wilson's pocket, and a pair of scissors; and found two haversacks on his sides.

WILLIAM CHARLES BROOKES, a patrol, being directed by Mr. Birnie towards persons passing, saw Ings, and a person in front of him with a cutlass, and spoke to them. Ings fired, and slightly wounded him on the shoulder. Witness staggered into the road. Ings went off towards the Edgware-road. Witness pursued. Ings threw away the pistol. Moy took him. Witness asked

him why he had fired at him, a man whom he had never seen. He said, "I wish I had killed you."

Ings.—"Pray, my Lord, am I not allowed to ask any question?"

Court.—"You are not on your trial at present."

Witness stated, that two haversacks, a knife-case, and a tin box, three parts full of powder, were found on Ings.

GILES MOY confirmed this evidence, so far as he was concerned.

ROBERT CHAPMAN, one of the Bow-street officers, went to Cato-street; saw Ings in the stable, and heard him say, "Look out, above." Witness, in the watch-house, took from Ings a knife-case, two balls, and a pistol-key. He saw one running through the stable with a sword in his hand.

CAPTAIN FITZCLARENCE appeared on the right of the bench, and said, he was a lieutenant in the Coldstream Guards; he went with a piquet to John-street on the 23d of February, about eight in the evening. On hearing reports of pistols, they went to Cato-street. He was directed by a police-officer to the stable. He met two men at the door: the man on his right cut at him with a sword, the other man presented a pistol. He got in and seized a man, who called out, "Don't kill me, and I will tell you all." He gave him in charge, and then secured another man in one of the stalls. On going up stairs, he secured three, four, or five persons. He fell against the body of poor Smithers, who was lying dead. He saw several arms.

SAMUEL TAUNTON, a Bow-street officer, went to Brunt's lodgings, searched the front and back rooms, and found two baskets. Brunt, who was in the front room, and had been previously taken into custody, said, he knew nothing of the baskets. The room did not belong to him in which they were; it was the back room. In the same room there was a pike-staff and an iron pot. Witness sent for the landlady, Mrs. Rogers. She said, her niece had let the back-room to a man she did not know. Brunt, said, it was a man at the public-house, and he did not know his name.

Witness then went to Tidd's, in the Hole-in-the-Wall passage, near Gray's Inn-lane. There he found a box full of ball-cartridges, 965 in number; he found ten grenades, and a great quantity of gunpowder. He found, in

haversacks, 434 balls. He found also sixty-nine ball-cartridges, and about eleven bags of gunpowder, one pound each. The grenades were in a wrapper. In one of the baskets at Brunt's were nine papers of rope-yarn and tar; in the other, three of the same, two flannel bags of powder, one pound each, and five empty bags, a paper of powder, one leathern bag, with three balls in it. They were all here.

Cross-examined by Mr. Adolphus.—This was on the 24th. Brunt had been in custody before. Tidd was absent.

DANIEL BISHOP, a Bow-street officer, went on the morning of the 24th, with other officers, to apprehend Thistlewood, about ten in the morning, to Whitecross-street, Moorfields. The house was kept by Harris. He received a key from Mrs. Harris, which opened a ground-floor. There he saw Thistlewood, who thrust his head from under the clothes in bed; the shutters were shut. Witness told his name and business, and, having a sword in one hand, and a staff in the other, threw himself on the bed. Thistlewood said, he would make no resistance. He had his breeches on, in the pockets of which they found two balls, two cartridges, and some flints. They also found a small silk sash.

Cross-examined.—A man of the name of Edwards did not go, nor any who knew where Thistlewood was.

LAVENDER produced and identified the belt found in Thistlewood's coat-pocket.

RUTHVEN produced the pike-staff, grenades, &c.

All the soldiers and officers who had any of the articles seized were now arranged behind the witness-box, and handed to Ruthven their several charges, and Ruthven laid them on the table. A pike was screwed on a staff, and handed to the Jury. The whole of the frightful apparatus was now exposed to view. Guns, blunderbusses, carbines, swords, pistols, pikes, sticks, cartridges, bullets; even the pot in which the tar was boiled,—all were produced and identified.

The fire-arms remained loaded till produced on this occasion, when the charges were drawn; they were loaded with ball. One of the grenades had been given to a person by an order of Colonel Congreve to be examined.

The production of Ings's knife excited an involuntary shudder; it was a broad desperate-looking weapon.

The Jury inspected the arms separately, and particularly the pikes, the construction and formation of which have already been minutely described. The whole had a most formidable appearance.

JOHN HECTOR MORRISON, servant to Mr. Underwood, cutler, in Drury-lane, was re-called, and looked at two swords, which, he said, were the same he had ground for Ings.

Serjeant EDWARD HANSON, of the Royal Artillery, examined by Mr. Gurney.—I examined one of the grenades produced to me at Bow-street; it is composed of a tin case, in the form of a barrel, in which a tube is soldered. The case contains three ounces and a half of gunpowder. The priming in the tube is a composition of saltpetre, powder, and brimstone. The tin was pitched, and wrapped round with rope-yarn, which was cemented with rosin and tar. Round the tin, and in the rope-yarn, twelve pieces of iron were planted. From the lighting of the fusee to the explosion might take about half a minute. If one of them were to be exploded in a room where there were a number of persons, it would produce great destruction. The pieces of iron would fly about like bullets.

[The witness here opened another of the grenades for the satisfaction of the Jury; it was composed in the manner already described. The pieces of iron principally consisted of old cart-nails, such as the tires of wheels are nailed on with. The carcase, or tin-case, was wrapped in an old stocking, and the powder which it contained was pronounced very good.]

Witness, in continuation.—I examined one of the fire-balls; it consisted of oakum, tar, rosin, and stone-brimstone, pounded. If one of these was thrown into a house, and alighted on wood, it would be sure to set it on fire. The effect would be still more certain on straw or hay.

The Attorney-General.—“That is the case, my Lord, on the part of the Crown.”

THE DEFENCE.

Mr. CURWOOD now rose to address the Jury on the part of the prisoner. He commenced by stating, "That if it were consistent with a sense of moral and professional duty, he would not have stood there to address them. It was one of the characteristics of the profession to which he had the honour to belong, however, and one which perhaps reflected upon it the greatest credit, that they were not at liberty to refuse their assistance to persons in the situation of the unfortunate man at the bar. No man could feel more impressed than himself with the sense of the great and weighty duty he had to perform. He felt that the unhappy prisoner had a right to call upon him to do his duty boldly and fearlessly, and without any consideration for the Government who were the prosecutors on this occasion; he felt also that he had a duty to perform to his country, by assisting in the administration of the law, and not by any power which he possessed, if he did possess such power, to endeavour to pervert that law. He owed something too, to his own fair fame, which was all, his only inheritance.

"With these feelings pressing upon him, he might truly say, he was placed in a trying and critical situation. It was fit on an occasion of this sort, that they should know something of the man by whom they were addressed. It could not be denied that the unfortunate transactions, to which their attention had been so painfully directed, had arisen out of that state of the country which they must all alike lament and deplore. It was clear also, that while they had attachments to certain parties, prejudices would arise which it was out of their power to control in favour of the sentiments of those parties. With respect to himself, although like every other Englishman, he had his feelings upon certain points, yet he never belonged to any particular party, nor was he in the habit of attending political meetings. With respect to Government, he never had received any place or appointment from them, nor was it likely that he should. In the present instance, therefore, he had no motive to influence him in doing his duty, or at least in endeavouring to do it fairly and honestly.

"It was due to his Learned Friends and to himself to state, that in consequence of the lateness of the moment in which they were called upon to undertake this arduous task, not having received their instructions till a late hour on Thursday, that the difficulties with which they had to cope were of no ordinary kind; and these difficulties became the more formidable, when it was recollected that they had arrayed against them the most

distinguished talents which it was in the power of the Crown to procure—talents not a little aided by the advantage of study, and of a mature consideration of all the facts of the case which they were called upon to discuss. No doubt, in the notice which they (the Jury) had given to the Attorney-General, when he opened this case, they had not failed to observe, and he had observed it with unfeigned surprise, that he had not stated to them precisely what were the points which they were called upon to try. He had indeed stated that it was a prosecution for high treason, but he had only defined what was the quality of the treason which he meant to impute.

“Unfortunately, there was mixed up with this transaction a great deal for which the prisoner might hereafter be answerable, and which was calculated to make a deep impression on the minds of the Jury; but whatever was their opinion upon the moral guilt of the prisoner, if, upon a review of the evidence, they should not be of opinion that he had committed the precise offence charged in the indictment, it was their duty to pronounce a verdict of Not Guilty. It therefore devolved upon him to state precisely what they had to try; it was not merely a question of high treason, but a question of a particular species of high treason.

“The indictment was very long, and contained many things which, in the language of the law, were called overt acts. They were not, however, because a great body of evidence had been given to them, to jump at the conclusion, that the substantive treason alleged had been committed. The sorts of treason charged were four in number: the first was founded upon the late statute of the 36th of the King, for conspiring to depose his majesty from his imperial style and dignity. It was now nearly 400 years since that statute, to which Englishmen had been wont to look with veneration as a protection for the dearest rights of man—he meant the statute of Edw. III.—had been passed. There, among other treasons set forth, was the conspiring to take away, or the compassing and imagining, or intending to compass or imagine the King’s death—but there had subsequent treasons started up. There was now another Act of Parliament in existence, which embraced not merely the compassing and imagining the King’s death; but the conspiring to depose him from his imperial style and dignity. It was also treason to conspire to levy war against his majesty. This was the question then which they had to try.

“First, had the prisoners at the bar conspired or imagined the death of the King; secondly, had they conspired to depose his Majesty from his imperial style and dignity; thirdly, had they conspired to levy war against the King; and lastly, had they actually levied war against the King? He apprehended that they must be satisfied that one or other of these charges was proved, before they could find a verdict of *guilty*.

“Before he came to these topics, they would look to the probability of the evidence which had been laid before them. The great mass which had been adduced certainly led them to conclude that a conspiracy of some kind had existed; but it did not follow that the substantive treason charged in the indictment had therefore been committed. It did not follow, as a matter of course, that the removal of the administration of the King must be succeeded by the deposition of the Monarch himself. Let them go by steps. There was continually in Parliament one party endeavouring to remove another; that was to say, endeavouring to remove the existing administration. He would admit, probably with the best intentions.

“Would it be contended, that this removal of an administration was necessarily connected with the deposition of the Monarch, and that every man who attempted to effect such a purpose would be involved in the crime of high treason?

“Again, other men might think it necessary that an administration should be removed by violence; and this too with the most virtuous intentions. He desired not to be misunderstood, as meaning under that plea to justify assassination. Nothing was further from his feelings; but all he meant to argue was, that they must not take it as a necessary consequence that the death or destruction of a whole administration involved the death or deposition of the King. If they (the Jury) were of opinion that it did not involve such a consequence, the evidence on this occasion did not support the substantive treason laid in the two first divisions of the indictment.

“There were two other treasons, however; one was the conspiracy to levy war against his Majesty; and the other, the actual levying of war. Now he called upon them to look to the evidence, and see whether they could draw from that a fair inference, that there was a conspiracy to levy war, and that what had been done amounted to an actual levying of war. In the detail

given by the first witness, Adams, who in fact proved the whole case—he thought there was much more for ridicule, than for serious consideration. In his opinion, the testimony of this man was utterly incredible, independent of the fact of his being an accomplice.

“The Attorney-General had told them that an accomplice was a necessary witness; but though necessary, he was not of necessity to be believed. The more atrocious the guilt in which he had steeped himself, the less worthy he was of credit; and where a most atrocious and wicked witness came to tell them a tale, not only improbable, but most ridiculous in itself, would they not at once dismiss him from their notice?

“It often happened, that those who were the most ingenious in devising and promoting mischief, were the first to become informers; and that this was the case in the present instance, he should be enabled to prove. They would, however, consider the evidence which had been given by Adams to support the fact of there having been a conspiracy to levy war against the King. They would lay out of their consideration for a moment all that had been said of the assassination of his Majesty’s Ministers; and they would consider the evidence as it had been given by him to support that conspiracy. They had here everything to raise their passions.

“They had all the materials and preparations for war before them (the arms on the table); but what was the result of all the discussions which took place at all the meetings of the conspirators from the 4th of February, in which the assassination of his Majesty’s Ministers had been repeatedly debated?

“In the cross-examination of Adams, it appeared that one of the conspirators, Palin, had, with some degree of sense, when all those things were talked of, asked where the men were to come from to effect this mighty revolution? In one moment his Majesty’s Ministers were to be assassinated!—a detachment was to go and take possession of two pieces of cannon in Gray’s Inn-lane!—another detachment was to make a descent upon the Artillery-Ground!—a third party were to seize the Mansion-house, as a seat for the Provisional Government! and yet to effect all this, what was the actual strength of the conspirators in its most exaggerated state? Why, forsooth, forty men, two old sabres, six shillings, and a reputed pound-note!! Where an infamous witness told them such a story could they believe

it?—was it credible? Would they take away the life of a man under such circumstances? If it were possible for them to do so, he could only say that they would be more insensible than the deluded men themselves.

“Then as to the other point, the actual levying of war; what a levying of war was, he hardly knew how to define. Lord Hale had said, that this was a question of fact, which a Jury alone was capable of deciding.—That learned Judge had also talked of “marching with unfurled banners, and being furnished with military officers”—but where were the unfurled banners here, or where the military officers?—The only military man they had heard of was one disbanded soldier, and the purpose to which he was to be applied was the destruction of his Majesty’s Ministers—an act which, he contended, even if effected, did not amount to a levying of war.—If they were told the contrary, he was sure they would treat such an intimation as absurd and ridiculous. Where was this great conspiracy concocted? In a two-pair back room! Where was the battle fought? In a stable! Where were the traitors incorporated? In a hay-loft! How were they armed? With a few rusty swords, halberts, and old pistols!

“He would put it to the plain common sense and understanding of the Jury, whether they would pronounce persons so assembled and so armed, guilty of levying war against the King? It was rather a levying war against the constables, at the very name of whom they trembled. Then, if there was no levying of war, was there a conspiracy to levy war? The only evidence they had of such a conspiracy came out of the mouth of those three witnesses who were so far contaminated, that it was beyond all doubt they had themselves been deeply implicated in the projected assassination of his Majesty’s Ministers.”

“The question, then, for their consideration resolved itself into this point: they would consider, even supposing that the assassination of the Ministers was intended, whether this of necessity implied that his Majesty was also to be deposed. If they did not think that the one must of course follow the other, then their verdict must be “Not Guilty.” He implored them to do their duty strictly according to law, to consider what the law of the country was, to step neither to the right nor to the left, but to come to a fair and impartial and unprejudiced conclusion. He implored them to do so, not only for their own sakes, but for the sake of the country; for if once jurymen suffered

their feelings of indignation towards one offence to lead them to admit the existence of another of a different character, not proved, there would be an end of the due distinctions of justice. If this man had been guilty of another offence, there was another indictment against him, on which he must take his trial if he were acquitted of this: and if he were convicted under that, he would suffer the penalty of the law. But, upon this occasion, he called upon them not to find him guilty of High Treason, because they thought him worthy of death for having incurred the guilt of assassination.

“In conclusion, the learned gentleman said, he would proceed to call a witness to prove that Adams, who had been called for the Crown, together with an accomplice of the name of Edwards, who had not been called, were the persons who had conveyed the arms and ammunition to the house of Tidd on the very morning they had been found there by the Bow-street officers.”

Mr. ADOLPHUS then proceeded to call the

EVIDENCE FOR THE DEFENCE.

MARY PARKER examined.—I am the daughter of Richard Tidd; I live with my father; I remember the police officers coming and finding some boxes and things in our lodgings; they came about half-past eight; those things had been in the house when they came, about a quarter of an hour; they were brought that morning; among them were the pike staves; it was no person in my father’s employment who brought them; he had been taken into custody the night before; I know a person of the name of Adams; I have seen him at my father’s; I know a person of the name of Edwards; I have also seen him there; he has been there often; I have seen similar things before the officers came; I believe these to be the same things; Edwards took part away; I do not know who took the rest; he took them away on Wednesday; my father did not take them away; Edwards did not take away the box; he only took away some things that I have since heard were used; the box was brought a day or two before my father was taken; it never was uncorded; Adams brought a large grenade; I do not know what Edwards was.

The Attorney-general declined asking this witness any question.

EDWARD HUCKLESTONE examined by Mr. Curwood.—I know a man of the name of Dwyer. I have known him for some years. Latterly I have known him intimately. I used the same public-house. I do not think he is to be believed on his oath.

Cross-examined by the Attorney-General.—I saw him with plenty of money, and knowing that he had little or no work, I was surprised. I was in distress. He told me he would put me in the way to make plenty of money, if I would go with him. I agreed; and he proposed that we should charge gentlemen with an unnatural offence. That he was to go up first, and then I was to join him. I left him quite shocked. This was about three months ago. He said he had got ten pounds at a time from a gentleman in St. James's-street, by only catching him by the collar, and accusing him. I met him the next night at the Rodney's-head, and he called me a coward. I told him of the danger, and reminded him that his brother had been transported for the same thing. He said he knew better how to general it than his brother. I ought to have communicated it to a magistrate; but I was afraid of falling a "wictim" to the Irishmen who lived in the neighbourhood. I have spoken to him since. I was a shoemaker, but am now articled to a cow-doctor in Newman-mews. I first communicated this to my brother, about a week ago. I did not mention it before, lest I might be ill-treated, as I had to go so much about among the cows. Some of the Irishmen have gone away from the neighbourhood now, and that induced me to summon up courage to mention it to my brother. I did go with Dwyer to the Park, but I was always struck with the horror of the thing. When I saw the names of the witnesses in this case in the paper, I made the communication to my brother.

(The witness was desired not to go out of Court.)

Mr. JOSEPH DOANE examined by Mr. Adolphus.—I am called the Court Reporter; I prepare for the newspapers an account of the movements of the Court, the cabinet dinners, &c. I send the same accounts to six papers, among others to *The New Times*, [Looked at the announcement in the *New Times*, of the cabinet dinner, on Tuesday the 22d of February.] The intelligence respecting the Court in this paper I sent. The paragraph respecting the cabinet dinner, from the wording, I think I did not send. I think so from the use of the word "grand;" cabinet dinners are always alike, and I do not think I used the word "grand."

ANDREW MITCHELL: I am printer of *The New Times*; I produce the original of the paragraph respecting the cabinet dinner, announced in *The New Times* on the 22d of February.

Mr. Doane recalled: That is not my manuscript; I always write from a manifold.

Andrew Mitchell: I did not receive that from Mr. Doane, but from a person of the name of Lavenue, who furnishes things in the same way.

JOHN WHITTAKER: I searched in eleven newspapers of the 22d of February for the annunciation of a cabinet dinner at Lord Harrowby's, and in none of those papers was there such an announcement as that in *The New Times*.

The Attorney-General: These papers ought to be here.

The Chief Justice Abbot: Strictly speaking, they ought to be here.

The witness: *The New Times* alone had the annunciation of the dinner at Lord Harrowby's on the 22d of February.

Mr. Adolphus: This is all the evidence I intend to offer on the part of the prisoner.

Mr. Gurney: I wish, my Lord, that Dwyer should be again called.—The witness, Dwyer, was then again put in the box, and examined by Mr. Gurney: I do not know a man of the name of Hucklestone.—[The witness Hucklestone was desired to stand up.]—Dwyer: I know that man, but did not know his name was Hucklestone. I have met him in Oxford-road. Not in a public-house. I never proposed to him to charge any person with an unnatural offence. In February last I was at work at the parish mill, and got three shillings. I have a wife and family.

Cross-examined: I did not know Hucklestone by name. I saw him with other chaps at the corner of James-street, near where I live; but I never associated with him. I have seen him in Hyde-park. I never went into a public-house with him. I resorted to the Rodney's-Head, but never knew him to resort there. I have not repeatedly met him in a public-house. I don't know that I can swear I never saw him in a public-house. I will swear I have

not been with him at the Rodney's-Head within this three months. I am a bricklayer by trade, and worked fourteen years for one master.

Mr. Adolphus now entreated permission to be allowed till the ensuing day to prepare himself to address the Jury on the part of the prisoner. The state of exhaustion to which he had been reduced, as well as the shortness of the time which had elapsed since he had received his instructions, and the great importance of the duty which he had to perform, where the life of a fellow-creature was at stake, the more imperiously impelled him to entreat this indulgence, if consistent with the views of the Court.

The Lord Chief Justice felt the propriety of the appeal, and after some conversation relative to the convenience of the Jury, the Court was adjourned till the following morning.

THIRD DAY, WEDNESDAY, APRIL 19, 1820.

The Court opened again at nine o'clock this morning, and a few minutes after Mr. ADOLPHUS rose to address the Jury on behalf of the prisoner, and commenced by observing, that "he could not request their attention to the feeble and humble efforts which he was going to make in defence of the prisoner at the bar, without returning them his sincere thanks for the kind and gracious manner in which they had conceded to him further time for the preparation of his defence. Under all the circumstances of the case, the situation in which he (Mr. Adolphus) stood was sufficiently distressing; but it would have been still more so if he had been compelled to address them yesterday evening with a mass of evidence totally undigested, with a memory wandering over all, but steadily directed to none of the points which had come out during the trial; and without any of that simplification of the case which he had been able to effect, though imperfectly, in the few hours which, by their kindness, he had been able to steal from sleep.

"The inquiry in which they were then engaged was a most anxious and important inquiry: indeed, so anxious and so important was it that it was only natural to expect that the minds of counsel engaged in conducting it would sink under the heavy task imposed upon them. During the course of

his professional career many trials similar to the present had taken place: but in none of them did the parties accused labour under such dreadful charges as were now brought against the prisoner at the bar; in none of them had they been so totally deprived of all assistance and support as the unfortunate individual had been on whose fate they now stood impanelled to decide.

“To say that he (Thistlewood) had all the weight of office arrayed against him—to say that the prosecution was conducted with all the talent and all the power of Government, was to say nothing more than that Thistlewood was indicted for high treason. He (Mr. Adolphus) meant not to blame the Government for exerting all its energies in a case like the present; by no means—the Crown had, on all occasions, and particularly on an occasion like this, a right to demand of its best servants their best services: he only meant to contrast the difficulties against which Thistlewood had to contend with those which had surrounded other unfortunate men in his situation.

“Against the great legal talent which had been employed against them by the Crown, there had come forward advocates of high character, and not inferior ability—advocates who voluntarily embarked themselves in the cause of their clients—gave up their whole time and attention to their interests, methodized and simplified the evidence necessary to maintain them, and entered the Court prepared to meet the case brought forward by the Crown on every one of its points and bearings.

“Far different was the case of the unhappy man then standing at their bar.

“On the evening previous to his trial he was scarcely acquainted with the name of the counsel who was to defend him: and that counsel had scarcely more early information of the grounds on which his defence was to be rested. He (Mr. Adolphus) could assure them that he was only chosen counsel for Thistlewood on Thursday last; that unavoidable business had kept him out of town during the whole of Friday; and that he had appeared before them on the Monday with such information as he could collect in the interim. He deplored this circumstance, but he could not complain of it. His want of ability and preparation was not, however, the only circumstance which rendered Thistlewood’s case more desperate than that of the individuals who had formerly been placed in his situation. Many of them

had been allied with, or supported by, men of power, and rank, and influence in the country. Thistlewood, on the contrary, was aided by no party, was supported by no subscription, but was deserted by men of every class and party in the community. He (Mr. Adolphus) had received no assistance, no information, no instructions, from him; all that he knew of the case was derived from the materials which the solicitor, the gratuitous solicitor for the defence (Mr. Harmer), had been able to collect within the last few days.

“Besides these circumstances was another still more extraordinary and unfortunate. At the state trials of 1794, whoever was discharged by a verdict of his countrymen was discharged at once from all further prosecution; and with the inquiry of that Court ended all inquiry into his conduct.

“This man, Thistlewood, however, was so beset, that, even though he obtained at their hands a verdict of acquittal upon this charge, he had to undergo a similar trial upon other indictments: indeed he (Mr. Adolphus) did not hesitate to say that he (Thistlewood) was surrounded by every danger which could possibly environ the life of a single individual. It appeared as if this melancholy choice alone were left him, whether he would have the execution of his sentence end with the severing of his head from his body, or whether he would have his body given up after his execution to the dissecting knife of the surgeon. If his guilt were of such a nature as to demand that penalty to be added to the others inflicted by the law, he had only himself to blame for it: far was it from his (Mr. Adolphus’s) intention to palliate his conduct upon that point: the only reason which he had for even alluding to it was to implore them to place out of their consideration every circumstance which was not connected with the subject of their present investigation, and which had not been brought regularly before them in the course of the trial.

“The Attorney-General had made the same request to them, and it had well become his character and legal knowledge to do so. It was not less his duty as a man and as a Christian, than as a high officer of the Crown, to give them that advice: for, bound as he was to protect the interests of the Crown, he was not less bound not to exercise his power in wantonly running down those subjects, who were living under its fostering care and protection. Made, then, as this request had been made to them by the Attorney-General,

he (Mr. Adolphus) could not help repeating it; for he was well aware how difficult it was to dismiss from the mind the impressions of ill-will and dislike which were naturally conceived against any one who was, or ever had been, the subject of general reprobation.

“On occasions like the present a man’s usual convictions stole into his mind, in spite of himself: it therefore became them to be doubly on their guard, and to view the case then under their consideration as if they had never heard the name of Thistlewood before, and as if they had never received any other information than that which had come under their notice in the course of the trial, upon which, and upon which alone, they were sworn to give their verdict. He agreed with the Attorney-General that the present was a case of infinite importance; not, however, to the prisoner at the bar merely, whose life was at a stake, (indeed in that point of view it was of less importance than in any other) but also to the state and to all posterity.

“It was of importance to the state that verdicts should be given upon strict evidence alone, and not upon favourable or unfavourable impressions conceived by the Jury regarding the party on his trial. It was of importance also to posterity; because if, as against a bad man, a certain kind of evidence should now be allowed to procure conviction, it would, in time, be also allowed to procure conviction against a good one; and, in that case nobody could tell whose fame might not be impeached, whose property might not be injured, whose life might not be destroyed, by the same kind of evidence as had been produced on this trial; evidence which ought never to have the credence of any jury, or the sanction of any court.

“It was not, therefore, so much for the value of Thistlewood’s life (though God forbid that he should undervalue the life of any man) as for the value of a precedent in a case of treason, that he was then contending; for if a charge of high treason could be substantiated against any British subject on such evidence as had just been adduced there would be an end to all our well-founded boasts of the excellence of our law regarding high treason. Such an event, however, he, for one, did not anticipate, when he recollected with what care the law of treason had been guarded by the legislature, and with what caution executed by our juries, ever since the period of its first institution. Nor was such caution, vigilance, and correctness, as had been

always exhibited by our juries, with some few exceptions, and those in bad times, unnecessary or uncalled-for.

“An accusation of high treason was a fearful accusation. In all other criminal cases, from a simple assault up to a murder, the King though not the real, was the ostensible prosecutor: in a case of high treason, however, the King was not merely the ostensible but also the real prosecutor; he was directly arrayed against the prisoner, and therefore it was the imperative duty of the Jury to see that the subject was not oppressed. The present case of high treason was as important as any of those which had ever preceded it; and the Jury ought, therefore, to be peculiarly careful not to allow one tittle of evidence to weigh with them which had not been admitted on former occasions, and, if they had any doubts with regard to its admissibility, ought to lean to the prisoner, and not to the Crown, however interested they might be in its preservation, and the preservation of its authority.

“He had before had occasion to state to them, that the defence of the prisoner at the bar had come to him, in the course of his professional business, as an enforced duty. He had not sought it; he had not refused it; indeed, as an advocate, he could do neither one nor the other. Standing, however, as he did, in that Court, as the advocate, the unfee'd, and therefore, in some respect, the voluntary advocate of the prisoner Thistlewood, he deemed it right (unnecessary and improper as it might be on any other occasion for an advocate to press his own political opinions on the Jury) to state that, during the whole of his life he had never given his assent to any proposition tending to change the constitution, as established at the Revolution, either in church or state. He had been born a subject of his late most gracious Majesty; to him, whilst alive, he had paid a subject's loyal obedience. He was now a subject of his present most gracious Majesty, and the allegiance which he had paid to the father he willingly transferred, as his due to the son.

“To the questions which had lately agitated the country, he had never lent himself for a single moment; on the contrary, he had always opposed, to the utmost of his power, every design of faction and innovation. Thus much he thought it necessary to state in the peculiar situation in which he stood; but making as he had that declaration of his political principles, he also felt,

both as a man and as an Englishman, that he had a strong principle to advance and establish in this defence; and he therefore trusted that, if any persons were present who felt an interest in the fate of the prisoner, they would not think that he would relax, in his efforts on his (Thistlewood's) behalf, on account of the difference of their political opinions. If any thought that he would relax, he was sorry that they should entertain such an opinion of him: he would, however, use every exertion to make a fair defence for the prisoner: if it were not conducted with ability, it would be not from want of intention, but from want of ability, which would be the prisoner's misfortune as well as his own.

“The learned Counsel then proceeded to observe, that the line of defence which he found it necessary to pursue was the most difficult which it had ever fallen to the lot of an advocate to make good; and he should here be deficient in respect to the good sense and talent of the jury, if he pretended to assert that the prisoner at the bar was perfectly guiltless. He was afraid that it was but too evident that he (Thistlewood) and those with whom he was connected had meditated assassination, a crime which was little less horrible than the commission of it. He did not intend to palliate Thistlewood's conduct in doing so—far from it: it was a crime not to be palliated: the very blood recoiled from it—the best feelings of human nature revolted against it, and the indignation and execration of society always followed it. Still he thought it possible that Thistlewood, though he might be guilty of murder and the other crimes imputed to him in the various indictments, might not be guilty of high treason. Unless, therefore, he was fully and clearly proved to be so, it was their duty to acquit him; and in so acquitting him, in spite of all the odium and prejudice which surrounded him, they would be doing honour to themselves, and benefit to their posterity.

“He was not weak enough to say this in any hope that, by flattering them, he should obtain their verdict; he should be sorry to obtain it on such terms; for if they gave a verdict for him against the evidence, they would be doing no honour to themselves, and a great injury to their posterity. He had once thought of stating to them, at some length, the nature of the law of treason, but he had afterwards found reason to change his opinion, it having been suggested to him that the law on that subject would come better to them from the Court. He should therefore proceed, before he entered into a

minute examination of the evidence (on the general nature of it he had already made some comments) to state to them the nature of the indictment.

“They had heard the indictment read over to them, and would have perceived, unacquainted as they were with the technicalities of the law, that the same offence was charged against the prisoner, though somewhat varied in terms. There were four charges, or counts, to which he particularly wished to call their attention; there were to each of these ten or eleven overt acts, all of which, it had been said, must be considered as shewing the intention with which the prisoner had acted.

“The prisoner was charged, in the first count, with “compassing, imagining, inventing, devising, and intending to deprive and depose our Lord the King, from the style, honour, and kingly name of the imperial crown of this realm.” The overt acts stated in the indictment were, conspiring to assassinate several of the Privy-Council; procuring large quantities of arms with intent to assassinate them; as also to subvert and destroy the constitution as by law established; issuing proclamations to the King’s subjects containing solicitations to aid and assist them in making and levying insurrection; and various other acts specified therein. Before, however, they found the prisoner guilty upon this count; they ought to be convinced that the intention to depose the King existed previously, and not subsequently, to the commission of these overt acts. For though they should be perfectly convinced that the prisoner had gone to Lord Harrowby’s house with the intention of killing the King’s ministers, that fact alone did not render him guilty of high treason: it was necessary that a treasonable intention should be first proved to exist.

“To meditate the assassination of a privy-councillor was certainly a crime of great magnitude, and by 3 Hen. VII. cap. 14., had been made a felony; and by a later statute, that of 9th Anne, cap. 16, to assault or attempt to kill one in the execution of his office was made a felony, without benefit of clergy. Thus it was clear that to kill a privy-councillor was not in itself an act of high treason, unless it were coupled with other acts tending to prove a treasonable intention previously existing in the mind of the prisoner. They must, therefore, before they brought in a verdict of guilty against him, be convinced of one of these four points: either that he did intend to deprive and depose our Lord the King from the style, honour, and kingly name of

the imperial crown of this realm; or that he did intend to excite rebellion and insurrection within this realm, in order to subvert the government; or that he did intend to levy war against the King, in order, by force and restraint, to compel him to change his measures and councils; or that he did intend, with force and arms, to effect those purposes.

“These were the points which must be established before they could find the prisoner at the bar guilty of high treason; and what was the evidence produced to establish them? He did not hesitate to affirm, that never was evidence so weak tendered to prove charges so heinous. It was contradictory, it was inadmissible, it was incredible, coming from any quarter, but still more incredible, coming, as it did, from men destitute of all character, avowedly engaged in a conspiracy to effect a hideous murder, and therefore men of such a description as ought never to be allowed by their oaths to bring the life of man into danger at all. Before he proceeded any further, it would be requisite to call their attention to the degree of credit which ought to belong to an accomplice. The Attorney-General, in calling an accomplice as witness, had stated that he was to be believed, whenever he was supported by other collateral evidence. On this doctrine he would not comment just at present, but would content himself with observing, that it must be clear to all of them that the whole charge of high treason rested in this case solely on the evidence of an accomplice. For if the testimony of Adams were to be dismissed from their notice, there was not a single syllable said by all the other witnesses who had been produced, (so loosely indeed had they supported the testimony of Adams) tending to convict Thistlewood of high treason.

“The question then came to this point, whether a charge of high treason ought to be considered as made out, which rested solely on the testimony of an accomplice, and an accomplice, too, like Adams. He maintained that it ought not, for if Adams were believed, no witness could hereafter be rejected as unworthy of credit, and consequently no man’s life or honour could be considered secure.” An accomplice, however, continued the Attorney-General, not indeed in those very words, but in words to that effect, “ought not to be expected to receive support on every point which he mentions in evidence, because if he were to receive such support, there would be no reason to call him at all.”

“It was true that the evidence of an accomplice might be believed under certain circumstances, that is, when he was supported by other more respectable witnesses; but then he must not be supported by only a few witnesses, but by all the witnesses which could be called to confront him. He would even go so far as to say that those who availed themselves of the evidence of an accomplice were bound to produce every witness acquainted with the facts to which he swore, not merely those who could support, but even those who were likely to contradict them. These persons were the solemn gages of his truth, and like witnesses to the signature of deeds, ought to be called forward for the common good of all parties. This was not merely his opinion, but the opinion of many eminent lawyers who had gone before him. Indeed he had read an opinion of one of them in a book, which he could not with propriety mention there; an opinion which was so much in unison with his own, though much more forcibly expressed, that he could not omit the opportunity of reading it to them. The argument in it was clear and satisfactory, and the law was not more accurately laid down than it was forcibly expressed. The passage to which he alluded was as follows:

“‘An accomplice may be a witness; even unconfirmed, he is a witness competent to be heard.’—A witness of the most infamous character, unless he has been actually convicted of certain specific crimes, and the record is brought into Court, may indeed be heard; but it is for you, gentlemen, to determine what degree of credit you will give to his evidence. Let him be heard; let him be examined; I thank them for calling this witness: I thank them for submitting him to the admirable cross-examination of my learned friend: I thank them for stopping certain subjects of inquiry; all this must satisfy you, that no reliance can be placed upon his testimony. I am sure, that if this were a case not of the immense importance which it is; but if it were a suit instituted to decide the smallest question of civil right, that you would not attend or give the slightest credence to such evidence. But in a case of this nature and of this magnitude, in a criminal case, in a case of treason, in a case of the highest description of crime, and, with respect to its inflictions and penalties, the severest that the law recognizes; in a case of high treason, I say, to build your decision upon evidence of this character, upon such a witness, and such a treacherous foundation, is it possible that my friends on the other side can expect it; is it possible that they can hope, or even wish for it? Can you believe that they could have known the

previous conduct and character of this man, when they brought him into Court? It would be an insult to your understandings; it would be an outrage to common sense; a mockery of justice, to suppose that the smallest degree of reliance can be placed upon such evidence.

“But it is said that he is confirmed; and because he is confirmed in some facts, you are therefore to believe him in the rest. This is a position which lawyers are in the habit of stating in a very unqualified manner; but it is not a position which can be maintained to this extent, according to any principle of common sense. There is no man who tells a long and complicated story, like that which you have heard, who may, and must not of necessity, be confirmed in many parts of it. The witness was upwards of eight hours in giving his evidence, and of course stated many facts, which no man denies, which have been in all the newspapers for weeks and for months past; and because he is confirmed in certain particulars, you are therefore required to believe the whole of his story to be true. Is this a proposition to be insisted upon? Can it for a moment be maintained to this extent, and in this broad and unqualified way? But, gentlemen, every profession and science has its phrases; the necessary qualifications are by degrees lost sight of, and the worst errors are thus introduced.

“Let us then look at the mischief of this doctrine, and see the evils and injustice that have arisen out of it. The notorious Titus Oates, the witness for the Crown in the trials founded upon the Popish Plot, in the reign of Charles the Second, that most infamous and perjured wretch, who was afterwards convicted of perjury for his evidence upon those trials, and suffered the punishment of the law for his crime, was confirmed in his testimony in many most important particulars. Unfortunately, the juries, misled in those times of heat and party animosity, were prevailed upon to believe him, and many unhappy persons suffered in consequence of the extreme punishment of the law; and murders were committed, under the forms of justice, in consequence of the reliance placed upon the frail and fallacious testimony of a man of that description. You perceive, then, gentlemen, the danger of this doctrine; and that it is not because a man is confirmed in certain circumstances that you can safely believe him, as to other facts where that confirmation is wanting.

“What is the character of falsehood? Who has lived in the world, and has at all examined the operations of the human heart and mind, who does not know that this is the usual and proper character of falsehood—that it does not wholly invent, falsehood engrafts itself upon truth, and by that artifice misleads and deceives, truth is exaggerated, things that exist are discoloured or distorted—these are the usual operations of falsehood; this is a part of its nature, its address and dexterity. It arises, therefore, out of the very nature of perjury, that it must be confirmed to a certain extent; and it is because there is confirmation in certain particulars, to which particulars I shall, by-and-by, take the liberty of drawing your attention, that you are gravely required to believe the whole of the miserable fictions with which you have been insulted in the evidence of this abandoned wretch.

“But let us look with a little more accuracy to the shades and distinctions upon this material point. I beg you to follow me; for it is most important, according to my apprehension of the question. A man may be seduced into the commission of an offence, who had previously maintained a good character; he may repent of his crime, and give information, and then come into court as a witness. If the story which he tells is found to be probable; if he is not only uncontradicted in any facts, but is confirmed in essential particulars; if there are no circumstances of suspicion arising out of the situation in which he stands, a jury, may, possibly, upon such evidence, be justified in finding a verdict of guilty. I repeat it, that if the previous character of the man were good; that if the story he tells is probable; if it is not proved to be false in any part of it; if he is confirmed in essential particulars, and there are no circumstances of suspicion arising out of the persons with whom he is connected, and by whom he is surrounded, then the Jury may give credit to his evidence.

“He could not help observing, that, if he had desired the best friend whom he had in the world to enlarge his mind by the infusion of good sound legal opinions, or to compose for him a dissertation on this express subject, that friend could not have given him any sentences so adequate to the expression of the sentiments which he wished to convey to the Jury, as were the sentences which he had just read to them. He could have wished to have given them the book which contained these sentences to keep in the box with them, but the practice of the Court prevented him from doing so; he would, however, ask them to retain them, if they could, in their minds, as a

shield of protection for the prisoner, against a man, who ought not to be believed on any one point, but who had interwoven with his falsehoods many truths, which he had acquired either from common report in common conversation, or which had been impressed on his recollection by the injunction of those under whom he acted.

“The next step which he had to take, would be to comment on the evidence, but before he entered into an examination of it, he should beg leave to describe the nature of the defence which he was going to make. He thought it, therefore, his duty, to say at once, that no doubt could be entertained of Thistlewood having been at a meeting in Cato-street, and that he, with the other members of that meeting, had determined to murder all the Cabinet Ministers. To entertain a doubt of the existence of the meeting, or the sanguinary designs which those who attended it entertained, would be full as absurd as to doubt the existence of light now that the sun was casting its full radiance upon the Court. Whilst that meeting was in deep deliberation, it was interrupted by the arrival of a party of police officers. In the affray which ensued, Smithers met his death, or, he ought rather to speak out plainly, was murdered.

“Making, however, these concessions, and admitting the facts to be as bad as bad could be against the prisoner at the bar, believing even, as he did believe, that Thistlewood was guilty of the murder of Smithers, still he maintained that his guilt did not amount to high treason. He would admit, that from motives of a personal nature, Thistlewood wished to kill one of his Majesty’s ministers; and that, in order to effect that purpose, he had no objection to kill them all. The Jury ought, however, to recollect that, whilst influenced by this wish, he had always been accompanied by two spies: how far they had advised these plots was not clear, but one thing was clear, that, upon such evidence as theirs, they were called upon to convict Thistlewood of high treason. That he had been guilty of murder he (Mr. Adolphus) was not now going to dispute; but it was too bad that the crimes of murder and treason should now be blended together, and that he should be represented as meditating a crime which he never had for one moment in his heart.

“He had already stated to them, that if Adams’s evidence did not convict Thistlewood, none else did, for the evidence of the other witnesses was

little or nothing. If, therefore, he shewed them, as he hoped and trusted he should shew them, that the witness Adams was totally unworthy of belief, then a verdict of acquittal must be given for the prisoner at the bar. In order to convince them how totally undeserving he (Adams) was of credit, he (Mr. Adolphus) should beg leave to direct their attention to three points. He should ask them how far Adams had been confirmed in that part of his evidence which related to the treason; then how far he had been contradicted by his own evidence, or that of others; and, lastly, how far he might have been confirmed by others, if the Counsel for the Crown had thought proper to call them.

“What then was the testimony which Mr. Robert Adams had given to them? He (Mr. Adolphus) would tell them. The man had commenced his evidence by informing them, that he had been a soldier some years in the Blues. That any subject of the King should entertain such schemes as had been entertained by these alleged conspirators, was certainly deplorable; but that a man in the situation of Adams, a soldier, sworn to defend his Majesty to the best of his ability from all harm and danger, should have voluntarily entered into them, and should never have felt any of what he (Adams) had termed compunctious visitings as to the guilt in which he was going to involve himself, until four days after the execution of that guilt had been rendered impossible, was a circumstance so atrocious as to deprive him of all claim to credibility and respect.

“This loyal soldier, however, proceeded to inform them, that he had become acquainted with Brunt about three years ago, when the British army was at Cambray, at which time Brunt was attending it in the capacity of a shoemaker. After the dispersion of the army he lost sight of him for some time, but afterwards met him again in the month of January last, when Brunt introduced him to Thistlewood. Then occurred one of the most extraordinary circumstances which he (Mr. Adolphus) had ever heard of, though it appeared to be nothing else than the fashion throughout the whole of this case. At his very first meeting with this Mr. Adams, Thistlewood let him into the whole secret of his traitorous designs. But could any one believe that Thistlewood himself was so reckless of life, as to use language to a stranger equivalent to this?—‘My fate is so hard, my circumstances are so desperate, that I care not a straw what becomes of me. I put myself, and all my designs, into your hands, without any regard to the consequences;

and yet those designs are so horrible and so sanguinary, that if you have the slightest portion of loyal feeling about you, you must denounce me to Government, you must hand me over to justice, you must embrace the opportunity which I have given you of condemning me, without any scruple, out of my own mouth.’ Was it possible that any man in his senses could be thus blind and foolish? Could the most credulous man alive be persuaded to attach credit to so incredible a story? He thought not; and he therefore trusted, that on such evidence, they would never find the prisoner guilty of high treason.

“But though the prisoner, and those with whom he was connected, had not meditated so great a crime as treason, the evidence inclined him to believe, that after the perpetration of the bloody deeds which they meditated, they had intended, under shelter of the confusion which such atrocities would have created, to have commenced a general plunder and devastation of the metropolis. Such an intention, though it enhanced their guilt, did not make it amount to high treason; and, indeed, any person who carefully perused the evidence, would observe that it tallied well throughout with a design to plunder, but very ill indeed with a design to depose the King and to alter the form of Government. For what was it that Mr. Adams next said? Why, after some conversation as to his excellence as a swordsman, Thistlewood is represented as saying, ‘No man worth 10*l.* was worth any thing for the good of his country. The tradesmen and shopkeepers of London were a set of aristocrats together, and all worked under the same system of government. He should like to see the day when all the shops should be shut up and well plundered.’ Why, the whole intent of their conspiracy was disclosed in this sentence. Here was nothing about depriving the King of his style and dignity; but there was a good deal about plundering the city. Their arms, too, were fitted for this purpose, but not for overturning the Government, as must have been evident to all, from the miserable display of their armory which had been so ostentatiously made on the preceding evening. Therefore, unless they could suppose, that to murder the man whom they hated, and to plunder the shops during the trepidation ensuing on such murder, amounted to a deposing of the King, they must acquit Thistlewood of high treason.

“At another meeting, this formidable band of traitors declared that they were so poor, that they could not wait longer than the ensuing Wednesday

for the effecting of their intended revolution. He left it to the jury to say, whether such a declaration savoured more of plunder or of high treason. But, in his opinion, a scheme of plunder was the only thing which could be thus easily arranged; not a revolution in the state, which must depend upon many fortuitous events and circumstances. After this, their conversation became sportive; they gave certain facetious nick-names to certain distinguished noblemen; how justly it was not their business then to decide. This occurred on the 13th of January, just one month and ten days before the transaction in Cato-street. What occurred next, according to the testimony of the respectable Mr. Adams? Why, that three days afterwards he was himself arrested for a small debt, and carried to Whitecross-street prison, which residence he did not leave until the 30th of January. Was this man, who could not even preserve his liberty, more likely to be found engaged in a design to destroy the state, or in a design to commit pillage and plunder, to enrich himself? He had nothing to lose, he had every thing to gain; and if the worst came to the worst, he had only to save himself, and hang the rest of his companions, by turning King's evidence against them.

“After Adams had got out of prison, he returned to his old friends, and had several conversations with them, at all of which Edwards was present. He wished to call their attention to this curious fact, that Edwards, who could have proved all the conversations which had taken place—Edwards, whose name was placed on the back of the indictment as a witness to be summoned on behalf of the Crown, had never once been put into the box. Shortly afterwards they took a room to themselves, and had meetings in it twice or thrice every day. Adams attended them all, became acquainted with all their projects, made himself an active partner to all their intended atrocities; and yet, though a soldier of the King's, never disclosed a syllable of them to any of the constituted authorities until he was apprehended. What next? Why, between the 3d and the 16th of February, another conversation occurred; and then this plot is described as assuming, for the first time, a treasonable shape, ‘One evening,’ says this respectable witness, ‘I went in and saw Harrison, Thistlewood and Brunt: Harrison said, that he had been speaking to one of the horse-guards, who had told him that the whole of their regiment would be down at Windsor on the King's funeral. He said that this would be a favourable opportunity to *kick up a row*, and to see what could be done.’ Kick up a row! That very phrase explained the

whole matter—all the troops would not, indeed, be out of town, but all the officers of police would, and therefore it was a favourable opportunity to kick up a row, and to commit depredation. ‘Thistlewood’ continued Mr. Adams, ‘said that it was a good plan; and, added, that if they could get the two pieces of cannon in Gray’s Inn-lane, and the six pieces in the Artillery-ground, they would so help themselves as to have possession of London before morning. He also said, that when the news should reach Windsor, the soldiers would be so tired from being up all night, as to be incapable of doing any thing when they returned to London.’ In possession of London! Why this fellow, with his military education, ought to have known that he could not take military possession of any single respectable street in the metropolis with ten times the number of men said to be engaged in this wild attempt to overthrow a mighty empire. For were their numbers unknown? No—their whole battalia was well known to consist of not more than twenty-five men; and yet, with this mighty force, and with eight pieces of artillery, they were to be able to keep possession of London, because the poor dear soldiers would be tired to death by being kept up on duty a whole night at Windsor. Were such idle dreams and dotages to be credited in a court of justice? or were they to be dismissed from their recollection with that scorn and contempt which was so eminently their due?

“Adams then represented Thistlewood continuing as follows:—‘By persevering after they had got the cannon, and by using some activity, they might go to Hyde-park and prevent any person or messenger from going to Windsor, and giving the alarm. Another party should then cross the water, and take the telegraph, to prevent any communication being made at Woolwich of what was going forward at London.’ The man who devised such a plan, might, indeed, be considered as mad—but at least there was method in his madness. Roads were to be commanded in this, important diversions operated in that direction, telegraphs to be seized in one town, and soldiers paralyzed in another. All this, too, was to be done by twenty-five men and eight pieces of artillery, who were to be gifted, in addition to all their other qualifications, with the most wonderful ubiquity.

“That a wicked man, or that even a madman, might devise such a project, he could easily believe; but that any man should propose it as a feasible project to any body of men, was more than he could ever be induced to credit. For no story of oriental romance was so extravagant—no exploit of

any hero of school divinity was so inconsistent with reason and probability, as was the design which Adams had shown to have been recommended by Thistlewood to his associates. And yet these men were to form a provisional government, and the forming of this provisional government was to constitute a chief point of their guilt! They form a provisional government for this mighty empire! In what way? by what means? out of what materials? Out of those illiterate and beggarly individuals, he supposed, who could not agree on the drawing up, on cartridge-paper, of three lines, to be exposed on the great day of the revolution on the blazing buildings of London, for the good of the people.

“This provisional government, formed from such materials as he had described, was not to begin the exercise of its authority, however, until the soldiers, who were to be tired to death by sitting up all night at Windsor, were fairly disposed of. From his talking thus coolly of tiring the poor soldiers to death by the labours of one night, it was quite clear that Adams, with all his military education, had either never heard of such a thing as a bivouac, or else that he had conceived all virtue and all valour, as well as all honesty, to have left the army when he quitted it. The provisional government being formed, it was only natural to expect that the business of the drama would crowd more thickly upon the Jury, and therefore they might be excused for asking what came next. Why, the provisional government was to send to the sea-ports to prevent any gentlemen from leaving England without passports: it was to send to Dover, to Brighton, to Margate, to Ramsgate, and other places, orders to that effect; to send to all of them, too, during the night of the King’s funeral—and, above all, was to send these orders to Brighton in particular. Why so? because the mention of Brighton brought the prisoner at the bar into contact with the reigning Sovereign, and laid a foundation for a charge of high treason.

“The King, however, was not at that time at Brighton, but unfortunately confined to his palace in London by so severe an indisposition as to require the issuing of daily bulletins regarding the state of his health. From that indisposition he had now recovered, and he (Mr. Adolphus) prayed to God that he might long be preserved from the recurrence of it. The prisoner at the bar, however, if they were to believe the testimony of Adams, was of opinion, that the present family had inherited the throne long enough, and that it was of no use for the present King to think of ever being crowned.”

The learned Counsel proceeded, “Thus, gentlemen, is the secret detected! Here is the word of the wise and the edict of the powerful! By means like these was the greatest metropolis in the world to be taken, the great roads of communication with the country occupied, and the sea-port towns seized! Yet, by this shameless fabricator of incredible falsehood, and by him alone, is the first count of the indictment supported. It required the greatest human fortitude of face to state it. Well, it was discovered that the first Cabinet dinner was to be given. Cabinet dinners were said to be suspended during the death of the late King, and the illness of the present. On occasion of this first Cabinet dinner the plan was to be executed. Mark, now, how this story breaks itself to pieces!

“On the 16th of February the plot is formed; yet then there was no ministry, and no intention of a Cabinet dinner. This is flagrant, gross, and palpable, too palpable for detection, too flagrant for exaggeration. Several meetings are said to have been held at Fox’s-court. It was found, on the 19th February, that the soldiers had done their duty, and were not to be surprised, therefore something new must be devised. For this purpose comes the ever memorable information in *The New Times*. They had nothing in view but plunder; they sought only the surest way to plunder. Poverty was their goad, plunder their aim. Their designs were not directed against any individuals, however exalted, but as means of plunder. But a committee was appointed, and we see them assembled on the 20th. This is eminently worthy of your attention. On Sunday, at eleven o’clock in the morning, when the snow fell so thick that one could scarcely see his way, the committee met. Tidd took the chair at this rehearsal of the provisional government. Tidd sat in the chair with a pike in his hand. Thistlewood took his station on his right; Brunt was on the left; Thistlewood opens:—‘I presume you know what you

have met here for; I mean the west-end job.' This is presumptuous enough, certainly. Brunt speaks next: he never speaks without an oath, and he, characteristically, says, 'D—n my eyes, mention it out.' Tidd calls to order. So orderly was this meeting! Thistlewood then proposes to assassinate the ministers separately, as they cannot be got together.

"Their arrangements for this are like all the other arrangements; barracks were to be taken, cannons carried away, ministers assassinated, government subverted, the Mansion House occupied, all by fifteen or twenty men. Twenty-five were the greatest number ever spoken to. Twenty-five would find themselves completely lost in the Mansion House; they might as well wander through the Tower of Babel. Palin, who was to be particularly important in his services, was to travel from place to place with satchels of burning materials on his back, and was alone to set fire to several places. Mr. Palin alone was to be seen wandering about, setting fire to houses for amusement, or for the perfection of their plan. Each individual was to have his distinct act of assassination; whoever failed was to be himself assassinated. But who the spare assassin was, to assassinate the rest if they failed, was not told. But this is one of the many fictions which you are called upon to swallow.

"The witness ventured, for the first time, to express here some difficulty, and asked whether, if failure proceeded from unavoidable causes, and not from cowardice, the same consequence must follow. Thistlewood relieved him from this apprehension. But how the court-martial was to be formed to try the case was not discovered. Such, gentlemen, is the delirium of delusion, or the suggestions of frenzy, which you are called upon to believe. Mr. Palin delivers a speech in parliamentary form. 'Agreeing as I do with the plan proposed, I wish to know where men are to be found.' Then he asks whether the plan is to be communicated to those he meant to call upon. Thistlewood authorizes him to use his own discretion. Gentlemen, if you find in this testimony some remote pointing to probability, believe it; but can you, for a moment, hesitate respecting this gross and flagrant fiction? Furnival's Inn was selected for setting fire to. No building is less liable to be burnt. It is a modern building, and there are strong party-walls. Other places, which I shall not name, and where some of us live, would be much fitter. Many places between Furnival's Inn and Fetter-lane, all timber, would take fire at once. But Furnival's Inn appeared fittest in fiction.

“The witness had been in prison, and having forgotten that Furnival’s Inn was rebuilt, and inventing what he should say to the Privy-Council, he represented Furnival’s Inn as the place to be burnt, because, in its former state, it would readily take fire. The Privy Council, their clerk, as well as the Attorney General, I believe, gave him no assistance; they only placed him before an impartial jury. You know that if the plan were contemplated and effected, a chandler’s shop at Charing-cross, where the various communications diverge into the town, would create more alarm. But this suited the grossness of fiction, or the fondness of delusion, by which this witness looked for impunity and reward. We now come to the business of the exchequer. Brunt says, “D——n my eyes, though I have not worked for some time, I have a 1*l.* note, and I shall give it for a treat.” You will not, gentlemen, suppose that I repeat these oaths as feeling pleasure in doing so. It is painful to me, and disgusting to you; but, in my humble judgment, it is not a needless repetition.

“Suppose Brunt’s generous purpose accomplished, it will give a slice of cheese, a piece of bread, and a glass of gin to each. It appears that 6*s.* was the largest sum seen with them: there was 1*s.* on another occasion; there was 7*d.* for a newspaper, 7*s.* 7*d.* was the treasury then. Whether this and the prospect of sharing in the produce of a 1*l.* note, could induce fifteen men to subvert the Government, I leave you to judge. Nothing stimulated them, then, but the hope of plunder. When they should have done something to create alarm, they expected to have full liberty of plunder.

“Thus have I endeavoured, gentlemen, by hours stolen from my rest, to lay before you the real character of their intentions. My Lord will fairly state the law to you; I need not, therefore, anticipate any thing on that subject. At the meeting on the 21st, information is said to have been given that their proceedings were known at Bow-street, and at the Secretary of State’s office. We might have had evidence whether this information could be well founded, but we have none. Next day, the 22d, the cabinet dinner is announced. Who announces it? Mr. Edwards. This corresponds with what is in evidence before you, that the intelligence was fabricated, and put into the paper for this purpose. “Poverty goads on these men; it is fit,” said the prompters, “that we put them on to what will serve our own purposes.”

“The Court reporter himself did not know of the cabinet dinner. He has told you, that the word ‘grand’ could not be applied by him, as one cabinet dinner was not grander than another. You see, then, how it has been fabricated. I will here once more allude to the execrations of Brunt, and from this time dismiss them from your observation.

“The Attorney General animadverted properly on the impiety and obduracy of heart which the language of Brunt indicated. If it was true, his infamy baffles description. It is, that up to that moment he had been an infidel, but he had been praying to God, and he now believed, because his prayer was answered. Such are the words uttered by the fiction-making witness’s mouth. ‘I have prayed to God, in whom I did not believe, to put in our power innocent men, who are highly favoured in this world.’ These are the fictions of a gross, rank, ignorant, conspirator; they defy the grasp of human investigation; they almost persuade us to believe them, because they are impossible. We are almost led to say, as one said on another occasion, ‘I believe it, because no man would invent what is so incredible.’ But, on a question of life and death, gentlemen, you will not listen to such fictions; you will not regard such fantastical decoys. Perforated by the witness’s own act, his creation sinks to the bottom of the sea; it can form neither buoy nor vessel—it is sunk and destroyed for ever. But he is an infamous witness who cannot be believed at all. You find himself next in the chair; and when one turns upon him like a bull-dog, and another like a bear, he remains firm.

“It was then resolved to have a watch set upon Lord Harrowby’s house. This was certainly done, and was a part of the plan which was undoubtedly formed to murder his Majesty’s Ministers. But after that should have been done, so barren were they of invention, that they were to fall back on their old plan of carrying away cannons without horses; of occupying posts without men; and of performing great deeds without any means.

“Provisional Government! Unless the pronouncing of these words were to ‘raise spirits from the vasty deep,’ I know not what it could mean. A printing press, one would have thought, was indispensable. But no means of printing a placard had they. Their proclamations were written on a piece of cartridge paper. I beg pardon, let me not understate the means possessed by them; on three pieces of cartridge paper were the magical words written. ‘Your tyrants are destroyed.’ Ministers were the tyrants then. Be it so. This

is not high treason. It might have been murder; but it is not high treason. 'The friends of liberty are invited to come forward.' If this were told by a witness deserving of faith, it would stagger belief; told by one tainted as this witness is, it can excite no inclination towards faith. On the blazing building, I think I am correct in stating it so, these proclamations were to be stuck up, in order that the friends of liberty, happening to pass by the ruins, might know that a provisional government was sitting, we know not where, or for what purpose.

"Is it possible, gentlemen, to sacrifice human life upon evidence like this? Is it possible to credit evidence that has no point of contact with common sense? The Provisional Government, dropped from the clouds, is sitting: the finger-post is destroyed, with the blazing building to which it was attached; you know not where the Provisional Government is to be found.

"The witness stated, that Ings, the butcher, was arrayed in a belt and two bags. The articles which were exhibited to you last night are removed from the table to-day. The bags were to carry human heads. If there is in the human mind any thing so atrocious as to crown assassination with an exhibition like this, I am truly, truly heart-struck with sorrow for it. I was led to review the French Revolution, to which allusion has been made by the Attorney General, and at that early age every drop of blood in my body was chilled with horror at human heads paraded through the streets, and at the atrocious barbarities inflicted on the royal family. I rejoiced that the country to which I belonged was free from such crimes.

"From the hasty view I took of the bags, and it did not occur to me till I left the Court, but from the hasty view I took, I think they are not large enough to contain a human head. I am told that they are: if so, I only say it has the impression of a hasty view. But, for God's sake, let us not decide by these ignorant visions. Was not Lord Harrowby's plate, the salvers and goblets, &c., a more natural object of desire, and not heads, which, if any carried, every hand would instinctively strike him from the face of the earth? The hand of Lord Castlereagh was to be put into pickle, whether in order to be shewn for money, as might appear suitable to the situation of Ings, or to be exhibited as a trophy, does not appear.

“The witness says, when the officers entered the loft in Cato-street, they cried out, ‘Here’s a pretty nest of you,’ &c. I shall afterwards remark upon this, because I think it pregnant with importance as to the witness’s testimony, for I think he was not there at all. With the experience which you have had in courts of justice, some of you may have felt astonished that my learned friend did not proceed further into the cross-examination of this witness. Every art has its own difficulties, and my learned friend never shewed more consummate skill in his art than when he refrained from further cross-examination of this witness.

“When my learned friends, the Solicitor General and Mr. Gurney asked questions of this witness, which were the natural and regular inquiries, you heard him refuse to answer, and add, ‘No, I have something else to say before I come to that.’ When their experience and judgment suggested the proper questions, he would not let his contrived and fabricated tale be mutilated. ‘No,’ says the untractable witness, ‘I have not come to that yet.’ If my learned friend had wasted time in cross-examination, he could only have got repetitions of the same words. Such testimony is not to be overthrown by cross-examination, but by his manner before you, and by the probability of the statements he makes. But this important declaration was got from him by cross-examination.

“When my learned friend asked him, in the words quoted by the Attorney General from a great poet, whether he had given information from ‘compunctious visitings,’ he replied, that conscience alone made him disclose what he knew. He is quiet from the murder of Smithers on Wednesday night till Saturday, when he plumes his wings, and goes to the Privy-Council to disburthen his heart. I have had a good deal of experience of the evidence of such persons; and I have heard one, who was chairman of the quarter-sessions for Middlesex twenty-six years, say, that, from the moment that observation was made by an accomplice, he was not to be believed, because that was incredible. Apply that here. He sees the murderer, and goes away, unconcerned as if nothing had happened. He rests on the stings of his conscience for four days. He must think that you have no hearts yourselves—no consciousness of the operations of human feelings—if he imagines that you can believe what no schoolboy would give credit to.

“Have I used levity upon this subject? for God’s sake, absolve me from the intention! Have I treated lightly the contemplation of assassinating men possessing and deserving the highest veneration? For God’s sake, excuse the observations which the absurdity of the evidence made necessary! I cannot hear, without indignation, that the wisdom which has so long presided in one of the most important of our Courts, was thus to become a corpse; and that the valour which fought at Waterloo (for the Duke of Wellington was to have been at the dinner) was to have fallen by assassins. From these two take the measure of all.

“When the destruction of worth and wisdom, of learning and talent, is thus contemplated, the most hardened and flinty heart that ever dwelt in a human bosom recoils with horror, and melts with compassion.

“If then, I have used a light expression, impute it, gentlemen, to inadvertence of language, and not to hardness of heart, because the absurdity of the witness made the observations I offered unavoidable.

“Let us now see how far this witness is supported by other witnesses. Mary Rogers proves his statement as to the lodgings; Joseph Hall confirms him to a similar extent. Lord Harrowby and his servant confirms him so far, as to prove the intention of giving his cabinet dinner on Wednesday night. Of this there is no doubt. Hyden is proved to have spoken to his Lordship in the Park. Three witnesses are called, which was not necessary, to prove that the room in Cato-street had been taken; but the parade of confirmation in this matter is meant to cast an air of credibility over other parts of the evidence. I now advert to collateral confirmations. The sharpening of Ings’s sword, the acquaintance of Harrison with the state of the barracks, the redeeming of a blunderbuss from pawn for murder, not treason, have been all proved.

“It is true, Hyden and Dwyer are not accomplices, they are to be believed, if their testimony is credible. Hyden long ago, before his late Majesty’s death, states to Wilson, with whom alone he was acquainted, that grenades were to be thrown under the table, and that those who should escape were to be killed with the sword. But he mentions no ulterior object deserving of the name of treason. Whatever the object might be, Hyden goes first to Lord Castlereagh, who was the object of their peculiar spleen; then not finding him, to Lord Harrowby. But what the nature of their plan was you may

judge from this that, Wilson would not, for the accomplishment of it, lose a shilling or half-a-crown to be gained by going with cream to a nobleman. He knew that no such thing as a revolution was to be done. This, gentlemen, is not the way that kings are destroyed, and governments overthrown.

“I do not say that the question should not enter into your consideration, but I say that you cannot find a verdict for the Attorney General, if you do not believe Adams; and I have laboured very much in vain, if you have not dismissed his evidence from your minds. Monument has not in the slightest degree confirmed Adams as to the proceedings previously to those in Cato-street; and he has no memory of having ever seen so remarkable a man as Adams at Cato-street. Monument knew nothing of the murder of Ministers, and the expectation of plunder as the consequence of its effects on others.

“You have next the very extraordinary and very irregular evidence of Dwyer. He, according to his own account, is a very modest bricklayer, and has for thirty years served one master. His conscience told him, and he told Thistlewood, “It is a very hard thing for me to inveigle the minds of men.” A man who had such notions of right and wrong, ought to have told him that it was very wrong to murder. He gave information to Colonel James within an hour of the time the communication was made to him on the 23d of February. Colonel James advised him to go to the Secretary of State. He tells that Thistlewood was in five or six revolutions. I don’t know Thistlewood’s history or revolutions. [Here the learned Council read large extracts of Dwyer’s evidence.] Here is evident intention of riot, but nothing of a revolution; and it is remarkable that there is not a tittle of mention of a Provisional Government.

“The whole fabric of treason falls to the ground like the card-house of a baby. Adams sees not what is done in Cato-street. Monument sees not Adams, and is not seen by Adams. Dwyer sees neither Adams nor Monument on any occasion. Monument, like Wilson, is so cold in the cause, that, when he has a pair of shoes to mend, he pays no attention to the plot. This is not evidence on which you can believe the existence of treason.

“As a plot, it is beneath the attention of Government.

“That plan of assassination which has filled the nation with horror, was such, that nothing can be too effectual to guard against it, and the utmost

vigilance of the magistrates ought to be exercised to prevent a mischief so nefarious from finding shelter in society. But I will say, in the words of a great writer, that ‘the chirpings of the grasshoppers disturb not the stately ox, who grazes unconscious of their noise.’ So is it unworthy of the Government of this country to prosecute as traitors some dozen of ragged beggars, impatient of extreme poverty.

“I shall point out to you in what points Adams is materially contradicted. Here you will remember that one contradiction is of more importance than ten thousand confirmations. Confirmations to any extent, only prove that the witness spoke truth to that extent; one contradiction proves the unprincipled contempt of an oath, and the wilful fabrication of falsehood.

“The learned gentleman again adverted to the meetings which were held in the house where Brunt lodged, and asked, ‘was it not strange that the landlady, Mrs. Rogers, should have known nothing of those frequent meetings, where so many persons attended, and where such noises were made as had been described. Would not the Jury think it a very singular circumstance that the landlady should have been ignorant of all this passing in her own house?’ Let the Jury now look to the account given by Adams of what passed in Cato-street. He stated that there was only one candle lighted. The officers, however, proved that there were eight, and that they were all put out on the firing of the pistol. He was equally incorrect in describing what was said. It was not as he swore, ‘there is a pretty nest of you.’ No; for the evidence of the officers themselves went only to the words,—‘We are officers, lay down your arms.’ He (Adams) knew when in prison, that something was said by the officers, and he made that account which he thought the least likely to be contradicted.

“What would the Jury infer from those contradictions and inconsistencies in his evidence; but, that he was a man who respected neither God nor his Gospel, and who swore to that which he knew to be untrue. Would they, under such circumstances, attach any weight to his evidence? But he (Mr. Adolphus) would come to another part of his evidence, where he was not only contradicted with the account given by others, but where he was inconsistent with himself.

“It would be recollected, that he swore to Strange being present at the meetings on two occasions; yet, when Strange was put to the bar he could not recognise him—not point him out whom he swore to as having been present at two meetings held in the open day. Was this the man upon whose evidence the Jury could return a verdict, which would affect the life of the unfortunate prisoner at the bar.

“He now begged the attention of the jury to another part of the case. They had heard of the name of Edwards in this case; this man, who lived at 166, Fleet-street, who afterwards lived at Ranelagh-place, why was not this man called? He was not an accomplice in any criminal degree, as must be inferred from the conduct of Government in letting him go quite at large. Why was not this man called? They would then have the spy to support the testimony of the informer. He could tell the Jury why; because it was remembered what had been the effect of calling a witness of a similar description on a former occasion. The witness then produced underwent a long and able cross-examination from the Counsel employed for the prisoners, and the result was, that he and his testimony were put out of Court together, and had no other effect on the minds of the Jury, than to convince them that the whole was a fabrication.

“If Edwards had been called, he would have told the Jury how this case had been got up; for he was well acquainted with the whole machinery of it. It would be recollected, that it was he who made the fusee for the hand-grenades; what would the Jury infer from his non-appearance, but that the whole of this case, as far as related to the charge of high treason, was a fabrication destitute of any foundation whatever.

“He would now come to a part of the statement made by the Attorney-General in his address to the Jury. He had said, that he supposed a part of the defence would be, that the Jury should discredit the whole of this story, from its great improbability. He (Mr. Adolphus) had never any such intention, nor did he think, that the youngest advocate at the bar would have attempted such a line of defence.

“To deny the existence of a plan, however wild and visionary, on the ground that it was improbable, would be to go in the face of the most authentic historic authority. He would take as an example one of the most familiar

cases on record. The Earl of Essex, it was known, in a moment of moody displeasure with Queen Elizabeth, did not contrive a regular plan for displacing her from the throne, but in the instant he rushed forth into the streets, at the head of some few of his followers, and endeavoured to stir up the citizens to rebellion; imagining that the people might be induced to second his scheme, and effect in a moment that which he had madly fancied.

“This was a most wild and visionary plan; but, if we were reject it on the ground of its improbability, we should be blotting a page from our history, the truth of which was never before doubted. No, it was not his intention to deny the existence of the present plan, on the ground of its improbability, but he wished the Jury to disbelieve the witness, on the ground of the improbability of the plot as he had described it. When, in the course of yesterday, they saw the pikes, and swords, and pistols and guns, and hand-grenades, which were taken from the prisoners, or at their houses, no doubt they might have felt some alarm.

“They might have participated in the feelings of some persons who were near him at that moment; one of whom said, he should not like to have one of those instruments presented to his breast. No doubt; nobody would like it: but let the Jury seriously consider, how those instruments were to be applied. If they took the twelve hundred rounds of ball-cartridge which were said to have been taken, and divided them by twenty-four, they would find that they had just ammunition enough only for fifty men; but where were those fifty men—or if they were in existence, where were the arms to use this ammunition with? They had only seen a few guns and pistols, and putting them together, there was not sufficient for a party to commit more than an ordinary highway robbery with. Could it be supposed that it was ever intended to upset a government, and dethrone a sovereign, by such means? Was there, taking the evidence of those who appeared before them, recollecting that others who might have been called were kept out of the way; was there, he would ask, sufficient to shew that the object of the prisoners was to upset the government and constitution of this country? He thought he could shew, that their object was quite of another description.

“Let the Jury look at the situation in which the prisoner at the bar stood. They had, as was stated by the Attorney General, often before heard of him.

He had, not very long before the present transaction, been released from Horsemonger-lane prison, where he had been confined in consequence of a letter sent to my Lord Sidmouth. He came forth from that prison with rancorous feelings against that noble lord, and probably against others of his Majesty's ministers; would not such a man be a fit subject to work upon, in proposing an attack upon the lives of those ministers? Must not the Jury suppose that the other prisoners would have heated feelings, after the transaction which took place at Manchester? He would not offer any comments upon that transaction, further than to say, that all which was said and written upon it, was not without an effect; and, on the minds of the prisoners, would it be strange, that an artful and cunning man might work such an effect as to excite them to the murder of his Majesty's ministers, which would not of itself amount to high treason? With their feelings worked up, some of them with strong personal enmity against some of those ministers, they had determined upon making an attack upon several of them at their houses.

"They were in this state, when forth came the never-to-be-forgotten announcement in *The New Times*, placed there by the hand that was to betray them, that a Cabinet dinner was to take place on the Wednesday following at Lord Harrowby's. Did not the whole of their conduct shew that it was against the ministers themselves that the attack was intended, and not against the government, or with a view of effecting a revolution? and was there not proof, that this personal feeling was excited by some of the recent transactions at Manchester to which he had alluded? What was the speech which Ings was to have made on the arrival of the party at Lord Harrowby's house, where the ministers were expected to be assembled? 'My lords, you see we have got men as good as the Manchester yeomanry;' and then, turning to his associates, 'Citizens, advance, and do your duty!'

"During the whole of these proceedings, nothing was heard of any intended attack upon Carlton-House, or upon any of the branches of the illustrious family of Brunswick. There was no such thing. The whole which their preparations and intentions embraced, were—first, the murder of his Majesty's ministers, and then robbery. This was the object of setting fire to some houses, that plunder might be obtained in the confusion which might be thereby created.

“These, to be sure, were heinous crimes, but they did not amount to the charge of high treason against the prisoners. The setting fire to buildings, with the intention of robbing in the confusion which the fire would create, was not, unfortunately, a novel case. He was old enough to remember, and perhaps some of the jury might also recollect the circumstance of the setting fire to the premises of a timber-merchant, in order to rob a pawn-broker’s shop, which was close by it. Indeed, the manner in which some of the prisoners had spoken of the shopkeepers of London, shewed that their object was plunder, and it appeared that bags were made for the purpose of holding such plunder.

“He had now gone through the whole of the points on which it was his intention to trouble the Jury. He had done so, perhaps, imperfectly, but he would not apologize for the time which he had delayed them. He had not, on this occasion, all the preparation which was desirable. On the contrary, he had but a very short notice of the duty which he was to perform; and, he remembered, on a former occasion, that one of the most learned Counsel at the bar expressed his inadequacy to a similar task, though he stated, that he had occupied a month in preparing for the defence.

“In pleading for the life of the unfortunate man at the bar, and, after him, of the other prisoners, it was not too much for him to ask the Jury to consider well the nature of the evidence which had been given in support of the charge of high treason. He now, however, left the case entirely with the Jury. If they thought, under all the circumstances, that there was evidence sufficient to prove the charge, then he should submit; but if, on the other hand, they were of opinion that the case was not made out, or that it was not proved to their satisfaction, they would, he was confident, acquit the prisoner.

“The learned gentleman again expressed his own inability to give the Jury a perfect direction on this important trial; and concluded by praying that God might direct and enlighten their minds on the awful occasion, so that they might administer impartial justice, always remembering that the highest attribute of justice was mercy; and that, whether the result of their verdict should be, that the prisoner would only have a week to live, or run out his days to that length to which Providence might please to extend them, it would be dictated by justice, tempered with mercy.”

The *Lord Chief Justice* now addressed the prisoner, and said, if you wish to offer any thing for yourself, in addition to what has been said by your Counsel, you are at liberty so to do.

Thistlewood.—I wish, my Lord, to have two witnesses examined to the testimony of Dwyer. There is a man in Court who will prove that Dwyer extorted money from him.

The *Lord Chief Justice*.—You must not state that; you should have consulted with your Counsel. The time for giving evidence is now past.

Thistlewood.—I will waive it then, my Lord. I have nothing further to offer.

The SOLICITOR-GENERAL now commenced his reply. He said, “That in rising to address the Jury in support of this prosecution, he felt that he had a most anxious and painful duty to discharge. As the servant of the public on this occasion, it was his duty to perform the service with which that public had intrusted him to the utmost of his ability and power. He was anxious, therefore, that nothing should be omitted on his part for the purpose of presenting this case in a fair and proper view before them. At the same time, he felt anxious that, in the prosecution of what he was about to state, he should not misrepresent a single fact, far less a single argument, against the prisoner, or offer an observation which the justice of the case might not fairly warrant.

“He begged leave to join with his learned friend (Mr. Adolphus) in praying the gentlemen of the Jury to dismiss from their minds all prejudices and impressions unfavourable to the prisoner, and to confine their attention solely and undividedly to the evidence which had been laid before them, on the oaths of the witnesses whom they had heard. In saying this, he was aware that it was superfluous and unnecessary. He was addressing an English Jury—a body of men sworn to administer justice to the public on the one hand, and to the prisoner on the other; and he ought to apologize for suggesting a doubt, that, in the discharge of their momentous duty, they would not keep their eyes steadily fixed on the evidence, upon which the fate of the person at the bar must ultimately turn.

“The situation in which the prisoner then stood was an admirable proof of the excellent system of our laws, and of their being built and formed upon the principles of liberty and freedom. They had had it not only proved in evidence, but admitted by the Counsel for the prisoner, that he had projected and harboured in his mind the assassination of the confidential servants of the Crown.

“They were aware of the passions and prejudices which were excited by this discovery in the public mind, and they saw that this prosecution was not commenced, nor was the unfortunate man placed upon his trial, until an opportunity was afforded for those passions and prejudices to subside. Independent of this, he was entitled to the delivery to him of all the particulars of the accusation which he was called upon to answer; and these particulars had been delivered to him at a period so far back as three weeks from the present time. This indulgence was granted to him, in order that he might have an opportunity of consulting Counsel as to any point of law, or any objection which might arise in his favour; and in order also that he might bring forward such testimony as might be necessary to his defence. He had also a list of all the Jurymen, who could by possibility be called to sit on his trial, and these he might reject, without assigning a cause, to the number of thirty-five.

“On this account he was justified in saying, that the Jury whom he was then addressing, whatever might be the result of their deliberations, was a Jury of the prisoner’s own choice. The prisoner, also, had received a list of the witnesses who were to be called by the Crown. That list was furnished in order that he might have an opportunity of inquiring into the previous character, history, and conduct of every witness who might be called against him, and for the purpose of enabling him to impeach their character, if his inquiry should enable him so to do. Such was the benevolent spirit of the British law; and such the advantages to which a man, placed in the situation of the prisoner, was entitled.

“The charge against the prisoner was, that of having conspired to overturn the Constitution under which that system of Government existed. It was a question whether the substitution of the Government which he might have contemplated, would have been distinguished by a character of so admirable a description. He had no doubt that the Jury would pay that

anxious and careful attention to this case which its importance demanded, and that they would not come to a verdict of Guilty, unless they were satisfied that that verdict was justified by the clearest evidence. But, at the same time, he called upon them to perform their duty, fearless of all consequences; to turn neither to the right nor to the left, but to pronounce such a verdict as was consistent with a proper feeling towards their country, and with a due regard to the solemn obligation into which they had entered.

“With respect to the law upon the subject, it was not necessary to trouble them with any observation. In the charge against the prisoner there was nothing of a difficult or questionable description. He was charged with conspiring for the purpose of overturning the Government of the country, and with endeavouring to accomplish that by means of the assassination of his Majesty’s Ministers. If the Jury, upon a due and careful examination of the evidence, were satisfied that he had so conspired, and that he had been found taking measures to accomplish that object, then, in point of law, he was guilty of the crime imputed to him. It was admitted on all hands that a plot had been formed to assassinate the Ministers of the King, and not to assassinate one, two, or three, of those individuals against whom the prisoner might be supposed to have some personal enmity. The blow had been aimed not against one, but against all.

“The Jury would consider whether such an intention was founded with a view to overturn the Government of the country; or, whether, as had been fancifully surmised by the Counsel for the prisoner, the sole object had been the plunder of private property, and the gratification of private revenge. They would look with jealousy to the testimony which had been adduced before them, and upon that they would conclude whether the steps which had been taken were directed by the desire of promoting revolution, or solely with a view of obtaining plunder in the confusion which would necessarily follow.

“In considering the evidence of an accomplice, they would naturally look to his previous character; they would see whether there was any thing in his former course of life, from whence to conclude that he was a man capable of pursuing a continued and undeviating course of crime; but, above all, they would consider from all the circumstances of the case, what degree of credit ought fairly to be given to his evidence. He knew of no law that

applied to accomplices, which did not apply to every other witness who came into a Court of Justice.

“The evidence of every witness ought to be examined with care and jealousy, and in proportion only as his story was consistent with probability was he entitled to belief. Now let them look to the fair test upon which the evidence of Adams was to be tried. His character, up to the time of his entering into the diabolical schemes of the prisoner, was unimpeached; and, if any thing could be urged on that score, no doubt the prisoner Brunt, with whom he had been intimately acquainted, would not fail to have adduced it. In so much, therefore, he stood upon fair and eligible grounds.

“Then they would ask themselves, what interest he could have in stating that which was not true? The more criminal the plot which he disclosed, the blacker hue he gave to his own reputation; and, added to this, he knew that, from the candour and correctness of his confession could he alone hope for mercy towards himself. Then he must be aware, that if he stated that which was false, his story was capable of contradiction, and therefore altogether fruitless. So that, in every point of view, he was a competent witness. As was before said, however, the Jury still had the power of exercising their own sound discretion, and of placing in him only that degree of confidence which he seemed to deserve, and which the confirmation he had received fairly justified.

“The learned counsel for the prisoner had made use of the gratuitous expression, that this man, Adams, was the only witness to prove the case. Was this the fact? Were there not three other witnesses who all spoke to the same occurrences; he alluded to Monument, Hiden, and Dwyer; the two latter of whom were, in all respects pure and uncontaminated; for what had been said of Dwyer was absolutely beneath consideration. These men were all unknown to each other—had never seen each other—and yet they all agreed in their story as to the plan for assassinating his Majesty’s Ministers, seizing cannon, providing arms, burning houses, and establishing a provisional government. Independent of these, a variety of other witnesses had been examined, who spoke to points trivial in themselves, but all confirmatory of Adams, and, as it were, completely dovetailing with the most minute parts of his story.

“This was the case with regard to Brunt’s apprentice; to the landlady of the house in which Brunt lived, and her daughter; to the officers by whom Brunt’s house had been searched; and even to Tidd’s own daughter, whose story was precisely consistent with the plan which had been detailed, but which had been so providentially frustrated. In fact, each witness formed a link in the general chain, which was complete in all its parts. But there was a still stronger argument in favour of all that had been stated, and that was, that it had not been contradicted by evidence, although such evidence was capable of being produced. For, if what Adams had disclosed was not true, why were Potter, and Cook, and Palin, to all of whom he spoke as having been present at the various meetings which took place, and who were eligible witnesses for the prisoner, not called.

“The absence of these men afforded an additional reason for giving implicit belief to all which the witnesses for the crown had said. The learned gentleman then proceeded in a luminous and eloquent strain, still farther to illustrate his argument, and with great ingenuity to contend that it was impossible, under all the circumstances of the case, for the Jury to come to any other conclusion than that the several charges of high treason imputed to the prisoner had been established beyond all doubt. If, however, as had been said by his learned friend (Mr. Adolphus) any doubt did exist, to the benefit of that doubt the prisoner was fully entitled.”

Lord Chief-Justice Abbot proceeded to sum up. “This, he said, was an indictment against Arthur Thistlewood, the prisoner then at the bar, and several other persons, who, in the progress of the trial, had appeared at the bar, in order to be identified for the crime of HIGH TREASON. That offence had truly been stated as the highest crime known to the law. It was so, because it did not merely produce individual and private evil, as most other crimes did, but, in addition to that, it created great and extensive public mischief.

“A charge so grave and serious required therefore, at the hands of an English Jury (and would, he was sure, from what he had seen, receive) the most mature and patient consideration. The charge, as it stood in the indictment, consisted of several counts. First, conspiring and imagining to depose the King; 2d, conspiring and imagining to put the King to death; 3d,

conspiring and imagining to levy war against the King, in order to compel him to change his councils; and 4th, actually levying war against the King.

“Two of these offences, conspiring the deposition of the Monarch, and levying war against him, were declared to be treason, by a statute passed so long ago as the reign of Edward the Third. In the construction of that statute, it had been held, not only in many cases decided in this country, but also in the opinion delivered to us by various learned writers on this law, that all conspiracies and attempts to depose his Majesty, and all conspiracies to levy war against him, were treasonable, and must be considered as overt acts, proving an intention to take away his life; because, as historical experience showed, the death of a sovereign generally followed the loss of his kingly authority.

“But, in order to remove any mistake that persons might fall into on this subject, a statute was passed in the reign of his late Majesty, similar in substance, and nearly so in language, to statutes that had been enacted in former years, but which had expired. By that statute, the conspiring or compassing to depose the King, or to levy war against him, were declared to be substantive treasons. Some of the persons called before them on this occasion were represented, and truly represented, to have been accomplices in this traitorous design. This character did not, however, apply to all the witnesses who had been brought forward.

“Much observation had been made on the degree of credit that ought to be given to persons, who admitted that they had joined in the design. On this point he should only say, that, according to the law of this country, and, he believed, of every other country, accomplices were considered competent witnesses; but the credit that should be given to them was matter of consideration. The evidence of an accomplice was to be weighed, with reference to the probability of the story he told, the confirmation of it, so far as it was capable of confirmation, and the absence of that contradiction which might be adduced, if the story were false.

“There was, however, no rule of law which said, that the testimony of an accomplice ought to be credited; neither was there any rule of law which declared that it must be rejected. To declare the latter would be to open the door, and give the greatest latitude and impunity to crime. For, as had been

said by the learned counsel for the prosecution, if such a doctrine were acted on, bad men would feel that they might proceed in their base designs with perfect security, and they would trust each other without reserve; whereas bad men now distrusted each other. They were afraid of detection; and that distrust prevented the commission of many offences which could not be perpetrated without the assistance of several persons.

“Having made these general observations, to direct their attention to the evidence, he would now, some hours having elapsed since the witnesses were heard, read to the Jury such parts of the testimony as were necessary for their consideration in coming to a decision. [Here his Lordship proceeded to recapitulate the evidence, briefly commenting on it as he went on.]

“The first witness was R. Adams, who undoubtedly stood in the situation of an accomplice. But, if the story he told were false, there were several persons mentioned by him, and they could have been brought forward to disprove his statement, and to discharge themselves of the crime imputed to them, if they were innocent, but whom the Crown could not compel to appear. This witness said, that the officers, when they entered the room in Cato-street, cried out, ‘Here’s a pretty nest of you; we have a warrant to take you all;’ and the officers swore they only called out, ‘We are officers—surrender.’ This difference was not material. The two expressions were nearly the same in import; and, in the scene of confusion which undoubtedly occurred on the entrance of the officers, it was very possible that a mistake might arise as to the exact expression used.

“That part of the evidence, in which Adams described his irresolution, gave, his Lordship observed, the exact picture of a man of weak mind, not knowing whether he should go on or recede—balancing whether he should remain true to his associates, or make a discovery—and who, when taken into custody, did come to the resolution to disclose all he knew. If his testimony were true in substance and general effect, it proved not only a determination to assassinate his Majesty’s Ministers, but shewed to them that that was only a part of a more extended and general plan, which embraced the seizure of arms, the taking possession of the Mansion-house, and the forming of a Provisional Government; a plan formed on some vain expectation, that, if the blow were ever struck, there were a great number of

people in the metropolis who would readily join in the scheme, and levy war against his Majesty. Such an expectation was vain then, and he hoped would ever be found so when such treasonable attempts were made.

“This witness mentioned a man, named Edwards. Why he was not examined his Lordship could not say. Perhaps the prosecutors did not wish to call him for very good reasons. How far the Jury would disbelieve Adams on that account, it was for them to say. What he had remarked on the evidence of this witness, he was sorry to say, was considerably against the prisoner. As to the character of Adams, before this transaction, they knew nothing. No person had said any thing about it. Hyden was a witness of a very different description; for he, it appeared, disclosed all he knew, early enough to prevent the mischief that was meditated.

“John Monument, another accomplice, corroborated Adams. He stated that the prisoner said to him, ‘Great events are at hand; the people everywhere are anxious for a change.’ This observation shewed that the assassination of Ministers was not the sole and only object of the parties. The evidence of Thomas Dwyer, as far as it went, confirmed the testimony of those who were examined before him. If his statement were correct, the prisoner told him the general plan and object which he and his associates had in view. These were the four witnesses called to explain the designs of the accused parties. Two of them were accomplices; but, in general, none but accomplices could be acquainted with such foul and illegal designs. The two other witnesses did not stand in the same situation. Communications were made to them, on the subject of the conspiracy, it appeared, with little reserve;—a circumstance of which the Jury were to judge.

“A great many other persons had been called, chiefly for the purpose of confirming the testimony given by these witnesses; for, if they had spoken to truth, without farther evidence to the facts, treason was undoubtedly proved. They proved the intention to levy war, to form a Provisional Government, and, of course, to change the Government as by law established. Eliza Walker proved that the prisoner Brunt had hired a lodging for Ings in the house where he resided; and Joseph Hale, Brunt’s apprentice, deposed to the meetings that were held from time to time in Brunt’s room. He proved that meetings were held there every evening, and that grenades, fire-balls, and pikes, were on the premises.

“Thomas Sharp, a watchman, deposed, that he saw four suspicious persons, on the 22d of February, watching about Lord Harrowby’s house. Morrison, a cutler, proved that Ings brought him two swords to sharpen, and a sword found at Cato-street appeared to be one of them. Alderson, a pawnbroker, deposed, that, on the 23d of February, Davidson took a blunderbuss out of pawn. Thomas Monument, the brother of John confirmed his testimony in several points. This was the evidence confirmatory of the testimony of the first four witnesses. Many of the facts stated by Adams were spoken to by them; but the treasonable purpose could not be well proved, except by accomplices. Information on that point could scarcely be expected from a pure source. Hyden was a witness of that description; but Dwyer, to a certain degree, was not.

“The prosecutors then called persons to prove what occurred at the stable in Cato-street; and Captain Fitzclarence, and several Bow-street officers, gave a detailed account of the transactions there. It did not appear to him necessary that he should go, in detail, through the testimony of these witnesses. It was not necessary to inquire by what particular hand a gun or a pistol was fired; but it was material to observe, that, when the officers did come, many at least of the persons present made a most desperate resistance. A knife, said to belong to Ings, was found on the premises; and two bags and a case-knife were found on his person. The bags were important; because it was sworn that he stated the purpose for which he brought them. It was argued by the Counsel for the defendant, that they were meant for the reception of plunder, and not for the horrible purpose that had been stated; but this did not invalidate the testimony of Adams, because Ings might not have wished to declare that he meant to put plate in the bags; and, if so he might have said, what he was sworn to have uttered, as a reason for carrying them. This closed the evidence for the Crown.

“On the part of the prisoners, Mary Baker was called, who, the Jury would recollect, was not cross-examined. This arose from a commendable delicacy, on account of the near relationship in which she stood to one of the prisoners. The Jury would say, whether her evidence went at all to shake the case. Indeed, it appeared from her statement, that she had seen at Tidd’s lodgings instruments similar to those produced in Court. A man named Hucklestone was then called, to prove that Dwyer was not to be believed on his oath; and he stated, that he thought he was not worthy of belief, because

Dwyer had informed him that he procured money by base accusations. This however, was entirely contradicted by Dwyer; and it was for the Jury to say which of the two witnesses was entitled to their credit.

“The Jury would also consider the character and bearing of the evidence of Doane and Mitchell, with respect to the paragraph in *The New Times*, announcing a cabinet dinner at Lord Harrowby’s, which, according to Whittaker, was not on the same day in any other newspaper in London. It was, however, a matter of no consequence how it found its way into the paper, since it was proved that cabinet dinner was intended to be given on the 23d of February. This was the whole of the evidence on each side. No witness was called to impeach the veracity of Adams, Hyden, and Monument. And if they gave credit to any one of those persons, (even to Hyden, who supported what the others told them, and whose account, though more concise than theirs, was the same in effect), they must find a verdict against the prisoner.

“Besides the testimony of the witnesses, they had seen on the table a considerable quantity of arms, which were proved to have been found in Cato-street, and at the lodgings of one of the prisoners. It was almost conceded, that a conspiracy was entered into for the purpose of assassinating his Majesty’s Ministers at Lord Harrowby’s house. Indeed there could be little doubt of it.

“If then it were admitted that this most wicked scheme was entertained, it was for them to consider whether it could reasonably be supposed that that was all which was intended? They were to consider, what was the probability that those persons, unconnected in any respect with each other, except so far as this plan brought them together—and certainly quite unconnected with the persons who conducted the affairs of his Majesty’s Government—did not view that assassination as part of a scheme, having for its object a general and tumultuous rising of the people, to levy war against the King; or whether they conspired to effect that assassination alone?

“Whether they adopted this plan to satisfy their thirst for blood, or to accomplish that ulterior scheme to which the witnesses had spoken? In deciding this question, it was fit that the Jury should attend to the great

quantity, as well as the nature of the instruments produced. They certainly were far more in number than could have been wanted, or used in the abominable attempt that was to be made at Lord Harrowby's. Some of them could not have been used there at all. The hand-grenades might have been thrown, but the fire-balls could not have been used for the purpose which they meant to effect at that house. When those dangerous articles were found, some at one place and some at another, it was for the Jury to take the circumstance into their serious consideration.

“If, on a view of the whole case, they, as just and conscientious men, felt satisfied that a conspiracy to levy war was made out in proof before them, if their minds were freed from all doubt on the subject, they would, he was convinced, discharge the painful duty that devolved on them with proper firmness. But if, after a due examination of all the circumstances, and after attending to the observations of the very eloquent counsel, who had addressed them on the part of the prisoner, first and last, their minds were not satisfied that the case was proved, they would discharge the more pleasant duty of acquitting the prisoner. The case was now in their hands; and he doubted not but their verdict would be consonant with the principles of justice.”

The Jury then retired; but, in a few minutes returned into court, and requested his lordship to read to them the Act of the 36th of Geo. III.

Lord Chief-Justice Abbot said, he meant to hand it to them; but he would, in the first place, state, that, by the terms of the statute, it was to continue in force during the life of his late Majesty, and till the end of the next session of Parliament: therefore the Act had not expired when the alleged conspiracy was discovered. But, if it ever had expired, it would have been of no consequence, since, by a late Act of Parliament, the statute of the 36th of Geo. III. was made perpetual. His lordship then read the Act, and particularly pointed out the clause which made it treason—“to compass, imagine, invent, devise, or intend to deprive or depose the King from the style, honour, and kingly name of the imperial crown of this realm; or to levy war against him within this realm, in order to compel him to change his councils.” His lordship observed, that it seemed to be admitted by the

Counsel on both sides, that if the project stated on the part of the prosecution were proved, it fell within the meaning of this Act; for, if a Provisional Government were formed, the royal style must of necessity cease. To levy war did not require soldiers drawn up in military array. It was sufficient if a number of people met to do some public act, in which they had no private interest, but which affected the country at large. Devising to force the King to change his measures was always considered a levying of war, under the old statute of Edward III.

The Jury again retired, and, in about a quarter of an hour, returned with a verdict of—GUILTY, ON THE THIRD and FOURTH COUNTS OF THE INDICTMENT. That is to say, on those counts which charged the prisoner with conspiring to levy war, and with the actual levying of war against the King.

The verdict, which was in some measure anticipated, was received by the Court in perfect silence; and the wretched man was taken from the bar, surrounded by several officers.

Throughout the trial he had maintained the greatest composure, but during the absence of the Jury he seemed poignantly to feel the melancholy situation in which he was placed. The candid avowal, however, of his Counsel, as to his ultimate fate upon the indictments for murder, had left him no hope of escape of an ignominious death.

When taken back to the cell, he seemed to be absorbed in the melancholy contemplation of his approaching fate, which he of course felt was irrevocably sealed. He scarcely uttered a single word to those by whom he was accompanied, but threw himself into a chair, and appeared to be entirely abstracted from all about him. He partook of some refreshment, but was unable to recover his spirits.

In the course of the evening he asked for a glass of wine, which Mr. Brown instantly sent to him.

It appeared that up to the last moment, Thistlewood confidently anticipated an acquittal, as indeed did many persons of respectability who were in Court. The speech of Mr. Adolphus had a powerful effect upon his auditors;

but the reply of the Solicitor-General at once dissipated the momentary impression which he had made.

It was observed that a number of persons were collected in the neighbourhood of the Sessions-house, who were known to have been constant attendants at the Smithfield, Spa-fields, and Finsbury Meetings. Some of these intimated an intention to give three cheers if the verdict was such as they expected; but upon the real verdict being announced, they departed with strong manifestations of disappointment.

At the termination of Thistlewood's trial, the Court was adjourned till the following Friday, the 21st of April.

TRIAL OF JAMES INGS.

SESSIONS-HOUSE, OLD BAILEY.

First Day, Friday, April 21, 1820.

At eight o'clock in the morning the jurymen, who had been summoned, arrived at the Sessions-house, and, at nine, Lord Chief Justice Dallas, Chief Baron Richards, Mr. Justice Richardson, and the Common Sergeant, took their seats.

The prisoner, James Ings, was then put to the bar; he seemed to labour under strong feelings of agitation and had none of that firmness of aspect which he displayed on the former days: he was dressed in a suit of black.

Mr. Shelton, the clerk of the arraigns, proceeded to call over the list of the jurymen, commencing at the name with which he had terminated, when the jury in Thistlewood's case was impanelled.

After a considerable number of challenges, both on the part of the crown and of the prisoner, the following jury was finally impanelled and sworn:

Charles Palmer,
William Moore,
Thomas Beecham,
John Beck,
Benjamin Rogers,
James Carey,
George Smith,
James Eade,
Benjamin Blythe,

William Percy,
John Young,
William Edgecombe.

Mr. Shelton then proceeded to read the indictment against the prisoner, which was the same already described in the case of Arthur Thistlewood.

Mr. Bolland, at a few minutes after ten, opened the indictment in the usual way to the Jury.

The Solicitor-General rose at ten o'clock to address the Jury for the prosecution. "It was hardly necessary for him, he said, to entreat their serious and patient attention to the statement he had to make to them in the performance of his duty: they owed it to themselves, to their country, and, above all, to the prisoner at the bar. In justice to him, there was one fact now known, and to which he might without impropriety allude. One of the parties in this conspiracy had been already convicted. That circumstance they were bound not to let operate to the prejudice of this prisoner; towards his part of the offence they were bound to look, not through the medium of any thing that had already passed in that Court, but solely through that which would this day be laid before them in evidence; to that alone they were to direct their attention, and by that must they form their opinion of the guilt or innocence of the prisoner. On the law of the case it would be unnecessary for him to make a single observation, for upon it not a single objection, not a single doubt, had been stated since this commission had sat. The charge against the prisoner, divested of all technicalities, was simply this, that he had conspired with others, by force and violence, to overthrow the laws and constitution of the country. This was to be effected by an extensive plan of assassination, and by other means which he should hereafter mention.

"In behalf of the prosecution, he would plainly and simply narrate the facts as he knew they would be proved in evidence. He would narrate them without the smallest exaggeration or distortion of facts. The best gift and pride of the people was the pure and impartial administration of the laws of this country, and he would state the facts as they would soon hear them in evidence, and leave them to decide upon their applicability to the prisoner."

The Solicitor-General then detailed the evidence he had to adduce against the prisoner; it was exactly as it is subsequently given by the witnesses, and corresponded entirely with that given already on the trial of Thistlewood. When the learned gentleman came to that part of the evidence which described the conflagration that was to have been made on the night of the intended assassination, and the proclamations which were to have been posted up on the night of the intended assassination, calling on the friends of liberty to meet, for their tyrants, meaning the members of his Majesty's government, were murdered, and in which they were called upon to rally round the provisional government which was then sitting; he observed, "what would not have been the situation of this great metropolis if this dreadful project had been carried into effect?

"The people would have seen pieces of artillery moving in different directions; they would have seen a general conflagration; they would have heard of a provisional government, and that too rendered perhaps more terrible by the ignorance of the people who were to compose it. It was impossible to judge what would have been the result of such a notification. He was, indeed, willing to believe, that the people of this country were too sound to be effectively invited to rally round men whose projects were introduced to them by the horrible and atrocious crimes of assassination and murder. He trusted that hitherto, at least the natural indignation of Englishmen would revolt at any propositions coming from such a source, and to be sustained by such diabolical means."

After detailing very minutely the evidence he meant to give against the prisoners (as it is hereafter detailed), he informed the Jury they must hear it from one or more accomplices; on the extent of whose credibility he made similar observations to those made by the Attorney-General in his opening speech on Thistlewood's trial, and dwelt on the comparative impunity with which dark and secret conspiracies would escape, if the evidence of an accomplice were not admissible.

"But even without this testimony, they had the unimpeachable evidence of Hyden, and also a number of facts which spoke for themselves; and he would here ask, could any assignable cause be given for the meeting in Cato-street—the ammunition—the arms—but that given by the evidence which they would hear? He then observed, that it was not because the plot

was contemptible and ill-formed, and left so much to hazard, that therefore its existence was to be disbelieved, the history of all plots was of the same description; they were generally characteristic of a total want of foresight and prudence, but though wild, though extravagant, yet if the project had existence, and they were satisfied of the prisoner being a party to it, then they must be prepared, if the evidence carried conviction to their minds, to bring in a verdict of guilty against the prisoner, without any reference to the consequences of that verdict.”

The learned Solicitor’s speech occupied an hour and ten minutes in the delivery.

The following prisoners were then put to the bar with Ings, to be identified: Davidson, Brunt, Tidd, Harrison, Bradburne, Strange, Gilchrist, and Wilson.

EVIDENCE FOR THE CROWN.

The witnesses to support the case thus described were then called; but much of their testimony was similar to that given in the trial of Thistlewood. We, therefore, confine ourselves as much as possible to the new facts which came out, and which applied immediately to the conduct of the prisoner.

ROBERT ADAMS was first called, and examined by the Attorney-General. His testimony was almost in all respects similar to that on the former trial. He added, that he heard that the pike-staves which he saw in the room in Fox-court were quite green; he understood they had been brought from over the water; Ings said he had brought them. The same evening Ings drew a pistol from his pocket. There was a conversation about the illness of the present King; Thistlewood said he would rather the new King lived a little while longer, but it was not their intention he should ever wear the crown.

On this occasion Ings said, that the day the Prince Regent last went to Parliament, he himself went to the Park with a pistol in his pocket, with the sole intention to shoot him; and as a test of his sincerity, he said, “there’s the pistol I took with me,” alluding to the pistol he had previously produced. He regretted he had not done it, and if he had, he should not have cared a farthing for his own life. Witness saw Ings at all the subsequent meetings.

On the meeting held about the time of the King's funeral, when the plan for a rising was talked of, during the absence of the horse and foot guards, it was Ings and Brunt that said, nothing short of the assassination of the King's ministers would satisfy them. Ings said, with his blood all of a boil, "that he must have them, (the ministers,) if possible, before the parliament was dissolved."

On the meeting held on Saturday the 20th of February, at which Tidd took the chair, with a pike in his hand, and at which Thistlewood proposed the murder of the ministers in detail, Ings was present, and said, "whoever has the lot to murder Lord Castlereagh, I am the man to turn out to murder that thief!"

On the Tuesday, at the meeting at Brunt's, witness saw Ings pull three daggers from out of his pocket: he was asked what was the purpose of pulling out these daggers? When he seized one, and making a sort of a rush, and a motion with his arm, said, with an exclamation, to "run into their —— bodies." After Edwards had communicated the paragraph in *The New Times*, respecting the cabinet dinner on the Wednesday, and after Brunt declared his belief in a God, from his prayers being answered in bringing the ministers together, Ings exclaimed with exultation, that "he should have a better opportunity of cutting off Lord Castlereagh's head."

"It was subsequently arranged, that Ings should head the party to go into the room in which the ministers were assembled. He was to cut off Lord Castlereagh's and Lord Sidmouth's heads, and to bring them away. He was also to cut off Lord Castlereagh's hand, which he was to cure (pickle), as it would be thought a great deal of at a future day." He was to be armed with a pair of pistols and a butcher's knife.

The same afternoon, Ings was employed in making fire-balls to set fire to the different buildings; Edwards was making fusees to the grenades. On Wednesday evening, February the 23d, the proclamation, written by Thistlewood, was signed "James Ings, Secretary."

Witness then described Ings's preparation for action, his brandishing his knife, and his sanguinary declarations that he would cut off the heads of his Majesty's ministers, and bring away the heads of Lord Castlereagh and Lord Sidmouth in his bags. The handle of his knife, he said, he had bound

round with wax-end, “in order to prevent his hand from slipping while he was at work.”

The witness then proceeded to detail the well-known occurrences in Cato-street, and the part which Ings took therein. He swore he would rather die or hang himself than not do the job that night.

In cross-examination by Mr. Adolphus, witness said, I was born at Ipswich; I am now a Christian; there was a time when I was not a Christian; I was then a man in the same form as now. I was what they termed a Deist. I believed in God. I renounced Christianity and believed only in God. I recommenced Christian after the 23d of February. I renounced my faith as a Christian last August. I never pronounced my disbelief in God—nor ever denied Christ, till I read that cursed work of Paine’s! I never was an Atheist, but always believed in a God. I have no pension.

The paper produced is my hand-writing; I was examined here on Monday, and have since been in Coldbath-fields. I have had no communication with any body. I have had a room in the house of the Governor; I have seen nobody that has told me any part of the proceedings in this Court. During the days when I was here, I was kept in a room by myself. Heard nothing of the progress of the proceedings, except the conviction of Thistlewood. I had known Edwards from the first part of January. From the time I joined Brunt and the others, I never intended to commit murder, nor to give information; I intended to wait for an opportunity to see if any thing enabled me to creep out of it; I was prevented from creeping out, from threats that had been held out; I was not disposed to plunder the shops, although I was in a society that were so disposed.

Before I went into prison, I was asking Brunt what was the plan that was first drawn out? Brunt said that nothing would be communicated till the day of action, and then the men would be called together, receive a treat, and be told what was to be done; after which they would not be lost sight of. Brunt said, if he had any suspicion of any one giving information, he would run him through. This was on the 16th of January. When I was examined on Monday, it did not come to my recollection about Ings telling of shooting the Prince Regent.

Mr. GURNEY: We studiously passed over certain points of the evidence for the purpose of shortening it.

The Witness: I can tell many things, if I am asked, that I did not tell on Monday. If any thing fresh comes to my mind as I stand here I'll tell it. There were things that transpired that I did not state last Monday, and that I have not stated to-day. I had no personal knowledge of Monument. I can be answerable, that there was one candle in the room.

I did not see more than one a-light. If a man spoke the truth, he could not say there were eight candles in the room. If any man said there was, I should say he was a false man. I cannot be answerable for every word which passed.

I always found Mr. Edwards very deep, and very deep in conversation with Brunt and Thistlewood.

There was a shot-hole in my coat from a pistol that was fired from the window, when I was escaping from the stable.

I do not know a man of the name of Chambers. I never called upon a person of that name in company with Edwards. I did call with Edwards upon a woman at Pimlico, to buy a pair of boots. On that day I did not call upon any man of the name of Chambers to solicit him to kill his Majesty's ministers. I never said I would kill his Majesty's ministers, and have blood and wine for my supper. I never had any conversation with any body to use Cashman as a watchword.

After the affair at Cato-street I did not take any ammunition away with me from Cato-street. Hall gave me a pistol and live rounds of ball-cartridges. I loaded the pistol, and laid it on the bench; I did not touch it again; and threw the four ball-cartridges away in the room.

I never carried the large hand-grenade. I cannot say that I can charge my memory with a score of words which Edwards ever said; whatever he said was always in a side-winded way amongst themselves.

ELEANOR WALKER, on being examined by Mr. Gurney, gave similar evidence to that given by her on the former occasion.

MARY ROGERS, Joseph Hale (apprentice to Brunt), Thomas Smart (watchman in Grosvenor-square), C. Bissex (also a watchman for the same place), Frederick Gillan, John Hector Morrison (journeyman to Mr. Underwood, the cutler, in Drury-lane), Edward Simpson (corporal-major of the 2d Life-Guards), and James Aldous (pawnbroker), also detailed the same facts to which they before deposed.

THOMAS HYDEN, the man who gave the information to Lord Harrowby, recapitulated the facts proved on the former trial.

In cross-examination, he said, he had been formerly a gentleman's servant; that was six years ago. He lived with Colonel Bridges last. He might have lived with him a month or more. He could not certainly say. He had lived in Manchester-mews for five years. He had not been there all the time himself. He was away two or three months.

He was now in the Marshalsea; he was not ashamed of the place. It was for a debt of eighteen pounds, and due to Mr. Powell, a milkman. He went into prison last Saturday, on execution. He had been sued at the beginning of last summer. I was at home at different times in June, July, and August, at Manchester-mews. My family were there till last Saturday. I said on Tuesday last I lived in Manchester-mews. I am living now at this place where I stand. My family goes there now two or three times a day. I have known Davidson three or four months. I do not know Mr. Edwards.

I know a person of the name of Edwards. I know a good many persons two hundred miles in the country. I have been to the Scotch Arms, in some small court somewhere down by the Strand. I was there twice, to the shoemakers' club, with a friend of the name of Clarke, a master-tailor. It was reported to be a shoemakers' club. I am not able to say whether politics and the affairs of the State were the topics of discussion.

I never was at any of the meetings in Fox-court. I knew nothing of the affair in Cato-street till told by Wilson; I was to get the cream for a family in Princes-street, Cavendish-square. I have served them about three years, but I do not know their name. My wife brought home the order for the cream. I have been at the house, but I do not know when. It was the first time I saw Wilson; he said to me that I need not be alarmed, for a gentleman's servant furnished money. He said this more than twice.

Re-examined: My family continued to carry on my business in Manchester-mews till Saturday last, when I was arrested. As far as I know my family have possession of the premises now. I believe the house in Princes-street is No. 6. My wife serves the family sometimes; I have been there; I believe the house to be the front door going from Cavendish-square towards Oxford-street.

LORD HARROWBY appeared on the right of the Bench, and spoke to the interruption of cabinet dinners, and the issuing of cards of invitation for the 23d. His Lordship named the company who were to be present. His Lordship then stated the receipt of Hyden's communication, and the change of arrangements adopted in consequence.

His Lordship, in cross-examination by Mr. Curwood, said, he had not personally known any thing of it before; but he had heard a long time antecedently, that something of this nature was to be attempted.

JOHN BAKER corroborated the testimony of Lord Harrowby as to the intended cabinet dinner.

JOHN MONUMENT was next examined, and was again conducted into Court in the charge of two of the yeomen warders of the Court. His evidence in chief was precisely the same as that which he gave on Thistlewood's trial.

In cross-examination, witness said, that Thistlewood remarked, that every man would have equal honour with myself. I went to Cato-street for fear. I was foolish, for I certainly went there without knowing what I was to do. I thought they were going to the House of Commons. When I was told by Brunt they were going to a cabinet dinner, I fully thought they were going to destroy the ministers, and yet I went. I went to Tidd's, because I was afraid. I cannot tell why I did not go to a magistrate to tell my fears. My intention was, when I got into the room and found out what they were going about, to run away.

THOMAS MONUMENT confirmed the last witness in every particular.

RUTHVEN repeated his former testimony. In cross-examination, he said, he had no doubt there were four or five lights in the loft, and others in the little room.

James Ellis, William Westcott, Luke Nixon, Joseph Champion, John Wright, and William Charles Brooks, police officers, likewise repeated their former testimony.

CAPT. FITZCLARENCE.—The first thing he saw was a police officer, who cried out, “Soldiers, soldiers; stable door, stable door!” He was met by two men at the door, one having a pistol, another a sword. He followed one of them into the stable, and took him.

Serjeant WILLIAM LEGG, of the 2d regiment of Coldstream Guards, was at Cato-street; saw the pistol levelled at Captain Fitzclarence, and seized it, when it went off. It was Tidd who levelled it. He took him into custody. He saw above on the loft, Cooper, Gilchrist, and Monument.

HERCULES TAUNTON gave evidence of the seizures made at Brunt’s and Tidd’s.

Cross-examined by Mr. Adolphus.—A reward had been offered for the apprehension of Palin. He was not apprehended, nor Potter, nor Cook.

DANIEL BISHOP was called, but not being in attendance, his examination and the production of the various articles seized was postponed till to-morrow morning, and the Court adjourned at eight o’clock.

The Jury were then, as in the former case of Thistlewood’s trial, placed in a room by themselves, and not permitted to have conversation with any person whatever.

Ings in the course of the day revived in spirits, as he became interested in the evidence; but he frequently reverted to a state of gloomy sullenness.

The other prisoners were anxious to keep the witnesses out of Court, when not under examination, and repeatedly called on those who accidentally made their appearance to withdraw.

SECOND DAY.—SATURDAY, *April 22.*

At a quarter before nine the Jury were conducted to the box by the sheriff’s officers.

Shortly after this the guns, pistols, swords, pikes, grenades, ammunition, and other materials of war, seized in Cato-street, were brought into court, and placed on the table.

At nine the same learned Judges who presided the day before, took their seats.

Ings and the other prisoners were then put to the bar.

Evidence for the Crown continued.

DANIEL BISHOP was now put in the box, and described the circumstances attending the apprehension of Thistlewood, which were detailed in his former evidence.

In cross-examination by Mr. Adolphus: Witness said he had apprehended the prisoner from private information, not received from an officer; he did not know a man of the name of Edwards.

RUTHVEN was next called, and said there were now placed on the table the arms and ammunition taken in Cato-street; he then proceeded to select each article separately, and to exhibit it to the Jury; the pikes and grenades were minutely inspected. A pike blade was placed in one of the handles in order to show the manner in which it was to be used. When thus presented it had a most terrific appearance. The knife stated to have been found on the person of Ings was next produced, and exhibited to the Jury. While they were examining it, Ings exclaimed, "It was not found upon me, my Lord."

HECTOR MORRISON, servant to Mr. Underwood the cutler, identified the two swords which he ground for Ings. They were made extremely sharp from heel to point. The prisoner directed that they should be made as sharp as a needle at the point, and that they should be made to cut both at the back and front; this was done. The swords seemed since to have been rubbed on a stone to make them keener.

SAMUEL TAUNTON selected the articles found in Tidd's lodgings, as well as those found in the back room of the house in which Brunt resided.

Serjeant HANSON, of the Royal Artillery, described the formation of the fire-balls and hand-grenades, and opened one of the latter, as in Thistlewood's

case, for the information of the Jury. He also looked at the flannel bags found in Tidd's lodgings. They were what are termed flannel cartridges for a 6-pounder. They were the same as those used by the Royal Artillery, only that those produced were formed of flannel, whereas those used by the artillery were composed of serge.

It was now announced that the other prisoners might retire, and they were re-conducted to their apartments.

Serjeant HANSON, examination by one of the Jury, said, that the grenades found in Cato-street were not made exactly in the same manner as those made for the use of the artillery, although they were calculated to produce similar destructive consequences. The cart-nails would be propelled with irresistible force by the explosion of the tin carcase, and would scatter death around. There was rather more powder in the case than was sufficient to burst a nine inch shell.

The Attorney-General: That is the case on the part of the Crown.

THE DEFENCE.

Mr. CURWOOD then rose to address the Jury on behalf of the prisoner, and commenced by lamenting the effect which the conviction of the last prisoner must have upon their minds, however good their intentions, and however anxious they might be to decide this case free from all preconceived impressions. This circumstance, undoubtedly weighed heavily upon his (Mr. C.'s) feelings, knowing that the construction of the human mind was such, as rendered it almost impossible to get rid of opinions once entertained. The disadvantage under which he laboured, in this respect, was the more distressing, because although the general features of this case bore a strong resemblance to the last, yet it wanted a most material circumstance of confirmation, which was produced on a former occasion.

Sir ROBERT DALLAS interposed, and objected to any allusion to what had passed on the former trial. The Solicitor-General, in opening the case, had most humanely abstained from any reference to the former case, and had entreated the jury to dismiss from their minds the fact that another prisoner had been convicted. The Court was bound to treat this as a case depending upon its own merits, and his Lordship was persuaded that the Jury would

forget that such a person as Thistlewood existed, and dismiss from their minds all knowledge of the former case, if they happened to have heard any part of it.

Mr. CURWOOD resumed, and said “he should bow with respectful deference to the correction of his Lordship. His learned friend the Solicitor-General had told the Jury that, in stating the case for the prosecution, he was only anxious to acquit himself as a faithful servant of the public, by fully and fairly laying before the Jury the whole of its circumstances; and that as far as his own personal feelings were concerned, he was regardless of the result. No man would withhold from his learned friend the fullest credit for the sincerity of that statement. Though his (Mr. Curwood’s) task was much more irksome than that of his learned friend, yet he hoped he should have credit for the same feelings; that he was most anxious, not only to do his duty towards the unfortunate man at the bar, but towards his country and his own character. He was sure that the Jury were also animated by the same feelings, and that whatever might be their private sentiments, they would form their judgment upon the evidence alone, and, if upon an impartial consideration of that evidence, they found it did not bear out the facts charged in the indictment, would gladly deliver him, by their verdict of Not Guilty.

“The Solicitor-General had also told them, that the law of the case was extremely clear. No doubt it was; but it was necessary to point out the precise question for their consideration, before they ventured to apply the facts of the case to that law; because the question here was not guilt, or innocence in the abstract, for although there was strong suspicion against the prisoner of moral guilt, yet the question they had to try was, whether he was guilty not only of high treason, but of that high treason which was specifically charged in this indictment. In order, therefore, to enable them to discharge their duty fully and fairly towards the prisoner, they must not only take into their consideration the precise question they had to try, but also apply the evidence produced, in order to see whether the specific charge of high treason was made out.

“The history of the Statute of Treasons, 25 Edw. III., was well known. It was passed in order to define what treason really was, and that the ignorance, and even cruelty, which had previously prevailed upon the

subject, by the erection of certain acts into crimes against the state, might be exploded. That statute contained a few short and distinct propositions, which in fact comprehended the whole law of treason. In the language of Lord Coke it was called the *blessed* Statute, from the admirable regard manifested in it for the liberty and safety of the subject. It declared first, that whoever should compass or imagine the death of the King, should be guilty of high treason; and, second, whoever should levy war against the King and this realm, should be guilty of the like offence.

“A number of other enactments of treason had taken place at different times since then, introducing a most horrible system of cruelty and oppression, but at length it was found necessary to return to that blessed statute. It was true, that in the reign of his late Majesty a statute passed for extending the law of treason. He lamented that such a statute should ever have passed, and still more that any occasion for it should ever have existed. Upon both of these statutes the present indictment was founded.

“By the 23d of Edward III. it was made treason to compass or imagine the death of the King; and by the 36th Geo. III. it was made treason to attempt to depose him from his kingly office.

“By the statute of Edward, it was made treason actually to levy war; and by the statute of George, it was made treason to conspire to levy war.

“The four charges, therefore, which they had to try, were these: Did the prisoner at the bar compass, or imagine the death of the King? Did he conspire to depose him from his imperial dignity? Did he actually levy war against his Majesty? And did he conspire to levy war with an intention to compel his Majesty to change the measures of his government by force? These were the precise issues they had to try, and whatever might be their opinion of his guilt, as it respected other charges still pending over him, and for which punishment would reach him if he were guilty, yet unless they were conscientiously satisfied that he had actually committed some one of these four offences, they were bound to pronounce him Not Guilty.

“It had been admitted by the Solicitor General, that if the case in all its parts was not proved by unequivocal testimony, they were bound to acquit the prisoner; and he apologized for the evidence he proposed to offer, by saying, that in all cases of conspiracy it was necessary to have the evidence

of some of the conspirators, in order to ascertain the purposes of their dark consultations.

“This was another of the miseries resulting from a departure from the statute of Edward. That admirable statute enacted, that before a man should be found guilty of the treasons there set out, he shall be ‘proveably convict’ of the same.

“Upon the meaning of the words ‘proveably convict,’ the great Lord Coke had written a whole section, shewing that they did not mean probably convict, but convict by the most unequivocal and satisfactory evidence.

“The object of the statute, therefore, in making this wholesome provision was to protect his Majesty’s subjects, whose lives might be at the mercy of the most infamous of mankind. It was necessary, therefore, that the Jury should examine the facts proved with the most scrupulous circumspection, before they made up their minds to the conclusion of the prisoner’s guilt.

“The Solicitor General had admitted, that the evidence of the conspirators ought not to be believed unless it was confirmed in all its material circumstances. It was to be observed, that the confirmation alluded to, was not meant to apply to collateral facts irrelevant to the matter in issue, but to the whole body and substance of the evidence; and therefore if they found that the material witnesses to establish the conspiracy were not confirmed in the substantial part of their evidence, it was their duty to pronounce a verdict of acquittal.

“The learned counsel admitted that there was sufficient evidence to establish an intention on the part of the prisoners to commit, perhaps, a dreadful riot, to commit murder, and to effect the destruction of houses; but he strenuously urged, that this was not sufficient to make out the crime of high treason, as alleged in the indictment. He adverted to the evidence of Adams, and other witnesses, and contended that it was wholly incredible, and inconsistent in every part.

“But supposing the conspiracy which they had proved, really to have existed, he urged that it was the most ridiculous plot that could ever enter into the mind of the most infatuated man, considering the absolute

destitution of means to carry it into effect. The records of fiction and of history did not furnish an instance of such a wild and chimerical scheme.

“After commenting with considerable ingenuity, upon the evidence of the principal witnesses of the Crown, he proceeded to deprecate in strong terms the doctrine of constructive treason; and called upon the Jury, as guardians of their own and the public liberties, to make a stand against the further extension of this abominable doctrine, which had been condemned by Lord Hale, and some of the wisest judges that ever sat to administer justice. Returning again to the description of evidence adduced to support the conspiracy, he insisted that they could give no credence to Adams, who stood confessed the betrayer of his companions, a traitor to his king, a rebel against his country, intending to assassinate and murder his fellow-subjects, an apostate to his religion, and a scoffer of his God.

“Would a British Jury in this sanctuary of justice sacrifice to torture and death eleven men, merely upon the evidence of such a self-convicted wretch? He had stated to the Jury the danger to which our liberties and lives would be exposed, if a man could be convicted of high treason, on evidence like that which they had heard; but as he preferred supporting himself in all cases by the authority of great men, he would remind them of what the present Solicitor-General had said, without telling them on what occasion the words to which he would allude had been spoken, or how long it was ago.

“A witness was called to discredit the testimony of another. He, on cross-examination, admitted, that he had accompanied a person to the Park, who went there for the purpose of extorting money from individuals, by charging them with certain practices. On this occasion the natural feelings of his learned friend, the Solicitor-General, broke forth, and he inquired, ‘Would any honest man—would any man worthy of belief in a court of justice, accompany a person who went on such an expedition? Would any man, entitled to credit with a jury, agree with another in such a plan to extort money?’ This, in point of fact, had not been done by the witness to whom he alluded; but he, Mr. Curwood, must beg to apply this sort of reasoning to the principal witness for the prosecution, and ask if a man who had acted as Adams had done was entitled to belief in a court of justice.

“Was a man entitled to credit, who, like Adams, was an apostate, a traitor, a rebel, a betrayer of his companions, a murderer, and an assassin—all of which he admitted that he had intended to be?

“Yet such a man had his learned friend put up on the present occasion. But who would believe him, unless, indeed, it were made out, which no lawyer would say it was, that such a man was entitled to credit when he came into a court of justice to seek the lives of men, though not in other cases, where his object was different.

“If this principle were not established, then out of their own mouths was the principal witness for the prosecution condemned. He called upon the Jury to look if he were confirmed, he would not say by good, but even by infamous witnesses. It was nothing that he was corroborated in various insignificant particulars, but he was borne out in nothing that went to prove that the prisoner at the bar had committed high treason; and he therefore begged of them, under these circumstances, to give that verdict which would dismiss Adams with shame, as a man not to be believed in a court of justice on his oath.

“If such a man were corroborated by other infamous witnesses, it would, in fact, be no confirmation; how, then, did the case stand when they found that he was not even confirmed by the testimony of those who were almost as infamous as himself. Having done with Adams, the next witness was Hyden, he described himself to have formerly belonged to a shoe-making club, and to have been introduced to Thistlewood in the month of February. And what was the first proposal made to him? Why, Thistlewood was represented to have said, without any disguise or reserve, “Will you be one to murder his Majesty’s ministers?”

“Good God!—what must that man be whose heart would not revolt with horror from such a proposal? But this person expressed no disgust at the plan with which he was thus made acquainted. Was this man then more worthy of belief, than one who would join with another to extort money?

“Was this, to use the words of the Solicitor-General, a man worthy of belief in a court of justice? The answer that his learned friend would feel disposed to give must be, that he was not. Then what confirmation could his evidence supply to that of Adams? It was not necessary for him to go through all the

details of the conversations between this witness and Adams, but he must remark, that of these not one word went to confirm the facts that would amount to the crime of high treason, though they all tended to establish a plot to assassinate his Majesty's ministers.

"It was true, that something was stated to have been said of seizing the cannon in the Artillery-Ground, and of retreating to the Mansion House. All this proved that a great riot was in contemplation, but it evinced no intention of committing high treason. This witness described himself to have joined in the plan, and to have told the conspirators that he would be with them.

"The next witness was Monument. He had sworn that he was told by Thistlewood he ought to get arms, as all his (Thistlewood's) friends were armed. At that period it could not be denied, that there was a great ferment in the public mind, in consequence of the transactions which had taken place at Manchester but a short time before.

"Many of the warmest friends to the measures of government were of opinion, that an inquiry into those transactions ought to be instituted; while others, without reserve, termed what had occurred at Manchester 'a massacre,' and declared that since they were liable to be so dispersed at public meetings, they would attend them armed, that they might be prepared to defend themselves. Thistlewood had used words to this effect. He (Mr. Curwood) would not deny that to go armed to such meetings, was a desperate resistance of the law; but he would maintain that it did not amount to high treason, and he entreated the Jury never to dismiss from their minds that it was for high treason, and for high treason only, that they were trying the prisoner at the bar, and not for disobedience to the law in other respects; and therefore if the facts proved did not amount to high treason, it would be their duty to return a verdict of NOT GUILTY.

"The witness, Monument, had confirmed the evidence given of the existence of a plan for the assassination of his Majesty's Ministers, and for creating a riot; but he proved nothing respecting that proclamation which was said to have been prepared by Thistlewood, and which alone went to give the conspiracy the character imputed to it in the present indictment. But the witness, Monument, he contended, had shewn himself during this

trial to be the same unfeeling villain he had set out with being; yet, from the aggregate of infamy brought forward on this occasion, there resulted no proof of high treason.

“Palin and Cook, who might be able to give evidence in favour of the defence, he shewed that he had no means of bringing forward, as, if they were to offer that testimony which might acquit the prisoner of high treason, they would bring themselves into peril, as the Attorney-General well knew that if they were to appear in the witness’s box, they would not be suffered to depart with impunity. Eleanor Walker and Mary Rogers had only proved the taking of the room in which the consultations of the conspirators were held. This was not denied. It was admitted that they held consultations, and for a nefarious purpose; but the question for the Jury to try was, whether or not these consultations related to high treason. Hale had also proved the room and the purchasing of some sheets of cartridge paper. This he (Mr. C.) contended, was wanting for their cartridges. Adams said it was for their proclamations, but of this there was no proof, and the fragments of cartridge paper that had been found were not written upon.

“The three next witnesses proved various facts connected with the plan of assassination, but nothing that amounted to high treason; and what was proved to have taken place in Cato-street, though murder and riot appeared to have been in contemplation, he could discover nothing like ‘a levying of war.’ If they had not ‘levied war against the King,’ conspiring to do that which had been done, could not be ‘conspiring to levy war against the King.’

“This was a question which must be left to the understandings of the Jury. They all knew what war was between different states. It was carried on by large bodies of men, formed into companies, under the direction of proper officers, and accompanied by all the *materiel* of war. A civil war was the same, but that one part of a state in a civil war was opposed to another part of the same state. It would be for them to determine whether enough had been proved to shew that any thing like war had been levied. It had been laid down by Sir Matthew Hale, that any disturbance was not necessarily a ‘levying of war;’ for in that case every riot would be high treason. To constitute a levying of war, there must be something worse than a common riot or outrage; ‘there must be a *species belli*?’

“Could the Jury find this on the present occasion? The utmost force that had been mentioned consisted of forty men. These forty men were to be marched with unfurled banners through the city, to take two cannon in Gray’s Inn-lane, and six in the Artillery Ground, and they were to possess themselves of the Mansion-house. Was this a levying of war? That the conspirators had been formed into companies was more than he had ever heard, and where was the money that was to carry on the war? In what holes and corners had they hidden themselves that nothing was known of them?

“From the circumstances to which he had called their attention, he would leave the Jury to judge how far the charge of levying war, or conspiring to levy war against the King had been made out. In a former instance, if he recollected right, the same charges were brought forward on a former trial that were now preferred, and in that case there were stronger circumstances—great bodies of persons had assembled, gunsmiths’ shops had been broken open, and arms had been stolen from them; yet in that case the Jury, not denying the existence of any guilt whatever, had rightly determined, as he thought, and as he hoped the present Jury would do, that the party accused was not guilty of high treason.

“He then shewed, that to endeavour to remove the ministers from their situations was not a crime; and he argued, that to attempt removing them by force was not high treason.

“He trusted the Jury would believe that he contemplated the plot to assassinate ministers with all the horror and indignation that such a design was calculated to inspire; but he could not sacrifice his duty to his feelings, and he hoped that they would feel as he did, and feel how necessary it was for the safety of other lives, that those who were concerned in it should not for that offence be convicted of high treason. It was most consoling to him to reflect, that he should be followed by his learned friend, who would address them with much more eloquence than he could command.

“He concluded by calling on them, whatever their feelings might be, to look at all the circumstances of the case, and see if they could find it proved by good, or even by bad witnesses, that there had been a levying of war. If they did find this, he could not expect a verdict; but if they found, as he thought

they must, that there had been no levying of war, they must return a verdict of “NOT GUILTY.”

EVIDENCE FOR THE DEFENCE.

THOMAS CHAMBERS examined: I live in Heathcock-court, Strand. I have seen a man of the name of Adams in company with a man named Edwards, about a week before the Cato-street business took place, in my room. They came together. They made a proposition to assassinate his Majesty’s ministers. Adams and Edwards asked me to go with them. I refused. Adams said, “They were going to kill his Majesty’s ministers, and that they would have blood and wine for supper.” They came again on the Monday night before the Cato-street business took place. They brought with them a large bag.

Cross-examined by Mr. Gurney: I am a bootmaker; I might have seen Ings. I am not certain. I cannot say how long I have known him. I don’t suppose I have been in his company above twice or three times. The first time was at a place where they sold the Black Dwarf and the Medusa, kept by a man of the name of Watling. I cannot state where else I have seen him. I know a house called the Scotch Arms, in Round-court, in the Strand. I have been there three times, but did not see him. Those times were before Christmas. There was no chair there. There was no person sitting in a chair. There was no chairman. It was in no other room but the tap-room.

I have been at the Black Dog, in Gray’s-Inn-lane, once; there was no chair there; there might be about seven persons there; it was on a Sunday night; I cannot say whether before or after Christmas; I was invited there by a man of the name of Bryant, who was going to the Cape of Good Hope. They were all strangers to me except one, and that was Mr. Thistlewood; I know Brunt very well, he was not there; I don’t think I know Palin; I will not swear I did not see him; I was at all the meetings in Smithfield; I cannot state who carried the black flag; I carried no flag at the last meeting; I before carried two flags—one had inscribed on it “The Manchester Massacre;” I never saw such a flag as “Let us die like freemen, and not be sold like slaves.” I carried the flag inscribed “Trial by Jury,” at Mr. Hunt’s entry into London. I know Davidson. I have not much knowledge of Tidd. I know Wilson. I know Harrison very well. I have not much knowledge of Strange nor Cooper.

I have known Mr. Hunt ever since his triumphal entry into London. I was shocked at the proposition of going to murder his Majesty's ministers, at least so much that I did not go. Though Bow-street was so near, I did not go there to give information of the plot.

MARY BARKER spoke to Edwards's bringing grenades to Tidd's, her father's. There was one very large ball brought away by Adams.

This was the whole of the evidence for the prisoner.

Ings here requested, and was permitted to withdraw for about a minute. He returned with an orange in his hand, which he sucked with great composure.

Mr. ADOLPHUS then rose to address the Jury.

"Gentlemen of the Jury,—I call for serious attention and kind indulgence, if for no other reason, for this consideration, that, if your verdict should be against the unfortunate man at the bar, these are the last favourable words that he shall hear uttered. My Lord will state the law and the evidence to you fairly; but, beyond that, he will say nothing for the prisoner. I feel the languor that necessarily arises from the attempt to tread over ground already trodden, and trodden in vain. But I advance to the task with a clear mind, and faculties unfettered, because I can lay my hand upon my heart, and say, that no opinion I formerly offered is now changed.

"The Solicitor-General, in his fervid opening, and my Lord, have told you, that the former case is to be kept entirely out of view. I say so; but I know how difficult it is to prevent the judgment from being influenced by the memory. I cannot help here contrasting the joy and alacrity of the Solicitor-General with my own feelings. He told you, that he had to lay before you, not what he hoped to prove, but what he had already proved. I have no such encouragement. It is for me a new case; for Adams has, in this case, brought forward evidence which he thought proper to keep in his own breast on the former trial.

"Much fervid declamation has been addressed to you by the Solicitor-General upon the consequences of success in the alleged plot. But you are to dismiss from your minds this speculative danger. The Solicitor-General has also stated propositions of law upon the subject of accomplices with great eloquence, but with less accuracy than might have been expected from

his station and character. He asked, ‘Has the accomplice any interest in giving a deeper dye,—in making a stronger point,—in carrying conviction?’ I answer, ‘Yes, yes, yes!’ His impunity is conditional. He comes before you in chains, and in custody.—I refer to your own breasts, whether a man that can himself be yet prosecuted, has no interest in giving not true but acceptable evidence. The accomplice has the advantage too of having all who could contradict him tied up by the prosecution, and he therefore swears boldly.

“We are told, we might call Palin. Most gracious offer! When a great reward cannot stimulate the police-officers to find him, how should we find him, and persuade him to put his life in peril? It is more a taunt than a kindness; more a reproach on our weakness than an essay on our strength. On the part of the prosecution, a witness has not been called who was proposed to be called; and a witness that has been called has been withdrawn, when our witnesses have been on the floor to contradict him. This has further impoverished my poor, my destitute clients.”

The ATTORNEY-GENERAL objected to these observations.

Mr. ADOLPHUS proceeded.—“Cook and Harris may be imaginary persons, and how could we call them? If high treason in this case comes entirely from the mouth of an accomplice, you cannot receive it. It is the whole of the charge; and, if in that the accomplice is not confirmed, that charge is unsupported; for, if you strike out the evidence of Adams, there is not one word to prove treason.

“Let me ask you to try his testimony, then, by these tests.—1. Is his account probable, or even possible?—2. Is his manner such as to entitle him to credit?—3. Is he contradicted by witnesses for the prosecution?—4. Is he confirmed? or is confirmation withdrawn? Upon the first question, the learned Counsel argued with great force and animation, that the witness, Adams, could not stand any one of these tests, and therefore was not to be believed. If, said he, any thing is to be gained by success in these prosecutions, it is to strengthen the Government in the minds of the people; it is to obtain applause for Ministers who have so vigilantly protected us. But your verdict, gentlemen, is to decide the fate of that man, and no more.

Great Britain and Europe will judge of the conduct of Ministers; posterity will decide upon their merits.

“In all questions at issue, in history and in politics, if any thing is kept back, it ought to operate against the party who keeps it back. Adams has fathered upon others what he has himself done. Call Ings a murderer—call him an assassin—call him a felon—call him what you will—but, for God’s sake, gentlemen, believe him.” After some animated comment on the evidence of Chambers, the learned Counsel returned to Adams.

“The meeting in Cato-street affords no evidence of the intention. Adams alone states it. The very situation of Cato-street, however convenient for the assassination, disproves the treason; for it is two miles and a half from Gray’s Inn-lane, and two or three miles more from the Mansion-house. They never could thus have removed to the greatest possible distance from the points of action. What, then, are you to make of two bags to carry two heavy heads? You cannot for a moment raise this into treason; as well might you believe that an attempt was to be made to liberate the prisoners in this gaol by throwing cherries and carraway-seeds. Did they, then, levy war?

“I recollect seeing a man convicted at that bar of the murder of a Minister of State (Mr. Perceval). I never can forget Sir James Mansfield, the tears streaming down his aged venerable cheeks. If strong feelings could make the assassination of a Minister treason, that would have been treason. Suppose they had seized the cannons, that would not be a levying of war; for they are not the King’s, but the property of private individuals. The Mansion-house and the Bank were not the King’s. The only tittle to support the treason was the absurdity of a ‘Provisional Government,’ stated by Adams.

“Some of you remember, as I do, the conflagration of houses, and the blazing of prisons, by a mob misled by an individual. The actors in that scene were tried, convicted of felonies, but not of treason. Their infatuated leader was acquitted of high treason. God forbid that I should say my client stands before you free of guilt. God forbid I should apologize for his conduct!

“The evidence precludes me from denying that there was an intention to assassinate Ministers. Poverty rendered the men desperate, and impelled

them to crime. But treason is incredible and impossible. The whole hinged on Thistlewood. He had but lately got out of prison, having challenged Lord Sidmouth, who properly prosecuted him, instead of accepting it. That he should entertain feelings of revenge was natural and inevitable, considering that his was a bad mind. But this is not treason.”

The learned Counsel having concluded his very able speech, the prisoner was addressed as follows, by

Chief Justice Dallas.—James Ings, do you wish to leave your defence to the observations of your counsel, or do you wish to say any thing yourself?

Ings.—I wish to state the particulars how I became acquainted with this party, if you will allow me.

The Chief Justice.—Any thing and every thing you wish to state, of course the court and jury will hear. Now is the time for you to state those things; speak loud, and we will attend to what you say. Probably, before you say any thing, you will consult your counsel.

Ings.—I have but little to say.

The Chief Justice.—After having drawn your attention to the propriety of consulting your counsel, you will now do what you think best.

Ings, addressing himself to the Jury, spoke as follows:

“Gentlemen of the Jury, I am a man of no education and very humble abilities. If you will hear me with patience, I will not detain you long. I lived in Portsea. I came to London in the beginning of May, 1819. I came with my wife and family. The reason I left Portsmouth was, that I was unable to get employ to support my family (here the prisoner seemed affected by his feelings.) When I came to London I thought I could get employ, but I was for a considerable time, and could get nothing to do. Knowing nobody I suppose was the reason. I had a few pounds with me when I came from Portsea. Finding my money going I did not know what to do. It did not go by drinking or gambling.

“I determined to get into business, and I went up to Baker’s-row, where I set up a butcher’s shop. I stopped there three months, from Midsummer to

Michaelmas; the summer being hot was against me; I lost a considerable deal of money in the course of the summer; I then took a house in Old Montague-street, which I opened as a coffee-shop; in fitting up the shop my money was all gone; I did not take money enough to support my family. I now persuaded my wife to return to Portsea among her friends, where I thought she would be better than with me in London.

“After my wife had left me some considerable time, there was a man who used to come and take a cup of coffee at my shop. I had never nothing to do with politics; but he began to speak about the Manchester massacre. I said very little; I always took him to be an officer. He came frequently before I left the house.

“Some time after I met him in Smithfield. I went there to see if I could get any employ. He asked me how I did; and I said very well. He said, he had been often to my house, and asked me to stand treat. I said it was not in my power, and my reason was, that I had no money; I added that I should be obliged to sell my things. He asked me what things I had to sell, and I told him various articles. He agreed to buy a sofa bedstead.

“I then went to live in Primrose-street. This was in January last. A few days after, I met him in Fleet-market. He asked me where we could have something to drink; and respecting the sofa bedstead, he said he thought he had a friend that would buy it. I took him to my house, but we could not agree. We came back to Fleet-street; he then told me there was something going to be done. I asked him what it was, and he said no good man would want to know what was to be done before it was begun. We went directly and had some bread and cheese. He took me to the White Hart, where I saw a few of my fellow-prisoners. I asked who he was. I understood his name was Williams; but I since know that it was Edwards. He told me that it was he made Thomas Paine (the statue of Paine) at Mr. Carlisle’s; and it was the same man that did make it. He afterwards took me to another room where I got refreshment.

“I did not know the particulars of any thing that was going to be done. I was a stranger, and went for food. That very day he brought me a sword to get ground for him, which I took to the cutler’s in my own name; and do you think, gentlemen, if I knew that any thing was going on, that I would have

left it in my own name? I often went to the man afterwards, for I had no friends. On the 23d of February, he came to me at my lodging, in Primrose-street, for my landlord charged me nothing for my lodging, and says, 'There's something a going to be done; do you come up to the alley opposite Mrs. Carlisle's; about six o'clock, I shall meet you there.' I went from there up to the room. I was there all day, and I got some bread and cheese.

"At six I went to Fleet-street. He was standing in the alley. I understand since, from the list of witnesses, that he lives in that alley. He told me to wait, which I did, for an hour. He then came and gave me a couple of bags and a belt, and asked me to come to the room in Fox-court. On my going there he told me that he was going to put some gin in the bags; and that it was to be got on the sly. That was the sole reason that I put the bags under my coat, lest the patrol should see them. I went with him up to St. Giles's, where he said we were to get the gin. When we got there, he told me it was not there. We went up to Oxford-street, where he said a friend lived. He left me and I waited for him an hour. He then took me up to John-street, I believe it was, for I never was there before, to the stable. He told me I would see some friends there; he then left me.

"When I came under the archway, I saw Davidson; Davidson took me into the stable. I never was up in the loft. I declare positively, before God, I was not in the stable more than five minutes when the officers came in: there was only me there. Mr. Ruthven, then, or somebody with carrotty whiskers, and another, went up the ladder into the loft, and a third man came in, collared me, and said, "You are my prisoner." Very well, I says. Soon after he collared me, he began beating me with his staff till my head swelled most dreadfully. In the mean time I heard a gun or pistol go off in the loft.

"When he let me go and run out of the stable, I followed him into the street. On going into the street, an officer went after me, and I ran all down the street. I met a man who struck me violently on the head with a stick as I was going towards him. I ran from him, and with that I was pursued, when I was stopped by a watchman who beat me also. They took me down to the watch-house. That is all I know about the meeting.

“I am like a bullock drove into Smithfield market to be sold. (Here the prisoner burst into tears.) I say I am like a bullock drove into Smithfield to be sold. (This he repeated with great energy.) The Attorney-General knows the man. He knew all their plans for two months before I was acquainted with it. (Still crying.) When I was before Lord Sidmouth, a gentleman said, Lord Sidmouth knew all about this for two months. (Still in tears.) I consider myself murdered if this man is not brought forward. (A more violent gush of tears.) I am willing to die on the scaffold with him. He told of every thing which he did himself. I don’t value my life if I can’t get a living for my family. (In still greater grief.) My life is of no use to me if I want bread for my wife and family. I have a wife and four children. I never was in the habit of drinking, nor nothing of the sort. I cannot describe my feelings to you about my wife and family. (In tears.)

“I hope, before you give your verdict, that you will see this man brought forward, or else I consider myself a murdered man. I knew nothing of their plots; he was the instigation of it all. I never attended none of their radical meetings. I hope you will weigh well this in your minds before you return your verdict. That man Adams, who has got out of the halter himself by accusing others falsely, would hang his God. I would sooner die, if I had 500 lives, than be the means of hanging other men.”

Lord Chief Justice DALLAS.—Is there any thing more you wish to say?

INGS.—Nothing more. I have only one thing to prove my character. A gentleman put it down from my childhood. (He here handed a paper, which his Lordship declined to take.)

The ATTORNEY-GENERAL rose to address the Jury about three o’clock. It had been more than insinuated that these prosecutions were intended to extend the law of treason, and that their verdict would enlarge the powers of the Crown. But it was not so; by the due administration of justice alone were they to pronounce on the guilt or innocence of the prisoner.

“The 36th of the late King was not calculated to introduce uncertainty and speculation. If the prisoners had the intention, and acted upon the intention, of levying war, it was treason, however inadequate their means. No man could doubt the truth of the story which Adams related. The learned

gentleman then commented on the evidence at great length, insisting that the case was satisfactorily proved.”

Lord Chief Justice DALLAS proceeded to address the Jury. This most painful inquiry having, in point of proof, been terminated, it became his duty to recapitulate the whole of the evidence, and to make such observations on the case as the different points seemed to him to require.

“With respect to the indictment, it contained a number of different counts and charges, which were founded on two specific statutes. The first, an ancient statute, passed in the reign of Edward III.; and the second, a more recent act, passed in the reign of the late King. But, to make the case as clear as possible, they might dismiss most of the counts from their minds, and look to the charge as composed of two heads; one, conspiring to depose the King, and the other conspiring to levy war to compel him to change his measures. He should now proceed to recite the evidence as he had taken it. [The learned Judge here read the evidence of the whole of the witnesses, pointing out those facts which were most worthy the consideration of the Jury.] The learned Judge then, in allusion to the testimony of Adams, observed, that, if the doctrines held that day could be adopted, no such thing as an accomplice could be admitted in a court of justice. His evidence would be at once got rid of, by stating that he was guilty himself.

“They were, however, informed, that though it was often necessary to receive the evidence of an accomplice, yet in the practical application of that evidence, they were to view it with a suspicious eye. They were not to receive it, except it was confirmed. On this point he had heard the law grossly mis-stated.

“The testimony of an accomplice ought to be confirmed in some particulars, but not in all; for if they possessed the means of proving all he stated, there would be no necessity to call him to give evidence.

“It was for the Jury to say whether the prisoners had not a revolutionary object in view. If they were assembled merely for the purpose of assassination, of course the charge of treason was not made out, but if they thought otherwise, undoubtedly it was. It might be said that it was impossible men could entertain such an extravagant project; if he had been told that there were twenty-five men on the face of the earth, and still less,

of the country to which he had the honour to belong, who intended to commit the foul and dreadful act of butchery and blood which had been described, he should have said, till they were detected, that it was utterly impossible—that such a thing never had happened and never could. But looking to the evidence, it was clear and undoubted that such an occurrence had happened.

“The prisoner had called witnesses before them, and he had implored the Jury, ere they disposed of his fate, to consider his case maturely. In that request he went hand in hand. If they were of opinion that those persons assembled only to destroy fourteen individuals, and that the materials found were merely collected for that purpose, they would then give the benefit of that doubt to the prisoner. But, on the other hand, if, in the discharge of their duty, acting in the name of that Being who had been more than once appealed to in the course of this inquiry, they believed that the offence was proved, they would then, he was sure, fearlessly and intrepidly return with a verdict in conformity with their sentiments.”

The Jury retired at twenty-five minutes after eight o’clock, and, at a quarter before nine, returned a verdict of—GUILTY, ON THE FIRST AND THIRD COUNTS—that is, of conspiring to depose the King, and to levy war to compel him to change his measures.

The prisoner was then taken from the bar, and the Court adjourned.

TRIAL OF JOHN THOMAS BRUNT.

SESSIONS-HOUSE, OLD BAILEY.

First Day, Monday, April 24, 1820.

At nine o'clock in the morning, the Lord Chief Baron Richards, Mr. Baron Garrow, Mr. Justice Richardson, and the Common Serjeant, took their seats.

The prisoner, Brunt, was then put to the bar. He was decently dressed in coloured clothes, and had with him several papers, some of which were closely written upon. He looked rather paler than before, but preserved his accustomed composure.

Mr. Shelton proceeded to call over the names of the Jurymen in attendance. The first name called, and to which there was no challenge on the part of the prisoner or the Court, was Mr. Alexander Barclay.

Mr. Barclay stated, that, as he had been on the Jury by which Thistlewood had been tried, he hoped he might be excused on the present occasion.

Mr. Curwood said, that it was because he was on the former Jury he wished him to be on the present, as he would be enabled to see the difference of evidence.

The Solicitor-General said he had no objection.

Mr. Barclay was then sworn; and he was foreman of this as well as the former Jury.

Mr. Curwood exhausted his right of challenging peremptorily before the Crown, on whose behalf the last four challenges were made in succession.

As the Jurors were sworn, they were very attentively noticed by the prisoner. After the challenges had been gone through, the following Jury was impanelled:

* Alexander Barclay, of Teddington, grocer, (foreman).

* Thomas Goodchild, Esq., North-End, Hendon.

* Thomas Suffield Aldersey, Lisson-grove, North, Esq.

* James Herbert, Isleworth, carpenter.

* John Shooter, North-End, Hendon, gent.

James Wilmot, Western-road, Isleworth, market-gardener.

* John Edward Shepherd, Eden-Grove, Holloway, gent.

* John Fowler, St. John-square, iron-plate-worker.

* William Gibbs Roberts, Ropemakers'-fields, Limehouse, cooper.

John Dickenson, Colt-street, Limehouse, builder.

John Smith, John-street, Oxford-street, undertaker.

John Woodward, Upper-street, Islington.

Those gentlemen to whose names a * is prefixed served on the first Jury.

Mr. Bolland immediately proceeded to open the indictment against Brunt.

The Attorney-General then stated the case to the Jury, going over all the facts already detailed in the former trials, and commenting upon them with great clearness and ingenuity. As soon as he had concluded his address, the other prisoners (untried) were brought into Court.

ROBERT ADAMS (the first witness against Thistlewood and Ings) was put into the box, and examined by the Solicitor-General. He detailed the same story, in substance, which he gave on the former trials; adding some things which he had then omitted, and varying a little his account of others. In the course

of his evidence he came to that part where he described Brunt to have said, that, if any officers came in there, he (uttering an oath) would murder them, and they might be easily disposed of afterwards, so as to prevent their murder being discovered.

Brunt, (rising hastily from his seat at the bar)—My Lords, can the witness look me in the face, and look at those gentlemen (pointing to the Jury), and say that I said this?

Adams, (turning towards the prisoner, and laying his hand upon his breast)—I can, with a clear and safe conscience.

Brunt.—Then you are a bigger villain than I even took you to be.

The Court here interfered to prevent any further conversation between the parties.

Adams then continued his evidence.—When he came to that part where he mentioned the hand-grenades, he added—“I think it necessary here to state, as Mr. Brunt thinks proper to deny what I have said, that he was the very man that took the hand-grenades to Tidd’s house; for I followed him all the way, and I saw, with my own eyes, Tidd’s daughter put them in a box under the window.” [The witness uttered this with considerable emphasis and action.] In relating the arrangements which had been made for the murder of Ministers, and the subsequent proceedings which were intended, he added—“I think it right to state one circumstance, which escaped my memory before. Ings proposed, that after the heads of Lords Castlereagh and Sidmouth were taken off, they should be placed on a pole, and carried through the streets. Thistlewood improved the plan, and said that they should be carried on a pike behind the cannon in the streets, to excite terror. On this Bradburn observed, that, after they had used Lord Castlereagh’s head, they would enclose it in a box, and send it to Ireland.—Another circumstance which he also omitted before was, that, by an arrangement between Thistlewood and Cooke, it was agreed, that, if Cooke succeeded in taking the Mansion-house, he was to send an orderly to St. Sepulchre’s Church, where he was to be met by another orderly, despatched by Thistlewood from the west-end of the town; and they were to convey to the parties an account of the progress which each had made in their stations.”

Cross-examined by Mr. Curwood.—On my former examination I repented when I got home, and before that. When I perceived the error of my ways, I acknowledged it. Till I received that infernal publication, Paine's *Age of Reason*, which Tidd gave me, I was very particular. I was not, however, so good a christian as I might have been. The principles which Brunt, the prisoner at the bar, endeavoured to instil into my mind perverted my understanding. Brunt wished to throw down the pillars of Christianity altogether. I find my conscience satisfied at the atonement I have made to my Maker. My satisfaction did not merely arise from getting my neck out of the halter. I never considered the assassinating of men, in cold blood, to be consistent with the principles of reason. On the 2d of January, the prisoner told me that it was intended to murder his Majesty's Ministers. I was introduced to Thistlewood on the 12th: during the intermediate period of ten days, I had an opportunity of considering the plot. I did not discover it, owing to the insinuations of Brunt. In that time, I attended several meetings, and was a chairman at one of them. Whenever I hinted any dislike to the business, the parties were like madmen. I knew Edwards, and saw him making hand-grenades. I intended to put a stop to the business if possible; but, at the same time, I wished to save these people, and to avoid the trouble of the trials here.

Re-examined by Mr. Gurney.—My mind was perverted by Paine's *Age of Reason*, and Carlisle's publication.

Eleanor Walker, Mary Rogers, Joseph Hale, Thomas Sharp, Charles Bisset, Henry Gillam, Edward Simpson, and J. H. Morrison, gave precisely the same evidence as they had given on the former trials.

JOHN MONUMENT, the accomplice, was brought into Court in the custody of two wardens of the Tower. He was examined by the Solicitor-General, and gave precisely the same evidence as he had done on the two preceding trials, relative to his connexion with the conspirators.

Cross-examined by Mr. Curwood.—I have read Paine's *Age of Reason*. It rather shook my faith; but it did not destroy it, because it was accompanied by the Bishop of Llandaff's *Apology for the Bible*.

THOMAS MONUMENT, examined by the Solicitor-General.—His testimony to-day was precisely the same with that which he had given on the former day,

and fully corroborated that of his brother. He was not cross-examined.

John Monument was then re-called, and re-examined by the Solicitor-General, as to the advice which had been given him by Thistlewood to say that Edwards had taken him to the meeting. He repeated his former testimony, and added, that Thistlewood told him to pass it round to the other prisoners, that it was Edwards who had betrayed them. Bradburn paid no attention to this advice.

THOMAS HYDEN, examined by Mr. Gurney, repeated his former evidence. This is the man who gave information of the plot to Lords Harrowby and Castlereagh, of which he on this occasion gave a detailed account.

Cross-examined by Mr. Curwood.—I know a man of the name of Bennett, a bricklayer. I asked him to go with me to the shoemakers' club. I cannot swear that I did not ask him to go there, because something was to be done there for the good of the country. I wrote to Lord Harrowby myself.

Here the learned Counsel asked him to write a word or two. He did so. Mr. Curwood observed, that he asked the question because he had been informed that the witness could not write. He had been mis-informed, and had now done with the witness.

After the examination of this witness had closed, he evinced a disposition to stay in Court, on which the prisoner, Brunt, observed, "My Lord, the witness stays in Court." Wilson then rose, and said, with great indignation, "My Lord, let that perjured villain be turned out of Court." He then took his departure.

The EARL OF HARROWBY was next called, and repeated his former evidence.

JOHN BAKER, the butler to the Earl of Harrowby, corroborated his Lordship's evidence.

RICHARD MUNDAY and GEORGE CAYLOCK proved the presence of the prisoner in Cato-street on the evening on which the plot was discovered.

GEORGE RUTHVEN, JAMES ELLIS, THOMAS WESTCOTT, and others belonging to the police-office in Bow-street, were then examined as to the seizure of the gang in Cato-street.

CAPTAIN FITZCLARENCE repeated the evidence which he had given on the former trial.

Mr. Gurney then stated to the Court, that the case for the prosecution was closed, except so far as related to the examination of the arms, ammunition, &c., which had been seized either in Cato-street, or on the premises of the conspirators. It would be more prudent to examine them by day-light.

The *Lord Chief-Baron* acquiesced in the proposition, and adjourned the Court till the next day at nine o'clock.

SECOND DAY.—TUESDAY, *April 25.*

At nine o'clock in the morning the proceedings were resumed. The arms and ammunition were brought in, and underwent an inspection in presence of the Jury.

Mr. GURNEY proceeded to call

GEORGE RUTHVEN, who had seized the arms found in Cato-street. He identified certain arms placed on the table of the Court as the arms which he had seized, and repeated the evidence which he had given on the former trials. He also produced the grenades.

HECTOR MORRISON said, that he had sharpened a sword, which was produced to him, from heel to point, by desire of Ings.

SAMUEL TAUNTON produced several pike-heads, fire-balls, cartridges, &c., which were found at Brunt's and Tidd's lodgings, and repeated his former evidence.

SERGEANT HANSON described the composition of the fire-balls, and opened one of the grenades for the satisfaction of the Jury. It contained twenty-five pieces of old iron. He stated, that it was quite clear that it had not been made by any military man. His evidence was the same as it had been on the former occasions.

The case for the prosecution was then closed.

THE DEFENCE.

Mr. CURWOOD addressed the Jury on behalf of the prisoner, and urged all those topics already detailed in his former speeches. He concluded by calling a witness of the name of JOHN BENNETT, who was accordingly sworn and put into the box, but before his examination commenced,

Mr. Gurney begged to ask the purpose for which this witness was called.

Mr. Curwood stated, that he was to contradict part of the testimony given by the witness Hyden, in his cross-examination.

Mr. Gurney observed, that he had a few observations to make regarding the relevancy of the evidence of this witness, and therefore desired that he might be ordered to withdraw for a few moments from Court.

The witness accordingly withdrew.

Mr. Gurney then observed, that he conceived that this witness was called to prove that Hyden had asked him to go with him to the shoemakers'-club, because something would be done there for the good of the country. Now Hyden refused to swear that he had not used such expressions; he said that he thought that he had not, but he could not positively tell. Supposing then that Bennett were to prove the words imputed by the learned Counsel to Hyden, he would not prove any thing which would invalidate Hyden's testimony. He therefore hoped that his learned friend would not waste the time of the Court by calling this witness.

Mr. Curwood stated, that Hyden had sworn that he had never made use of the words imputed to him. He, therefore, intended to call evidence to prove that he had.

The Judges then referred to their notes, and after examination of them, said that Mr. Curwood was mistaken in his opinion as to Hyden's words; they were to the effect stated by Mr. Gurney.

Mr. Curwood then declined to call Bennet, and said that he had no other witness to examine.

Mr. ADOLPHUS then shortly addressed the Jury on the same side with Mr. Curwood. He took a comprehensive view of the whole of the evidence; denied that the evidence of Adams, the accomplice, was entitled to the

slightest credit; and contended that, as it was not supported by more credible witnesses, the offence of which the prisoner had been guilty, however great, did not amount to the charge in the indictment of high treason. He concluded his address, in which he displayed much zeal and ability, by appealing to the Jury on the danger to society of receiving the unsupported evidence of an avowed accomplice, in a crime of a nature so serious as that with which the prisoner stood charged. He entreated them not to convict the prisoner because he was a bad man, but to examine how far the charge against him had been substantiated.

A Juror rose and observed, that there was no evidence in the present case of the ammunition having been brought back to Brunt's house.

The Chief-Baron said there was not, or of several other matters alleged, which he would advert to afterwards.

Mr. Adolphus said he had no intention of overstating any point; that he had been unavoidably absent during part of the trial, and that might have occasioned some inaccuracies—

The Solicitor-General interposed, and Mr. Adolphus sat down without any further remark.

While Mr. Adolphus was delivering his address, Mr. Harmer's clerk delivered to the prisoner a written paper, which he began to read; but he did not seem to view its contents with much attention.

The Chief Baron addressing the prisoner, said, "John Thomas Brunt; your learned counsel have concluded their very able defence; but if you wish to say any thing in your own defence, this is the time."

The prisoner then rose and spoke as follows:—

"My Lord, I have had a defence put into my hands only a few minutes ago, which I have not had time to peruse over. Yet I have two or three observations to make respecting the evidence—particularly respecting the evidence of Monument. It's quite useless for me to deny that I was in the room in Cato-street; but immediately on the arrival of Monument in Cato-

street, he approached me, and asked me what was going to be done, when he saw the arms on the bench; to which I replied, that I was not aware of any thing being going to be done, for that Edwards had not brought so many men by thirty as he stated he would bring, and that it was not my intention to endeavour to do any thing with so few men. I would not be led by any individual. Accordingly, perceiving that Monument betrayed a great deal of fear, I persuaded him to go away.

“My Lord, a considerable stress has been laid upon what I said respecting the number of men who were to go to Lord Harrowby’s house. This I declare was not true. I will admit, my Lord, that when Thistlewood, as has been stated, addressed himself to the few men who were there, and spoke, as the witness said, that if they did not go it would be another Despard job, that some few men did go into the small room; but, my Lord, it never came into my mind, I solemnly protest, to go there. They were endeavouring to see if fourteen or fifteen men were disposed to go to the square; but I would not agree to a plan which I knew must expose these few individuals to instant death.

“I will now call your Lordship’s attention to two circumstances respecting the conduct of myself. In the first place, Adams says, in order to implicate me more deeply, that I declared that I would go into the room and blow the house about their ears. This, my Lord, is false. For you see that when Monument comes forward, he makes a declaration to you, gentlemen of the Jury, that I declared I would go myself and bury myself in the ruins. Is this consistent?—is it upon such evidence as this, that you will deprive a son of a father, and a wife of a husband?

“I should wish to advert to another circumstance. While I was in Coldbath-fields prison,—when I was there for nearly three days, during which I was scarcely out of my room, even to wash myself. When I came down out of my room to the fire I saw Monument; I saw Strange; I saw Cooper; I saw Bradburn. Monument, my Lord, came to me, and sat himself down close by me, and whispered in my ear these words: he said, ‘What did you say when you came before the Privy Council?’ I says, ‘That I said I knew nothing about the matter.’ This, my Lord, induced me to ask Monument what he said? and I says, ‘What did you say?’ upon which he says, ‘I could say nothing—you told me nothing. Why did you not tell me more?’ I says, ‘It

were impossible for me to tell you what I did not know myself. You know very well, that when you saw the man call on us to go into the small room I declined.'

"I admit, as was said by Adams, that I was one that was named to go to the house; but, gentlemen of the Jury, you were not told that he was the villain who so named me, and that he constantly came to my house twice a-day, although he now comes to give evidence to deprive me of my life.

"I am no traitor—I was determined, when I entered into this base plot, that I would lose my life sooner than I would betray an individual. I would be put to death—I would die on the rack, rather than I would betray a fellow-creature. This is my principle. This shews the intention of Monument to betray me.

"Now, my Lord, I come to advert to a circumstance which occurred to me at Cambray, in France. It becomes me to state any thing which may be of use to me and my fellow-prisoners. While I was in Cambray, in France, my Lord, I met Adams when I first came from Paris. Adams worked for the officers, and I assisted him in work which he was incapable of performing himself. He afterwards became so jealous, that he threatened to take my life, and I was obliged to leave the house, which I did, and I never worked for him again. I afterwards went from Cambray to Lisle, where I worked for an English tradesman of the name of Brailsford. I worked for him two or three months, until I got a little money. During this time I knew nothing of Adams.

"When I came home I found that my wife had lost her senses, and was in St. Luke's, in consequence of her having heard that my son and myself had been assassinated in France. I settled myself, and my wife shortly after came out. I got a good seat of work, and at this time I was persuaded to receive, as my apprentice, Hale, the witness, who has been called to you."

Here the prisoner entered into some details relative to the character of the relations of Hale, in which he was interrupted by the Chief Baron, upon the principle, that these persons were in no way connected with the present case. He then went on to detail a variety of acts on the part of his apprentice, all tending to prove him a person of bad character, and

unworthy of credit, to which he said, if he had the means, he could bring evidence. He then spoke as follows:—

“Of Hyden I know nothing.” Here he again referred to the written defence with which he had been furnished. He said he had not had time to read it, but continued.

“I wish to advert to a person of the name of Edwards, who was the first person that ever instigated me to enter into this snare. This Mr. Edwards I first saw in company with Mr. Thistlewood, at the White Lyon in Wych-street. This Edwards came to my lodging in Fox-court. I was very short of work, and he used frequently to call on me—such a thing as two or three times a-day; and this was long before the back room was taken. If I was not at home he would wait for me; and often followed me to places where I went for work. This was the case at the house of a gentleman of the name of Scott, who saw him, and asked me if he was waiting for me? and said, ‘Why does he not come in?’

“This man constantly harassed me, and oftentimes, my Lord, he supplied me with money. He told me, and I can bring other people to prove it, that he said that if he could get a hundred such men as me, he could do any thing. He considered me a staunch man, my Lord, and thought, I suppose, that I was a fit man to make a prey of. He often took me out to call on people, and to treat them with drink. This was his constant practice. He was continually with me before this business; and I solemnly declare, that this was the individual, and not Mr. Thistlewood, who brought me into this plot.

“I must now, my Lord, advert to what took place in Cato-street, and to his (Edwards’s) conduct on that evening. I will state nothing but the truth.

“My Lord, from the different favours I received from Edwards, I had a good opinion of the man. When the officers came up into the room in Cato-street, I made my escape in the best manner I could. I did not make my escape, however, like a coward or a traitor, I did not desert my companions. I went immediately to Grosvenor-square, where I knew this villain was, although I shall, probably, by his means, be sent into another world very shortly. I went to the villain, and told him what had happened; at which he seemed very much surprised, and left the square with me.

“Shortly after up came Thistlewood and another person, who was in the room in Cato-street; but who has not since been taken, nor never will I dare say, my Lord. However, we proceeded from Grosvenor-square, and he took us into several wine-vaults to drink; I now believe, merely for some person to identify us. I then went to Fox-court, Holborn, where I had not been many minutes, when, as my apprentice stated, another man came in, who said he had received a violent blow in the side. But my apprentice has not stated, as the fact was, that the very individual who came on the stairs and called us out, was Edwards.

“We went with him; and, on going into Holborn, there we met a man of the name of Palin, and three more individuals with him. We went altogether into Mr. Thompson’s wine-vaults, opposite St. Andrew’s Church, on Holborn-hill. We drank some small glasses of liquor. When we came out of the shop, we were followed very shortly by Edwards, who called me on one side, and said he wished to speak to me. I heard what he had to say. He began to find fault with Palin, who was drunk. He declared that he was the man that had betrayed us, and that he was unworthy to live. He said, that, to prevent treachery, he ought to be made away with.

“From that we walked on till we came to Little Britain, or somewhere thereabouts. We came to a dark place, where Edwards said that Cook lived; but I did not know myself. He urged me again respecting Palin, who still remained much intoxicated. He said to me, that it would be the safest way to put him out of the world. He urged me several times to assassinate Palin. He then put his hand in his pocket, and pulled out a brass-barrelled loaded pistol, with which he told me to assassinate Palin. He likewise offered me a sword-stick; and he said, ‘If you put him out of the world, we shall be safe.’ He also shewed me a constable’s staff; and said, ‘I will act in the same capacity as I did in Grosvenor-square; and, if there is any alarm, I will officiate as an officer, and you may depend on it no discovery will take place.’

“Finding he entreated me to be guilty of murder, I made this reply: ‘If you consider Palin a villain, the weapons are in good hands.’ Finding he could not entreat me to commit murder, he says, ‘I must wish you a good night; I am going to conduct Thistlewood to some secret place.’ As he had always

appeared to be a particular friend of Mr. Thistlewood's, I thought he was the most proper person to do this.

“Knowing of no evil intention myself against any individual, I was determined not to know where he went; and I consented to bid him good night. I then went home. Edwards afterwards came to me, and whispered to me, and told me that he thought Palin and Potter had betrayed us, and that he had not the smallest doubt of it. He then advised me to send the articles which were found in the basket in the back-room, and which my apprentice has described, over to a place in the Borough, which I was going to do, but afterwards abandoned that intention.

“This is all I wish to say respecting what I know of the plot. Now Edwards was the man who always found money, and who went about to old-iron shops, buying pistols and swords, and other things for the men who could not afford to buy them themselves.

“This, I declare before God, whose awful tribunal I shall, in all probability, ere long, be summoned to attend, is the truth. Should I die by this case, I have been seduced by a villain, who, I have no doubt, has been employed by Government. I could not have abused confidence reposed in me; and, if I die, I shall die not unworthy the descendant of an ancient Briton! Sooner than I would betray a fellow-man, I would rather suffer a thousand deaths! This is all that I wish to say.”

The prisoner delivered the last part of his speech with great energy, striking his clenched fist on the board before him. He then took his seat with perfect composure, holding in his hand the defence which he had made no use of.

The CHIEF BARON began to sum up the evidence; but, while his Lordship was proceeding, Brunt said, “My Lord, there are some of the witnesses for the prosecution in Court; and, as their hearing the evidence summed up may prejudice the trial of some of my fellow-prisoners, I hope your Lordship will order them to withdraw.”

Mr. Gurney.—My Lord, they are only those witnesses who were permitted to remain by common consent; they are the officers.

The Lord Chief Baron.—They are only those whom your Counsel have consented to remain.

Mr. Baron Garrow repeated the same observation to the prisoner, who bowed respectfully to the Court, and resumed his seat.

The CHIEF BARON began his charge to the Jury by telling them, that this was not constructive treason. A nefarious assassination was admitted by the Counsel for the prisoner, and by the prisoner himself, to have been intended; an assassination of some of the most honourable and the most amiable of the King's subjects.

His Lordship then read the evidence.

In recapitulating the evidence of Adams, his Lordship observed, upon that part where he (Adams) mentioned "that he had been induced to give up Christianity by reading that infernal work, Paine's *Age of Reason*, and the writings of Carlile," that the circumstance was important for the consideration of the Jury. They would weigh every part of his testimony with jealousy, considering the situation in which he was placed, and look upon his statement as requiring corroborative proof. Unless it was supported by such evidence, they would, of course, receive it with considerable hesitation; but if they found it corroborated by the evidence of unsuspected witnesses, they would consider of it accordingly. His Lordship then went through the evidence of the other witnesses, remarking upon those parts where they coincided with the account given by Adams. He then adverted to the arguments of the prisoner's Counsel, and to the observations of the prisoner himself; which latter (though, perhaps, it might not have produced the impression which they could have wished, for the sake of the prisoner) they would give every attention to.

As soon as his Lordship concluded, and before the Jury retired, one of them addressed the Court: "My Lord, I hope your Lordship will allow me to ask a question as to a point of law."

The Lord Chief Baron.—Certainly, Sir; any thing you please.

Juror.—My Lord, we are bound to take the law from your Lordship, and no doubt you will give it to us most correctly. I wish to know whether, if the evidence bore out that an arming had taken place, and that there was a resistance to the civil power, would that, in the law, be a levying of war?

The Lord Chief Baron.—Undoubtedly. After a short pause, his Lordship said, “Gentlemen, do I understand the question rightly? Please to repeat it again.”

The Juror repeated the question; and his Lordship replied, that a resistance to the civil authority would not constitute a levying of war.

The Juror.—My Lord, if there was an arming for the purpose of inducing his Majesty to change his measures, would that be a levying of war?

The Lord Chief Baron.—That, gentlemen, would constitute a levying of war; and, if you believe that it was proved in evidence, it would support the indictment under the Act of his late Majesty. I put only the first and third counts to you, gentlemen, not to embarrass the case.

The same Juror.—I would wish to consider the whole of the indictment. I hope your Lordship will excuse my asking these questions.

The Lord Chief Baron.—Certainly, gentlemen, it is your province to consider the whole of the case before you. You have also an undoubted right to ask any questions you may think necessary.

The Jury then retired at twenty minutes before four; and in about ten minutes returned with a verdict of GUILTY on the THIRD and FOURTH COUNTS.

The prisoner’s appearance was in no degree altered by the annunciation of the verdict. He bowed slightly to the Court, and was removed in the care of two of the gaoler’s assistants.

TRIAL OF R. TIDD AND W. DAVIDSON.

SESSIONS-HOUSE, OLD BAILEY.

First Day, Wednesday, April 26, 1820.

At ten minutes after nine o'clock, Mr. Baron Garrow, Mr. Justice Best, and the Common-Serjeant, took their seats on the bench; the Attorney-General, Mr. Gurney, and Mr. Bolland, and the prisoner's counsel, Messrs. Adolphus and Curwood, appeared in Court at the same time.

After a short consultation between Mr. Curwood and the Attorney-General, Mr. Harmer quitted the Court, and proceeded to commune with the prisoners in the gaol.

During the absence of Mr. Harmer, Mr. Baron Garrow addressed the gentlemen who were waiting to be called on as Jurors. "They might," he said, "feel some surprise at the delay" and the Bench, therefore, felt it right to declare that the present interruption was caused entirely by an application made by the prisoners' counsel. He hoped that the Jury would not consider the delay as intended to convey any want of respect towards them.

One of the Jurors said, he hoped the Court would allow them to sit down, as many of them had come a considerable distance to attend the Court.

Mr. Baron Garrow said, that the Court felt every disposition to accommodate, in every possible manner, the gentlemen of the Jury, and requested them to occupy the seats vacant in the Court.

Soon afterwards Mr. Harmer returned to Court, and communicated to Mr. Curwood the result of his conference.

Mr. Curwood then, addressing Mr. Baron Garrow, stated, that a proposition, which he had thought for the benefit of his clients, had been acceded to by them, and that two of them (Tidd and Davidson) were willing to take their trials at the same time.

Mr. Baron Garrow then addressed the Jurymen, and said, “Gentlemen, I may now communicate to you that which it would have been improper to have made known to you before. The learned gentleman who appears here for the prisoners, and whose exertions you have witnessed upon more occasions than one, has thought fit to consult his clients as to whether it is necessary to pursue the course which has already been adopted in severing their challenges, or whether two of them might not take their trial by the same Jury. By this pause we have in effect saved time, for the two next prisoners have agreed not to sever their challenges, but to be tried at the same time.”

The prisoners, Tidd and Davidson, were then put to the bar; Mr. Shelton called over the list of the Jurors, and after a number of challenges on both sides, the following Jury was ultimately impanelled—

* W. Percy, Cleveland-street, Mary-le-bone, plasterer.

J. G. Holmden, St. James’s-walk, Clerkenwell, fusee-cutter.

J. King, Islington-road, Gent.

C. E. Prescott, Colney-hatch, Esq.

* Benjamin Rogers, Lampton, farmer.

Charles Goldings, Jamaica-place, Limehouse, surveyor.

Charles Page, Crouch-end, Esq. and merchant.

* J. Young, Frederick-place, St. Pancras, Gent.

William Butler, Hounslow, baker.

Joseph Sheffield.

William Churchill.

* Samuel Grainger.

The Jurors thus marked * had served on some of the previous trials.

Davidson asked whether the Court would allow him and his fellow-prisoner to sit down. The Court complied with his request, and chairs were brought to them.

Mr. Gurney having stated the case with great clearness and ingenuity, he proceeded to call the witnesses for the Crown—beginning with,

ROBERT ADAMS. His evidence was the same as before, with some additions. He said, that when the proposition was made for assassinating the Ministers, it was added, that they had found out where they kept their specie, and that they were to return and plunder it. Bradburn was to make a box for the purpose of sending Castlereagh's head to Ireland.

In cross-examination by Mr. Curwood, he said he came back to the belief in Christianity about the 24th of February—the day after he was in marvellous great danger of being hanged. The halter might have had some effect. It was never lawful in his sight to sweep off fifteen men in cold blood. He thought it was a cruel act when it was proposed. Nevertheless, from the 12th of January to the 23d of February, he still continued to frequent the society in which that matter was debated. He was once a chairman. The largest body he ever saw collected was in Cato-street. There was a talk of a great many more, but he did not know them by name. His single sword was all he agreed to contribute. He never heard where Mr. Cook's party were to come from. Nobody objected to the proclamation written by Thistlewood—"Your tyrants are destroyed," &c.

He did not know a man of the name of Chambers, nor did he ever call upon such a man, and say he would have "wine and blood for supper," and solicit him to join in this plot. His object in joining their parties was, to search further into the principles of Brunt; he joined them because he had a foolish and curious idea to know what Brunt's principles were; and for this reason he joined in this plot. He did not know a man of the name of Watman. Tidd did not say he had been deceived in the loft in Cato-street; but he said, "it never can be done."

Tidd and Davidson now both expressed a wish to ask the witness some questions:

Mr. Baron Garrow humanely interposed, and suggested whether, for their own advantage, it would not be more consistent with prudence to put their questions through their Counsel, as they might do something prejudicial to themselves.

The prisoners both thanked his Lordship, and communicated to Mr. Harmer's clerk, the inquiries which they wished to be made.

The witness then, in answer to questions put by Mr. Curwood, said, that he could not say that Davidson was armed in Cato-street; he did not notice any arms.

In re-examination by the Solicitor-General, he said that Davidson brought 500 bullets to Fox-court, on the 22d of February. He had changed his religion in consequence of reading Paine's *Age of Reason*, which was put into his hand by the prisoner Tidd; he did not see Palin, or Cook, or Potter, in Cato-street; he did not know of what numbers their parties consisted.

ELEANOR WALKER, MARY ROGERS, JOSEPH HALE, (apprentice to Brunt), were then called; they repeated their former testimony as to the presence of Davidson and Tidd at the meetings in Fox-court.

Hale, in cross-examination by Mr. Curwood, said, that Edwards was oftener at the meetings in Fox-court than Adams.

THOMAS SMART and CHARLES BISSEX, watchmen in Grosvenor-square, were next called. They were followed by Hector Morrison, servant to Mr. Underwood, the cutler; Henry Gillan, of Mount-street, Grosvenor-square; Edward Simpson, James Aldous (pawnbroker), John Monument, and Thomas Hyden, who communicated the plot to Lord Harrowby. The last witness, in cross-examination, said, that he had known Wilson for a long time. He agreed to join in the plot to save himself. One evening at his friend Clark's he was accused of not supporting the committee, and Davidson said, "those that did not come forward would be the men that they would first murder." This made him agree to what Wilson said.

He knew a man named Bennet, but he never did ask him to attend 'a private radical meeting.' He believed, he said, he might speak or not speak when he was there, as he chose. He did not say "Radical meeting," nor did he say that he must take up arms, if he were called upon so to do; he did not recollect saying so; he had no recollection that he ever did say so.

In re-examination, witness said he had been twice at a shoemakers'-club, where he saw Davidson, Wilson, and Harrison. This club was held at a public-house, called the Scotch Arms, in a court in the Strand. He asked

Bennet to go there with him, and Clark; that was four or five or six months ago.

THOMAS MONUMENT, LORD HARROWBY, and JOHN BAKER, his Lordship's butler, were next examined, in confirmation of the former witnesses; and these were followed by the officers and other persons who were present at the occurrences in Cato-street, and the subsequent arrest of Brunt and Thistlewood.

Tidd, in reference to Ruthven's evidence, said, that Ruthven, on searching him, had said, "Curse me, here's nothing here but a tobacco-box."

Ruthven, on being asked by Mr. Baron Garrow, denied that he had made use of any such expression.

The Attorney-General now addressed their Lordships, and stated, "that the case for the Crown had now been concluded, with the exception of producing the arms and ammunition found in Cato-street and elsewhere. As it was now late, (five o'clock) the Court would perhaps defer the production of these things till the next morning."

Mr. Baron Garrow:—"Gentlemen of the Jury, the case for the prosecution is now closed, all but the production of the arms. If by sitting late there were any probability of bringing the trial to a close this night, I should consult you as to the propriety of doing so; but as we cannot finish it by sitting late, and thereby exhausting ourselves, this is the best time for adjourning."

Davidson stood up and addressed the Court:—"My Lord, as I have been taken by surprise, I am quite unprepared with my witnesses. I hope you will allow my wife to see me this night, that notice may be given them to attend."

Mr. Baron Garrow:—"The Court has no power to make any order on the subject you have mentioned; but I can say that care will be taken that any proper person may be admitted to you for any proper purpose."

The Court then adjourned till nine the next morning.

Davidson took notes during the day, and frequently sent communications to his counsel. He conducted himself altogether with great composure and

propriety. He paid close attention, and made his remarks, both verbally and in writing, without effort or confusion.

Tidd seemed to have perfect self-possession, but a flush that occasionally animated his face indicated some hurry and eagerness of mind.

SECOND DAY.—THURSDAY, *April 27, 1820.*

This morning the Court assembled in pursuance of adjournment, at nine o'clock. The prisoners, Tidd and Davidson were immediately put to the bar. They were provided with chairs as on the preceding day. Davidson had a bible in his hand, which appeared to have been much read, and in the leaves of which were several marks. He had also a large book composed of sheets of paper sewn together, in which there appeared to be a good deal of writing, and in which he occasionally wrote while in court.

The arms, ammunition, and other materials of war, found in Cato-street, and in other places, connected with the machinations of the prisoners, were brought into court previous to the arrival of the judges.

The Court having been opened in the customary form, RUTHVEN, the Bow-street officer, was called, and described the arms and other articles taken in Cato-street, and on the persons of the prisoners. These were again separately exhibited to the Jury.

SAMUEL TAUNTON selected the ball cartridges, hand grenades, pike, handles, and arms found in the lodgings of Tidd, at Hole-in-the-wall-passage, Brook's-market. We have already given their enumeration. The long sword and carbine, taken from Davidson when he was apprehended by Ellis and Chapman in Cato-street, as well as the pistol taken from Tidd, after he had attempted to discharge it at Lieutenant Fitzclarence, were next produced, and underwent a minute inspection.

Sergeant HANSON was next called; he repeated his description of the fire-balls, and the probable effects which would result from their being thrown upon buildings. He also explained the nature of the powder in flannel bags, which, as before, he stated were cartridges for six pounders. He then opened one of the hand-grenades, and exhibited its component parts to the Jury. This one was only armed with four large spike nails, but some of the others which were opened had no less than twenty-five separate pieces of old iron

enfolded within the outer wrappings of rope-yarn. The large grenade, weighing nearly fourteen pounds, and constructed in the same way, but upon a larger scale, was not inspected.

Mr. Gurney announced that he had closed the evidence on the part of the Crown.

THE DEFENCE.

Mr. CURWOOD rose to address the Jury on the part of the prisoners. He said, “that he had now rose for the fourth time, to urge those topics on behalf of the unfortunate men at the bar, which he had previously submitted to other Juries in the course of these trials. The force of those topics remained in his mind undiminished; he was still conscientiously satisfied, that the charge of high treason in these cases was alone supported by the testimony of Adams, —a man, the infamy of whose character ought in his estimation, to deprive him of all claims to credit.”

The learned gentleman then went over the different points of the evidence, and contended with great ingenuity, “that whatever might have been the diabolical intentions of the prisoners—however ready they might have been to inflict vengeance on those whom they might suppose to be the authors of those melancholy transactions, but too frequently designated as ‘the Manchester Massacre,’—yet, that in all these things there was nothing in reason or common sense, that could lead to a fair and rational conclusion that they had it in contemplation either to compass and imagine the death of the king, or to levy war against the king.

“If the Jury, under all the circumstances, entertained with him this opinion, he had no doubt they would not hesitate to acquit the prisoners.”

During the time Mr. Curwood was addressing the Jury, Davidson took from his pocket a Bible, into several parts of which he inserted small pieces of paper, for the purpose of enabling him to turn more readily to certain passages which he intended to quote in his defence.

Mr. ADOLPHUS now called the witnesses for the defence.

MARY BARKER, the daughter of Tidd, deposed, that she knew Edwards and Adams. Edwards left at her father's house, about a fortnight before the affair in Cato-street, a number of grenades and some powder. Adams also left a very large grenade. They were to be called for again. Edwards took them once away, and brought them back afterwards. They were taken away again on the 23d of February by Edwards; and some were brought back on the morning of the 24th, about a quarter of an hour before the officers came. She did not know the person by whom they were brought back. A box remained which had never been opened.

As the witness left the Court she squeezed her father's hand. They both seemed much affected. Tears came into the eyes of Tidd, which he endeavoured to suppress. The daughter was in an agony of grief.

THOMAS CHAMBERS deposed, that he lived in Heathcote-court, Strand; Edwards and Adams repeatedly called upon him. They came together to his house about a week before the Cato-street business, when Edwards said, "Won't you go along with us?" Witness said, "Go where?" when Edwards answered, "Oh, you must know that there is something on foot." He replied, he did not; when Adams said, "We are going to kill his Majesty's Ministers, and we shall have blood and wine for supper." Edwards said, "By ——, Adams, you're right." On the Monday before the Cato-street business they came again. Edwards brought with him a bag, which he wished to leave with witness. He asked what it contained; when Edwards said, "Only some pistols, and things of that sort." Witness would not receive it, and they went away. He saw no more of them.

In cross-examination, witness said, "I believe I have been sworn on the prayer-book. I never was sworn before above twice; I believe in Christianity. I was brought up in the Christian faith, and continue in it. I am no member of any faction. I never saw Paine's works. I know the two prisoners. Davidson I know since the time of Mr. Hunt's procession. Tidd I have known only in the trade. I cannot say how long; I might have known him at the Smithfield Meeting, and elsewhere. I attended all the meetings held in the open air. I scorn all secret meetings. I know Thistlewood, Ings, Harrison, Strange, and Bradburn. I carried banners in some of the processions. I carried no weapons. Thistlewood has been repeatedly at my house. I took all the flags to my house. I saw him also at the Black Dog, in

Gray's Inn-lane. I used to frequent the White Lion, in Wych-street; I went to attend the meetings there. They called themselves Reformers. I was always in the waggons with Hunt. When I refused to go with Adams and Edwards to kill his Majesty's Ministers, I did not think they would ever get any persons to be so foolish as to join them. I may be a great fool, but not foolish enough to enter into such a scheme. I did not communicate the project to any magistrate. I never heard any thing said against his Majesty's Ministers, more than what I saw in the newspapers. I do not read Paine's works; I only read Cobbett, and have a drawer full of them. I also read the Prayer-book and Bible."

JOHN BENNETT deposed, that he knew Hyden; he called on him to ask him to accompany him to a private radical meeting. He endeavoured to persuade him to go more than ten times. He told him, that he might hear and see what was doing; but he need not speak unless he liked.

Several witnesses were now called to the general character of the prisoners.

Mr. COOK, of Charlotte-street, Blackfriars'-road, knew Davidson six years ago; he then worked for him, and was an industrious hard-working man. He had not known much of him since.

Mr. M'WILLIAM, an architect, knew Davidson at Aberdeen, in the years 1800 and 1801; he was then studying mathematics; he had only seen him three or four times since in the streets, and was surprised to have been called on to give him a character. Davidson was, at the time he was at Aberdeen, an apprentice to a cabinet-maker. He had been at college, and had, in Mr. M'William's estimation, "a gigantic mind."

STEPHEN HALE, WILLIAM FRENCH, and SAMUEL LANDS, spoke to the general correctness of the conduct of Tidd in private life. He was an honest, industrious, hard-working man, and apparently much attached to his family. Other witnesses were expected, but did not attend.

Mr. ADOLPHUS addressed the Jury on behalf of the prisoners. His speech was marked by an acute examination of the whole of the evidence, a just and forcible reprobation of the atrocity of a betraying accomplice, and an energetic and powerful appeal to the Jury, not to condemn men on the evidence of an avowed conspirator, who had broken the bonds of society,

forfeited his allegiance to his Sovereign, and his duty to God. The learned gentleman, in the course of a very eloquent speech of an hour and a half, remarked that it would be the last time he should appear on these trials.

Baron Garrow then addressed the prisoner as follows:—"William Davidson, the law of England, in its excessive tenderness to persons indicted for high treason, has allowed them privileges of defence not extended to other cases. If, therefore, in addition to the able defence of your Counsel, you wish to say any thing, now is the time. Do it deliberately, and the Court will hear you attentively."

Davidson then rose, greatly agitated, and spoke nearly as follows:—"I am much obliged to your Lordship, and will call your attention to a few particulars in this instance. My Lord, from my life up, I have always maintained the character of an industrious and inoffensive man. I have no friends in England, but have always depended upon my own exertions for support. I have an extensive family, and for their sake alone is my life a value to me.

"The charge which has been brought against me, I can lay my hand upon my heart, and, in the presence of that God whom I revere, say I am not guilty of. Concerning how I came in possession of the blunderbuss I will state. I had a friend, whose name is Williamson, who told me he had bought an old blunderbuss, which was all over rust. He was going to the Cape of Good Hope, and gave it to me to clean.

"I have been doing business for myself for the last five years, and that is the reason I cannot bring any more of my employers than Mr. Cook to speak in my behalf. To Mr. Edwards I owe being brought into this situation. I never knew any thing of him till I attended Mr. Hunt's procession; that was the first time I ever went into public in my life. Mr. Edwards told me that he would take me to a place to have this blunderbuss raffled for. When I went to the place, I there saw Mr. Thistlewood for the second time; I had previously seen him at Mr. Hunt's dinner. I saw Mr. Adams there also, but I knew none of the others. Mr. Edwards proposed to commence raffling for the blunderbuss; but, as they did not put down any money, I would not agree. I then heard a great deal of improper language, and would not stop.

“I went to Mr. Williamson, who was waiting to know the result, and told him what had passed. He then said that he wanted to get some money, and I proposed pledging the blunderbuss with a pawnbroker. He agreed, and requested me to take it for him. I did so, and got seven shillings upon it from Mr. Aldous, who knew me. The money I gave to Mr. Williamson. I afterwards went to see Mr. Williamson on board the Belle Alliance, which was about to sail for the Cape. He made me a present of the ticket.

“On the 22d of February, Edwards called upon me, and told me that he had been to see Mr. Williamson, and that he had given him an order to get the ticket for the blunderbuss. I said very well, and consented to go and get it out of pledge for him, as, he said, he was to get ten shillings by it, part of which I was to have, and he gave seven shillings and two-pence for that purpose. He told me to meet him at the corner of Oxford-street, which I did; when he said he would take me to Fox-court, where there was a countryman of mine; a man of colour he meant. I objected to going.

“My Lord, I never associated with men of colour, although one myself, because I always found them very ignorant.

“I now pass over to the sword concern; I shall state the truth. On a Monday after the Manchester massacre, I met a person of the name of George Goldworthy, to whom I had been apprentice in Liverpool; he expressed his surprise at seeing me in London; I told him I was out of employment, and that there was nothing worse than being a small master, as all the rest of the trade, from jealousy, set their face against me; he said he had a little business of his own in the country, and that he would employ me if I would go. I agreed to go at 30s. a week. He then appointed me to meet him at a house he called the Horse and Groom, in John-street, Edgware-road, on the Wednesday following. All this time I did not know that Goldworthy was an acquaintance of Edwards’s, but he was.

“On Wednesday evening accordingly I went to the Horse and Groom. I looked into the house, but did not see Goldworthy. I stopped at the corner to wait for him, my lord, which your lordship and gentlemen must well know I being a conspicuous character would not have done, if I was about any thing improper. I saw Adams there; but I went on to walk a little further. On my return I saw several persons going in and out of the house, but still

Goldworthy did not come. A little after eight o'clock, while I was in the Edgeware-road, up came Goldworthy. He asked me if I was not surprised he had not come. I said I was. He then said he was going to call upon a friend, and gave me a sword, which he said he carried for self-protection against thieves about the country.

“At this time I had not the least intention of any thing directly or indirectly concerning the business in Cato-street. I went down the street accidentally, and hearing two or three pistols fired, I went to see what was the matter. I never was afraid of any man. I then heard a cry of “Stop thief!” and I was seized and taken to gaol. I never drew the cutlass nor offered to strike; but gave myself up quietly.

“I have ventured my life fifteen times for my country and my King, and ask you, gentlemen, if you think it possible that I should be so vain as to attempt to join a few weak men to trample down that well-founded constitution, in which this country has so much reason to glory? I would scorn such an act—and I solemnly protest there was nothing found on me but the sword which I received from Goldworthy, and a little block.

“It was said, that I said ‘I would die for liberty’s cause,’ and that I was searched in a public house; this is not true; and if the landlord was here he would prove the contrary. I know nothing at all of the plot in Cato-street, directly or indirectly. I know nothing of a plot to plunder—to burn houses—or to massacre the Ministers. I did not know that any such plot was in existence.

“I will now, my Lords and Gentlemen, give you an instance where one man of colour may be mistaken for another—as must have been my case. Whenever I had any leisure time I employed it as a teacher in a Sunday-school: there a similar mistake was made. A person, a man of colour, insulted one of the female teachers at Walworth. The young lady said it was me, and I found I was slighted, although nothing was said. I sent in my resignation, when the gentlemen waited upon me in a body, and stated what had been alleged to my charge. I was so confounded, that I could not say any thing, and let them go away without making any defence. I afterwards, however, set myself to work, and actually found the man who had committed the offence, made him acknowledge it, and beg the young lady’s

pardon. The young lady could not look me in the face, knowing how she had injured me, but held out her hand as a token of her regret.

“Now, my lord and gentlemen, this shows how one man may be mistaken for another. I would as lieve be put to death as suppose that you, my lord, or the gentlemen of the crown, should think me capable, for one moment, of harbouring a thought to massacre any person whatever.” (Here the prisoner applied for a glass of water, which was handed to him.) “Although I am a man of colour, that is no reason that I should be guilty of such a crime. My colour may be against me, but I have as good and as fair a heart as if I were a white.

“I have a very few words more to say. I have a very numerous family, and a wife that never earned me a penny in her life. All my distress arose from the consideration of the helpless situation of my family. Were it not for that, I would not care what became of me. Like Isaiah it may be said of me, ‘He was persecuted, yet he opened not his mouth.’ As a father, I wish to discharge my duty,—for them I wish to live—and for their sakes I wish, if possible, to clear up the black charge which has been brought against me.

“First of all, Mr. Adams positively swore that he had not seen me in the loft, and that I was down stairs; and then comes Mr. Monument, who said that I addressed the congregation, and told those that were afraid of their lives to walk out. They must see that this was an exaggeration, and in fact altogether an invention, or would not both of these men who were present at the same time have agreed in the same story? I admit that I was in Cato-street; but even admitting this, what does it amount to?

“I now very well know that Mr. Goldworthy was an accomplice of Edwards, and it is clear that by these persons, for purposes best known to themselves, I was entrapped into this snare. As for myself, my Lord, I have served my country, and done all that I could do for it. I have supported my family by honest industry, and I never directly or indirectly associated with any persons at public places. I never attended any meeting but as a common spectator.

“I know nothing of these men (Tidd and the other prisoners). I have no knowledge of their plots; I do not blame the gentlemen of the crown for the manner in which they have conducted this case; because they have done no

more than their duty, according to the evidence which has been brought before them; but I say, the witnesses, as far as regards me, are altogether false sworn. I have selected a few passages from the Bible, which I wish to read on this subject, and these I offer, not for the purpose of insulting the court. The indictment charges that I did certain things 'not having the fear of God before my eyes, but having been instigated by the devil.' Now, I always had the fear of God before me, and always cherished the feelings of virtue and humanity. I always subscribed to the beautiful lines of Mr. Pope:

“If I am right, thy grace impart,
Still in the right to stay;
If I am wrong, oh! teach my heart,
To find that better way.

Teach me to feel another’s woe;
To hide the fault I see:
The mercy I to others show,
That mercy show to me.”

“The verses from this sacred Book, which I think applicable to my case on the present occasion, are these:—

‘One witness shall not rise up against a man for any iniquity, for any sin, in any sin that he sinneth: at the mouth of two witnesses, or at the mouth of three witnesses, shall the matter be established.

‘If a false witness rise up against any man, to testify against him that which is wrong;

‘Then both the men, between whom the controversy is, shall stand before the Lord, before the priests and the judges which shall be in those days.

‘And the judges shall make diligent inquisition: and behold, if the witness be a false witness, and hath testified falsely against his brother;

‘Then shall ye do unto him, as he had thought to have done unto his brother; so shalt thou put the evil away from among you.

‘And those which remain shall hear, and fear, and shall henceforth commit no more any such evil among you.

‘And thine eye shall not pity; but life shall go for life, eye for eye, tooth for tooth, hand for hand, foot for foot.’

“These words, gentlemen of the Jury, I wish to impress on your minds.

“I am a stranger to England by birth; but I was educated and brought up in England; my father was an Englishman, my grandfather was a Scotchman; I may too claim the prerogative of an Englishman, from having been in the country from my infancy,—still I have not a friend in England,—I have not a relative who will stretch out his hand to my helpless family. Then will you not think it hard to have my life taken away for a scene of intended iniquity, of which I know nothing. To have me torn from the bosom of her whom I lived but to cherish,—to have me exposed to the ruthless knife of the executioner, while my innocent starving babes seek in vain for consolation.



“Gentlemen, when I think of this, it unmans me. I am no plotter—no assassin—no traitor! Look well to the evidence, and to your own hearts, before you pronounce the fatal verdict of ‘Guilty.’

“Gentlemen, the Earl of Harrowby I have known for years; I worked on his Lordship’s estate in Staffordshire. Gentlemen, I knew him but to respect him;—and yet it is suggested that I could raise the dagger of the murderer to his breast.—Forbid it providence! Had I known that this plot existed, I would have been the first to warn his Lordship of his danger; but I declare solemnly that I knew not of such an intention. I knew nothing of all these dark and bloody projects.

“Gentlemen, I have now done. I repeat, I will readily submit to death if you think me capable of harbouring an intention to commit the crime of high treason. If that is your persuasion, pronounce your verdict accordingly. I hope my death may prove useful to my country,—for still England I call thee so,—and I trust that those by whom I shall be condemned, may lay down their lives with as clear a conscience.”

BARON GARROW, then addressed Tidd as follows:—“Richard Tidd, do you wish to add any thing to what your counsel has stated for you? If you do, this is the proper time.”

TIDD rose, and said, in a meek and humble voice, “The first thing I have got to say is, that I had the misfortune to get acquainted with Brunt about a month before Christmas, by his frequently going to see Adams, who was living next door to me; our windows joined; by that means I became acquainted with him.

“During the Christmas holidays, we kept them together; after the holidays, I was introduced to Edwards, who does not now appear against me; he was constantly coming to me afterwards; I always was a hard-working man, working sixteen and eighteen hours a day. I never had any time to spare, except on a Sunday. Messrs. Edwards and Brunt together told me that there were certain meetings going on.

“I never attended any meeting after the acts to prevent illegal meetings, till Edwards told me that he had authority to state from persons high in rank, that meetings might take place to procure reform in Parliament. I was then

introduced to a room, where I was taken to, in Brunt's house. I did not see there any thing particular, till the Sunday when I was proposed to take the chair.

"Certain propositions were then made, which made me declare I would never more attend such meetings, and I fully determined that I would not keep company with them afterwards. Prior to this Edwards came up to my house, and said, that he had got certain materials, and Mr. Thistlewood would be obliged to me if I would let them remain in my house. I said, I would allow no such thing. He then went away, but in the evening he came and brought the things, which the officers afterwards seized.

"On Tuesday, Edwards and Brunt came to me, and asked me if I kept to my determination—they added, that all the proceedings that were going on were entirely flustered; they then said there was to be a meeting of the Mary-le-bone Union, and asked me to go.

"Edwards said, every body going there for self-preservation took a weapon of defence. I told him I had none; he said, if I had not, the club would supply me with one; he then pulled out a pistol, and said, you ought to arm yourself now.

"He also had a sword-stick, which he offered me. He afterwards gave me a direction where the meeting was to be held. I have it now in my pocket."—[Here the prisoner produced a small piece of paper, on which was written these words:—'Horse and Groom, John-street, Edgeware-road.']

Tidd then went on. "During Wednesday, while I was at work, Edwards and Brunt came to me, and said there was some people I must bring to the club. I afterwards took Monument, but I do declare before you I never knew any thing about a cabinet-dinner. It was never mentioned to me. I was introduced into the stable, and in ten minutes after the officers came in and apprehended me.

"This is all I have to say, and you may depend I have told the truth."

The *Attorney-General* rose to reply, and proceeded to point out the various instances in which the evidence of Adams had been confirmed: it was

confirmed by Monument, who had not been deeply concerned in the plot; but it was much more strongly confirmed by Hyden, who was no accomplice, and who was in every way worthy of belief. There was, he contended, a compleat chain of evidence, to prove that there was a conspiracy to overturn the government: and if they believed that the two prisoners at the bar took a prominent part in it, they could have no hesitation as to the verdict they should give.

Mr. *Baron Garrow*, proceeded to deliver his charge to the Jury. He went over the whole of the evidence, and commented on all the material parts of it in a most perspicuous manner. While his lordship was reading over the evidence of Monument, the prisoner Davidson caused a written paper to be conveyed to him, and said he hoped it might be read as a part of his defence, which he had before forgot to notice. The learned Judge observed, that although it was not strictly regular to comply with the prisoner's request in the present stage of the business, yet he was ready to allow him to make any statement which might be of use to him. The statement was, that his (Davidson's) house had been searched, and nearly pulled down, and not the slightest evidence was there found which went to show that he had been guilty of any conspiracy.

After his Lordship had read over the evidence of Hyden, he said it was the most important of any that had been given to the Court, because the conspiracy had been communicated to him by one of the parties, who invited him to assist in it; and because he went immediately and communicated to Lord Harrowby the danger which ministers were in. He pretended to show a readiness to join the conspirators, but he never did join them; and one reason for not refusing to take a part in the plot was, a threat held out that any man who did not join would be put to death.

“The learned counsel for the prisoners had endeavoured to throw some discredit on this witness, on the ground of his being an accomplice; but there was not the slightest ground for such a supposition; nor did it appear to him that the slightest inroad had been made on his testimony. On the contrary, he ought to be considered as an instrument in the hands of Providence in saving fifteen of the first men in the country, and perhaps many others, from destruction; and all persons then present in Court, ought to consider themselves indebted to him.

“Here it was clearly in evidence, that the intention of the conspirators was to murder the most respectable and virtuous characters in the kingdom; and that not content with that, they were to destroy the house of the Bishop of London, one of the most amiable men in the kingdom, who of all other men in the world was the least likely to give offence to any body.

“What then could be their motive for all these unprovoked atrocities, but the ulterior object of revolution? If plunder was their object, where were the implements in which they were to carry away their plunder? What necessity was there to add murder to their offence? What occasion had they for a box full of ball cartridges? What was their object in all this, but the ulterior object of effecting a revolution? The usual argument of inadequacy of means had been used on this occasion; and it was said, nothing certainly could be more preposterous than to suppose a revolution could be effected by such contemptible means; but it was proved, that a plan had been formed—that a band of ruffians, reeking with the blood of the most illustrious men in the kingdom, had intended to overturn the government, by stirring up the people to insurrection.

“Such men as these might imagine that the object could be effectual, without ever considering the adequacy of the means. Before the commencement of the French Revolution, the first beginnings were as contemptible as this; and every body knew the vast extent and the wide-spreading desolation, by which these small beginnings were followed.”

After a variety of other observations, all tending to show that the evidence of the accomplices was confirmed in various instances by credible witnesses, particularly by Joseph Hale, the apprentice of Brunt; and by Hyden, the cow-keeper, who was no party in the plot, and who acted honestly and conscientiously, his Lordship concluded his charge.

The Jury then retired, and after an absence of forty minutes, returned with a verdict of “GUILTY UPON THE THIRD COUNT,” with the exception of the eighth and tenth overt-acts. The count in question alleged a conspiracy to levy war.

At the conclusion of the trial of Tidd and Davidson,

Mr. CURWOOD addressed the Court, intimating a desire, on the part of James Wilson, to withdraw his plea of misnomer to the indictment against him for high treason, and to plead "Guilty," and the Attorney-General stating that he had no objection to this course,

James Wilson was put to the bar, and, on being questioned by Mr. Shelton, pleaded Guilty.

Mr. WALFORD then said, he was instructed to make a similar tender on the part of the five remaining prisoners, and

Mr. BARON GARROW directed the prisoners to be brought to the bar.

John Harrison, Richard Bradburn, John Shaw Strange, James Gilchrist, and Charles Cooper, were then brought into the Court, and

Mr. Walford again addressed his lordship, and said that he had watched, with great diligence, the whole of these proceedings, and from what had passed under his observation, he thought he should best consult the interests of the five unhappy men at the bar, for whom, with his learned friend (Mr. Broderick), he was counsel, by recommending them to acknowledge the deepness of their offending, and to throw themselves on the leniency of their Sovereign, who, he was persuaded, would follow the steps of his revered father, by tempering justice with mercy.

Mr. BRODERICK said, he too had watched with the most anxious solicitude the progress of the trials which had taken place upon this indictment, and he felt satisfied that he could not better consult the interests of the prisoners, than by adopting the course suggested by his learned friend. These unfortunate men were desirous of making the only reparation in their power to the offended laws of their country, by acknowledging their guilt. They did not ask for mercy, but they entertained a hope that their contrition would have the desired effect, and would induce an extension towards them of that brightest attribute in the person of the Sovereign.

Mr. BARON GARROW then explained to the prisoners the situation in which they stood, and that their plea must be received without any pledge on his

part, and with a full understanding that they were to receive judgment to die.

They all expressed their concurrence in what had been said by their counsel, and, having withdrawn their previous plea of *Not Guilty*, they pleaded *Guilty*, and were removed from the bar; and the gentlemen of the Jury were dismissed with the thanks of their country.

SENTENCE OF DEATH.

The following morning, Friday April 28th, at a quarter after nine, Lord Chief-Justice Abbot, Chief Justice Dallas, the Chief Baron, Mr. Justice Richards, Mr. Justice Best, and the Common Sergeant, took their seats.

Mr. Brown, the gaoler, was immediately requested to bring the prisoners to the bar. In a few minutes the clank of chains was heard, and the eleven prisoners entered the court. They were all double ironed, with the exception of Ings, who had been much indisposed since his conviction. Thistlewood came first, and advanced to the bar. There was a melancholy resignation in his countenance, and his appearance was considerably altered since the last time of his being in Court.

All being in readiness,

Mr. Shelton (the clerk of the arraigns), addressing himself to Thistlewood, said,

“Arthur Thistlewood, you stand convicted of High Treason;—what have you say why you should not receive judgment to die, according to law?”

THISTLEWOOD immediately drew forth a manuscript address, which he proceeded to read in a mournful tone, as follows:—

“My Lords,—I am asked, my Lord, what I have to say that judgment of death should not be passed upon me according to law. This to me is mockery—for were the reasons I could offer incontrovertible, and were they enforced even by the eloquence of a Cicero, still would the vengeance

of my Lords Castlereagh and Sidmouth be satiated only in the purple stream which circulates through a heart more enthusiastically vibrating to every impulse of patriotism and honour, than that of any of those privileged traitors to their country, who lord it over the lives and property of the sovereign people with barefaced impunity.

“The reasons which I have, however, I will now state—not that I entertain the slightest hope from your sense of justice or from your pity. The former is swallowed up in your ambition, or rather by the servility you descend to, to obtain the object of that ambition—the latter I despise. Justice I demand. If I am denied it, your pity is no equivalent. In the first place,

“I protest against the proceedings upon my trial, which I conceive to be grossly partial, and contrary to the very spirit of justice,—but, alas! the judges, who have heretofore been considered the counsel of the accused, are now, without exception, in all cases between the Crown and the People, the most implacable enemies of the latter. In every instance, the Judges charge the Jury to find the subject guilty; nay, in one instance, the Jury received a reprimand, and that not in the gentlest terms, for not strictly obeying the imperious mandate from the bench.

“The Court decided upon my trial to commit murder rather than depart, in the slightest degree, from its usual forms. Nay, it is with me a question, if the form is usual which precluded me from examining witnesses to prove the infamy of Adams, of Hyden, and of Dwyer. 'Ere the Solicitor-General replied to the address of my Counsel, I applied to the Court to hear my witnesses. The Court inhumanly refused, and I am in consequence to be consigned to the scaffold.

“Numerous have been the instances in which this rule of Court has been infringed; but to have infringed it in my case, would have been to incur the displeasure of the Court, and to forfeit every aspiring hope of promotion.

“A few hours hence and I shall be no more; but the nightly breeze which will whistle over the silent grave that shall protect me from its keenness, will bear to your restless pillow the memory of one who lived but for his country,—and died when liberty and justice had been driven from its confines by a set of villains, whose thirst for blood is only to be equalled by their activity in plunder.

“For life, as it respects myself, I care not; but, while yet I may, I would rescue my memory from the calumny which, I doubt not, will be industriously heaped upon it, when it will be no longer in my power to protect it.

“I would explain the motives which induced me to conspire against the Ministers of his Majesty; and I would contrast them with those which these very ministers have acted upon in leading me to my ruin. To do this, it will be necessary to take a short review of my life, for a few months prior to my arrest for the offence for which I am to be executed without a trial, or, at least, without an impartial one by a jury of my peers.

“’Tis true, the form, the etiquette of a trial has been gone through; but I challenge any of the Judges on the bench to tell me—to tell my country—that justice was not denied me in the very place where justice only should have been administered. I challenge them to say that I was fairly tried. I challenge them to say if I am not murdered according to the etiquette of a Court (falsely denominated) of Justice.

“I had witnesses in Court to prove that Dwyer was a villain, beyond all example of atrocity.—I had witnesses in Court to prove that Adams was a notorious swindler, and that Hyden was no better.—These were the three witnesses—indeed, almost the only ones—against me.—But the form and rules of Court must not be infringed upon, to save an unfortunate individual from the scaffold.

“I called those witnesses at the close of Mr. Adolphus’s address to the Jury, and before the Solicitor-General commenced his reply; but the Court decided that they could not be heard.

“Some good men have thought—and I have thought so too—that before the Jury retired, all evidence was in time, for either the prosecutor or the accused; and more particularly for the latter; nay, even before the verdict was given, that evidence could not be considered too late. Alas! such people drew their conclusion from principles of justice only; they never canvassed the rules of Court, which have finally settled my unhappy doom!

“Many people who are acquainted with the barefaced manner in which I was plundered by my Lord Sidmouth, will, perhaps, imagine that personal

motives instigated me to the deed; but I disclaim them. My every principle was for the prosperity of my country. My every feeling—the height of my ambition—was the welfare of my starving countrymen. I keenly felt for their miseries; but, when their miseries were laughed at, and when, because they dared to express those miseries, they were cut down by hundreds, barbarously massacred, and trampled to death; when infants were sabred in their mother's arms, and the breast, from which they drew the tide of life, was severed from the parent's body, my feelings became too intense, too excessive for endurance, and I resolved on vengeance—I resolved that the lives of the instigators should be a requiem to the souls of the murdered innocents.

“In this mood I met with George Edwards. And if any doubt should remain upon the minds of the public, whether the deed I meditated was virtuous, or contrary, the tale I will now relate will convince them that, in attempting to exercise a power which the law had ceased to have, I was only wreaking national vengeance on a set of wretches unworthy the name or character of men.

“This Edwards, poor and pennyless, lived near Picket-street, in the Strand, some time ago, without a bed to lie upon, or a chair to sit in. Straw was his bed—his only covering a blanket; but, owing to his bad character, and his swindling conduct, he was driven even from thence by his landlord.

“It is not my intention trace him through his immorality. Suffice it to say that he was, in every sense of the word, a villain of the deepest atrocity. His landlord refused to give him a character.

“Some short time after this he called upon his landlord again—but mark the change in his appearance. Dressed like a lord, in all the folly of the reigning fashion, he now described himself as the right heir to a German Baron, who had been some time dead, and stated that Lords Castlereagh and Sidmouth had acknowledged his claims to the title and property, had interfered in his behalf with the German government, and supplied him with money to support his rank in society. From this period I date his career as a Government Spy.

“He procured an introduction to the Spenceans—by what means I am not aware of—and thus he became acquainted with the Reformers in general.

“When I met with Edwards after the massacre at Manchester, he described himself as very poor; and, after several interviews, he proposed a plan for blowing up the House of Commons. This was not my view: I wished to punish the guilty only, and therefore I declined it. He next proposed that we should attack the Ministers at the *fête* given by the Spanish Ambassador. This I resolutely opposed, because the innocent would perish with the guilty;—besides, there were ladies invited to the entertainment—and I, who am shortly to ascend to the scaffold, shuddered with horror at the idea of that, a sample of which had previously been given by the Agents of Government at Manchester, and which the Ministers of his Majesty applauded.

“Edwards was ever at invention; and at length he proposed attacking them at a cabinet-dinner. I asked, where were the means to carry his project into effect? He replied, if I would accede, we should not want for means. He was as good as his word: from him came, notwithstanding his apparent penury, the money provided for purchasing the stores which your Lordships have seen produced in Court upon my trial.

“He who was never possessed of money to pay for a pint of beer, had always plenty to purchase arms or ammunition. Amongst the conspirators, he was ever the most active;—ever inducing people to join him, up to the last hour ere the undertaking was discovered.

“I had witnesses in Court who could prove they went to Cato-street by appointment with Edwards, with no other knowledge or motive than that of passing an evening amongst his friends.

“I could also have proved that subsequent to the fatal transaction, when we met in Holborn, he endeavoured to induce two or three of my companions to set fire to houses and buildings in various parts of the metropolis.

“I could prove that subsequent to that again, he endeavoured to induce men to throw hand-grenades into the carriages of ministers as they passed through the streets; and yet this man, the contriver, the instigator, the entrapper, is screened from justice and from exposure, by those very men who seek vengeance against the victims of his and their villany.

“To the Attorney and Solicitor-General I cannot impute the clearest motives. Their object seems to me to have been rather to obtain a verdict against me, than to obtain a full and fair exposition of the whole affair since its commencement. If their object was justice alone, why not bring forward Edwards as a witness, if not as an accomplice; but no, they knew that by keeping Edwards in the background, my proofs—aye, my incontrovertible proofs of his being a hired spy, the suggestor and promoter—must, according to the rules of court, also be excluded.

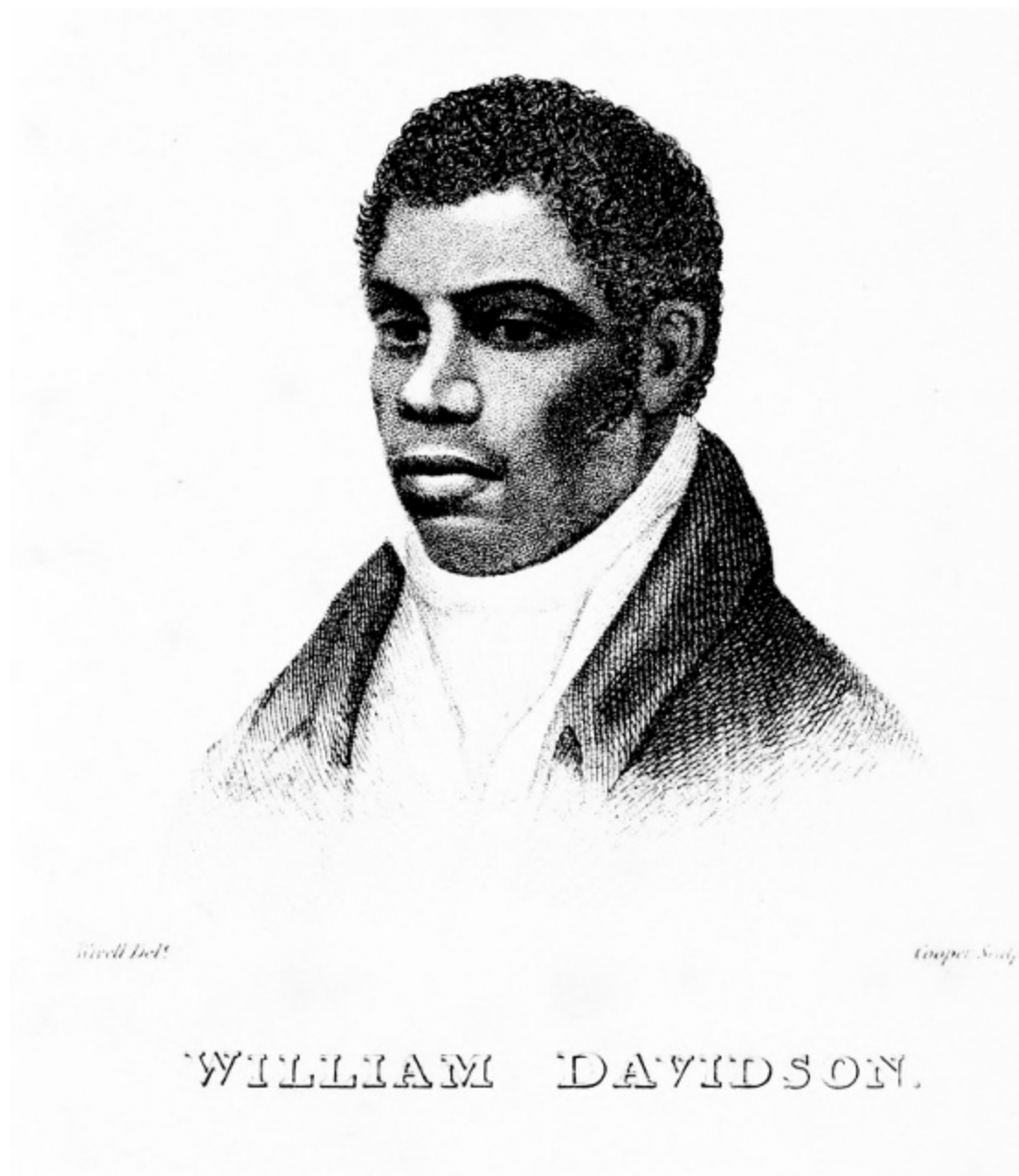
“Edwards and his accomplices arranged matters in such a manner as that his services might be dispensed with on the trial, and thus were the Jury cut off from every chance of ascertaining the real truth. Adams, Hyden, and Dwyer, were the agents of Edwards, and truly he made a most admirable choice, for their invention seems to be inexhaustible.

“With respect to the immorality of our project, I will just observe, that the assassination of a tyrant has always been deemed a meritorious action. Brutus and Cassius were lauded to the very skies for slaying Cæsar; indeed, when any man, or any set of men, place themselves above the laws of their country, there is no other means of bringing them to justice than through the arm of a private individual. If the laws are not strong enough to prevent them from murdering the community, it becomes the duty of every member of that community to rid his country of its oppressors.

“High treason was committed against the people at Manchester, but justice was closed against the mutilated, the maimed, and the friends of those who were upon that occasion indiscriminately massacred. The Sovereign, by the advice of his Ministers, thanked the murderers, while yet reeking in the blood of their hapless victims! If one spark of honour—if one spark of patriotism—had still glimmered in the breasts of Englishmen, they would have risen to a man—for Insurrection then became a public duty—and the *Blood of the Slain* should have been the watchword to vengeance on their murderers. The banner of independence should have floated in the gale that brought the tidings of their wrongs and their sufferings to the metropolis!—Such, however, was not the case, and Albion is still in the chains of slavery—I quit it without regret—I shall soon be consigned to the grave—my body will be immured beneath the soil whereon I first drew breath. My only

sorrow is, that the soil should be a theatre for slaves, for cowards, for despots.

“My motives, I doubt not, will hereafter be justly appreciated. I will therefore now conclude by stating, that I shall consider myself as murdered, if I am to be executed on the verdict obtained against me, by the refusal of the court to hear my evidence.



“I could have proved Dwyer to be a villain of the blackest dye, for, since my trial, an accomplice of his, named Arnold, has been capitally convicted at this very bar, for obtaining money under circumstances of an infamous nature.

“I seek not pity—I demand but justice:—I have not had a fair trial, and, upon that ground, I protest that judgment ought not to be passed against me.”

It is impossible to describe the feelings of horror and disgust which pervaded the mind of every individual in the court during the delivery of this most treasonable and ferocious harangue.—It was of course expected that the wretched criminals would offer something in extenuation of the crimes of which they had been convicted, but it could never have been conceived that any man existed so deeply depraved, and so dreadfully hardened in crime, as to venture to justify projects of assassination, and to propagate doctrines of treason and murder, while standing as it were on the very brink of eternity, and about to be ushered into the presence of that God whom he had braved, by the impious and inhuman declarations to which he had just given utterance.

Mr. Shelton next addressed himself to DAVIDSON, and put to him the same question which he had put to Thistlewood. Davidson advanced, and spoke to the following effect:

“My Lords, you ask me what I have to say why I should not receive judgment to die for what has been said against me? I answer that I protest against the proceedings in this trial in toto.

“In the first place, I always thought that in a court of justice the balance of justice was held with an even hand. But this has not been the case with me; I stand here helpless and friendless. I endeavoured to shew that the evidence against me was contradictory and incredible, and I hoped I had made an impression on the gentlemen in the box; but the moment I was done, the Attorney-General got up, and told them that the evidence was pure and uncontaminated, and to this I may add, that Mr. Baron Garrow almost insisted that they should pronounce me guilty.

“I would ask, has any person identified me but the officers? who, every one knows, have at all times been instrumental in the death of innocent persons.

“I do not now plead for my life; I know I must fall a victim to the vengeance of my enemies. But in what manner have I been guilty of High Treason? It would seem I was a silent spectator; none of the witnesses impute to me a single observation. Now is this probable? I had always got a great deal to say for myself, consequently I was not the person who would stand by without uttering a word; and yet such has been the testimony of Adams.

“Then, with regard to the blunderbuss;—I have already explained that this was not mine, and that I acted in that affair entirely as the agent of Edwards. I have also declared how I came by the sword, and I now declare upon my soul, which will shortly appear before its Maker, that I never made any blow at any man, or discharged any carbine.

“As for Munday, the man who swore that I had a long sword, with a pair of pistols in my girdle, who is he? He is a poor labouring man who comes here for his day’s pay and his victuals, to swear away the life of a fellow creature, and to support the unfounded charge against me that I meant to assassinate his Majesty’s Ministers.

“I appeal to any man, whether it is upon such evidence the life of an innocent man is to be sacrificed? But even supposing, for the sake of argument, that the lives of his Majesty’s Ministers were threatened, it did not follow that this was to extend to the King himself.

“In a passage of Magna Charta, it was ordained that twenty-five barons should be nominated to see that the terms of the charter were not infringed; and, if it was found that his Majesty’s Ministers were guilty of such infringement, then four barons were to call upon them for redress. If this were not granted, then the four barons were to return to their brethren, by whom the people were to be called together to take up arms, and assert their rights. Such an act was not considered in old times as an act of treason towards the king, however hostile it might be towards his ministers. But this does not apply to me.

“I had no intention of joining in any scheme whatever, either to put down my King, or to murder his Ministers. I was entrapped by Goldworthy and Edwards, in order for some private purposes of their own, that they might have my life sworn away.

“I have no objection to tender my life in the service of my country; but let me at least, for the sake of my children, save my character from the disgrace of dying a traitor. For my children only do I feel, and when I think of them I am deprived of utterance—I can say no more.”

JAMES INGS was next asked what he had to say, why he should not receive judgment to die? He replied—

“I have very little to say. My abilities will not allow me to speak. If Mr. Edwards had not got acquainted with me I should not be here. He came to me, unfortunately when I had no business, nor no means of getting a livelihood for my family. I entered into the conspiracy only through him; and it was only necessity, and the want of the means to support my wife and family that brought me here.

“It is only through Edwards that I shall lose my life. I do not mind dying, if you will let that man come forward, and die with me on the scaffold. It was through him that I was going to do that which, I must allow, was of a most disgraceful and inhuman nature.

“On the other hand, his Majesty’s Ministers conspire together, and impose laws to starve me and my family and fellow-countrymen; and if I was going to assassinate these Ministers, I do not see that it is so bad as starvation, in my opinion, my Lord.

“There is another thing, my Lord. A meeting was called at Manchester, under the protection of the law of England, for which our forefathers died, and which King John signed in the open air. This meeting was called under the protection of that law, for the people to petition parliament to give them their rights; but, previous to the business of the meeting, the Manchester yeomanry rode in among them, and cut down men, women, and children, in a manner that was a disgrace to the very name of Englishmen. These

yeomen had their swords ground beforehand; and I had a sword ground also: but I do not see any harm in that.

“I shall suffer, no doubt; but I hope my children will live to see justice done to their bleeding country. I would rather die like a man than live like a slave. I am sorry I have not the power, gentlemen, to say more; I shall, therefore, withdraw.”

JOHN THOMAS BRUNT was next called upon. He came forward in a quick and rather hurried manner; and, in answer to the usual interrogatory, addressed himself to the Court in a firm and confident tone.

He said, he “had intended to have written the observations which he should make, but he had not had the benefit of ink and paper. He would repeat what he had before stated to the Jury on his trial, which had been so ably knocked down by the Solicitor-General, whose sophisticated eloquence would make even crime a virtue. He then proceeded to recapitulate the circumstances already stated by him in his defence. He protested against the verdict; not that he valued his life. No man valued it less when it was to be sacrificed in liberty’s cause.

“Looking around him in this Court, and seeing the sword of justice and the inscriptions which were placed on the walls above the Learned Judges, he could only say, that he felt his blood boil in his veins when he thought how justice was perverted, and her sacred name prostituted to the basest and vilest purposes. He was a man of his word, and not a shuttlecock, as some might suppose. If he pledged himself once to destroy a tyrant, he would do it.

“Edwards, that infamous villain, whom the Solicitor-General had not dared to bring forward, had preyed on his credulity; and Adams had betrayed him. Where was the benefit which would result to Christianity from the able defence made of it by the Solicitor-General? What was Christianity? Why, did its doctrines promulgate so horrid an idea, as that supposing a man to have been a Deist, and all at once to have been converted by seeing the halter staring him in the face, he would, therefore, be strengthened by Almighty God to become a villain and a perjured betrayer of his associates?

“That this was the case with Adams was evident from his own confession. Was this, then, Christianity? If it was, he prayed God he might die without it; for very different, indeed, were the ideas he had formed of religion.”

The prisoner then proceeded to attack the character of the witness, Hale, his apprentice; in which, however, he was interrupted by the Lord Chief Justice, who said, he would not allow persons and witnesses not before the Court to be vilified.

Brunt proceeded—“He had antipathy against none but the enemies of his country. He was a friend to the lower orders, and, as an honest man, had a fellow-feeling for his countrymen, who were starving through the conduct of Ministers. Lord Castlereagh and Lord Sidmouth had an antipathy against the people; and if he did conspire to murder them, was that high treason? He readily acknowledged that he had agreed to assassinate Ministers; but he denied having ever conspired to dethrone or injure the Monarch. But, if resisting the Civil Power, or opposing wicked Ministers, was treason, then he confessed he was guilty. He was no traitor to his country—he was no traitor to his King; but he was an enemy to a boroughmongering faction, which equally enslaved both the King and the people.

“The happiness, the glory, and the safety of the King, depended on his being free as well as his people; but this was not the case now. A faction ruled both King and people with lawless sway. He had, by his industry, been able to earn about three or four pounds a week; and, while this was the case, he never meddled with politics: but, when he found his income reduced to ten shillings a week, he began to look about him, and to ask to what could that be owing? And what did he find? Why, men in power, who met to deliberate how they might starve and plunder the country. He looked on the Manchester transactions as most dreadful, and thought that nothing was too severe for men, who had not only caused, but even applauded, the dreadful scenes which occurred there.

“With pleasure would he die as a martyr in liberty’s cause for the good of his country, and, to have been avenged on her tyrants would have given him pleasure to have died on the spot. He was not a traitor, nor a friend of a traitor, and it was only a villain who could call him so. While a nerve of his

body could move, that nerve should and would be exerted against the enemies of the people.

“He had joined the conspiracy for the public good. He was not the man who would have stopped. O, no; he would have gone through with it to the very bottom, or else have perished in the attempt. Their death was necessary for the public good. They might quarter his body—they might inflict on him every species of torture; but they could not shake his resolution, nor subdue his spirit. He would mount the scaffold with the same firm intrepidity he now evinced, and, if his life was called for, if his wife was to be made a widow and his child an orphan, in this mighty cause he would cheerfully sacrifice it!”

In the course of this daring address, the wretched man had worked himself up to a degree of passion bordering on rage. A feeling of horror was visible in the face of all within his hearing, whilst the unhappy man was coldly explaining and justifying his murderous purposes.

The same question was put to each of the remaining prisoners, who severally returned answers to the following effect:

RICHARD TIDD said, he had been convicted so late last night, that he had no time to prepare a written address, as he could have wished. He denied that the evidence against him was true, with the exception of that of the gentleman he saw on the bench (Captain Fitzclarence); and, as for shooting him, why he would as soon have thought of shooting his own father.

JAMES WILSON declared that he had been drawn into the plot by one of the witnesses (Adams) who appeared against him.

JOHN HARRISON, on being called upon, said My Lord, they were all false witnesses.

RICHARD BRADBURN.—The evidence of Adams was false.

JOHN SHAW STRANGE.—I have only this much to say, my Lords, that the evidence of Adams and Hale was false, and that they are perjured villains.

JAMES GILCHRIST was much affected, and some time elapsed before he could speak. He said—

“My Lords, what I say, I shall say and think as in the presence of my God. I knew nothing of the business until four o’clock on the day on which it took place. I then had not tasted a morsel of food the whole day. [Here the prisoner burst into tears.] I then went to a place where a person appointed to meet me at six o’clock, where I saw four or five men, not one of whom I knew, except Cooper; of him I borrowed a halfpenny, to buy a bit of bread. I appeal to God who now hears me, (casting up his eyes), and knows that this is true.

“I went into the room at Cato-street, where I found a number of men eating bread and cheese, which they cut with a sword. I cut some for myself. Seeing so many men and arms, I was anxious to get away, but Adams stopped me, and brandishing a sword, said, ‘If any man attempts to go from here, I will run him through.’ An officer then came in, and I surrendered without opposition.

“This was all I knew of the business, and yet I stand here convicted of high treason. I have served my King and country faithfully for twelve years, and this is my recompense, this is my recompense, O God!” [Here the prisoner again burst into tears, and could proceed no further.]

CHARLES COOPER said, My Lords, there is no evidence to convict me of high treason.

GILCHRIST came again to the bar, and said, My Lords, I have no objection to die; I would willingly resign my life to save that of another. (It was not known to whom he alluded). He again retired from the bar in tears as before, and continued so till the whole of the prisoners were removed from Court.

Proclamation was now made by the Crier that the Judge was going to proceed to pass sentence on the prisoners, and enjoining strict silence in the Court.

The Lord Chief-Justice ABBOTT, having put on that solemn part of the judicial insignia, the black velvet cap, proceeded to his awful duty, and thus addressed the prisoners:—

“You, Arthur Thistlewood, James Ings, John Thomas Brunt, William Davidson, and Richard Tidd, have been severally tried and convicted of High Treason, in Compassing and Levying War against his Majesty.

“You, James Wilson, John Harrison, Richard Bradburn, John Shaw Strange, James Gilchrist, and Charles Cooper, did originally plead *Not Guilty* to the same indictment; but, after the trial and conviction of the preceding prisoners, you desired to withdraw your plea, and plead *Guilty*. You have cast yourselves on the mercy of your sovereign; and if any of you have your lives spared, which I trust will be the case with some of you, I hope you will bear in mind that you owe it to the benignity and mercy of your sovereign, and to some of those public officers whom you had devoted to a cruel and sudden death.”

His Lordship then proceeded with his address. “Thistlewood,” he observed, “had complained that the Court had refused to receive the testimony of some witnesses, after the evidence had closed on both sides. But he should recollect that his trial was conducted according to the law, as it had been administered in this country for ages. The witnesses whom he proposed to call were for the purpose of impugning the testimony of a man of the name of Dwyer, and no other. His learned counsel had previously called witnesses to the same effect. It could not be allowed to him, according to the ordinary course of proceeding, to do more. Indeed, even if he had been allowed so to do, it could have been productive of no advantage, because his case did not depend upon the evidence of that witness alone. This observation was confirmed by the fact, that in subsequent cases, where the evidence of Dwyer was altogether omitted, a similar verdict of guilty was returned.

“Some of them had thought fit to say much of the character of a person who had not appeared as a witness upon this occasion. The Court could proceed only upon the evidence which was brought before it. Of the person, therefore, to whom they alluded, or of the practices of which he had been guilty, they could have no knowledge. Upon the testimony, however, which had been adduced against them, there was abundantly sufficient to induce a

Jury of their country to come to a conclusion, that the whole of them had taken an active part in the crimes imputed in the indictment.

“From all that had appeared in the course of these trials, as well as from much of that which they had then heard, it was plain to see, that they did not embark in their wicked designs until they had first suffered their minds to be corrupted and inflamed by those seditious and irreligious publications, with which, unhappily for this country, the press had but too long teemed. He did not make these remarks to aggravate their guilt, or to enhance the sufferings of persons in their situation. He made them as a warning to all who might hear of their unfortunate fate, that they might benefit by their example, and avoid those dangerous instruments of sedition, by which their hearts and minds were inflamed, and by which they were drawn from every feeling of morality, from every sense of obligation towards their Creator, and of justice towards society.

“The treason of which they were charged, and found guilty, was that of compassing and imagining to levy war against his majesty, for the purpose of inducing him to change his measures and Ministers; the first step towards effecting which was to have been the assassination of Ministers themselves. They had endeavoured now to complain of the testimony of those persons who had been examined as witnesses on the part of the prosecution. Some of them were accomplices in their guilt.

“It had here happened, as it had upon other occasions, that the principal instruments in the hands of justice were partners in their wickedness: he trusted that circumstance would have its due weight and consideration with all those, who became acquainted with their situation, and with the circumstances of their trial. He hoped that, for the sake of their own personal safety, if they could not be restrained by any other consideration, they would abstain from evil communications and from evil connexions, such as had brought the prisoners to the unhappy position in which they stood.

“Some of them had avowed their intention to have taken away the lives, and to have steeped their hands in the blood of fourteen persons, to many of them unknown. It was without a precedent to see Englishmen laying aside their national character, and contriving and agreeing on the assassination, in

cold blood, of fourteen individuals, who had never offended any of them. This was a crime which hitherto was a stranger to our country, and he trusted it would, after the melancholy example of the prisoners, be unknown amongst us.

“It now,” he said, “only remained for him to pass upon them the awful sentence of the law; but before he did so, he exhorted them, he implored them, to employ the time yet left to them in this life in endeavouring, by prayer, to obtain mercy from that Almighty Power before whom they would shortly appear. The mercy of heaven might be obtained by all those who would unfeignedly, and with humility, express contrition for their offences, and seek that mercy through the merits of their blessed Redeemer.”

This awful appeal, delivered by the judge in the most impressive manner, was wholly lost on Thistlewood, who, with apparent careless indifference, pulled out his snuff-box, some of the contents of which he took, casting his eyes round the court, as if he were entering a theatre. His indifference was the more conspicuous when contrasted with the solemn manner in which the Lord Chief-Justice addressed the prisoners.

His Lordship continued.

“Whether the prisoners would profit by the advice which he thus sincerely gave them he could not say, but he once again begged that they might not allow themselves to be led away by such feelings and opinions as seemed hitherto to have influenced them.

“He had now to pronounce upon them the sentence of the law, which was—

“That you, and each of you, be taken from hence to the gaol from whence you came, and from thence that you be drawn upon a hurdle to a place of execution, and be there hanged by the neck until you be dead; and that afterwards your heads shall be severed from your bodies, and your bodies be divided into four quarters, to be disposed of as his majesty shall think fit. And may God of his infinite goodness have mercy upon your souls!”

The crier said aloud, “Amen!” in which he was joined by many in the Court, who were deeply affected by his Lordship’s address.

The prisoners were then removed from the bar; some of them, particularly Thistlewood, Brunt, and Davidson, appearing to be wholly unconcerned at the awful sentence which had been passed upon them, and the whole of them evincing great firmness and resignation.

Tidd complained of the immense weight of his irons, when the Lord Chief Justice, with that humanity and feeling which had characterized his conduct throughout the whole of this arduous and painful business, said he was sure the gaoler would grant the prisoner every indulgence consistent with his safety.

PREPARATIONS FOR THE EXECUTION,

AND

CONDUCT OF THE PRISONERS.

The public anxiety had been, as we have already stated, more than usually excited during the trials of the conspirators, and much curiosity was, of course, felt as what would be the final result, and on what particular day the unhappy, deluded wretches, would suffer the last dreadful sentence of the law. The public suspense was, however, terminated on Saturday, the day after the passing sentence of death, when his Majesty held a Privy Council, at which Newman Knowles, Esq., the Common-Serjeant of London, (in the absence of the Recorder through indisposition,) was admitted into the presence of the King, to make a Report of the persons convicted of the crime of High Treason before the Special Commissioners, in which the Learned Serjeant was assisted by the Judges present, who tried the prisoners. The Council, at which his Majesty was present, assembled at two o'clock, and continued in deliberation till near four; and, after the Report had been received, the Council proceeded to deliberate upon the fate of the prisoners, and upon the period when it might be proper the execution should take place.

It was at length determined, with a view to render the example more imposing, and to mark the sense which was entertained of the atrocious offence of which the wretched culprits were found guilty, to order them for execution on the following Monday; and that THISTLEWOOD, BRUNT, INGS, DAVIDSON, and TIDD, should be the sufferers. But that part of the sentence which directed that their bodies should be quartered was remitted.

The sentence of death on HARRISON, WILSON, COOPER, STRANGE, and BRADBURN, was commuted to transportation for life, in conformity with the

implied pledge which they received when they agreed to plead *Guilty* to the indictments; and GILCHRIST was respited, without mention of the commutation of punishment.

Mr. Brown, the Governor of Newgate, received the warrant at seven o'clock in the evening, and, accompanied by the Under-Sheriff, immediately went to the condemned room, in which were sitting those who were ordered for execution, attended by eight officers.

When he entered, they rose in the most respectful manner. He held in his hand the Recorder's warrant, of the contents of which they appeared conscious. A dead silence prevailed; but there was not the slightest agitation observable in the countenances or manner of any one of the prisoners.

Mr. Brown addressed them in the following words:—"It is my painful duty to communicate to you, that I hold the Recorder's warrant for the execution of you, Thistlewood, Ings, Brunt, Davidson, and Tidd, on Monday morning. I hope and trust that the short time you have to remain in this world will be employed by you in making preparation for that to which you are going."

Thistlewood immediately, and in the calmest manner, said—"The sooner we go, Sir, the better. Our wish is to die as soon as possible." The others expressed the same sentiments.

Mr. Brown.—"If any of you wish to have the assistance of a clergyman of any persuasion, during your preparation, let me know it, and I shall apply to the authority by which I am convinced you will not be refused."

Not a word was uttered by any one of the prisoners.

Mr. Brown then said, "Let me entreat you with effect to give up your thoughts to the contemplation of the change which you are about to undergo. Your time in this life is very short; devote it to repentance, and prayer to that Being who will not desert you at the moment of fatal separation."

The prisoners did not speak, nor make any sign.

Mr. Brown then left the room, and the miserable men turned to the conversation in which they had been engaged before he entered, without any reference to the tidings they had just heard.

Upon going to the condemned room where the six conspirators who pleaded guilty were confined, Mr. Brown observed a very striking contrast to the scene which he had just quitted, as far as regarded Strange, Bradburn, Cooper, and Gilchrist.

He entered with the Recorder's warrant in his hand, which contained cheering intelligence to them. Strange, Bradburn, Cooper, and Gilchrist, seemed struck with consternation; but Harrison and Wilson shewed no symptoms of agitation, but appeared rather to despise than to pity the deplorable condition of their companions, and uttered not a word expressive of hope or fear.

Mr. Brown then informed them, that mercy had been extended to them, and that their lives were spared.

Strange, Cooper, Bradburn, and Gilchrist, immediately fell on their knees, and, after a pause, gave utterance to incoherent and unintelligible expressions of gratitude. Harrison and Wilson still remaining silent, and apparently unmoved.

Mr. Brown said, "I have now to show you the dark side of the picture. Your unfortunate miserable companions in crime who were tried, are ordered for execution on Monday morning; and you, Harrison, Wilson, Cooper, Strange, and Bradburn, are transported for life."

Wilson, who before had appeared perfectly callous, now exclaimed, "Ah! our poor friends; I am indeed sorry for them." Harrison said nothing; the others were too much occupied with the joy of their own escape to bestow a thought upon those who were to forfeit their lives.

Mr. Brown said, "There is one of the most remarkable circumstances attending your cases that ever took place upon any occasion; and, if you have any feeling, it must make a deep and indelible impression upon you. Those very persons against whose lives your hands were about to be raised, are the men by whose intercession your lives have been saved."

After Mr. Brown had performed so much of his painful task, he proceeded to another step, which excited in the breast of some of the prisoners a strong feeling of irritation, namely, to place them in separate condemned cells.

They had entertained a hope that they would be permitted to spend the last few hours of their life together, mutually to cheer each other by their example, and to obtain those consolations which the society of friends in so melancholy a situation must necessarily produce. Mr. Brown, however, had received his instructions, and was bound to attend to them, although he might himself have been anxious to grant them every indulgence consistent with their safety.

The five unhappy men, whose hours were now numbered, were each removed to the place appointed, and were still accompanied by two of the under turnkeys.

The reason assigned for this arrangement, was the existence of a spirit of hardihood among the unfortunate men, which, while they remained together, seemed but to increase.

In the early part of Saturday, they had been visited by the Reverend Mr. Cotton (the Ordinary of Newgate), and exhorted by him to have recourse to those prayers which had been so strongly and humanely recommended by the Lord Chief Justice. They were, however, deaf to his entreaties, and conjointly told him, that however much they respected his motives, still that their minds were made up on religious subjects; they were Deists, and therefore not inclined to join in that form of appeal to Heaven, which, in the exercise of his sacred functions, he thought it necessary to suggest. Mr. Cotton finding that his arguments were productive of no good effect, left them with regret.

He repeated his visits during the afternoon, but with as little success, and then determined not to renew his solicitations for some hours, which would allow time for quiet reflection, concluding that while their minds were in a state of irritation, he was still less likely to open their hearts to that contrite feeling, from which he could alone hope to bring them to a true sense of their situation.

On Sunday morning he re-commenced his pious labours, and on entering their cells, repeated his former arguments; but they again repeated their disbelief in the divinity of Christ, and refused through his mediation to seek pardon of their offended Maker.

Davidson alone listened with attention, and he at length begged Mr. Cotton to procure him a Wesleyan minister. His wish was communicated to Mr. Brown, who, in the course of the morning attended at Whitehall, and reported the circumstance. The Wesleyan minister selected by Davidson, was a person of the name of Rennett, who, it seems, had been a journeyman tailor, and had sometimes preached among the Wesleyans; Davidson's selection of him on this occasion, was founded on some slight knowledge of him. As this man, however, was in a situation in life not well adapted to reveal the holy tenets of salvation to a dying man, it was thought prudent to decline introducing him to the prisoner.

In the course of Sunday, a most decided change took place in Davidson's manner and conduct, and having been induced to abandon his wish of receiving spiritual comfort from the Wesleyan minister, it was suggested, that if he desired it, he should have a regular clergyman of any persuasion he might think fit. On hearing this proposition again repeated to him, the rays of Christianity, burst, as it were, through his dungeon's gloom, and he immediately requested the spiritual consolation of the Reverend Mr. Cotton. That gentleman visited him immediately, and continued to attend him, and to administer all the consolation in his power to the wretched man, up to the last moment of his life. The unhappy Davidson also begged to be favoured with pen, ink, and paper, as he was anxious to write to Lord Harrowby, towards whom he continued to express the warmest respect. This request was granted, and he wrote a letter of some length, (see p. 410) which he sealed, and which was afterwards given to Mr. Under-Sheriff Turner, to be delivered.

On Sunday afternoon, the heart-rending scene of introducing the families of the wretched men to take a last farewell, was gone through.

Thistlewood's interview with his wife and son was truly affecting; and the scenes exhibited in the other cells were of the most agonizing description. The unfortunate children, capable of understanding the situation of their

unhappy parents, were convulsed with sorrow. The strongest feelings of commiseration were excited in the minds of those whose painful duty it was to be present.

Brunt formed a solitary exception to this remark. His composure on taking leave of his wife was of the most extraordinary description: he expressed himself in the most unmoved manner, and declared that the day of his execution would be to him the happiest of his life.

The solemn service of the condemned sermon, usually preached in the chapel at Newgate, to repentant criminals, who are about to expiate their crimes with their blood, was on this occasion, reluctantly dispensed with. The miserable malefactors had so decidedly pronounced themselves Deists, and (with the exception of Davidson, and even he, until Sunday, had fully concurred with them) had evinced in all parts of their conduct so awful a disregard of the precepts of Christianity and disbelief in its divine origin, as to excite an apprehension that their blasphemous principles would manifest themselves in some dreadful act of infidelity during divine service; it was therefore thought more prudent to omit the ceremony altogether, than to subject the administration of our holy religion to public insult by avowed and hardened infidels; and this determination was perfectly agreeable to the miserable beings themselves, who had boasted of being impenetrable to repentance, and determined to end the brief remnant of their days in the same horrid anti-christian principles which they had throughout professed.

In the course of Sunday, Alderman Wood called twice upon Mr. Brown, and requested to be introduced to the prisoners. Mr. Brown said he would willingly have complied with the worthy Alderman's request, but his instructions were, not to permit any person to have intercourse with the unhappy men, save their families, unless under the sanction of an order from the Privy Council.

Mr. Alderman Wood then begged that he would carry to the prisoners three written questions, and obtain the answers; but this also Mr. Brown refused, upon the principle of the strict performance of his duty.

During nearly the whole of Sunday night, the deluded malefactors, who were attended by the city constables, slept soundly, and were only awakened by the unbarring of their cell doors, to admit the Reverend

Ordinary. He found them in their separate cells, and went to each, urging every pious argument to reclaim them to the paths of Christianity.

On Thistlewood, Tidd, Ings, and Brunt, however, his arguments were unavailing; but on Davidson his endeavours were crowned with success, and in the most fervent manner this unfortunate man joined in prayer with Mr. Cotton for mercy at the hands of his Redeemer.

The cells in which these delinquents were confined, though separated by strong walls of stone, were not sufficiently detached to prevent them from speaking to each other, and Ings, speaking, during the night, of the approaching awful exhibition they were to make, remarked to one of his companions, with savage disappointment, “that there would be plenty of persons present; but d—n the —, they had no pluck.” Indeed, it seemed impossible to divert the mind of this wretched man from the original object by which he had been actuated; he often made declarations of the most terrific nature, and, amongst others, “he wished that his body might be conveyed to the King, and that his Majesty, or his cooks, might make turtle-soup of it!”

At five o’clock on Monday morning, Mr. Cotton went again to the gaol, and proceeded to the condemned cells with the hallowed elements of the sacrament, which was administered to and received by Davidson with the utmost devotion.

The Reverend Gentleman offered the same means of redemption to the other culprits, who, however, were immutable in their infidelity.

Brunt partook of the wine offered to him, but only for the purpose of drinking the King’s health, which he appeared to do cordially. Davidson also drank the King’s health, and joined fervently in the prayer for him and the Royal Family, which is in the established Church Service.

At six o’clock breakfast was ordered for the wretched men, and all but Davidson expressed a desire that they might be allowed to breakfast together. It was known, however, that they wished to arrange and mature what each should say upon the scaffold, and therefore Mr. Brown most prudently refrained from complying with this request.

While these occurrences were taking place within the gaol, the exhibition without was not destitute of interest; and the arrangements making among the persons whose official duties connected them with the final execution of the law, were of the highest importance.

The Sunday papers had announced the period fixed for the execution, and as this was accompanied by a speculation that a scaffold was to be erected on the top of the prison, upon which the ignominious sentence was to be performed, thousands of persons flocked towards the Old Bailey, and continued to do so during the day, assembling in groups for information, and not unfrequently indulging in language disgraceful to themselves, and alarming to those who felt anxious for the peace of the metropolis. Among these persons were many who had long been known as the constant attendants at those factious meetings, the repetitions of which have been productive of so much mischief.

On Saturday evening, Mr. Sheriff Rothwell and Mr. Under-Sheriff Turner, had waited on Lord Sidmouth to arrange the mode in which the execution should take place. The plan at first proposed of erecting a scaffold on the top of the prison at the end near Newgate-street, was then considered and abandoned, Lord Sidmouth being of opinion that there was no necessity for departing from the form customary on like occasions; and, on the suggestion of Sheriff Rothwell, it was further resolved to dispense with that part of the sentence which directed that the culprits should be drawn on a hurdle to the place of execution, in consideration of the great inconvenience that might arise in conveying them along the streets in the manner which had been adopted on former occasions, namely, from the court-yard in front of the Sessions-house to the scaffold.

On the return of Mr. Sheriff Rothwell and Mr. Under-Sheriff Turner, from the office of the Secretary of State, with their final instructions, they directed Mr. Montague, one of the surveyors of public buildings in the city, to make the necessary arrangements for resisting the pressure of the crowd which was anticipated, and for enlarging the ordinary scaffold to such a size as would admit of the performance of the more awful part of the ceremony—that of decapitating the criminals.

To effect these works, a great number of men were suddenly called into requisition, and during the whole of Sunday they were actively engaged.

The addition to the scaffold was made in the Court-yard in front of the Sessions-house, and the loud strokes of the carpenters' hammers soon attracted the attention of the passengers, hundreds of whom mounted upon the wall to view what was going forward. The confusion created at this spot induced Mr. Montague to send to the Lord Mayor for the aid of some constables, and in a short time the City Marshal, arrived at the head of several officers. The crowd was immediately removed from the wall, and order was restored.

Curiosity was next directed to the workmen at the ends of the various avenues leading to the Old Bailey, across which strong posts and rails were erected in such a manner as to prevent the distant crowd from throwing the whole of their weight on those in front, and thereby preventing that confusion and danger which otherwise would have been incurred, and which was productive of such melancholy consequences at the execution of Holloway and Haggerty, for the murder of Mr. Steel[2].

There were double rows of rails across the top of the Old Bailey, across Newgate-street, Giltspur-street, Skinner-street, Fleet-lane, and in fact at the mouth of every approach to the prison.

In the course of Sunday morning Mr. Sheriff Rothwell and Mr. Under-Sheriff Turner held a consultation with the Lord Mayor, as to the necessity of applying to the Secretary of State for the Home Department, to direct the attendance of a military force, not alone in the prison, but in its immediate vicinity.

The result of their deliberations was, that such an application was highly proper; and accordingly Mr. Turner was despatched to Whitehall, with a letter to Lord Sidmouth, intimating the wish of the Lord Mayor. In consequence of this application, in the course of the afternoon one hundred men were ordered to proceed to the gaol of Newgate, and a detachment of fifty was quartered in Giltspur-street Compter.

Other detachments were on duty at a short distance from the prison. In fact, every possible precaution was adopted to prevent disturbance or disorder.

As the evening advanced, the throng in front of the prison increased, and at eight o'clock the pressure was so great, that it required the utmost exertions of the constables on duty to prevent the interruption of the workmen. Thousands of all ranks and ages congregated in front of the gaol.

The scaffold had been brought forth from the Court-yard, and the carpenters were busily employed in erecting the additional platform, which was ten feet square, and constructed with great solidity. They continued their operations by torch-light, which seemed as it were but to make "darkness visible," and considerably enhanced the solemnity of the scene.

Such was the anxiety of some to witness the execution, that they literally determined to remain in the neighbourhood all night, and thousands sacrificed their natural rest to the gratification of their curiosity.

The windows of the houses in the Old Bailey and the streets adjacent, commanding a view of the scaffold were let out at exorbitant prices. The sums demanded for a view from the windows were from ten shillings to two guineas, but even at these prices there was a superabundance of applicants.

Very early on Monday morning, the bar, which had previously been bounded but by one rank of spectators, was enclosed by a second, and the assembling populace soon began to assume the appearance of a crowd. They stood in immense masses by the time the clock struck five.

An idea partially prevailed, that the area immediately without the rail which encompassed the scaffold, where on ordinary occasions spectators are allowed to stand, would be cleared out when the constables arrived, and this induced many to take their stations beyond the first barrier. This apprehension turned out to be well-founded; and, at a quarter past five, those who had been for hours clinging to the inner rail were obliged reluctantly to abandon the situations in which they had proposed to witness the execution. No exceptions were made; and none but officers, and those engaged to assist in the preparations, were suffered to remain. Compelled to retire from the immediate vicinity of the scaffold, they attempted to take up a position beyond the first rail, but they were again disappointed, and the officers still pressed on them till they had retreated beyond the second bar, which was placed at the very extremity of the Old Bailey, on a line with Newgate-street.

The lamp-iron which is fixed in the wall of the prison between the corner of the street and the Debtor's door had been climbed by three persons, and that at the corner was taken possession of in the same way. Both were now relieved from the load which they had sustained for hours. The pump, and the lamps above it, were crowded to an extraordinary degree. The situation appeared one of danger, but those who had taken the trouble to ascend it were suffered to remain.

When the crowd had passed the second bar (that which crossed the road from the end of Newgate-street), it was immediately lined with constables. In the opposite direction, a similar course was taken, and a bar erected a little below the Felons' door precluded on that side any closer approach.

An extensive area was thus taken from the ground which the populace on ordinary occasions are suffered to occupy. The precautions adopted on this occasion greatly surpassed those resorted to on that of Bellingham's execution; but placards like those then addressed to the populace, warning them of the danger of pressing forward too eagerly, from the more efficient measures taken to guard against the pressure of the crowd, were thought unnecessary.

Between five and six o'clock a great quantity of sawdust was brought out and deposited beneath the scaffold on which the decollations were to be performed. It was shortly afterwards transferred to the top of it, and at the same time black cloth was brought, and the scaffold erected in the rear of the drop was completely covered with it. The posts which sustained the chains above it received the same sable attire; and while these preparations were in progress, every avenue leading into the Old Bailey was carefully secured by strong wooden rails fixed across, and guarded by constables.

At twenty minutes before six, a party of the Foot Guards (sixty-one in number) came out of the prison by the felons'-door; they passed down Brown's-yard, opposite Newgate, where they were ordered to remain till their services should be required. At the same time, a detachment moved down Newgate-street towards the City, to secure the peace of the metropolis, should it be in any manner threatened.

Before six o'clock, the City-Marshals arrived; and Mr. Sheriff Rothwell made his appearance at the same moment. He was not accompanied by his

colleague, the Junior Sheriff. He carefully inspected the preparations for the awful business of the morning. The crowd, before repressed beyond the felons'-door, were about this time compelled to move still lower down towards Ludgate-hill.

Mr. Alderman Wood also arrived on the spot very early in the morning; and, on first going into Mr. Brown's office, expressed considerable indignation at his not being suffered to commune with the convicts when he called at Newgate on Sunday; stating that the gaol was no longer under the direction of the city, but under that of Lord Sidmouth, orders having been issued from the Secretary of State's office, to suffer no one to see these convicts, unless by a properly authenticated order.

At six o'clock the constables assembled in immense numbers, and the firemen from the different insurance-offices were among them.

Shortly after six, the City-Marshal called over the names of the officers in attendance from the different City wards. This done, they were formed into several parties, and its proper station was assigned to each.

At this time the Lord-Mayor attended, and, accompanied by the City-Marshal superintended the whole of the arrangements.

During the time occupied by the preparations above described, the conduct of the countless thousands assembled on this awfully interesting occasion was peaceable in the extreme. Curiosity seemed powerfully excited; but no political feeling was manifested by any part of the crowd, and they awaited the termination of the dreadful scene in silence. Sometimes a low murmur ran through the expecting multitude, as some new object connected with the proceedings was pressed on their attention; but it was a murmur of surprise or of interest, which never took the tone of clamorous disapprobation.

For a rescue—if it was ever contemplated—all hopes of accomplishing it must have been annihilated by the precautions we have enumerated. The powerful force assembled on the spot must have convinced the most frantic Radicals that all resistance was vain, and escape on failure impossible.

It was generally reported that the execution would take place an hour before the usual time of execution. At a quarter before seven, the persons accommodated at the top of the prison were observed to retire from the

front of the building. This, in consequence of the rumour just alluded to, caused it to be generally surmised that the prisoners were about to be led out immediately. The rumour, however, proved to be unfounded.

At seven o'clock, the crowd which was collected about the prison, in every avenue leading to it, or commanding the most distant glimpse of its walls, was beyond all calculation; but still there was not the least appearance of disorder. In fact, such were the formidable preparations to preserve the peace, that no possible alarm could exist. In the event of a riot, however, the Lord Mayor was prepared with large boards on poles, ready to be used, should it become necessary to read the Riot Act. They were brought within the rail which enclosed the gallows; and bills were immediately nailed to them, containing, in large characters, the following words:

THE RIOT-ACT HAS BEEN READ.
DISPERSE IMMEDIATELY.

These were then laid down on each side of the debtors-door. Of course they were not exhibited to the populace, being only prepared to be used in case of necessity, that, if unhappily it should become the duty of the civil authorities to have recourse to so strong a measure, it might be impossible for the multitude to be ignorant of the peril to which they would be exposed by neglecting to yield prompt obedience to the mandate.

A party of the Life Guards was stationed towards the lower end of the Old-Bailey, and a small detachment appeared at the end next St. Sepulchre's Church. On a sudden a loud noise attracted the attention of every one; this was caused by the awkward situation in which a person had placed himself, who, having got within the second bar, had clambered up against one of the houses, where the constables, who felt it their duty to remove him, could not get at him. He was at length pulled down by the heels, amidst the boisterous laughter of the crowd, who in this manifested all the thoughtless levity of a common mob—a levity not unlike that described by the unfortunate Hackman to have preceded the execution of Dr. Dodd^[3].

Several persons of distinction—among others some military officers of rank—arrived in the course of the morning, and Mr. Brown, the gaoler, afforded them accommodation in his house. They took their places at the drawing-

room windows, and were thus enabled to command an excellent view of the whole melancholy scene.

Shortly after seven o'clock, the executioner made his appearance on the drop, and placed the steps by which he was to ascend to tie the sufferers to the fatal beam. The saw-dust, which had been previously collected in two small heaps on the second scaffold, was now spread over the boards.

The coffins were then brought out, and placed on the saw-dust, the foot of each being put so as nearly to touch the platform, from which those who were to fill them were to be launched into eternity. They had no lids on them. The coffin of Thistlewood was first lifted out. The third coffin brought out appeared longer than the others, and was supposed to be intended for Davidson, who was the tallest man; but this conjecture proved erroneous.

The persons employed to bring the coffins swept out the large one, and then proceeded to throw saw-dust into them, that the blood of the sufferers might not find its way through.

The block was now brought up, and placed at the head of the first coffin. Most of the spectators were surprised at the shape of the block, as, instead of presenting a flat surface, it was slanted off, so that the top of it was quite sharp.

The awful moment was now rapidly approaching when the ill-fated men were to be removed to another world. Each of them conversed freely with the officers who had them in charge, and severally declared that moment to be the happiest of their lives.

Davidson alone continued to pray fervently to the moment of his removal; but the others seemed perfectly unmoved by their approaching fate.

The six prisoners who had received the royal clemency, had been previously removed to another part of the prison, under the care and superintendence of a turnkey.

The four before-mentioned, *viz.* Strange, Cooper, Bradburn, and Gilchrist, continued to express themselves in the most grateful and enthusiastic terms, that their lives had been saved through the kind and benevolent

interposition of those illustrious personages whose lives were intended to fall sacrifices to their diabolical project; but Wilson and Harrison persisted in the most obstinate indifference to the mercy which had been so graciously extended towards them. During the night and morning, they became excessively uneasy; and, while they wept for the ignominious fate of their companions, they expressed a wish that they might have been participators in its consequences, horrible as they were.

About half-past seven o'clock, the Sheriffs, Under-Sheriffs, several young noblemen, and a number of gentlemen, walked in the procession (as is usual) through the various passages in Newgate, till they arrived at the door of the condemned cells, which comes into the press-yard. The unhappy criminals, since receiving sentence of death, had been confined in the lower ward of the prison assigned to capital convicts.

Thistlewood came out of the condemned cell first; he bowed to the Sheriffs and gentlemen present; he looked very pale, he cast up his eyes, and said, "It appears fine." He displayed uncommon firmness, and held out his hands for the assistant executioner to tie them. He observed to the persons near him, that he never felt in better spirits in the course of his life. He was attired in the same apparel that he wore during his trial. The composure he exhibited was striking; but there was nothing like bravado or carelessness. He now advanced to the block to have his irons knocked off; and, while the turnkey was in the act,

Mr. Alderman Wood advanced to Thistlewood, and said, "Thistlewood, I wish you to give me an answer to two or three questions."

Mr. Sheriff Rothwell—"Mr. Alderman, I must interfere. I am sure you have had quite experience enough of magisterial duties to know, that on a solemn occasion of this kind, you ought not to interfere with a prisoner on the point of death."

Mr. Alderman Wood—"You prevented me, Mr. Sheriff, from entering Newgate yesterday, to obtain the information I am now about to seek. You have no authority to prevent me from now having it, as the gaol is this day under the superintendence of Lord Sidmouth; and I must persist in obtaining answers to my questions, if the prisoner chooses to give them."

Mr. Sheriff Rothwell—"I cannot suffer you to disturb the quiet of this unhappy man's mind at this awful moment, Mr. Alderman. I must, by virtue of my office, interfere, and prevent you from doing any thing which can have a tendency to distract the mind of a man in his awful situation—one who is indeed dead in law."

Mr. Sheriff Parkins—"I must insist on the Worthy Alderman's being permitted to put any question he pleases, unless the prisoner objects. I now authorise Alderman Wood to put whatever questions he wishes."

Mr. Sheriff Rothwell—"Well, I must again object. I think it highly improper."

Mr. Alderman Wood—"I have the questions here written down, and I'll put them to you. Thistlewood, when did you first become acquainted with Edwards?"

Thistlewood—"About June last."

Mr. Alderman Wood—"Where did you become acquainted with Edwards?"

Thistlewood—"At Preston's."

Mr. Alderman Wood, who did not appear to have heard the final letter, said, "At Preston, in Lancashire?"

Thistlewood—"No: at Preston's, the shoemaker."

Mr. Alderman Wood—"Did he ever give you any money?"

Thistlewood—"Yes, I had a little from him, a pound-note at a time."

The Worthy Alderman wrote down the answers he had received to his questions.

Mr. Sheriff Rothwell appeared extremely angry at the course taken by the Worthy Alderman, while his colleague, Mr. Sheriff Parkins, expressed his warm approbation of it.

Tidd next made his appearance; he came out of the cell into the Press-yard with an air of assumed gaiety. He smiled during the time he was being pinioned, and continued quite cheerful during the time his irons were

knocking off. The moment his legs were free from their burden, he ran towards Thistlewood, who had taken a seat on a bench (placed in the yard for the purpose), and said, "Well, Mr. Thistlewood, how do you do," and they shook hands most heartily. Thistlewood said, "He was never better." Tidd conversed in the most gay and cheerful manner with the turnkey, while he was driving the rivets out of his irons, and composedly assisted the man in taking them off.

Ings then came out of the cell, and danced as he came down the steps along the yard. He was dressed in his usual clothes as a butcher, a rough pepper-and-salt coloured worsted jacket, and a dirty cap. During the time his hands were being tied he became thoughtful, afterwards he seemed hurried and in great mental pain; but before his irons were knocked off he began to laugh and shout, and afterwards took a seat by the side of his fellow-sufferers.

Brunt was then brought into the Press-yard; he was perfectly composed, but looked round eagerly to see his wretched companions. He nodded to them, and then held out his hands to have them tied. He said nothing during the time he was being pinioned and having his irons taken off; but afterwards he addressed Thistlewood, Tidd, and Ings; he told them to keep up their spirits, and to one of his companions he said, "All will soon be well."

Davidson was then brought out of his cell; he seemed a little affected at the sight of his companions, but soon regained that composure which he evinced during the trials. His lips moved; but he did not betray much anxiety till his irons were knocked off. He then looked wildly at the Rev. Mr. Cotton, and appeared to be in prayer, very devoutly; the others declared they were about to die in peace with all mankind, but that they had all made up their minds on religious matters, and were determined to die Deists.

Davidson took the sacrament in the morning at six o'clock, from Mr. Cotton, and prayed most fervently. He also joined the Rev. Gentleman in a prayer for the prosperity of his Majesty King George IV., though he avowed he had not the same feeling for his ministers. A glass of wine was offered to Thistlewood, who politely refused. Tidd and Brunt took a glass each.

The irons of the culprits were then knocked off in succession. Thistlewood requested Mr. Cotton to speak to him, but for no other motive than to

request he would observe his conduct had been manly, and to state that he was perfectly happy, and died in peace with God.

Even to the last moment, the attentions of the Reverend Ordinary to the four men whom we have pointed out were unavailing: to every remonstrance he offered, the only answer was, they wanted no assistance of his, their minds were perfectly made up on religious subjects, and they believed they should receive mercy at the hands of God.

When the awful ceremony of pinioning the culprits by the yeoman of the halter was concluded, they each shook hands, and most fervently exclaimed, "God bless you." The Reverend Mr. Cotton then began to read the burial service, commencing at the words "I am the resurrection and the life," &c., and, the arrangements being completed, the procession advanced through the dark passages of the gaol, led by the Sheriffs and Under-Sheriffs. The Reverend Mr. Cotton moved first.

Thistlewood followed, with his eyes fixed, as it were, in abstract thought, and apparently lost to his situation. A vacant and unmeaning stare pervaded his countenance, which seemed unmoved by the devotions of the pious Ordinary.

Tidd walked next, and although somewhat affected by his situation, his manner was collected, manly, and unaffectedly firm.

Ings came next, and was laughing without reserve, and used every forced effort to subdue the better feelings of nature, which might remind him of his awful situation; his conduct was more like a delirium of fear than an effect of courage.

Brunt, in fixed and hardened obduracy of mind, next advanced, and with a sullen and morose air of indifference surveyed the officers who were conducting him to his fate.

The unhappy Davidson came last, with clasped hands and uplifted eyes, praying most devoutly; and the officers of the gaol closed the mournful procession.

On their arrival at the Lodge, from which the Debtors'-door leads to the scaffold, a moment's pause took place, while the dreadful paraphernalia of

death were adjusted without. Thistlewood, who stood first, clasped his lips, and with a frown surveyed, from the door-way in which he stood, the awful preparations for his fate.

The Under-Sheriff, at this period stepped into the road from the Governor's house, to ascertain how far the preparations had proceeded. Every thing seemed to be completely arranged. A party of the Horse-Guards seemed about to pass the barrier beyond which they had previously been stationed, but they did not persevere, in consequence of the difficulty of penetrating the crowd.

The persons who had previously retired from the front of the prison now (at twenty minutes before eight) returned to their old places on the top of it. This, with other circumstances just particularized, announced that the culprits were about to be conducted to the scaffold.

The re-appearance of the executioner, and the solemn sound of the bell, removed all doubt on the subject. Every one felt that the awful moment was at hand; and the assembled thousands stood uncovered in silent, breathless, expectation.

Those opposite the prison saw in the next moment the procession from the interior of it reach the door through which the culprits were to pass to expiate their crimes with their blood.

The Ordinary ascended the platform, and at a quarter before eight Thistlewood made his appearance on the scaffold. His step faltered a little as he mounted the platform, and his countenance was somewhat flushed and disordered on being conducted to the extremity of the drop. His deportment was firm, and he looked round at the multitude with perfect calmness. He had an orange in his hand. On the cap being placed on his head, he desired that it might not be put over his eyes. While the executioner was putting the rope round his neck, a person from the top of the houses exclaimed, "Good Almighty bless you." Thistlewood nodded. The Reverend Mr. Cotton, by whom he was preceded, endeavoured to obtain his attention; but he shook his head, and said, "No, no." He looked round repeatedly, as expecting to recognise some one in the crowd, and appeared rather disconcerted at observing the distance to which the populace were removed.

Some of those to whom the face of Thistlewood was not familiar, imagined that he gave proofs of the fear of death upon the scaffold, but in this supposition they were much mistaken. At the moment that he has been heard uttering his dangerous politics in safety, and declaring his determination to stand or fall by them, the expression of his features was the same; and Thistlewood with the rope round his neck was the same Thistlewood that appeared so conspicuous at Smithfield.

Mr. Cotton approached him while the executioner was making his awful arrangements, and spoke to him upon the subject of his thoughts of hereafter. Thistlewood shook his head, and said he required no earthly help upon that subject. He then sucked his orange, and, looking down at the officers who were collected about the scaffold, said, in a firm voice, "I have but a few moments to live, and I hope the world will be convinced that I have been sincere in my endeavours, and that I die a friend to liberty."

The figure of the miserable man, which naturally was not good, had undergone a change for the worse: in consequence of the pressure of the rope with which his arms were fastened behind, his shoulders were raised to a degree that closely approached deformity. The executioner having placed the cap upon his head, and fastened the rope round the beam, looked towards the Sheriff as a signal that his duties towards Thistlewood were completed.

While the executioner was performing his last offices without to this wretched man, the scene within the Lodge was almost beyond the power of description. The dreadful obduracy of Brunt and Ings filled with horror the small assemblage of persons among whom they stood.

Ings, with a hardihood almost indescribable, sucked an orange, with which Sheriff Parkins had provided him, as well as all the other prisoners, and sung, or rather screamed, in a discordant voice, "Oh! give me death or liberty!" Brunt rejoined, "Aye, to be sure. It is better to die free, than to live slaves!"

A gentleman in the Lodge admonished them to consider their approaching fate, and to recollect the existence of a Deity, into whose supreme presence a few minutes would usher them.

Brunt exclaimed, "I know there is a God!" and Ings added, "Yes, to be sure; and I hope he will be more merciful to us than they are here."

Tidd, who had stood in silence, was now summoned to the scaffold. He shook hands with all but Davidson, who had separated himself from the rest.

Ings again seized Tidd's hand at the moment he was going out, and exclaimed, with a burst of laughter, "Give us your hand! Good-bye!"

A tear stood in Tidd's eye, and his lips involuntarily muttered, "My wife and——!"

Ings proceeded—"Come my old cock-o'-wax, keep up your spirits; it all will be over soon."

Tidd immediately squeezed his hand, and ran towards the stairs leading to the scaffold. In his hurry, his foot caught the bottom step, and he stumbled. He recovered himself, however, in an instant, and rushed upon the scaffold, where he was immediately received with three cheers from the crowd, in which he made a slight effort to join.

The applause was evidently occasioned by the bold and fearless manner in which the wretched man advanced to his station. He turned to the crowd who were upon Snow-hill, and bowed to them. He then looked down upon the coffins and smiled, and turning round to the people who were collected in the Old-Bailey towards Ludgate-hill, bowed to them. Several voices were again heard, and some in the crowd expressed their admiration of Tidd's conduct.

The rope having been put round his neck, he told the executioner that the knot would be better on the right than on the left side, and that the pain of dying might be diminished by the change. He then assisted the executioner, and turned round his head several times for the purpose of fitting the rope to his neck. He afterwards familiarly nodded to some one whom he recognised at a window, with an air of cheerfulness. He also desired that the cap might not be put over his eyes, but said nothing more. He likewise had an orange in his hand, which he continued to suck most heartily. He soon became perfectly calm, and remained so till the last moment of his life.

In the interim, Davidson, who had not yet come out, leaned with his back against a dresser in the lodge, and continued with his hands clasped, praying in the most fervent manner, and calling with unfeigned and unreserved piety for the intervention of the Redeemer. Brunt and Ings, however, persevered in the same hardihood that they had manifested throughout, and continued venting their thoughts in unreserved ejaculations.

A humane individual who stood by remonstrated with Brunt again, and besought him to ask pardon of God.

Brunt, with a fierce and savage air, surveyed his adviser contemptuously, and exclaimed, "What have I done? I have done nothing! What should I ask pardon for?" The stranger rejoined, "So you say, Brunt; but if you have ever injured any man, or done any thing which your conscience tells you is wrong, ask pardon of God, penitently and sincerely, and you will, I have no doubt, obtain mercy."—Brunt replied, "I die with a perfectly clear conscience. I have made my peace with God, and I never injured no man." The stranger proceeded, "Believe in the Lord Jesus Christ!" Brunt surveyed his humane adviser again, and muttered, "My mind is made up."

"Well done, Brunt!" exclaimed Ings, and was again proceeding to sing,

"Oh give me death or liberty,"

when he was summoned to the scaffold. He turned to Brunt, and, with a smile on his countenance, shook hands with him, and prepared to go. While the hatch was opening, he exclaimed, with a loud voice, "Remember me to King George the IVth; God bless him, and may he have a long reign." He now recollected that he had some clothes left behind, which he requested might be given to his wife. The wretched man had thrown off the clothes in which he had been tried, and had put on an old butcher's jacket, determining, as he said, "that Jack Ketch should have no coat of his."



JAMES INGS.



THOMAS BRUNT

While he stood on the edge of the steps, at the door of the gaol, he said to Davis, one of the turnkeys, "Well, Mr. Davis, I am going to find out this great secret," and then springing upon the scaffold, exclaimed, "Good-bye! Gentlemen. Here goes the remains of an unfortunate man."

He rushed to the platform, upon which he leaped and bounded in the most frantic manner. Then turning himself round towards Smithfield, and facing the very coffin that was soon to receive his mutilated body, he raised his pinioned hands, in the best way he could, and leaning forward with savage energy, roared out three distinct cheers to the people, in a voice of the most frightful and discordant hoarseness. But these unnatural yells of desperation, which were evidently nothing but the ravings of a disordered mind, or the ebullitions of an assumed courage, struck the majority of the vast multitude who heard them with horror.

Turning his face towards Ludgate-hill, he bowed, and cried out, "This is going to be the last remains of James Ings," and shouted out part of the song in which the words *Death or Liberty* are introduced. He laughed upon looking at the coffins, and said, turning his back to them, "I'll turn my back upon death!—Is this the gallows they always use? Those coffins are for us, I suppose."

Tidd, who stood next to him, and had the moment before been in conversation with Thistlewood, turned about, and said, "Don't, Ings. There is no use in all this noise. We can die without making a noise." Ings was silent for a few moments; but as the executioner approached him with the rope, he called out, "Do it well—pull it tight!"

When the executioner threw the rope round the beam, he said, "Give me a better fall; the others won't have fall enough." When the man put him on the cap, Ings said, "I have got a cap of my own; put it over this night-cap, and I'll thank you." The executioner proceeded to do so; but Ings said, "It will do when we are going off: let me see as long as I can." He then pushed the cap from his eyes. The others had raised the caps from their eyes. "Here I go, James Ings!" said he, "and let it be known that I die an enemy to all tyrants. Ah ha! I see a good many of my friends are on the houses."

Again Tidd turned round to Ings, and, as it appeared, at the suggestion of Thistlewood, requested that he would not continue the noise. Ings laughed and remained silent for a few minutes.

Mr. Cotton approached Tidd and Ings, but they turned away from him. Ings smiled at his interference, but Tidd turned round to Thistlewood and spoke

a few words, in which he seemed to complain of the inclination of the Ordinary to break in upon their last moments.

Thistlewood now said to Tidd, "We shall soon know the last grand secret."

Brunt, who, after the departure of Ings, stood by himself within the porch of the prison, having no companion of his own principles to encourage him, (as Davidson stood far away from him,) muttered something about the injustice of his fate. The persons around him repeatedly entreated him to alter his religious creed, during the last few moments left, and to believe in the Saviour of the world. Still immutable—still hardened in iniquity—he listened not to the remonstrances of sincere friends, who besought him, for his wife's sake, and for the sake of his son, to ask the protection of the Redeemer for them; but he appeared tired of these friendly importunities, and wished to ascend the scaffold next.

Davidson, however, was summoned before him, and with a composed countenance and a firm step he passed by his former companion in guilt to his fate, without noticing him.

Brunt now appeared considerably irritated. "What," he exclaimed, "am I to be the last? Why is this? They can have my blood but once, and why am I to be kept to the last? But I suppose they are afraid I should say something to the people, because I spoke my mind on the trial. However, I don't care."

Davidson walked up the platform with a firm and steady step, but with all that respectful humility becoming the condition to which he had reduced himself. He bowed to the crowd, and instantly joined Mr. Cotton in prayer. He seemed inattentive to every thing but the journey he was about to take, and his lips moved in prayer until he was no longer able to speak. He made no request to have his eyes uncovered, but was evidently preparing himself for bidding an eternal adieu to a world of which he had ceased to be an inhabitant.

Brunt was the last summoned to the fatal platform, and he rushed upon it with impetuosity. Some of the people cheered him, which evidently gratified and pleased him. It brought a sort of grin on his countenance, which remained till his death. But his aspect "belied his utterance." Externally he appeared to have shrunk more from his fate than any one of

his wretched companions; his cheeks had sunk extremely, giving a degree of ghostly prominence to a forehead, cheek-bones, and chin, naturally very much protruded, and his colour was of a livid paleness; but the eyes of the man sent forth from their deep recesses glances of distressing keenness; his lips were firmly compressed together; not a tear trickled down his cheeks; there was no quaking of the members. To use an expressive phrase of his speech on receiving sentence, "he went through with the business." "What," said he, "soldiers! What do they do here? I see nothing but a military government will do for this country, unless there are a good many such as we are. I see a good many of my friends round about."

While the rope was being adjusted, he looked towards St. Sepulchre's Church, and perceiving, or affecting to perceive, some one with whom he had been acquainted, he nodded several times, and then made an inclination of the head towards the coffins, as if in derision of the awful display. His conduct was marked by the same irrational levity to the last. When his handkerchief was taken off, the stiffener fell out, and he kicked it away, saying, "I shan't want you any more."

His last act was to take a pinch of snuff from a paper which he held in his hand. He stooped to put it to his nose, and this he was only able to effect by pushing up the night-cap which hung over his face. He also threw off his shoes.

The executioner was now proceeding to adjust the ropes, and to pull the caps over the faces of the wretched men. A voice from the crowd again called out, "God bless you, Thistlewood!" Thistlewood looked towards the place from which it issued, and slightly inclined his head. He then said a few words in a whisper to Tidd, and awaited his fate in silence.

Brunt refused altogether to speak with Mr. Cotton upon the subject of the next world, and declared that he had done all he thought necessary for the place to which he was going. He appeared disposed to address the crowd, but they were at too great a distance, and the executioner was quick at his work.

The cap was first drawn over the face of Thistlewood, and his cravat was bound over his eyes. He stooped gently while the man tied it, and appeared to direct him as to the way in which he wished it done.

When the executioner came to Ings, the unhappy man said, "Now, old gentleman, finish me tidily. Tie the handkerchief tight over my eyes. Pull the rope tighter; it may slip."

When the handkerchief was tied over his eyes, he cried out, "I hope, Mr. Cotton, you will give me a good character!" and commenced swinging about in his hand an old night-cap in the most careless manner.

Tidd's lips were in motion just before he was turned off, as if in prayer. Davidson was in the most fervent prayer, and seemed to feel his situation with a becoming spirit. He firmly pressed the hand of the Rev. Mr. Cotton.

The executioner having completed the details of his awful duty, by placing the criminals in a proper situation upon the trap-door, walked down the ladder, and left Mr. Cotton alone upon the scaffold. The Reverend Gentleman standing closer to Davidson than to any of the rest, began to read those awful sentences which have sounded last in the ears of so many unhappy men. Suddenly the platform fell, and the agonies of death were exhibited to the view of the crowd in their most terrific form.

Thistlewood struggled slightly for a few minutes, but each effort was more faint than that which preceded; and the body soon turned round slowly, as if upon the motion of the hand of death.

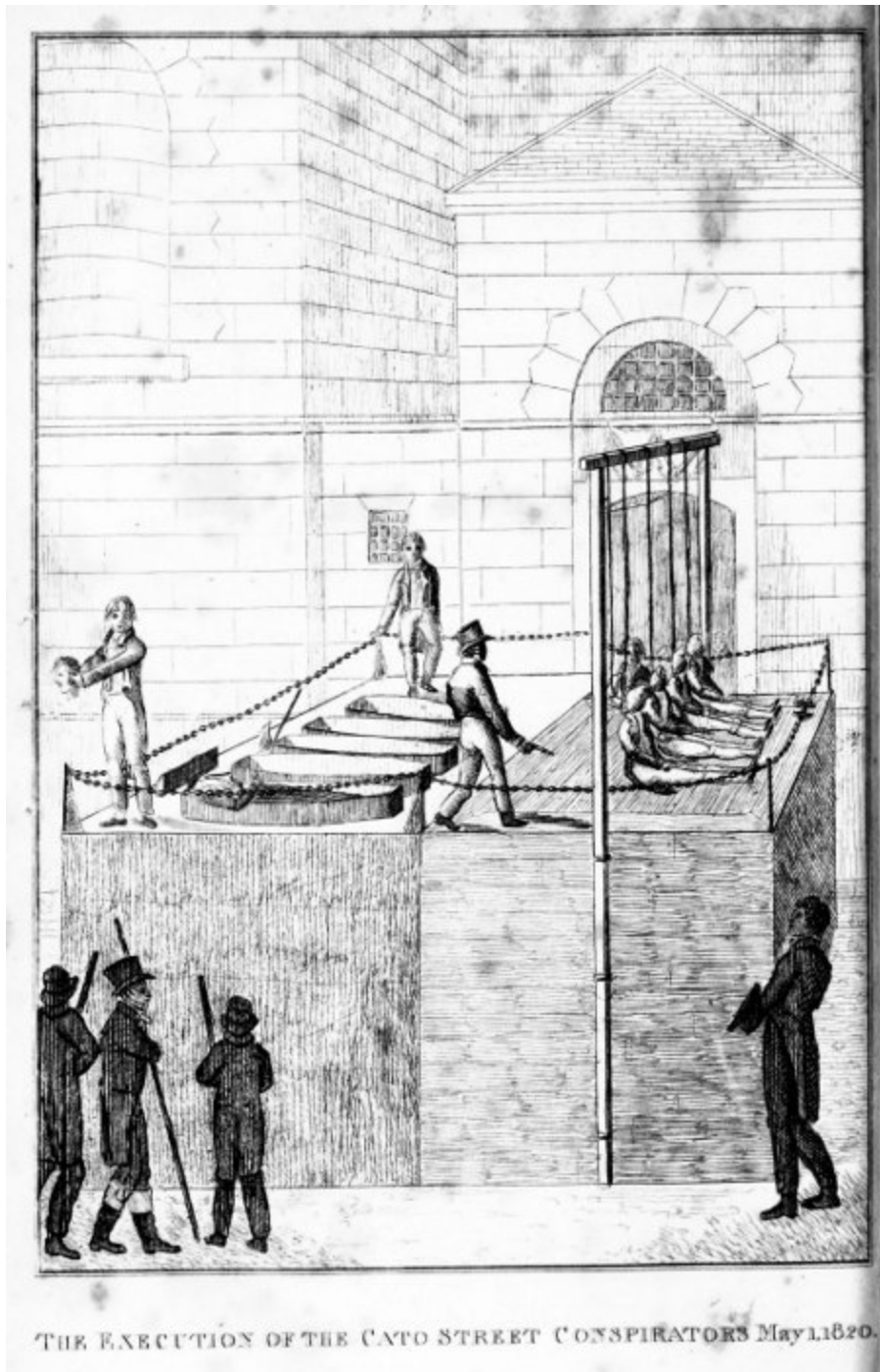
Tidd, whose size gave cause to suppose that he would "pass" with little comparative pain, scarcely moved after the fall. The struggles of Ings were great. The assistants of the executioner pulled his legs with all their might; and even then the reluctance of the soul to part from its native seat was to be observed in the vehement efforts of every part of the body. Davidson, after three or four heaves, became motionless; but Brunt suffered extremely, and considerable exertions were made by the executioners and others to shorten his agonies, by pulling and hanging upon his legs. However, in the course of five minutes all was still.

THE DECAPITATION.

Exactly half an hour after they had been turned off, the order was given to cut the bodies down. The executioner immediately ascended the scaffold, and drew the legs of the sufferers up, and placed the dead men, who were still suspended, in a sitting position, with their feet towards Ludgate-hill. This being done, the trap-door was again put up, and the platform restored to its original state. The executioner proceeded to cut Thistlewood down; and, with the aid of an assistant, lifted the body into the first coffin, laying it on the back, and placing the head over the end of the coffin, so as to bring the neck on the edge of the block. The rope was then drawn from the neck, and the cap was removed from the face.

The last convulsions of expiring life had thrown a purple hue over the countenance, which gave it a most ghastly and appalling appearance; but no violent distortion of feature had taken place. An axe was placed on the scaffold, but this was not used.

When the rope had been removed, and the coat and waistcoat forced down, so as to leave the neck exposed, a person wearing a black mask, which extended to his mouth, over which a coloured handkerchief was tied, and his hat slouched down, so as to conceal part of the mask, and attired in a blue jacket and dark-grey trowsers, mounted the scaffold with a small knife in his hand, similar to what is used by surgeons in amputation, and, advancing to the coffin, proceeded to sever the head from the body.



When the crowd perceived the knife applied to the throat of Thistlewood, they raised a shout, in which exclamations of horror and of reproach were mingled. The tumult seemed to disconcert the person in the mask for the moment; but, upon the whole, he performed the operation with dexterity; and, having handed the head to the assistant executioner, who waited to receive it, he immediately retired, pursued by the hootings of the mob.

The assistant executioner, holding the head by the hair over the forehead, exhibited it from the side of the scaffold nearest Newgate-street. A person attended on the scaffold, who dictated to the executioner what he was to say; and he exclaimed with a loud voice—"This is the head of Arthur Thistlewood, the traitor!" A thrilling sensation was produced on the spectators by the display of this ghastly object, and the hissings and hootings of part of the mob were vehemently renewed.

The same ceremony was repeated in front of the scaffold, and on the side nearest Ludgate-street. The head was then placed at the foot of the coffin; while the body, before lifted up to bring the neck on the block, was forced lower down, and, this done, the head was again put in its proper place, at the upper end of the coffin, which was left open.

The block was then moved by the hangman, and placed at the head of the second coffin. The cap and rope were removed from the face and neck of Tidd. The same livid hue which overspread the countenance of Thistlewood was perceptible.

The coat and waistcoat being pulled down, the masked executioner again came forward. He was received with groans, and cries of "Shoot that —— murderer;" "Bring out Edwards," &c. He seemed less disconcerted than at first, and performed the operation with great expedition, and, having handed the head to the person who had before received that of Thistlewood, he retired amidst yells and execrations.

The assistant executioner then advanced to the side of the scaffold, from which the former head was first exhibited, holding the head between both hands by the cheeks, the forehead of Tidd being bald, and exclaiming, "This is the head of Richard Tidd, the traitor." The same words were also repeated from the other two sides of the scaffold, and the head was then deposited with the body in the second coffin.

The block was now removed to the third coffin, and the body of Ings, being cut down, was placed in it with the face upwards. The person in the mask again came forward, severed the head from the body, and retired amidst the hootings of the crowd. The assistant-executioner proceeded to exhibit the head, holding it up by the hair in the same way as he had Thistlewood's,

from the three sides of the scaffold, exclaiming, "This is the head of James Ings, the traitor." The head was then placed in the coffin.

The block being removed to the fourth coffin, the body of Davidson was taken down from the gallows, the noose taken from about the neck, and the cap removed from the face, which remained in death exactly what it had been while living. The mouth was a little open, but no expression of agony, or change of colour, could be remarked. The body was placed in the fourth coffin, and the man in the mask having performed his part, the head was exhibited in the same way as the last, with the exclamation, "This is the head of William Davidson, the traitor."

Little or no blood had fallen from the other heads, but from this it fell profusely. The hisses and groans of the crowd were repeated on this occasion, while the head was deposited in the coffin which contained the sufferer's body.

The executioner and his assistant now proceeded to cut down the last of the sufferers, Brunt. The block was placed at the head of the fifth coffin. The blood which had stained the block was wiped off with the saw-dust, and, the rope being cut, they attempted to lift the body to the place where the last part of the sentence was to be executed, when it was found that in putting up the platform part of his clothing had been shut in with it, and held him so tight, that a considerable effort was necessary to disengage the remains of the wretched culprit. He was placed in the fifth coffin.

His miserable and cadaverous countenance presented but a ghastly spectacle while he was alive; but dead, its aspect was little less than terrific; and the dark hair which overhung his forehead came in frightful contrast with the purple hue produced by the agonies of death.

The masked executioner, while performing his duty, happened to let the head fall from his hands on the saw-dust. The howlings and groans of the spectators were again heard at that moment, and amidst these the operator retired, having first handed the discoloured "trunkless ball" to the assistant executioner, who advancing, as in each of the other cases, first to the side of the scaffold nearest Giltspur-street, then to the front, and lastly to the side looking towards the Felons'-door, proclaimed aloud, "This is the head of

John Thomas Brunt, the traitor.” His head was then placed in the coffin, and thus terminated this part of the awful business of that memorable day.

The execution occupied an hour and eight minutes. It was a quarter before eight when Thistlewood walked up the steps leading to the fatal platform; and it wanted seven minutes to nine when the head of Brunt was placed in the coffin.

From the manner in which the last part of the execution was performed very little blood was seen on the scaffold. The bodies being placed almost in a sitting attitude in their coffins, the blood could not flow copiously from them at the moment the heads were taken off. It was not till they were laid in a horizontal position that the vital stream could escape freely from the heart.

The person who wore the mask, and who performed the ceremony of decapitation, is said to be the same person who beheaded Despard and his associates. This, however, may be doubted, as, from the quickness and spring of his motions, he seemed to be a young man. His mode of operation showed evidently that he was a surgeon. In performing his dreadful duty, the edge of the first knife was turned by the vertebræ of Thistlewood, and two others became necessary to enable him to finish his heart-appalling task.

The coffins containing the remains of the sufferers were left on the scaffold but for a few minutes after the sentence of the law had been carried into effect. While there they continued open. At nine o’clock they were conveyed into the prison by the Debtors’-door, and this dreadful scene being thus ended, the crowd began peaceably to separate.

In such an immense assemblage, as might be expected, some accidents occurred through the dreadful pressure of the crowd. Some women (and it is painful to record that many women were among the crowd) were brought out fainting, and a boy was severely hurt by the falling of a part of the railing in front of St. Sepulchre’s church. The persons whose weight

brought down the railing from the stone base in which it was planted, were thrown on the shoulders of those beneath them, and caused great confusion at the moment, but no more serious accidents occurred than the injury received by the boy above-mentioned.

In addition to the military arrangements on this awful occasion, which we have incidentally mentioned, it was thought necessary to adopt the following precautionary measures, that should any thing like a breach of the peace be attempted, it might be crushed in its infancy; and it is a pleasing part of our duty here to record the prudence which gave rise to these measures, the very excellent and effectual manner in which they were carried into execution, and, above all, the exemplary conduct of the soldiers who were on duty throughout the morning, although they were at times severely, and indeed unavoidably pressed upon by the crowd. The Life Guards were incessantly attentive to prevent their horses from doing any injury, while occasionally driven out of their position by the momentary agitation of the persons immediately near them.

At a very early hour, the neighbourhood of Blackfriars-bridge, being the place appointed for the rendezvous of a considerable number of troops, presented a very novel spectacle. At five o'clock in the morning, six light field-pieces of flying artillery arrived in front of the livery stables, near Christ Church, escorted by the usual complement of men. They drew up in the centre of the street, and remained there until after the execution took place.

At a still earlier hour, three troops of the Life Guards arrived in the neighbourhood of Newgate; one troop and a picquet remained near the scaffold; another picquet was stationed in Ludgate-hill, facing the Old Bailey; and the remaining troop drew up in Bridge-street.

The moment the prisoners were about to be brought out to the scaffold, an officer rode from his station in front of Newgate, communicated with the picquet on Ludgate-hill, and then rode on to the troop in Bridge-street, to whom he immediately gave the word of command to advance. The troop instantly followed the officer, and proceeded onwards until they joined the

picquet on Ludgate-hill, with which they halted, and formed in a line, still facing the Old Bailey.

The flying artillery, near Christ Church, also made a movement in advance just at the same time, and formed a crescent across the road; the guns pointing towards the bridge.

The City Light Horse were under arms, in their barracks in Gray's-Inn-lane, and a number of troops were stationed at various depôts, assigned them at convenient intervals throughout the metropolis.

A little before ten, the multitude having completely dispersed, the detachments marched off to their respective barracks.

DISPOSAL OF THE BODIES.

On the day of execution the friends of the families of the unfortunate men who were executed met at a public-house, and after some discussion upon the subject of raising a subscription for the wives and children of those who were transported, as well as of those who were hanged, adopted a resolution to apply through Lord Sidmouth for leave to take away the bodies of the deceased from Newgate.

The following petition was accordingly drawn up, in the names of the widows of the wretched criminals, and forwarded to Lord Sidmouth, to be by him delivered to his majesty:

To His Most Gracious Majesty the King.

“SIRE,

“The Petition of Susan Thistlewood, Mary Tidd, Mary Brunt, Celia Ings, and Sarah Davidson, humbly sheweth, That your Petitioners are

the widows of the unfortunate men who this morning suffered the dreadful sentence of the law at the Old Bailey.

“Your petitioners most earnestly entreat your Majesty to grant them one consolation, by restoring to them the mangled remains of their late unfortunate husbands, that they, your petitioners, may shed a silent tear over their mutilated remains, ere they are consigned to the tomb.

“We are confident that all desire of further vengeance has ceased, and that your Majesty will be graciously pleased to order the restoration of the bodies to your humble Petitioners, that they may have them decently interred; and your Petitioners will, as in duty bound, for ever pray, &c.

(Signed)

“SUSAN THISTLEWOOD,

“MARY TIDD,

“MARY BRUNT,

“CELIA INGS,

“SARAH DAVIDSON.”

The petition was accompanied by a request to his Lordship that the bodies might be given up to the friends of the deceased, and stating, that the object was the humane one of raising the means of support for the wives and children by a public exhibition.

It is almost unnecessary to state that Lord Sidmouth did not hesitate to refuse the request, a compliance with which would be attended with great inconvenience at least. His lordship stated, in the mildest terms, the impossibility of granting it, contrary as such compliance would be to established usage.

At a late hour in the evening, the wives of the executed men were informed by the keeper of Newgate, that the bodies of their husbands were buried.

In the course of the afternoon a channel had been dug alongside of the subterraneous passage that leads to the cells, and, about seven in the evening, after the coffins had been filled with quick lime, they were

strongly screwed up, placed in a line with each other, strewed over with earth, and finally covered with stones, and of course no trace of their end remains for any future public observation. On this circumstance being communicated to their unhappy wives, they were entirely overcome by the poignancy of their feelings.

On the following morning an individual petition was forwarded to the Privy-Council on the part of Mrs. Thistlewood, and was presented to his Majesty, for the body of her husband. A laconic answer was almost immediately returned, "That Thistlewood was buried."

Transportation of the respited Traitors, Discharge of the suspected Persons, &c.

VERY early in the morning of Tuesday, the 2d of May, the day following the execution of their partners in crime, five of the respited traitors, namely, Wilson, Harrison, Cooper, Strange, and Bradburn, were removed from Newgate in three post-chaises, and conveyed under a proper escort to Portsmouth, where they were put on board a convict-ship, which soon after sailed for New South Wales.

Gilchrist was still detained in Newgate, but it was expected his confinement would not be of long duration; the peculiar circumstances of his case having excited a feeling of mercy towards him.

On Saturday the 6th of May, the following persons, whose arrests on suspicion we have previously mentioned, were placed at the bar of the Old Bailey, previous to the adjournment of the court, viz. Thomas Preston, William Simmons, Abel Hall, Robert George, William Firth, and William Hazard. The prisoners being addressed by order of the court, and informed that, as no prosecutors appeared against them, they were discharged, bowed respectfully, and departed, with the exception of Preston, who made an attempt to address the Court, but was immediately silenced.

We have now completed, as far as the individuals arrested were concerned, our narration of the whole of the proceedings relative to the horrid

conspiracy, which at one time threatened such awful consequences; but as many circumstances connected with the personal history of the conspirators have been brought to light in the course of the proceedings, which could not well be interwoven in the history of their crimes, we have added in an APPENDIX such particulars respecting the principal actors in this dreadful tragedy, as we have been able to collect, from a conviction that every circumstance connected with the lives of the ferocious criminals will be considered as interesting.

The infamous Spy and instigator, GEORGE EDWARDS, has also been frequently named as playing a very prominent part in this horrid drama, and, independent of the disclosures of his criminal conduct, incidentally made in the course of the judicial proceedings against the conspirators, the answers given by Thistlewood to the questions put to him by Mr. Alderman Wood, on the morning of the fatal first of May, imparted a certain degree of interest to every circumstance connected with that vile character, and a feeling of indignation, horror, and disgust, was excited in the public mind relative to this consummate villain, which had never been equalled but in the sensation caused by the first discovery of the plot itself.

Consonant with these feelings were the proceedings instituted by Mr. Alderman Wood, both in and out of Parliament, for the apprehension and bringing to trial of this worthless wretch on charges of diverse acts of high treason alleged to have been committed by him; and although we stop not to inquire whether the protection from the consequences of his crimes, experienced by this fellow, be justifiable, or otherwise, we shall certainly be rendering an acceptable service to society and to future generations, in tracing this serpent through all his intricate paths of villany, and cautioning the thoughtless and unsuspecting from becoming the dupes of similar villains, (if any such exist) in their intemperate moments of political animosity.

With this view we have collected all the particulars attainable of the conduct of this arch-fiend both in public or private, as an appropriate addition to the lives of his partners in crime, and, perhaps, in some respects, the victims of his villany.

FOOTNOTES:

[2] See Newgate Calendar, Vol. 3.

[3] See Newgate Calendar, Vol. 2.

APPENDIX:

CONTAINING

Brief Sketches of the Lives of the Executed Conspirators, with copies of their Letters; an account of the infamous George Edwards, the Spy; the efforts made to bring him to justice, and the Parliamentary Proceedings thereon; with other particulars relating to the Conspiracy.

ARTHUR THISTLEWOOD.

In page 70, of the preceding narrative, we have briefly touched on the history of this ill-fated man, and we now add some further particulars relating to him.

Very early in life he manifested idle and unsettled habits, and remained a burden on his family until the period of his obtaining a commission in the Militia, soon after which he married a young lady of property; but even that step, so promising in the outset, was pregnant with future troubles. Thistlewood had supposed her fortune to be at her own disposal, but it was in fact so settled, that she received the interest only during her life, and the principal, at her death, reverted to her relations. Sixteen months after their marriage, she died in child-bed, and Thistlewood was left almost without a shilling of her property.

* * * * *

In London he formed an acquaintance with a number of young military officers; was introduced into all the vices and dissipation of the metropolis, and gave loose to his passion for intrigue and gaming. On one night he was filched by a notorious black leg, and some of his companions, at one of the *Hells*, in the neighbourhood of St. James's, of upwards of 2,000*l*. His money being nearly all gone, he fled in despair. Legal proceedings were

commenced to recover the amount; but, owing to some informality in the pleadings, it was not recovered; and, soon after, those who had pigeoned him left the kingdom.

* * * * *

In France his evil genius still followed him; on one occasion, having an improper passport, he was detained by the police, and during his detention, a circumstance occurred which produced him a long period of confinement. He had always expressed himself a hater of oppression and injustice. An Englishman, named Heely, was arrested for being without a passport, and conveyed to the same prison where Thistlewood was confined. Upon Thistlewood and Heely receiving orders from Paris for their liberation, Heely used some insulting language to the officer who brought him to prison; the officer struck him with a cane, and Thistlewood knocked the officer down with his clenched fist.

In consequence of this outrage, they were thrown into close confinement, and lay there for several weeks before they were able to obtain their final liberation.

Thistlewood having obtained a passport, then went to Paris, having sufficient knowledge of the French language to be able to converse. He entered the French service, and was present during the perpetration of numberless atrocities by the French troops.

Although a man of but middling talent, he had a considerable knowledge of military tactics; was an excellent swordsman, and always fearless of death.

He entered a regiment of French grenadiers, and was at the battle of Zurich, commanded by General ——.

After a variety of adventures in France and on different parts of the Continent, he returned to England, and became possessed of a considerable estate, by the death of a relation; which he subsequently sold to a gentleman at Durham for 10,000*l*.

He felt inclined to settle himself, and courted Miss Wilkinson of Horncastle. The gentleman to whom he sold his estate, instead of paying him the money, gave him an annuity bond, agreeing to pay him 850*l*. per annum for

a number of years. In eighteen months this purchaser became a bankrupt, and Thistlewood was again reduced, not to want or poverty, but his finances were at a low ebb.

Thistlewood's father and brother, both of whom now reside and are most respectable farmers in the neighbourhood of Horncastle, assisted him to take a farm; he continued to occupy it till he found he was losing annually a considerable sum, in consequence of the high rent and taxes, and farming produce being very low; he then parted with it. He came with his present wife and son to London, and formed an acquaintance with the Spenceans.

The Evanses were his constant companions; he took young Evans to France, paying all expenses for near twelve months; and since his return his history is but too well recorded in the annals of crime.

The son who took an affecting leave of him in prison, is not the offspring of the first marriage, but a natural child of Thistlewood's, whom his second wife (the present widow) took under her care shortly after her marriage, and to whom she has shown great kindness. By the widow he had no issue.

The following lines are said to have been written by him while under sentence of death in Newgate:—

Oh what a twine of mischief is a Statesman!
Ye furies! whirlwinds! and ye treach'rous rocks!
Ye ministers of death! devouring fires!
Convulsive earthquakes! and plague-tainted air!
Ye are all mild and merciful to him!!

RICHARD TIDD

Was born at Grantham, in Lincolnshire. His age at the time of his execution was forty-five. He was apprenticed to Mr. Cante, of Grantham, but quitted his situation at sixteen years of age. He then went to Nottingham, where he lived two years and a half; from thence he came to London, where he resided several years. He thought it prudent to retreat into Scotland in 1803, and he stopped there for five years.

This flight was made in consequence of his having voted for Sir Francis Burdett, at the Middlesex election, when the Honourable Baronet was opposed by Mr. Mainwaring. Tidd swore that he was a freeholder—the fact being otherwise, and fled to avoid prosecution for perjury. A reward of 100*l.* was offered for his apprehension.

On his return from the north, he went to live at Rochester, and for nine years worked at his trade of shoemaker in that town. He was engaged in the conspiracy for which Colonel Despard suffered; but a temporary absence from town preserved him from sharing the same fate.

His last stay in town commenced on the 10th of March, 1818. From that time he attended all Mr. Hunt's meetings, public and private, and was present at all the subsequent Radical meetings. He was introduced to Edwards by Brunt, at his own residence, Hole-in-the-Wall Passage, Baldwin's-gardens. Edwards's assumed violence suited his disposition, and he eagerly closed with every proposition, however desperate.

It was a most extraordinary circumstance that he had constantly an impression on his mind, for the last twenty years, that he was to be hanged. He frequently expressed to his wife that he should die on the gallows, who felt distressed at his entertaining such an idea, but he would still persist that such would be his fate. He was unhappily too good a prophet, and thus a life of irregularity terminated in the most ignominious manner.

Mrs. Tidd is a very decent woman; Tidd has left a brother and one daughter to deplore his fate.

Tidd, during the war, enlisted into more than half of the regiments under the crown, and received the different bounties. It is astonishing how he escaped detection; he was always in disguise when he enlisted, and, as soon as he had obtained the bounty, he deserted. When he had spent the money, he enlisted into another regiment.

It will be evident from this account, that the statements of his uniform good character and conduct published at the period of his first arrest, for the crime of which he was ultimately found guilty on an impartial trial by a Jury of his countrymen, were put forth by some zealous friend to produce a favourable impression on the public mind in his behalf.

JAMES INGS

Was a native of Hampshire. His relations were respectable tradesmen. He has left a wife and four children. Ings was a butcher at Portsmouth, and at the time of his marriage had a handsome property, consisting of several houses, and some money in the funds.

Trade growing bad at the termination of the war, and his property having decreased, some of his tenements were sold, and he came up to London about eighteen months ago, with a little ready money, produced by the sale of a house, and opened a butcher's-shop at the west-end of the town. He could, however, get no business, and in a few months gave up the shop, and, with a few pounds he had left, he opened a coffee-shop in Whitechapel.

Business becoming dull there, he was involved in great distress, and at last was compelled to pawn his watch to enable him to send his wife and children down to Portsmouth to her friends, to prevent their starving in London.

At the coffee-house in Whitechapel he sold, besides coffee, political pamphlets, with which he was supplied by Carlile, of Fleet-street. Having given up the shop, and finding that there was no prospect of supporting himself and his family with credit, he gave himself up to despair. He had read the different Deistical publications during the time he sold political pamphlets, and, from being a churchman, he became a confirmed Deist.

He was a most affectionate husband and father; and his desperate situation, no doubt, was a principal cause of his joining the Cato-street plot.

Edwards, Adams, Thistlewood, and Brunt, had frequently visited Ings during the time he kept the coffee and political-pamphlet shop, and when he was in more desperate circumstances, he became a fitter companion for persons engaged in such an atrocious crime as the one for which he suffered the sentence of the law.

For some weeks before the Cato-street discovery, Ings was in the utmost distress, quite penniless, and the money he was supplied with to subsist upon was given him by George Edwards. Ings was also supplied with money by the same person to take an apartment, where arms and ammunition could be safely placed. He took a room in the house where Brunt lodged, and thither the greater part of the ammunition and arms was conveyed by Edwards, Adams, and himself; indeed, it was the depôt of the conspirators.

The following Letters were written by Ings in Newgate, the night before his execution:

TO HIS WIFE.

“My dear Celia,—I hardly know how to begin, or what to say, for the laws of tyrants have parted us for ever. My dear, this is the last time you will ever

hear from me. I hope you will perform your duty without delay, which is for the benefit of yourself and children, which I have explained to you before. My dear, of the anxiety and regard I have for you and the children, I know not how to explain myself; but I must die according to law, and leave you in a land full of corruption, where justice and liberty has taken their flight from, to other distant shores. My dear, I have heard men remark that they would not marry a widow, not without her husband was hanged. Now, my dear, I hope you will bear in mind that the cause of my being consigned to the scaffold was a pure motive.

“I thought I should have rendered my starving fellow-men, women, and children a service; and my wish is, when you make another choice, that this question you will put before you tie the fatal knot. My dear, it is of no use for me to make remarks respecting my children. I am convinced you will do your duty as far as lies in your power. My dear, your leaving me but a few hours before I wrote these few lines, I have nothing more to say. Farewell! farewell, my dear wife and children, for ever! Give my love to your mother and Elizabeth. I conclude a constant lover to you and your children, and all friends. I die the same, but an enemy to all tyrants.

“JAMES INGS.”

“PS. My dear wife, give my love to my father and mother, brother and sisters, and aunt Mary, and beg of them to think nothing of my unfortunate fate; for I am gone out of a very troublesome world, and I hope you will let it pass like a summer cloud over the earth.”

“Newgate, 4 o’clock, Sunday afternoon,
April 30, 1820.”

TO HIS DAUGHTERS.

“To my dear daughters.—My dear little girls, receive my kind love and affection, once more, for ever; and adhere to these my sincere wishes, and recollect though in a short time you will hear nothing more of your father, let me entreat you to be loving, kind, and obedient, to your poor mother,

and strive all in your powers to comfort her, and assist her whilst you exist in this transitory world, and let your conduct throughout life be that of virtue, honesty, and industry; and endeavour to avoid all temptation, and at the same time put your trust in God. I hope unity, peace, and concord, will remain amongst you all. Farewell! farewell, my dear children! Your unfortunate father,

“JAMES INGS.”

“To Wm. Stone Ings,
and his Sisters.”

TO HIS SON.

“My little dear boy, Wm. Stone Ings, I hope you will live to read these few lines when the remains of yr. poor father is mouldered to dust. My dr. boy, I hope you will bear in mind the unfortunate end of your father, and not place any confidence in any person or persons whatever; for the deception, the corruption, and the ingenuity in man I am at a loss to comprehend: it is beyond all calculation. My dear boy, I hope you will make a bright man in society; and, it appears to me, the road you ought to pursue is, to be honest, sober, industrious, and upright, in all your dealings; and to do unto all men as you would they should do unto you. My dear boy, put your trust in one God; and be cautious of every shrewd, designing, flattering tongue. My dear boy, be a good, kind, and obedient child to your poor mother, and comfort her, and be a loving brother to your sisters. My dear boy, I sincerely hope and trust you will regard these my last instructions. Yr. loving and unforte. father,

“JAMES INGS.”

“Newgate, Sunday Night, 8 o’clock,
April 30, 1820.”

The following petition to the King was written by Ings, the day previous to his execution, it contains a repetition of some of the facts urged by him in his defence, but of course produced no effect in his favour.

THE HUMBLE PETITION OF JAMES INGS, TO THE KING.

I was born near Waltham, in Hampshire, but I have lived ever since I was about fifteen years of age at Portsea, and every one that knows me knew no harm of me; and the masters that I have lived with sent me a character for me to give to the Jury, but the Jury never saw the character.

I married a girl that I loved, and she had a little property, and I continued working till I could get nothing to do, and I went into business, and it turned out very unfortunately, and I lost a great deal of money, not through drinking and gambling, for I never went to a public-house in my life but to smoke my pipe, or for the sake of company. I can assure your most gracious Majesty, that I never was tipsey but three times in my life, and that was not through the love of liquor.

The times being so very bad at Portsea, and I had nothing to do, me and my wife made up our minds to come to London: me and my family left Portsea the beginning of May 1819. I thought when I came to town I should get a situation, but to my sad disappointment I soon found all my hopes was blasted. I tried every means I was master of to get employ for the support my family: I did not know how to act, for it was not my intention when I came to town to enter into business, I had a little money by me, for me and my wife mortgaged her property—a house I mean—to the full value of it, if it was to be sold now.

I went and took a butcher's shop in Baker's-row, Whitechapel-road, and I carried on business from Midsummer to Michaelmas. When I came to look over my little stock of money, I found it was very much reduced, and the summer being so very hot, was very much against me; and after I had paid my rent, and a few little bills beside, my money was nearly all gone.

I left Baker's-row at Michaelmas, and I took a house in Old Montague-street, Brick-lane, and I fitted it up for a coffee-house, and then my money was gone. It did not turn out to my expectation, for I did not take money enough, if it had been all profit, to keep my family. I persuaded my wife to

return to Portsea with the children: the reason was, I thought she had better be among her friends without money than in London.

I remained in the house a short time after my wife had left me: there was a man used to come frequently and take a cup of coffee, and he used to enter into conversation about the Manchester massacre, and Government, &c. I did not make but very little reply, for I took him to be some officer.

After I had left my house, I met him in Smithfield-market; he said I have caught you out, I shall make you stand treat. I am sorry it is not in my power, for I am very short at present; if I do not get some work very shortly, I must sell my few things. What have you to sell? A sofa-bedstead—it is the best piece of furniture I have. I should like to see it; if I like it I will buy it, and give you as much as any person will. I took him to my lodging, No. 20, Primrose-street, Bishopsgate, and shewed him my sofa, but it did not suit him, and he took me to a friend of his, a broker, to buy my sofa, but it did not suit him, and we parted early in January.

I met him in Fleet-market, and he asked me how I did? I told him I was very low in spirits: come, he says, have a glass of gin—that will rise your spirits. No, I thank you, I never drink so soon in the morning. We walked up Fleet-street, and we went and bought the very sword that was produced in the Court, and I took it to the cutler's, and I left my name.

If I had known at that time what was going to be done, I am sure I should not have left my name. He took me to the White Hart, and gave me beef-steaks, &c. for my dinner, and I thought he was the best friend I had, for he used to give me victuals and drink when I was very short; and this was Edwards that introduced me to the party, which I never should have known if it had not been for him.

There have been a great deal more said about me in the Court than is true, but it is of no use for me to try to contradict what has been said. I never was at a political meeting in my life not before this time, and I can assure you it was through Edwards, and the anxiety for my wife and family, which brought me to this sad unfortunate situation. I can assure your most high and mighty and gracious Sovereign, that I have been a true and faithful subject till now, but being in distress, and hearing the language I did, when irritated, took advantage of my distressed situation.

I know not what to say or how to address a King, but I hope your most gracious Majesty will spare my life—life for the sake of family—for I was not the inventor of this plot.

I shall in future, if your most gracious Majesty spare my life, be a true and faithful subject.

JAMES INGS.

WILLIAM DAVIDSON

Was born in the year 1786, at Kingston, in Jamaica. His father was Mr. Attorney-General Davidson, a man of considerable legal knowledge and talent. He had several children.

William, his second son, was sent to England when very young, for the purpose of receiving an education suitable to the rank of his father, and his own prospects. His mother was a native of the West-Indies, a woman of colour: she opposed her son being sent to England; but her husband was resolved: he wished William to be brought up to his own profession—the law. William was therefore sent to Edinburgh to be educated.

Having learned the first rudiments of education, he was sent to the academy of Dr. —, where he studied mathematics. Having left school, he went to his father's agent, a friend who resided near Liverpool.

After some time he was apprenticed to a respectable attorney at Liverpool, at whose office he remained near three years, when he became tired of confinement. He had for some time felt great inclination to go to sea, and the captain of a vessel, to whom he disclosed his wishes upon the subject, promised to take him out as his clerk on his next voyage.

Without taking leave of the gentleman to whom he was articled, he entered on board the merchant vessel, and soon had cause to repent, for after the vessel had left the port, he was compelled by the captain to perform duty.

On the voyage a king's ship stopped the vessel, and impressed Davidson and many of the crew. He arrived in England about six months afterwards, and wrote to his father's friend a supplicatory letter. His father's friend sent for him, and at his own particular desire, apprenticed him to a cabinet-maker, in Liverpool.

Davidson was a personable young man, and was upon the point of marriage to the daughter of a respectable tradesman at Liverpool; but her friends sent her off, and prevented the match taking place. Davidson being somewhat disappointed, determined to leave England, and to visit his relatives at Kingston, in Jamaica.

He took a passage on board of a West India merchantman, and on his voyage again experienced the misfortune of being impressed into the King's service. He took the first opportunity of running away from the vessel on its arrival in port, and having obtained some money from his friends, he got work at his trade as a journeyman.

About twelve months after, his mother allowed him two guineas per week, which was paid him regularly through her agent. Davidson was employed by Mr. Bullock, a cabinet-maker at Litchfield. He was a most excellent workman, and was able to get three or four guineas a week, being a man of considerable taste in his profession, and chiefly employed in fitting up the houses of noblemen and gentlemen in the neighbourhood.

With his mother's allowance he was able to live and dress very genteelly; and the company he kept was highly respectable. By some accident he met a young lady of the name of Salt, who resided at Litchfield; she was only sixteen years of age. She imbibed a strong regard for Davidson, and, unknown to her family, she allowed him to visit her. Miss Salt had at her own disposal, when of age, the sum of 7,000*l*. She communicated to her mother her passion for Davidson. Her mother objected to it; but finding that nothing could wean her from her attachment, she consented to allow Davidson to visit her daughter.

He frequently paid visits unknown to the young lady's father: the latter, however, at length obtained information of these clandestine interviews, and laid wait for him; and, as he entered the garden late one evening, he fired a pistol at his head, and the ball it contained passed through Davidson's hat. A

constable was sent for, and Davidson was taken before a magistrate, charged with attempting to commit a robbery; but upon Davidson stating the simple facts of the case, precisely as it occurred, that he was courting the daughter, with the privity of Mrs. Salt, though against the desire of Mr. Salt, he immediately set Davidson at liberty, and committed Mr. Salt to prison for shooting at him.

While Mr. Salt was in prison, he sent for Davidson, and promised him his daughter, if he would not prosecute him. Davidson did not appear against him, and he was set at liberty.

Mr. Salt afterwards repented of his promise, and, to evade the pledge he had given, he told Davidson that he would not object if he would only wait till she was of age. Davidson communicated to Miss Salt the wish of her father. She replied, "You know my sentiments towards you now. I cannot say, if I remain single till I am of age, what they may be then;" and expressed herself angry that Davidson should be inclined to agree to her father's proposal for deferring their union. Davidson had previously written to Jamaica, to his mother, and informed her of his intended union, and she had remitted 1200*l.* to a banking house in London, and placed it at his disposal.

Miss Salt was sent by her father to see a relative in a distant part of the country, and before she had been many months there, she married another suitor.

Davidson, who had entertained very great affection for the lady, upon hearing that she had broken her faith with him, went to a chemist's shop at Litchfield, and in a fit of despair, purchased some poison, and took it; he had not swallowed it long before he communicated to a friend the rash act he had committed, when the latter immediately procured a powerful antidote, which Davidson took, and which destroyed the effect of the poison in a great degree, though he was unwell for a considerable time after. When he recovered, he left the place, and took a large house near Birmingham.

With the money his mother had sent him he entered into an extensive way of business; but being, from the disappointment in his marriage with Miss Salt, rendered quite unsettled in his mind, he did not attend to his business, and in a short time the whole of his money was expended.

Previous to his acquaintance with Miss Salt, he was employed by Lord Harrowby to fit up his house, and had frequent conversations with the Noble Lord upon the plan of decorating the interior of the mansion.

After Davidson's failure in business, near Birmingham, he came to London, and was employed as a journeyman by Mr. Cox, a cabinet-maker, in the Haymarket, to whom he had been strongly recommended, by some gentlemen forming part of the congregation of a Chapel at Walworth, which Davidson frequented, and where he also made himself active as a teacher to the Sunday-school attached to the Chapel. It was during the period of his service with Mr. Cox, that the circumstance happened alluded to by Davidson on his trial, of an indelicate attack on the person of one of the female teachers at the school; but we are compelled to state, that his account of the affair is directly the reverse of the truth. The fact was, that he habitually indulged in attempts of a gross and indelicate nature on the persons, not only of the teachers, but even of the children of the school; way-laying them on their return home, particularly in the evening after their attendance on divine worship, and taking improper liberties with them. The outward sanctity of the man screened him from suspicion, and the indelicate nature of his attacks silenced for too long a period the virtuous and innocent females, who were the objects of his vile attempts; but at length his conduct became too gross for endurance, and one of the ladies communicated it to the committee. This led to enquiry, and the result was the most perfect unmasking of the hypocrite, who was expelled with contempt and indignation from that society and religious community, which he had so long disgraced by making it the means of indulging his brutal propensities.

After this detection and exposure, his conduct was more narrowly observed, and his habitual lying, prevarication, and intrigue, became notorious. Indeed he seemed to delight in evasion, and scarcely ever spoke the plain truth.

About four years ago he entered into business for himself at Walworth, and then married a Mrs. Lane, the widow of a respectable man, who had left her with four small children; for a short time he appeared to be doing well. At length trade fell off, and he was obliged to remove to London. He then took a lodging in Mary-le-bone.

He had known Harrison (one of the transported conspirators) for several years previous to his coming to Walworth, and by him he was introduced to Thistlewood, and by the latter to Edwards, the spy.

Edwards frequently called upon Davidson at his lodgings during the getting up of the Cato-street plot, and was, for several weeks before, his and Thistlewood's constant companion. Edwards breakfasted with Davidson on the morning before the Cato-street plot was discovered; and on the same evening, in the presence of Mrs. Davidson, gave him money to get a blunderbuss out of pawn.

On the Sunday night, when Davidson parted, for the last time, with his distressed wife, he expressed himself very strongly against Lord Sidmouth.

After he had kissed her, he said, "If I should betray a weakness when I come out on the scaffold, I hope the world will not attribute it to cowardice, but to my intense feelings for you and my dear children. Farewell, love! pray that God will take mercy on me, and receive my soul." Mrs. Davidson then left him.

This unfortunate woman is left with six children; four by her former husband, and two fine boys by Davidson, both under four years of age.

The following letter was written by Davidson to his wife, enclosing the notice served upon him by the solicitor for the prosecution, that the indictment for high treason had been found by the Grand Jury.

"My dear Sarah,—According to the promise your entreaties caused me to make to you concerning matters of counsel, &c.

I have sent you here the order I received last night—an order for application to either of the several justices therein mentioned, whereby an order will be granted to the applicant for the free admission of counsel, solicitors, &c. But I would rather, for my part, use such an order for you and my dear children, in preference to counsel, &c.; and would now retain my integrity

of not having any, only as it is the first time you ever ask the favour of being dictator, and as in such considerations I did grant you that request, I will not now fall from such a promise, to one whose sole interest and young family entirely depends on the result of this trial. Therefore, you can be advised how you are to act; for my own part, I am careless about it, as I am determined to maintain my integrity as a man against all the swarms of false witnesses, and I hope you will never be persuaded, or suffer the public to be led away with a belief, that I am fallen from that spirit maintained from my youth up, and had so long been in possession of the ancient name of Davidson (Aberdeen's boast), and is now become feeble. Death's countenance is familiar to me. I have had him in view fifteen times, and surely he cannot now be terrible. Keep up that noble spirit for the sake of your children, and depend that, even in death, it will be maintained, by your ever affectionate husband,

“WM. DAVIDSON.”

“Mrs. Sarah Davidson,
“12, Elliott-row, Mary-le-bone.”

The following is a copy of the letter, which he wrote to Lord Harrowby, referred to in page 357, it is evidently a rank falsehood, written in the hope, perhaps, of obtaining a respite:

“My Noble Lord,—It is with the greatest pleasure I write to inform your lordship of my innocence of the charge wherein I am shortly about to suffer death. My Lord, permit me to inform your lordship, from the personal knowledge I have of your lordship's family, it is impossible I could be guilty of the slightest intention to harm your lordship in any way. My lord, I have had the honour of working at your lordship's seat, in Sandon-hall, Staffordshire, wherein I worked for Mr. Bullock, of Rugeley, and would at any time rather lose my life in your defence than to be an accomplice to harm you, or any other man, be his condition ever so poor, much more so many illustrious persons, and among them one I had so great a respect for, from personal knowledge, as your lordship. I declare now to your lordship,

as I hope to be saved, that Edwards was the man who gave me the money to redeem the blunderbuss, which Adams carried away to Cato-street; I gave it to him not knowing of any plot: and, as I related to the Privy-Council, Mr. Goldworthy met me in John-street, Portland-road; he gave me a sword to take to Cato-street, and a bundle, which contained belts. When I found I was entrapped, I naturally attempted to escape, but never fired. I never had any pistols in my possession; and, in truth my lord, Mr. Edwards must know that I am not that man of colour that was in their party, if he will do me the justice to say so.”

JOHN THOMAS BRUNT

Was born in Union-street, Oxford-street, London. His father was a tailor: he apprenticed his only son John Thomas, at the age of fourteen years, to Mr. Brookes, a lady's shoemaker, in Union-street. He served Mr. Brookes till he was eighteen years of age, when, his father dying, his mother purchased the remainder of his time, and his indentures were given up to her, and he supported his mother for some years by his labour.

At the age of twenty-one years he articted himself to learn the boot-closing; and, in a short time became an excellent workman: A prize-boot in the shop of a tradesman in the Strand was made by him. When he was twenty-three years of age he married a respectable young woman, named Welch. On the 1st of May, 1806, she brought him a boy, who is now living with his mother. He was fourteen years of age on the day his unfortunate father suffered the sentence of the law. Brunt was thirty-eight years of age.

The following lines were written by Brunt in the Tower, upon the Secretary of State sending a letter in answer to one written by the Major, that the alleged traitors were not to be allowed knives or forks, and only to be allowed to walk on the leads an hour each day:

The Home Department's *Secrétaire*,
His orders they would make you stare;
An hour a day allowed to walk,
But mind you neither wink nor talk!
For these are gifts of human reason,
And you are adepts in high treason:
No bigger rogues on earth there be on,
For so says Edwards the *espione*!
Let them eat and drink and sleep,
But knives and forks pray from them keep,
As they'll commit assassination—
The rogues would overturn the nation!

At the bottom of the above lines were written the following couplets:

In modes of faith let graceless zealots fight,
He can't be wrong whose life is in the right.
Life's but a jest, and all things show it,
I thought so once, but now I know it!

J. T. BRUNT, *Tower of London*.

The following verses were written by Brunt, in Newgate, on the Sunday evening, after taking leave of his wife; they were inclosed in an envelope, which was addressed to his wife; it contained also a shilling, the last money he possessed, and he requested his wife to keep the shilling for his sake as long as she lived:

Tho' in a cell I'm close confin'd,
No fears alarm the noble mind;
Tho' death itself appears in view,
Daunts not the soul sincerely true!
Let Sidmouth and his base colleagues
Cajole and plot their dark intrigues;
Still each Briton's last words shall be,
Oh! give me death or liberty!
J. T. BRUNT, *Newgate, April 30, 1820.*

Proceedings relative to GEORGE EDWARDS, the Spy.

On Tuesday, the 2d May, Mr. Alderman Wood rose in his place in the House of Commons, and said, that “he had a question to bring under the consideration of the house, which he considered as one of the greatest importance, and particularly to the house itself. He might be wrong in the course which he had proposed to himself to pursue; but, if he were, the Speaker would, no doubt, instruct him what was the proper mode of bringing the matter forward. He had come to the determination of treating it as a breach of privilege; and would here very briefly state what were the facts.

“Seven persons had applied to him, in his official capacity of magistrate, for a warrant to take up a man, stated to be then resident in Fleet-street, whose name was said to be George Edwards. He immediately went into a private examination of those individuals, with the assistance of Sir W. Domville. Four of the parties deposed to some very material facts, some of which, affecting the safety of that house, he should now mention; but others, which were detailed at great length, were of too horrible a description for him to repeat.

“They involved a plot, not merely to effect the destruction of that house, and the honourable members within it, but of one of the highest personages in this kingdom, and of his majesty’s ministers also. He would, however, confine himself to the facts of the case as they regarded that house. He would read the words of the deposition.

“Some time in that year deponent saw a man, of the name of Edwards, going from one public-house to another, inviting persons to unite with him in the execution of the plots against the government, which he intended to bring forward. It then went on to state, that one of his great plots was this:—He said, ‘that he could bring into the House of Commons six or eight men very readily, and that it was not necessary that they should come in *clean*.’ By that expression he meant, that they might easily enter the House with something under their arms; for they could so come into the lobby and other parts of the House with books; no objection would be offered to their passing in with books under their arms.

“These books were to have been filled with gun-barrels, cut down to the length of four inches only, which were to be filled with gunpowder, and plugged up at both ends; and these implements being thrown down in the middle of the House, upon some occasion of a full attendance, when it would be in a very crowded state, would explode with great violence, and cause much destruction. The deposition went on to shew, that Edwards on one occasion said, ‘Thistlewood is the boy for us; he’s the one to do our work: he will very soon be out of Horsham-gaol.’ Now the evidence next showed, that, two days after, Thistlewood did come out of Horsham-gaol, and he was introduced to this Edwards at the house of Preston, the cobbler; and that which was the strongest confirmation of the whole statement, and proved it beyond all doubt, was, that Edwards did get those very books made for the purpose; and that he procured the gun-barrels, and had them cut up.

“At that time, too, he had not money enough to buy a pot of beer. All at once, however, he got supplied with cash, and was enabled to purchase several other weapons of defence, and arms, which the deponents spoke of.

“Now, this was the general substance of the depositions as they regarded that house; as to the other parts, which related to the intended taking off of

certain individuals, he had hardly satisfied himself what might be the best mode of proceeding; or whether, from the nature of the case, he might be justified in asking the House to indulge him with a committee of secrecy, in which case it would not be necessary for him to proceed with his present observations. The other details, however, which he did not at present feel it his duty to bring before the House, were of a most terrible description, and unfolded plots of the most dreadful character.

“The persons who had made the depositions were respectable persons, and not at all implicated in the late legal proceedings, as having been evidence for the crown or for the prisoners. He had had several other persons with him that same morning, who were all ready to swear that they knew Edwards to have been engaged in these plots from time to time. He had been asked by several individuals, how he intended to proceed in this case; and he could now declare, that his mind was made up to call that person (Edwards) before the bar of the house. Whether, however, he should ask for a committee of secrecy, or proceed in any other way, he was ready to bring this important business before them, and he thought that he discharged his duty in so doing. He had not thought it proper to swear those deponents to the truth of their allegations, because all the acts charged against Edwards were stated to have occurred either in the county of Middlesex or the city of Westminster. As he never interfered in such a case, he told the parties that they must go before a magistrate, either of Westminster or of the county; or else that they must apply for a warrant to Lord Sidmouth. He directed them to go to his Lordship; and promised that, upon procuring the warrant, he would get it immediately backed, so as to make it operative within the city of London.

“He thought the thing a matter of such importance that he took the depositions in charge himself; and ordered the witnesses to attend him at Lord Sidmouth’s immediately; but it so happened that his Lordship had left the place a few minutes before his arrival. He left the depositions with a person whom he had now in his eye, and had received an answer; but he did not think proper now to give it.

“The existence of such a man as this Edwards it was almost impossible to conceive. It was difficult to imagine a man, going about with all this boldness from public-house to public-house—nay, even from one private

house to another, framing and discoursing of all these plots. For his own part, however, when he looked at all the facts, he thought it clear that Edwards had become connected with the conspirators at a very early period; and he pledged himself, that, if the house should adopt any question upon the subject, he would bring forward such evidence as must convict the man. It was only to be apprehended that he was not, perhaps, in the country, which he might have quitted by this time; otherwise, no doubt, there were honourable gentlemen who were in possession of him, so that he might be produced. He, therefore, felt it his duty, under all the circumstances, before he sat down, to move, ‘That George Edwards be immediately brought to the bar of this house.’”

Mr. BATHURST objected to the motion, on the ground that an individual charged with such high crimes as those imputed to Edwards, was an improper person to be brought to the bar of the House of Commons, on the charge of a breach of privilege; but stated that there was no doubt, if the question was brought before the House in a proper shape it would be entertained.

Mr. Alderman WOOD in reply said, “that he certainly set out with intimating that he saw great difficulties in this question, but was, indeed, quite happy to hear it observed, that if the business were brought before the House properly, the House would properly entertain it. He thought it right to state, that he had applied to another quarter, to get the individual in question prosecuted, but in that application he had been disappointed.

“When he first read over the depositions, which were of a nature, he was sure, to make every man shudder with horror, he thought that not a moment was to be lost in taking Edwards up, if he could be found; and, he took it for granted that he could be found; for he was known to have been in the possession of certain persons for a long time. His plots were truly diabolical; and from the evidence it could be proved, beyond contradiction or dispute, ‘that Edwards was the sole plotter and founder of the whole Cato-street plot.’ At present knowing of no other way than the motion he had suggested by which the man might be brought to justice, he should leave the matter in the hands of the House.”

A short debate on the question then ensued, but it appearing that the charge could not regularly be entertained by the House as a breach of privilege, Mr. Alderman Wood was induced to withdraw the motion for the present.

On the 9th of May the worthy Alderman, having newly-modelled his motion, so as to move for a committee of secrecy to examine the depositions in his possession, again called the attention of the House to the subject. He commenced by stating that “in bringing forward the motion, he had no object in view but the furtherance of justice, no end to attain but the elucidation of certain extraordinary facts. He had not willingly embarked in this business, which he wished to have been taken up by his Majesty’s ministers. He had done all he could to induce the Secretary of State for the Home Department^[4] to bring to trial and to punishment the individual whose name was so intimately connected with the late conspiracy. He had done so as a magistrate.

“In consequence of information which he had received, he deemed it necessary to lay before the Secretary of State all the documents he could collect on the subject of Edward’s proceedings; and he produced a number of persons who were ready to swear to the matters contained in their depositions. He farther added, in his correspondence with the Secretary of State, that he was then enabled to bring forward a considerable body of evidence in support of what had previously been alleged. He had attentively looked over a vast number of depositions, which appeared to him to be of great importance. He had brought down about thirty of them; and he craved the indulgence of the house while he read over the whole of this evidence, preparatory to his moving for a secret committee. His only wish was that a secret committee should be appointed; and if the House at once agreed to it, he should be quite contented with that result.

“If he could show that Edwards was the person who directed that plot—if he could show that he was going about for two years endeavouring to effect it—if he could prove that it was Edwards who purchased the swords and the arms of all kinds—if he could prove, by good evidence, that it was he who made the instruments of destruction which were produced on the trial, and others which might now be produced—he thought it would be quite impossible for the House to refuse his motion. He could substantiate all this by evidence—by the evidence of persons whose characters could not be

impeached. He could bring forward witnesses, who had lived four, five, and six years with their employers, from whom they had received the best of characters. They stated, that Edwards had called on them at different times, and had endeavoured to seduce them: that he had drawn them into public-houses—that he had made purchases of arms—and that he had sent arms to their houses, they not knowing from whom those arms came, until subsequent evidence made them acquainted with the fact.

“He had traced this man during a period of five years, although his motion was confined to two. Some years ago he was living at Windsor, and some favour was shown to him by persons about the Castle. He was employed as a modeller in plaster-of-Paris[5]. Sometimes he was in deep adversity, at other times his circumstances were better. At one period he was walking about the streets selling his busts, without shoes or stockings; and all at once he became comparatively rich. To account for this, he stated that he was the relation of a German count, from whom he had received some money; in obtaining which, he said, he was assisted by Lord Castlereagh. This circumstance was sufficient to excite suspicion in any rational mind.

“He would also prove that Edwards had been long connected with the police-officers. This was a point which certainly must be considered as very important. He pledged himself to show that Edwards was in connexion with a police-officer who was the intimate friend of Castles, and by whom Castles was employed to entice individuals to assist in the liberation of French officers, those individuals being immediately afterwards seized, for the purpose of procuring the reward. If he traced deeds of this description to Edwards, he contended that the committee ought to be granted. All this, doubtless, would be denied; but he was prepared to prove it, and was determined to do his duty. He had sought out the history of this man, as, on a former occasion, he investigated and exposed the conduct of three individuals who stood in a similar situation, and who, for the purpose of receiving the reward, were inciting men to the commission of crimes.

“When, at last, he brought the villany of this atrocious traitor (he could not denominate him a man) before the House—when he traced him, forming his plots—meeting individuals at an appointed place, for the purpose of carrying his schemes into execution—telling them, if they were surprised, to proceed to Lord Harrowby’s—employing himself in making those arms

which were produced on the trial—and, above all, when he proved that Edwards had brought Thistlewood to the lodging at Davis's house—that he had hired that lodging for him—that he did not cause his apprehension the night of the discovery, but that he caused his arrest the next morning, having waited until the *Gazette*, offering a reward of 1,000*l.*, was published;—when he proved all this, could they refuse a full and fair enquiry? He could incontestibly show, that Edwards told the persons engaged in the conspiracy, in case they were disturbed, to follow him to Grosvenor-square; that he accompanied a part of them on their way towards Cato-street to Holborn; that he quarrelled with one of the persons who declined going further; that when the discovery was made, he informed Mrs. Thistlewood where her husband was; that he went the next morning to Harris's, and desired him to keep Thistlewood all day, and that he would be removed at night; and finally, that he brought the officers to seize him.

“He could further show that Edwards had taken lodgings, under the assumed name of Walls, in Pimlico. He referred the owner of the house to a porter, at Buckingham-gate, for his character, who told him, ‘This is Mr. Walls, of Windsor.’ He remained at these lodgings for a considerable time with a police-officer.

“He would now proceed to the depositions:

“A person named Pickard^[6], a weaver, working for his father, deposed that he had casually met with Edwards at a public-house. Edwards called him by name, though he did not recollect having seen him before. Edwards told him “It was time the b—y thieves *was* destroyed. A number of persons, say six (he continued), might get admission into the gallery of the House of Commons, provided with tin cases, painted to represent books, and filled with pistol-barrels. One of these, provided with hemp, as a fuse, might be thrown into the House, when the members were engaged in debate.” Deponent farther said, that Edwards gave him a small steel instrument, to fix to a walking-stick. He also stated that Edwards was constantly going after him.

“Another individual, William Coudry, stated, that he attended several meetings when Edwards was present, and was informed by him, on one occasion, that a cabinet dinner was to be given at Lord Westmoreland's, at

which Lord Castlereagh would be present. Edwards said, ‘the b——y Irish butcher must be made away with.’ Coudry stated also that he had often seen Edwards afterwards preparing destructive instruments.

“A person named Seymour stated, that he knew Edwards four or five years, having met him some time ago, and he proposed that deponent should go to a meeting in Smithfield. He replied to Edwards, that he would not go, for that he was not inclined to join in those bad pranks. Edwards afterwards told this man that the meeting had not turned out to their expectation. This was a man of considerable respectability. Another man had seen Edwards at a coffee-house, in June, and was told by him that the only means was, to destroy his majesty’s ministers, by throwing hand-grenades into their carriages. Another individual was called on by Edwards on the 19th of August, three days after the dispersion of the meeting. Edwards stated to him, that Manchester was on fire, that the New Bailey was taken, and that Hunt was killed, and added, ‘Come out immediately, all are ready; we have nothing to do but rallying our forces.’ Edwards came again at eight in the evening, and said something so wicked, that the man would have nothing more to do with him.

“Edwards called on another man at his mechanical business, and asked if the men were all reformers. After coming several times he saw a sword hung up in the place, and said he would be very much obliged to him for it. The individual gave it. Edwards said, ‘you have more?’ He replied that he had not. Edwards said such swords were very cheap, and they could get them as cheap as the government. The man gave him no more, but soon afterwards a bundle was brought to him containing twenty-four swords and some pikes, and Edwards carried away a number of them under his coat, and sent for others. He said to this individual, ‘Pray come and see what we are about.’ He went, and saw Edwards in a flannel jacket, surrounded with combustibles; he saw him making cartridges and hand-grenades, and arranging all the implements of destruction. The man, who had formerly been at sea, would stay no longer.

“A man of the name of Chambers[7] was visited by Edwards, and was desired to permit him to leave there some arms. Edwards said that all was ready. He offered money to two Irishmen who came in, and brought them to a public-house, where he treated them with some drink. Mary Barker,

daughter of one of the unfortunate men, stated that the hand-grenades and other things found in her father's (Tidd's) house, were entirely brought in the night before by Edwards.[\[8\]](#)

“Another individual—he was not desired by any of those persons to conceal their names, and if any member wished for the names he was ready to give them,—the individual to whom he alluded knew Edwards; he had known William Edwards, brother of this Edwards, connected with the police, and had worked with him at the palace at Windsor. This man was conducted by Edwards to Cato-street, but when he saw the preparations there, he immediately ran away. Edwards presented his sword to prevent another from going away from Cato-street. To another person Edwards said, ‘Now is the time to destroy his majesty’s ministers, if the country is not to be ruined.’ The man replied, ‘Such a thing might do very well for a foreigner; it would not do for an Englishman.’ Edwards then got Thistlewood to come along with him to this man. Thistlewood had sold an estate to a friend of the man’s, and was therefore known to him. But the man said to them, ‘I’ll hear no more of that.’

“Another man was applied to by Edwards, on the 19th of January, and was told by him that the destruction of ministers, either in their carriages or at cabinet dinners, was determined on. He would not weary the house by detailing all the practices of this infernal person. One very long and very interesting paper in this matter, which explained the whole from beginning to end, was written by one of the unfortunate individuals who had been seduced—it might therefore be said that it was deserving of little credit. Another person stated Edwards to have been patronized at Windsor, and that he knew him to be a spy. Another person, who had been on the waggon at the Smithfield meeting, stated, that Edwards gave a hint to a person who was about to speak of what he should say—gave him a pint of beer—told him to speak out, and among other things suggested, that they were ready with fire-balls. It was a very extraordinary disclosure, and never had there been a thing devised so well. In the whole proceedings not one instance was found of one person seduced, seducing another. A was not found to have seduced B; but in all cases Edwards was the seducer.

“Of some of the papers he was not prepared to give any account, as they had come into his hands only since he came into the house; but he had

stated the facts brought forward by such persons as were sufficient to convict Edwards. He should hear, perhaps, that those persons were themselves guilty of misprision of treason; he was prepared to hear that, and to say something in reply. But that did not at all lessen the guilt of the individual who was seducing others to acts of treason. Edwards had gone on with these practices, and supplied others with money. He could prove money to have passed from Edwards to many of the deluded persons. It was remarkable that Edwards was near the spot when Thistlewood was taken in Harris's house. Whether he had received the 1,000*l.* or not, he did not know. If he had, he could now live without labour, at least without such labour as he might otherwise be dependent on.

“This was established by the testimony of a very respectable man, who kept a school in St. George's, Hanover-square, with respect to whose conduct in this business the trustees had held a meeting, and found nothing to blame. This gentleman (Mr. Fowler) was applied to by Edwards under the name of Wards, for lodgings, and Mr. Wake, who kept Buckingham-gate, said to Mr. Fowler that he was a respectable person. After he had been six weeks there, he said to Mr. Fowler, if Mr. Sheriff Parkins or Mr. Sheriff Rothwell should call for him, his name was Edwards. Mr. Fowler exclaimed, ‘Good God! have I got a spy in my house all this time?’ There had been no subscription to provide any money, except indeed a trifle for one of the persons implicated, who had been in the debtors' prison, but it was very small. There had been, therefore no money provided among them that could account for Edwards' mode of living and acting.” The worthy alderman concluded by moving, ‘That a secret committee be appointed to examine evidence touching the criminal conduct of George Edwards for the last two years, and particularly touching his connexion with the conspiracy detected in Cato-street.’

The motion was seconded by Sir Robert Wilson, and a warm and animated debate, between most of the leading members of the house ensued, in which the principle of employing spies was strongly censured and condemned by some members, and approved of and supported by others, as a justifiable measure of state policy. The question was, however, ultimately negatived.

The exertions of Mr. Alderman Wood in the House of Commons having been rendered nugatory by the rejection of this motion, recourse was had to

the ordinary means of justice, and on Monday the 22d of May, the Grand Jury for the County of Middlesex found a true bill against GEORGE EDWARDS, for High Treason, and among the witnesses examined by the Grand Jury in support of the charge were, Mrs. Thistlewood, Mrs. Brunt, and Julian Thistlewood, (the son). Mr. Harmer was authorized to offer a reward for the apprehension of Edwards, and the following advertisement immediately appeared in the newspapers:

High Treason.—One Hundred Guineas Reward.

A True Bill of indictment having been found by the Middlesex Grand Jury against GEORGE EDWARDS for HIGH TREASON, whoever will apprehend and lodge the said George Edwards in any of his Majesty's Gaols, shall, on application to Mr. James Harmer, of Hatton-garden, London, receive the above reward.

The said George Edwards is by trade a modeller; he is about 5 feet 3 inches high, thin and pale faced, with an aquiline nose, grey eyes, and light brown hair; he has lately gone by the name of Wards, and is supposed to be about to leave this country for New Brunswick under that assumed name.

The retreat of Edwards, however, has never been discovered, and the general expectation is that a free pardon will be granted to him for all acts of treason committed previous to a certain time, by which he will be secured against the consequences of the bill found against him.

The witness Hiden, and the accomplices Monument and Adams, who became evidence for the crown, are also detained in confinement, but will probably be hereafter released by a general pardon.

FINIS.

London:- Printed by W. CLOWES, Northumberland-court.

FOOTNOTES:

[4] The following are copies of letters which passed between Lord Sidmouth and Mr. Alderman Wood, on the subject:

From Lord Sidmouth to Mr. Alderman Wood.

Whitehall, April 26, 1820.

Sir,—I have to thank you for the statements of Mary Barker, Thomas Chambers, William Tunbridge, and George Pickard, which you left, in my absence, in the hands of Mr. Clive.

You are probably aware, from the list of witnesses which has been delivered to the prisoners now on their trial, that George Edwards, who is alluded to in those statements, is named in that list, and is liable to be called as a witness for the Crown; and there does not appear to me any sufficient ground for instituting any proceedings against him.

I am, Sir, your most obedient humble servant,

Mr. Alderman Wood, &c. &c.

SIDMOUTH.

To the Right Honourable Viscount Sidmouth.

My Lord,—Having brought a question respecting George Edwards before the House last evening, it is my intention to renew that question in a different form. I have received considerable information, besides those documents I left at your Lordship's office, confirming the infamous conduct of Edwards. I have, therefore, to request your Lordship will prevent Edwards from leaving the country, as I have been this day informed he is preparing to leave England for America.

I have the honour to be, my Lord, your most obedient servant,

May 3, 1820.

M. WOOD.

From Lord Sidmouth to Mr. Alderman Wood.

Whitehall, May 3, 1820.

Sir,—I have received your letter of this date, in which you request me to prevent George Edwards from leaving this country; and, in reply, I have to acquaint you, that I know of no ground which could justify me in issuing a warrant against Edwards, that being the only mode by which I could comply with your request.

I have the honour to be, Sir,
Your most obedient humble servant,

Mr. Alderman Wood.

SIDMOUTH.

To the Right Honourable Viscount Sidmouth.

My Lord,—I am honoured with your Lordship's answer to my letter of yesterday, respecting George Edwards, wherein you state, that "you know of no ground which could justify you in issuing a warrant against him." I consider that those depositions which I left at your Lordship's office, contain such charges as would fully justify your Lordship in apprehending George Edwards. Perhaps your Lordship's objections are, that they are not sworn; if so, I beg to inform you that the parties were in attendance at your Lordship's office, to give evidence, and were ready to be sworn to their statements, and are now ready, at an hour's notice, to attend your Lordship. I have also other evidence to produce.

I remain, your Lordship's most obedient humble servant,

7, South Audley-street, May 4, 1820.

M. WOOD.

From Lord Sidmouth to Mr. Alderman Wood.

Whitehall, May 4, 1820.

Sir,—I have to acknowledge the receipt of your letter of this day's date, in which I see no ground for altering the opinion communicated to you in my former letters.

I have the honour to be, Sir,
Your most obedient humble servant,
SIDMOUTH.

[5] The following account of a professional intercourse with Edwards, who strove hard to convert it into a political connection, has been published by Mr. Carlile.

“On my entering the house at 55, Fleet-street, I became the neighbour of Edwards, who previously held the little shop which bears the No. 55½ as being part of 56. Edwards was no sooner aware that I had taken 55, than he strenuously applied himself to become a tenant or lodger of mine, before I had the least idea of letting any part of the house. I had a strong dislike to his appearance, and particularly the party whom he stated himself to be connected with, which were the Spenceans, and consequently gave him no hopes that I should receive him as lodger.

* * * * *

He was in the habit of coming into the shop to purchase my pamphlets, and I soon conceived the notion of having a figure of Paine modelled; he expressed himself quite anxious for the job, and observed, that from his admiration of the principles of Paine, he would be satisfied with a small price for it. On my wishing to fix him to a price, he proposed five pounds, which would just cover the expense he should be at, without including his time or abilities: this was agreed on immediately, and he was to proceed forthwith: this happened in the latter part of February, or beginning of March.

“A few days after Mr. Edwards expressed a wish to have the money before hand, and observed, that it was usual with modellers. I hesitated, refused, and offered him one pound, which he accepted. A head, or bust, was soon ready, and I gave him three guineas further, for the copyright of it, but I could get him no further with the figure, (although I had gone to the expense of the pedestal and other requisites for it,) until the fall of the year, the whole of which time he appeared to be in a state of abject poverty,—was obliged to give up his shop, and was never to be found at home. I urged him, by continual messages, to proceed with the figure, and, in the month of September, I got him to finish it.”

* * * * *

Edwards was paid for his figure before it was finished and set up, and altogether considerably in addition to the first agreement.

“From this time he stuck very close to me, on one pretence and the other; followed me twice to Blackheath, for the purpose of modelling my likeness on his own account, which he completed in the King’s Bench Prison, without any apparent object of making any thing of it. He pleaded great poverty, and twice solicited the loan of money from me, after the figure of Paine was finished and paid for; I as often refused him, because his whole conduct had convinced me that he was both dishonest and ill-disposed. I had never the smallest idea that he was a spy, and as I know him to be in the habit of running after Thistlewood and his party, I often asked him what project they had in view, as a matter of joke.

“It was Edwards who informed me that the person who visited me in the King’s Bench Prison, in company with Davidson, was a spy, and that it was he who conveyed all the information to Lord Sidmouth and the Lord Mayor. Edwards was the fourth person who entered the room while they were there, and it struck me forcibly that there was a strange coolness and distance between the three who had frequently met together before. I had never for a moment suspected Edwards to be any thing further than an idle, dissolute character.”

[6] Our limits will not admit the insertion of all the depositions read by the worthy Alderman in support of his motion; we, however, present our readers with copies of two of them, to shew the course pursued by the infamous Edwards in entrapping his destined victims, which was nearly the same in all cases.—The following is Pickard’s deposition:

“George Pickard, 15, Hare-Street, Bethnal Green, says, I know Edwards. I first saw him before the first Smithfield Meeting. I never much associated with him, I considered him so much of a blackguard. I knew his brother also, who was secretary to the Spencean Society. I met him some time about July, at the White Lion in Wych Street; there were two or three others there. He knew me, better than I did him. He asked me how I did, and said, ‘What a pity it is, Pickard, that we can’t destroy these b—— vermin.’ A trifling conversation took place; at last, ‘I’ll tell you what it is,’ said he, ‘any body

can get into the House of Commons with an order, nor does it require that they should go clean. Suppose we have an iron case made in the shape of a book (for any person is allowed to carry in a book,) and have some old gun or pistol barrels, which may be got cheap, cut into pieces about three or four inches long: let them be plugged up at each end with lead, and the centre filled with powder, and a touch-hole made; half a dozen of cases may be made full of them, for a similar number of men to take into the House. One man might have a bottle of phosphorous, and a lighted match might be taken with a piece of a rope, without giving any alarm to the persons present, and applied to the fuse, which would communicate with the contents of the cases—they should be thrown when the House was full, from the gallery. The opportunity should be taken when some important business was going forward. ‘What b——y destruction it would make,’ said he, seemingly quite pleased, and laughing at the idea. He next said, that Thistlewood would soon be out, and he was the boy for doing business. When he comes, we will set all things to rights. After some further talk, he drew out a grenade, saying, ‘What do you think of this?’ ‘What do you call it?’ said I; ‘Oh, you are a d——d fool, you know nothing;’ and then he told me it was a hand-grenade. He asked me if I would make one of thirty or forty men for some desperate purpose, which he did not explain; but such things he added, should not be entered into without having a guard against the b——y police. Upon which he drew forth a curious instrument from his waistcoat pocket, and said, it might be put into a common walking cane by having a hole bored in the bottom, and be instantly fit for use. I told him I must know him better before I would have any thing to do with him. He replied, that Thistlewood knew him well, and that that would be a sufficient recommendation. I met Edwards and Thistlewood previous to the Cato-Street business, on the Saturday. Thistlewood asked me various questions respecting business, and after shaking hands he bid me good day. Then Edwards turned quite round, and after looking for some minutes, held his hand out to shake hands. I do not recollect the first few sentences that passed, but on parting he said, ‘You b—— Pickard, you must fight before long.’ On the following Monday two persons called at my lodgings, when I was absent, and inquired for me. One of them answered the description of Edwards. They left no message, but called again on Tuesday, but I was away; I never heard of him since then. Previous to the last time of my seeing Edwards I went to the Scotch Arms, in Round-Court, Strand, and

saw Adams and Edwards there. They both talked about destroying the Ministers, and invited me to go to a meeting, and Adams gave me a grenade, and Edwards gave me a small pike. I told Whadman of the circumstance; he advised me to have nothing to do with the business. Adams and Edwards called at my lodgings the day before the Cato-street business, but I had left.”

[Z] Chamber’s deposition, is as follows:—

“I, Thomas Chambers, say, that I am a bootmaker, residing at 3, Heathcock Court, Strand, and have been in the employment of Mr. —, shoemaker, Tavistock-street, for seven years, and still continue to work for him; that about five months ago I became acquainted with George Edwards, by meeting him by accident at the White Lion, Wych-street; that some time after he called upon me, at which I was much surprised, not knowing much of him; he at the same time talked about politics in a strange violent manner; he came to me again soon after, and held the same sort of language, saying, ‘It was nonsense talking, people must arm themselves.’ On Christmas Eve he again called on me, with several persons, among whom were two Irishmen, who were drunk, and whom I had never seen before. Edwards at this time had with him an old cavalry sword which he kept under his coat, and also a sword stick in his hand. He said to the Irishmen, ‘would not you wish to have Castlereagh’s head to carry about on a pole, for the good he has done your country.’ One of the Irishmen said, ‘He,’ meaning Lord Castlereagh, ‘is a big rogue;’ on which Edwards said, ‘Here is what will cut off his b—y head.’ One of the Irishmen said he would not enter into any thing until he was sworn. Edwards then asked me for a Bible to swear the man: I said, I will have no swearing here, and being at work, and not liking their language and noise, I bid them to leave my house, and they went away. Edwards called on me again about a week after, much against my wish, and held forth, in violent language about the government, and said, ‘that after the tyrants (meaning ministers) were cut off, Hunt and Cobbett must go to pot.’ Finding I did not like their language, he went away. About a fortnight before the Cato-street business, Edwards called on me, and said to me, ‘the tyrants must fall,’ and added, ‘all must come together armed, and you must come with your sword and pistol, as I suppose you have got them.’ I told him I had nothing of the kind: he then said that I should not want for them. Some short time after this he came to

my lodgings quite down in spirits, and said he could not find any one to have courage to join, and he had a great mind to cut his throat. A short time after this Edwards came again with two men, and in good spirits, and said, 'I suppose you will go with us, you know what I mean;' I answered, I do not; he said, 'you are not such a fool, as not to know there is something on foot, we mean to destroy ministers.' I answered, that I would not be in such a Despard's business. He then clapped his hand on the wall of the house, and said, 'this is all lath and plaster, and you shan't be safe, we'll blow you out of your bed.' I did not see Edwards after this till Monday, the 21st of February, when he came, in company with a very tall man, who had a cast in his eye, and Edwards had a large bag with him, which he requested me to allow him to leave in my room. I asked him what it contained, he replied, 'Oh! only a few pistols, and such like.' I instantly bid him take them away, that I would have nothing to do with such things in my place. He urged me very much to permit the bag to remain, but I would not. I again told him I would on no account have any thing to do with such things, and immediately made him take the bag away, assisted by the persons who came with him. Since then I have seen nothing of Edwards."

[8] See Mary Barker's evidence on the Trials, pages 191, 277,315.

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